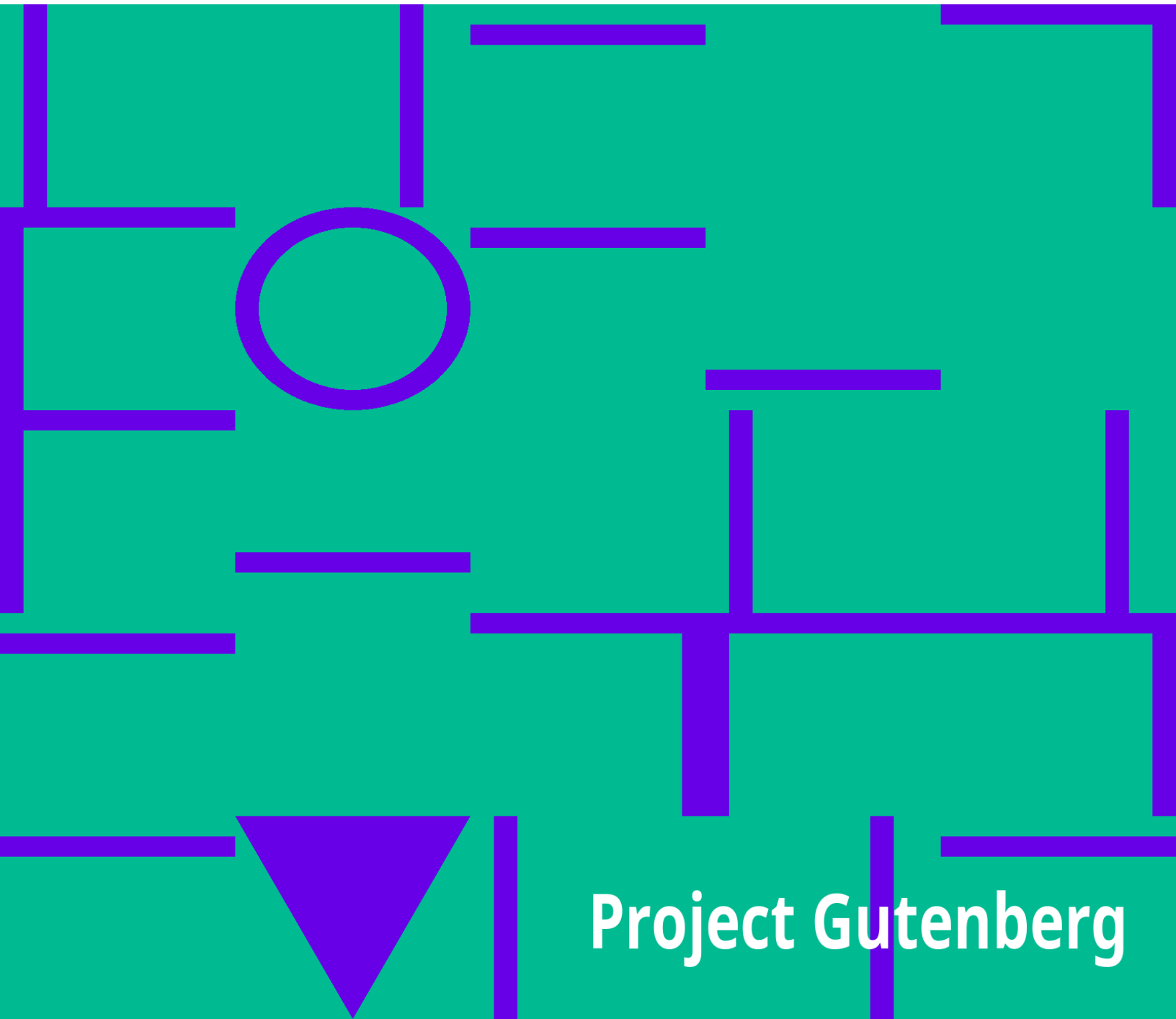


The Power of the Popes

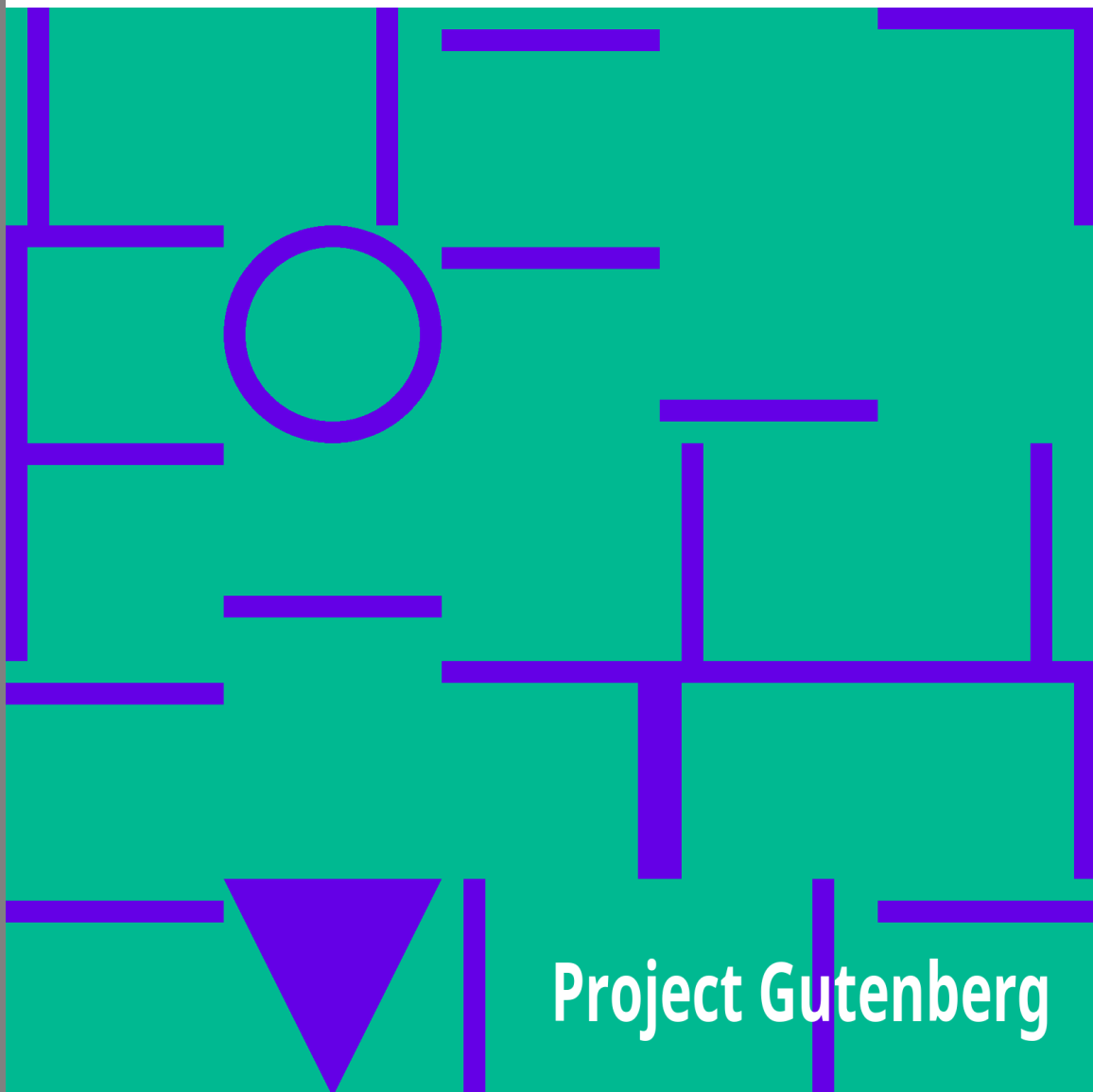
P. C. F. Daunou



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The Power of the Popes

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THE POPES ***

THE POWER OF THE POPES

By

Pierre Claude François Daunou

AN HISTORICAL ESSAY ON THEIR TEMPORAL DOMINION, AND
THE ABUSE OF THEIR SPIRITUAL AUTHORITY

Two Volumes in One

1838

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TO
THE REV. RICHARD T. P. POPE,
AT WHOSE SUGGESTION IT WAS UNDERTAKEN,
THIS TRANSLATION
OF
THE PAPAL POWER
IS INSCRIBED,
AS A SMALL TRIBUTE OF RESPECT AND REGARD
BY
HIS AFFECTIONATE FRIEND,
THE TRANSLATOR.

TRANSLATORS PREFACE

THE Work of which the following is a translation, had its origin in the transactions which took place between Pius VII. and the French Emperor, relative and subsequent to the restoration of the Roman Catholic religion in France. Its object appears to have been, to exhibit to the world the unreasonable pretensions of the Roman Court, and to appeal to public opinion for support in resisting claims deemed incompatible with the independence of the civil power, and derogatory to the honour of the French throne. In pursuance of this object, an investigation was entered into, to ascertain with precision the line of demarcation which separated the recognized authority of the Papal See in France, from the rights appertaining to the civil power, and the indisputable privileges of the French Church. This investigation naturally led the enquiry up to a remote period, and the present work may be considered an epitome of the political history of the Roman Court, and of its relations with the other Courts of Europe, from the period in which its spiritual authority began to merge into temporal power, down to the occasion of the present essay in the pontificate of Pius VII.

In the former period of this enquiry, the pages of early history afforded the materials from which the requisite information was to have been derived. This source was open to all; and the merit of the work is here confined to the discrimination exercised in the selection of the scattered parts, and the judgment with which they may be found combined into an uniform whole.

In the latter period, the advantages possessed by the author were peculiar and important. Access to the papal archives appears to have opened to him abundant sources of information, which a patient investigation

enabled him to avail himself of, in applying those documents, otherwise perhaps destined to oblivion, to the illustration of the object which he had in view. These documents give to this portion of the work a peculiar interest. For, though the period to which they relate is recent, the circumstances in which Europe was placed during the transactions more immediately referred to, and the extraordinary revolutions to which both public opinion and political institutions were subjected, not only give to it the charm of novelty, but confer on it an interest similar to that derived from the dust of antiquity. Whatever the defects of the translation, it will I trust be found a valuable addition to our historical records, and a source of much useful and interesting information.

A. A. A.

Montmorenci, 1825.

ADVERTISEMENT TO THE THIRD EDITION, **ORIGINAL**

WE have introduced into this Third Edition some developments which were not in the two former. We have inserted many justificatory pieces, some of which have never before been published. These pieces, and the reflections induced by them, occupy the second volume, which is divided into three parts, containing:

1. Exposition of the Maxims of the Court of Rome, since the fabrication of the False Decretals, and especially from the time of Gregory VII. to the present day:

1. Exposition of the Maxims of the Gallican Church, from St. Louis to the Emperor Napoleon:
 2. Exposal of the actual conduct of Pius VII. with some observations on the effects it may produce.
-

CHAPTER I. ORIGIN OF THE TEMPORAL POWER OF THE POPES

WHOEVER has read the Gospel, knows that Jesus Christ founded no temporal power, no political sovereignty. He declares that his kingdom is not of this world;¹ he charges his apostles not to confound the mission he gives them, with the power exercised by the princes of the earth.² St. Peter and his colleagues are sent not to govern but to instruct³ and the authority with which they are clothed, consists only in the knowledge and the benefits they are to bestow.

Faithful to confining themselves within the bounds of so pure an apostolat, far from erecting themselves into rivals of the civil power, they, on the contrary, proclaimed its independence and the sacredness of its rights:⁴ obedience to sovereigns is one of the first precepts of their pious morality. To resist governments is, they say, to offend the Ruler of the world, and take up arms against God himself.⁵

The successors of the apostles for a long time held the same language: they acknowledged no power superior to that of sovereigns but Divine Providence itself.⁶ They subjected to kings all the ministers of the altar, levites, pontiffs, evangelists, and even prophets.⁷ God alone was, immediately and without mediator, the only judge of kings; to him alone belonged their condemnation: the Church addressed to them only supplications or respectful advice.⁸

She exercised empire only through the medium of her virtues⁹ and possessed no other inheritance than that of faith.¹⁰ These are the very expressions of the holy fathers, not only during the three first centuries, but subsequent to Constantine, and even after the time of Charlemagne.

Every one knows, that previous to Constantine, the Christian churches had been but individual associations, too frequently proscribed, and at all times unconnected with the state. The popes, in these times of persecution and of ferment, most assuredly were far from aspiring to the government of provinces: they were contented in being permitted to be virtuous with impunity; and they obtained no crown on earth save that of martyrdom.

From the year 321, Constantine allowed the churches to acquire landed property, and individuals to enrich them by legacies. Here we behold, in all probability, says the President Henault, what has given rise to the supposition of Constantine's donation.¹¹ This donation preserved its credit for such a lapse of time, that in 1478 some Christians were burned at Strasburgh for daring to question its authenticity.

In the twelfth century, Gratian and Theodore Balsamon copied it into their canonical compilations; and St. Bernard did not consider it apocryphal.¹² It had its origin before the tenth century, notwithstanding what many critics say: for in 776 Pope Adrian avails himself of it in an exhortation to Charlemagne. But, in 755, Stephen II. had also an open to make use of it, as we shall shortly see; but as he neither mentions it, nor refers to it in any way, it follows that it was unknown to him as it had been to all his predecessors. It was therefore after the middle, and before the end of the eighth century, that it must have been fabricated. For the rest, the falsity of this piece is according to Fleury more universally recognized than that of the decretals of Isidore: and if the donation of Constantine could still preserve any credit, to strip it of such credit, it would be sufficient to transcribe it: here follow some lines:

"We attribute to the see of St. Peter all the dignity, all the glory, all the authority of the imperial power. Furthermore we give to Sylvester and to his successors our palace of the Latran, which is incontestibly the finest palace on earth; we give him our crown, our mitre, our diadem, and all our imperial vestments: we transfer to him the imperial dignity. We bestow on the Holy Pontiff in free gift the city of Rome and all the western cities of Italy; also the western cities of every other country. To cede precedence to him, we divest ourselves of our authority over all those provinces, and we withdraw from Rome, transferring the seat of our empire to Byzantium; inasmuch as it is not proper, that an earthly emperor should preserve the least authority, where God has established the head of his religion."

The respect which we owe to our readers, forbids all observation on such palpable absurdities: but we have believed it not altogether useless to relate them here, as they may give an idea of the means resorted to in the eighth century to establish the temporal power of the popes. They also furnish a standard of the public ignorance during the succeeding centuries, in which this strange concession, revered by the people, and even by their kings, effectually contributed to the developement of the power of the Holy See. But we must also state, that at the restoration of literature the first rays of light sufficed to dissipate so contemptible an imposture.¹³

Laurence Valle having demonstrated, towards the middle of the fifteenth century, the falsity of this donation, the best writers of the sixteenth, even those of Italy, treated it with the contempt it deserved. Ariosto energetically expresses the contempt into which it had fallen¹⁴ and places it among the various chimeras which Astolphus meets with in the moon.

Four hundred and sixty-three years had passed from the death of Constantine in 337, to the coronation of Charlemagne in 800. Now during all this period, no epoch, no year, can be specified, in which the popes exercised sovereign authority. The immediate successors of Constantine reigned, as he did, over Italy: and when on the death of Theodorus two empires arose out of one, Rome, the metropolis of the west, continued to be governed still by an emperor. Then, as all historians attest, the popes assumed apostolic functions alone; they were not reckoned in the number of the civil magistrates; although their election, the work of the people and of the clergy, was obliged to be confirmed by the prince. When they sought from their creed and the exercise of their spiritual ministry, an independence which they did not always obtain, they rendered homage to that of the civil power, and did not claim any of its properties.

In 476 the Western Empire fell: Augustulus was dethroned; the Heruli, the Ostrogoths, and other barbarians, invaded and laid waste Italy. Rome was governed by Odoacre down to 493, by Theodoric to 526, and, during the twenty-seven succeeding years, by Theodat, Vitiges, Totila, or the generals of the Eastern Emperors.

It is necessary to observe here, that the sovereignty of these emperors over Italy, and especially over the city of Rome, had been acknowledged by Odoacre and by Theodoric, and sometimes even by their successors¹⁵ But in 553, the victory of Narses over Theia restored to the Greek emperors an

immediate sovereignty over the Roman territory and the neighbouring countries. Thus terminated seventy-seven years of wars and revolutions, during which the popes neither obtained nor aspired to the exercise of any temporal authority. Theodoric, in 498, confirmed the election of Pope Symmachus;¹⁶ and when, in the year 500, this pope was accused by his enemies, the decision of the matter was referred to Theodoric.¹⁷

From 553 to 567, Narses governed Italy in the name of the emperors of Constantinople. Shortly after his death, the Lombards, led by Alboin, made themselves masters of the northern parts of Italy, and there founded a kingdom, which lasted about two hundred years. The other regions of Italy remained more or less under the authority of the emperors of the East, which was administered by the Exarchs of Ravenna.

The exarch was a governor general, to whom the dukes, prefects or patricians, and also the governors of particular territories or cities, were subordinate. From the exarch or the emperor they sought the ratification of the election of each bishop of Rome: this is a fact of which the proof exists in an ancient collection of the formulas of the Romish Church.¹⁸ Once only, at the election of Pelagius II. in 577, they dispensed with the consent of the emperor, because the Lombards besieged Rome, and cut off the communication with Constantinople. Paul Diaconus, in speaking of Gregory the Great, who in 590 succeeded Pelagius II. says expressly, that it was not permitted to instal a pope without the order of the Greek emperor.¹⁹

A letter of Martin I. to Gregory I. called 'the Great' has rendered frequent homage to the civil authority; but letters have been fabricated, under his name, in which he declares, that every king, every prelate, every judge, who shall neglect to ascertain the privileges of the three monasteries of Autun, and those of the Abbey of St. Medard de Soissons, shall be deprived of his dignity, and condemned, like Judas, to the pit of hell, unless he do penance, and become reconciled with the monks.—See Maimbourg. Historical Treatise on the Church of Rome, chap. 99, the emperor thus commences: "Martin, bishop, to "the emperor our most serene lord," and ends with these words: "May the grace from above preserve "the very pious empire of our lord, and bow the "neck of all nations unto him."²⁰ Thus a pope expresses himself who, imprisoned, exiled, and deposed by Constantius, never disputed the rights of the sovereign who treated him with so much rigour and even injustice. When this emperor, Constantius,

came to Rome in 662, the pope, Vitalien, paid him the homage of a faithful subject.^{[21](#)}

Two apostolic nuncios, stationed, the one at Constantinople, the other at Ravenna, offered to the emperor and to the exarch the respect, devotion, and tribute of the Roman pontiff. Pope Leo II. towards the year 683, writing to Constantine Pogonat, calls him his king and lord.^{[22](#)} In 686 and 687, the elections of the popes Conon and Sergius were confirmed, the one by the Exarch Theodoric, the other by the Exarch Platys, who exacted from Sergius a large sum, although this description of tribute had been abolished by the Emperor under the pontificate of Agathon.^{[23](#)}

In 710 Pope Constantine, ordered to Constantinople by Justinian the Second, hastened to obey this superior order.^{[24](#)} We shall only cite a letter written by the Pontiff to the Duke of Venice in 727:^{[25](#)}

"The city of Ravenna having been taken, because
"of our sins, by the wicked nation of the Lombards,
"and our excellent master, the Exarch, being, as
"we are informed, retired to Venice, we conjure
"your Highness to unite with him, in order to re-
"store the city of Ravenna to the imperial domi-
"nion; to the end that we may, by the Lord's as-
"sistance, remain inviolably attached to Leo and
"Constantine, our august emperors."

The Pope who thus expresses himself, is Gregory the Second, one of those who may be suspected of having been amongst the first, who sought to extend, beyond the bounds of the apostolat, the pontifical authority. His letter at least proves that the imperial sovereignty was then a right universally acknowledged; a public and undeniable fact.

It is however in the eighth century, and a short time after the date of this epistle, that we perceive, not the establishment certainly, but the first symptoms of the temporal power of the Roman prelates. The various causes which could tend to this result, about this period begin to be perceptible, and to acquire additional strength from their combined operation.

The first of these causes consisted in the vast extension of all the ecclesiastical institutions. Many popes, and other prelates, merited by their virtues and their talents the respect of the people and the esteem of their sovereigns: they obtained that imposing reputation, which, in the midst of public troubles and misfortunes, is the universal prelude to power. Zealous missionaries had spread the light of the gospel through most of the

countries of Europe, and prepared, nay, forwarded, by religious instruction, the civilization of some barbarous nations. On all sides churches and monasteries arose and were enriched: the pious liberality of princes and private individuals increased every where, but especially at Rome, the treasures and estates of the clergy: their landed property acquired sufficient extent to be transformed insensibly into principalities; a metamorphosis but too easy under such weak governments and such vacillating legislation.—Let us add to these circumstances the frequency and the solemnity of the councils, the general interest which their decisions excited, and the almost inevitable collision of their discussions with the quiet or disordered state of political affairs. We may observe, in particular, that at the commencement of the eighth century, there did not exist any great empire save the Eastern; and, nevertheless, that the power of the Greek Emperors—limited in Asia by that of the Caliphs, weakened in the very heart of Constantinople by internal revolutions, represented at Ravenna by unfaithful or injudicious Exarchs—with difficulty was upheld in Italy against the arms of the Lombards, and occasionally required to be defended by the influence of the Roman Pontiffs. In the mean while, the thrones which had been newly erected here and there by some barbarous conquerors, already tottered under their successors, whose ignorance, generally equal to that of their subjects, seemed to tempt the enterprises of the clergy. This clergy, though better informed than the common people, was not, however, sufficiently so to perceive the bounds of its proper functions under such circumstances, or to neglect profiting, at all hazards, by the opportunities offered to increase its power. When, in 681, a Council of Toledo loosed the subjects of Vamba from their allegiance to this prince, perhaps the thirty-five bishops who sat in this synod, neither perceived the weakness nor the monstrous disloyalty of such a sentence. Fleury was right to point out to us²⁶ this first example of a king deposed by bishops; but he might also have remarked, that so serious a novelty excited no reprehension—that kings complained not of it, and that no obstacle opposed the execution of this strange decree.

We may place in the catalogue of causes which favoured the ambition of the popes, the preposterous taste of the Greek Emperors for dogmatical controversies, and, the unfortunate part they incessantly took in them.

They thus provoked apostolic resistance, which, by its splendor and success, humbled in the eyes of the people the imperial authority. They beheld the doctrines of the pontiff exercising a solemn triumph over the

edicts of the sovereign; and he, whose pastoral charges thus limited the civil authority, must have appeared competent to exercise it, the moment he ceased to disdain it. A sect was formed in Constantinople against the images, brought into disrepute in some places by the victories of the Mahometans over them. The Emperor Leo the Isaurian placed himself at the head of the Iconoclasts or Image-breakers: he published, at the same time nearly, an edict which prohibited the worship of every image, and the proposition of a new capitation-tax to be paid by the people of Italy. Pope Gregory the Second, become the defender of their *temporal and spiritual* interests, and their faith, addressed respectful but energetic letters to the emperor, to induce him to maintain in the churches an ancient and salutary practice. Leo replied only by menaces calculated to strengthen in the hearts of the Italians their love and veneration for the pontiff. What does Gregory do? he appears inattentive to his personal danger, but implores for the people and their prince the divine mercy he thunders no anathemas, but recommends good works, and sets himself the example of them; he desires especially that each may remain faithful to the head of the empire, whatever may be the deviations of Leo, and perseveres in applying to him the terms of emperor and head of the Christians.²⁷ According to Gregory, it is God himself who preserves the empire to Leo the Image-breaker:²⁸ a pontiff has no right, says this pope, to bestow crowns: his eye should not seek to penetrate into the palaces of kings: and it no more belongs to him to meddle in politics, than for a sovereign to become a teacher of dogmas in religion.²⁹ The army, the people, Venice, Ravenna, all Italy revolted, says Paul Diacre, against Leo the Isaurian, and would undoubtedly have acknowledged some other emperor, if the Roman pontiff had not himself opposed it.³⁰ Anastasius relates the same facts, and represents Gregory to us occupied in retaining the provinces in allegiance to their legitimate sovereign.³¹

It would be difficult for us to verify, after a lapse of ten centuries, whether Leo really attempted, through the medium of his officers, the life of Gregory; but no person in Rome, none in all Italy, doubted it; and these abortive attempts excited general indignation, or contempt more dangerous still: on the contrary, when the Duke Peter is driven from Rome, when the Exarch Paul is killed at Ravenna, Gregory conducts himself so orderly that no one thinks of imputing these things to him. Liutprand, king of the Lombards, however, took advantage of these troubles to make himself

master of Ravenna and many other places: in this conjuncture it was that Gregory wrote to the Duke of Venice the letter which we have already transcribed. Gregory did more, he negotiated with Liutprand, he soothed him: but the King of the Lombards in abandoning the cities he had conquered and pillaged, was not disposed to restore them to the officers of the emperor; he made them a present to the Roman Church, which abstained alike from an acceptance or refusal of them. Disconcerted by so much wisdom, Leo, the Isaurian, saw himself limited in his vengeance to detaching from the patriarchate of Rome the churches of Illyria, of Sicily, the duchy of Naples and of Calabria, in order to subject them to the patriarch of Constantinople. This was all the mischief he could do to Gregory II. who died, without condescending to complain of it. Whatever Theophanes and other Byzantine authors may say on the subject³² who have very severely animadverted upon this pontiff, there prevailed great moderation in his conduct; and if it was policy, it was so profound, that we are induced to ascribe it to good faith.³³

His successor, Gregory the Third, conceived himself dispensed from so rigorous a circumspection: at the head of a council, he excommuniacted the Emperor, not, indeed, by name but by not excepting him from the general sect of the Iconoclasts; and while Leo applied to himself this anathema, evidenced by the burst of anger with which he resented it; while he confiscated in Sicily the lands of the Roman church; while a fleet, dispatched by him against Italy, was perishing by shipwreck; the Pope laboured to create in the bosom of Rome an independent state, or, at least, one destined to become so. Some authors think they perceive, from the year 736, in the pontificate of Gregory the Second, a semblance of a Roman republic; and we may assure ourselves, at least, that in 730, a short time previous to the death of this pope, and apparently without his concurrence, the Romans formally erected themselves into a republic. But it was especially subsequent to the year 731, and down to 741,³⁴ that is to say, under the pontificate of Gregory III. that the expressions ‘republic of the Romans—republican association—³⁵ body of the Roman army,’ were accredited phrases which did not disappear till the year 800, and which, during the seventy preceding years, are very often employed, both in the acts of interior administrations, and in the negotiations with the Kings of the Lombards, or Mayors of the palace of Ferara.

They always avoided the positive declarations which would have irritated the Court of Constantinople; in case of necessity they even acknowledged the supremacy of the Emperor, solicited his assistance, and received his officers: and the homage paid to the imperial authority, is the ground of the opinion of those authors who deny the existence of this republic.— Without doubt, it was but a shadow of a republic; but they loved to present themselves under this title to the sovereigns of the west of Europe:³⁶ it was a mode of ranking themselves secretly in the number of independent states, and of weakening still more the ties which held them to the Byzantine empire. Generally, the pope did not fill in person the office of first magistrate of this republic; he left the insignia of its power to a prefect, a duke, or a patrician; and prepared to substitute, in a short time, for these unstable forms, a definite and pontifical government.

Baronius ascribes the embassy of one of these to Gregory II. an important mistake, which Bossuet has removed.—Def. Cler. Gall, p. 2. b. 6. ch. 18.

Another cause tended to, and even justified, the revolution which was going to take place in Italy against the authority of the Greek Emperors; this was, the almost absolute state of abandonment in which, for nearly two centuries, they left the provinces they possessed in this country. They kept no garrison in Rome, and this city, continually menaced by the Lombards, solicited more than once, through the organ of its dukes or its pontiffs, but in vain, the protection of the Exarch and the power of the Emperor. The Byzantine historians of this period scarcely ever speak of Italy: one of them, Theophylactus Simosatta, wrote the history of the empire from the year 582 to 802, without once naming Italy, Rome, or the Lombards. Deserted by their master, the Romans of necessity attached themselves to their pontiffs, who were generally Romans, and meriting such attachment. Fathers and defenders of the people, mediators between the great, and heads of the religion of the empire, the popes united in themselves the various sources of authority and influence which are conferred by riches, benefactions, virtue, and the high priesthood. They reconciled, or set at variance around them, the princes of the earth; and that temporal power, which as yet they possessed not, they could at pleasure strengthen or weaken in the hands of others.

Things being so disposed, it was inevitable but that occasions must have occurred, favorable to the ambition of the Roman Pontiffs; or, rather,

they had now need only of a more active ambition. While Zachary continued to pay homage to the sovereignty of the emperors, Liutprand made himself master of the exarchate, and his successor, Rachis, immediately after stipulated with the Romans for a peace of twenty years. Under the same pope, Pepin dethroned in France the Merovingian dynasty, submitted to the Holy See a famous case of conscience, and obtained from it a reply, which, absolving in the eyes of the people his audacious enterprise, placed in his hands a sceptre which he alone could wield. A short time after this wise reply,³⁷ Astolphus, the successor of Rachis, broke the truce of twenty years, conquered Istria, repossessed himself of Ravenna, which the Greek officers had re-entered, and drove them from it for ever. Eutychius, the last of the exarchs, took flight and retired to Naples; and every thing announced that the power of the emperors was about to be extinguished in Middle as it had been in Upper Italy.

The Pope, Stephen II. supplicated Constantine Copronymus to relieve the city of Rome, by dispatching an army which might put the Lombards to flight and maintain in Italy the integrity of the empire and the honor of the imperial authority.³⁸ It is evidently as the sovereign of Rome that Stephen addresses Constantine. But Constantine, occupied in making war against images,³⁹ directs Stephen to negotiate with Astolphus, and, if Astolphus was intractable, with Pepin king of the French. The pontiff proceeds into France; there, as minister of the Greek emperor, he gives, in 753, to Pepin and to his sons, the title of Roman Patricians, which Charles Martel had before borne: and received, they assert, in exchange, the gift of the provinces which Astolphus usurped, and which this same emperor claimed, in whose name Stephen negotiated. Pepin hesitated the less in bestowing them, as he was neither their possessor nor sovereign.

Ambitious, however, to derive some advantage from his title of patrician, he passed the Alps in 754, besieged Pavia, and compelled Astolphus to promise that he would restore the Exarchate and the Pentapolis, not to the Emperor of Constantinople, but to St. Peter—to the Roman Church and Roman Republic. Vain promise! no sooner is King Pepin returned into France, than the Lombard king forgets his oaths, lays waste the environs of Rome, and labours to become master of the city. It was at this time, in 755, the pope wrote to the French monarch many letters, of which the one written in St. Peter's name, gives us to perceive, says

Fleury,⁴⁰ “the genius of the age, and to what extent the most grave of mankind may carry fiction when they consider it useful.”:

“Peter, called to the apostolat by Jesus Christ,
“the Son of the living God, &c.....As by me the
“Roman Church, of which Stephen is bishop, is
“founded upon the stone.....I adjure you, O ex-
“cellent Pepin, Charles, and Carloman, three kings,
“and with you the bishops, abbes, priests, and
“monks, and also the dukes, counts, and people....
“I adjure you, and with me the Virgin Mary, the
“angels, the martyrs, and all the other saints adjure
“you, not to suffer that my city of Rome, and my
“people, be any longer left a prey to the Lom-
“bards.....If you obey me quickly, you shall in
“this life receive an abundant recompense for it;
“you shall overcome your enemies, you shall live
“long, you shall eat the fat of the land, and you
“shall, besides, receive eternal life. If you obey
“me not, know that by the authority of the Holy
“Trinity and of my apostolat, you shall be deprived
“of the kingdom of God.”

It is most important here to remark, that this letter makes no mention either of the donation of Constantine, or that which Pepin-le-Bref has the credit of having made in 703, and renewed in 754. It is not the most feeble argument of those who dismiss to the rank of chimeras, the second as well as the-first of these donations. They add, that the original title of Pepin’s grant exists nowhere in the world—that no authentic copy of it can be produced—and that its directions, omitted by contemporary historians, are only known to us through Anastasius, who compiled his History of the Popes at the end of the ninth century, one hundred and thirty years after the death of Stephen II. The supporters of this grant confine themselves to asserting, that Anastasius declares his having seen the original of it, and cites besides the remains of an inscription preserved at Ravenna, without very scrupulously inquiring the era in which so mutilated a monument might have been erected.⁴¹

Will they now ask us what the nature of the concession was which was made to the popes by Pepin-le-Bref: if he bestowed the absolute sovereignty or the mere administration; a secondary or delegated power, or the property only, and, as it is termed, the fee-simple of it? In default of a positive text which would offer an immediate reply to these questions, we have no other way of resolving them, but by continuing, even to the year 800, the examination of facts relative to the government of Rome and the authority of the popes. Now, it is certain, as we have stated, that during the fifty last years of the eighth century, the popes had never been sovereigns, seldom

administrators. We have a series of letters in which they complain of the non-fulfilment of the promises of Pepin, and of the infidelity of the Lombard kings, who ravaged, or again seized on, the possessions of the church. Besides, Constantine Copronymus never renounced his rights: he offered to pay the expenses attending the victories of the French army over the Lombards, provided the places recovered from them were restored to him. Pepin, though very little disposed to comply with these requisitions, evaded characterizing the power which he exercised over the Roman republic by the title of patrician; leaving it undecided, whether he considered himself as actual sovereign, or as but provisionally invested with the functions of the imperial authority. What is very remarkable is, that in fixing the limits of the states of this monarch, no French historian extends them beyond the Alps.⁴² As to the popes, although their influence almost always swayed the authority of the deputies of the patrician, they did not as yet exercise a civil magistracy, properly so called, either regularly instituted or delegated. They continued to date from the reign of the emperors of Constantinople, and to call them their lords and masters. This is to be seen in an epistle written by Stephen II. in 757, a short time before his death;⁴³ in a diploma subscribed the same year by Paul I. the brother and successor of Stephen;⁴⁴ in a statute or rule of the same Paul in 758;⁴⁵ in a letter which Adrian addressed, in 772, to the emperor, in transmitting to him the decision respecting a crime committed in the duchy of Rome;⁴⁶ and in 785, in an epistle of the same Adrian to Constantine V. and his mother Irene.⁴⁷

Many cities comprised in the pretended donation were governed, according to the instructions of Pepin, by the Archbishops of Ravenna, who seem to have succeeded the Exarchs, whose title remained unrevived.

Charlemagne, called by Adrian against Didier, king of the Lombards, blockaded Pavia, and renewed in Rome, in 774, the donation of Pepin.— This act, however, is no better authenticated to us than those of 753 and 754. There is no original document, no authentic copy, nor even unauthenticated one. It is Anastasius also, who, after one hundred years, specifies its conditions to us.

To Pepin's gift Charlemagne added, according to this Anastasius, Corsica, Sardinia, Liguria, Sicily, Venice, Beneventum; and deposited the chart, which was to enrich to this extent the Roman church, upon the tomb of the holy apostles Peter and Paul. Anastasius does not explain to us how

Charlemagne bestowed provinces which he never possessed, and over which he had no right of sovereignty, not even that of conquest. Sicily and Sardinia were never in his possession: Venice, struggling more and more for independence, yet recognised in form the sovereign rights of the Greek emperors. A duke governed Beneventum, which had been ceded to the Holy See only in 1047 by Henry the Black. This cession of 1047, does not embrace the whole territory of Beneventum, and the deed by which it is transferred is besides not the most authentic: but what is to be noticed here is, that this act does not renew in any way the pretended donation of Charlemagne; it makes no mention of it: on the contrary it implies, that the Court of Rome, for the first time, in 1047 is going to possess the city of Beneventum.

Another objection which Anastasius does not resolve, is, that after 774, the popes did not assume the government or administration of either Beneventum, Venice, Sicily, Sardinia, the Exarchate, or even the city of Rome. Charlemagne, the conqueror and successor of the Lombard kings, adds the title of King of Italy, to that of Patrician of the Romans. The sovereignty or supreme authority remained in his hands; he exercised it either by himself or by his delegates, received the homage of the pontiffs, invested himself with the right of confirming their elections, and subjected their possessions and their persons in such sort to his authority, that we cannot suppose him to have ceded to them anything more than the ownership or feudal tenure of their domains. The Duchy of Rome, the Exarchate, the Pentapolis, were comprised, by the historians of this prince, in the account of the states over which he ruled, previous to the year 800,⁴⁸ and Piga thinks proper to add Corsica to them.⁴⁹

In 778, to Charles is referred the decision of the disputes which sprung up between the pope and the archbishop of Ravenna: the latter retained the administration of the Exarchate, perhaps from Charlemagne having tacitly authorised it. Many letters addressed to this monarch, by Pope Adrian, after the year 775, have been collected into the code of Charlemagne, they prove that Charles was not very desirous to invest the Holy Fathers with the temporal power. The donation of Constantine is mentioned in one of these epistles,⁵⁰ as we have already observed; the name of the new Constantine is there promised to Charles, if he fulfils his engagements. But in 789, the pope complains of the delightful expectation held out to him, being still unfulfilled; he again brings forward the donation of Pepin as an act

remaining without effect. It appears, however, that Adrian, in the course of the six last years of his pontificate, did exercise some actual power, since we find coin bearing his name. But the dukes of Beneventum, and other delegated governors, exercised at the time the same privilege, with the consent of their sovereigns. A much greater number of medals were struck at Rome in the name of Charlemagne;⁵¹ and appeals were made to his officers from the decisions passed by the popes.⁵²

Charlemagne, before the end of the eighth century, so little thought of investing the popes with a sovereign power, that he avoided, on the contrary, assuming to himself an absolute sovereignty over the city and territory of Rome. He did not dispute that of the Greek Emperors; and although he governed without receiving their commands, he left it to be supposed that he considered himself only as their representative. It is even conjectured, that in 781, he had received from Irene the letter which created him, in express terms, Patrician of the Romans. When Paul Diacre says, that Charles added Rome to his States from the year 774; it is according to Duquet an hyperbolical expression⁵³ since Charles himself was satisfied with the simple patriciate. Theophanus ascribes only to the year 779, the commencement of the domination of the French, over the capital of Italy; and even he is not exact, as we shall shortly see, since he anticipates by a year, the absolute extinction of the sovereignty of the Greek Emperors over the Romans.

To measure the extent of the authority exercised by Charles in Rome, previous to the year 800, it is necessary to form an idea of the nature of the dignity of patrician, with which he was invested.

Constantine, anxious to restore the ancient patricians, had invented this personal title of patrician, to be given to the governor or first magistrate of the city of Rome. From 729 to 800, that is, during the existence of a shadow of the Roman republic, the office of patrician was often conferred by the clergy, the nobles, and the people of this city, almost always at the will of the popes, but never at their sole discretion. The Greek emperors ratified either expressly or tacitly the election of the patrician; preferring that it might be supposed he governed in their name, rather than it should be believed he ruled in despite of them. Many barbarous kings, Visigoths, Ostrogoths, and others, have received and borne this title; and Charlemagne did not disdain a dignity, subordinate in appearance, but in reality independent, and which might serve as a step to a more perfect sovereignty.

Leo III. succeeding, in 790, to Pope Adrian, hastened to address to Charlemagne a letter of homage, similar to those which this prince was accustomed to receive from his vassals.⁵⁴ However, there remains to us a monument of the supremacy still preserved by the Emperor of the East over the Romans in 797; it is a mosaic, with which Leo III. ornamented the hall of the Lateran palace.⁵⁵

We here behold a prince crowned, which circumstances prove to be Constantine V.: another prince, without a crown, and a pope, are represented kneeling, and by an inscription are named Charles and Leo. The Emperor receives a standard from the hands of Jesus Christ; Charlemagne receives another of them from St. Peter's left hand, who, with his right hand, bestows a pallium on the pope. This mosaic is at once the emblem of the supremacy of the emperor, the power of the patrician, and the pretensions of the pontiff.

In 799 a conspiracy is formed against Leo III.— he is accused before Charlemagne, who refers to commissioners the investigation and decision of the whole affair.⁵⁶ This fact suffices to shew, how far the pope was from being a sovereign before the year 800.

The 25th of December this year, Charles is proclaimed emperor. He had been raised to this supreme dignity, not by the pope alone, but by an assembly of the clergy, of the nobility, and of the people of Rome.⁵⁷

Behold, then, the precise period of the extinction of the sovereign rights of the Eastern Emperor in Rome: then, also, ceased the patriciate, properly so called; and the pope, no longer recognizing any intermediate person between him and the Western Emperor, became, indeed, the governor or first magistrate of Rome and of its territory. Charlemagne, in order to deceive the court of Constantinople, had pretended to fill only a passive part in his own coronation:—it was without his knowledge that they decreed him the imperial crown —it was against his consent that he suffered it to be placed on his victorious head: such, at least, is the account which his chancellor Eginhard has given us of this event; an account which Sigonius⁵⁸ and Muratori⁵⁹ have classed with the fabulous, and to which even Father David himself refuses all credence.

Charlemagne hastened to dispatch ambassadors to Constantinople; he received in return those of the Emperor Nicephoras, and concluded a treaty of friendship and alliance with him, which fixed the limits of the two

empires, without, however, a formal recognition of the Emperors of the West by the Greeks. But the absolute sovereignty of Charles over the Exarchate, the Pentapolis, and the Roman territory, became undisputed.⁶⁰

It is no less evident, that the popes solicited the assistance of the French, not on account of the heresy of the Emperor, but because they had no other resources to oppose the Lombards: that their affairs were altogether desperate, and that they could hope for no succour from the emperors of the east. There were wanting none of the circumstances necessary, as is said in the present day, to justify the deposition of kings. These emperors were heretics, obstinate in error, cruel in their persecutions, and besides, were forgers and perjurers; a circumstance, which according to our adversaries, rendered them still more worthy of deposition, since it was against the church they sinned, in violating the oath, which they had taken at the foot of the altar, to commit no innovation in religion.

Notwithstanding the violation of these solemn promises, the catholics not only honored as emperor, the prince who persecuted them, but did all which lay in their power, to restrain those who, under such pretext, wished to excite seditions and revolt against the empire: so true it is, that they had not then the least idea of that power, in which, at the present day, all the hopes of the church are made to consist, and which is regarded as the firmest bulwark of the pontifical authority. Def. Cler. Grail, p. 26. 6 ch. 20. in the year 803,⁶¹ and in 806,⁶² dates from the reign of the Emperor Charles. This prince designates himself ‘Head of the Roman Empire;’⁶³ and the confines of his states are, henceforward extended, even to the lower Calabria, by Eginhard⁶⁴ and other historians.

Stephen IV. as soon as he was elected successor to Leo. III. made the Romans take an oath of allegiance to Louis-le-Debonnaire, the successor of Charlemagne.⁶⁵ Among the gifts of which the Holy See avails itself, there is one which bears the name of this first Louis, and the date of 816 or 817:⁶⁶ it is pretended, that in confirming the concessions of Charlemagne and of Pepin, Louis has reckoned Sicily in the number of the territories acquired by the Roman Court, and that he has renounced for himself and his successors also, the right of ratifying the elections of the popes.

But we see him, in 827, examine into and approve that of Gregory IV. Eginhard, and another historian of Louis-le-Debonnaire,⁶⁷ attest this circumstance to us. As to Sicily it did not in any wise belong to Louis: he

never possessed it; the pope did not even dream of governing it; and it is so incredible that it should have been ceded to the pope in 816, by the emperor, that Father Morin,⁶⁸ in supporting the authenticity of the donation of Louis I. is obliged to suppose, that the name of this isle had not been originally in it, but had been inserted in the course of time. Furthermore, it is a donation unknown to contemporary writers, and which appears not in historical records until long after its date.

The forgery of documents occurs often in the history of the temporal power of the popes. The Donation of Constantine was fabricated, as we have already observed, between the years 756 and 779, and it was about the same period that an Isidore, Mercator or Peccator, forged the decretals of the ancient popes, Anaclet, Clement, Evaristus, and others, down to St. Sylvester. In the sixth century, Dionysius-le-Petit was unable to collect any decretals, but those subsequent to St. Siricius, who died at the end of the fourth. Those of Isidore are long, full of common place, and all in the same style, which, according to Fleury⁶⁹ is much more that of the eighth century, than of the early ages of the Church. "Their dates are almost all of them incorrect," adds the historian we have just mentioned,:

"and the matter of these letters, still further
"evinces the forgery: they speak of archbishops,
"primates, patriarchs, as if these titles had been
"received from the birth of the Church. They
"forbid the holding of any council, even a provincial
"one, without the permission of the pope, and
"represent as a usual thing, the appeals to Rome."

These false decretals have contributed to the extension of the popes' spiritual power, and to invest them with political authority: their fatal effects have been fully exposed by Fleury, in his fourth discourse on ecclesiastical history.

We believe, that from the details we have collected, it is sufficiently clear, that up to the year 800, and still later, the pope and the Romans have always acknowledged, as their sovereigns, the emperors of the East or the West, and even particular governors, as the exarch, the patrician, and the kings of the Lombards, or of Italy.⁷⁰

The pope at the end of Louis-le-Deboimairé's reign, in 840, was not yet a sovereign; and taking the word in its literal sense, that is, as expressing supreme authority, independent and undelegated, we may maintain with certain authors, that he did not begin to be such until 1355,

when the Emperor Charles IV, receiving the imperial crown at Rome, renounced in the most express terms every sort of authority over the Holy See.

But without sovereignty a power may yet be effective. Such was that of the popes long before 1355, and even from the time of Charlemagne. An actual temporal power, though subordinate, delegated or borrowed, rested from that period, in the hands of the pontiffs; and, from this time, the perpetual quarrels between the priesthood and the empire, had no other object, than to emancipate and extend their power. It was necessary in the first place, to render it independent; and from the time it was or asserted itself so to be, to amplify its prerogatives, its rights, its limits, finally to transform itself into a universal monarchy. Behold the common origin, of all the anathemas, all the quarrels, all the wars of which we are about to sketch the picture! Here is the secret of the eternal contentions of the Court of Rome with the greater number of the European powers, especially those which obtained an ascendancy in Italy.

CHAPTER II. ENTERPRIZES OF THE POPES **OF THE NINTH CENTURY**

CHARLEMAGNE had condemned gifts made to the church, to the prejudice of the children or near relatives of the donor. In 816, a capitulary of Louis I. declared all donations of this kind void. But, far from continuing to limit by such restraints the sacerdotal ambition, Louis was destined to become one of the first victims, and, by the same circumstance, one of the first founders of the clerical power.

Pascal succeeding Stephen IV. in 817, did not wait for the consent of the prince to instal himself: he confined himself to sending him legates, and an apologetical letter, in which he pretended that he had been compelled hastily to accept the dignity. Some years after, Pascal crowned Lothaire, whom Louis, his father, had associated in the empire: the pope, say the ecclesiastical historians of the ninth century, gave to the young prince the power which the ancient emperors had enjoyed; they add, that with the consent and good will of Louis, Lothaire received from the sovereign pontiff the benediction, the dignity, and the title of emperor; expressions truly remarkable, and of which they have since availed themselves, in order to erect the pope into the disposer of the imperial crown; as if Charles and Louis had not previously borne it, without being indebted for it to the bishops of Rome!—as if it were not, above all, contradictory, to pretend at once that these two princes founded, the temporal power of the popes, and yet received from these same popes the dignity of Emperors of the West.

Some officers in the service of Lothaire having been put to death in the Lateran palace, the holy fathers, accused of having ordered the commission of the crime, hastened to send nuncios to Louis to do away such suspicion. Louis received the nuncios coldly, and dispatched commissioners to Rome,

before whom Pascal cleared himself by oath. He constantly, however, evaded delivering up the murderers, 'because they were of the family of St. Peter', that is, of the pope's house. Louis-le-Debonnaire followed his natural love of clemency, says Fleury⁷¹ and notwithstanding his wish to punish this action, he consented, not to follow up a proceeding, the first acts of which prove, at least, that he was recognized in 823, as sovereign of Rome, and judge of the Roman Pontiff.

Eugene II. after the example of his predecessor Pascal, dispensed with having his election confirmed by the emperor. Lothaire complained loudly of it, and came to fill at Rome the functions of the sovereign authority. He tried a suit between the pope and the abbot of Farfa, of whom the court of Rome exacted an annual tribute—Not only was the abbey exempted from this tribute, but the pope was obliged to restore the property which the Roman Church had *unjustly deprived it of*: these are the terms of a charter of Lothaire.⁷² This prince published, at the same time, a constitution of nine articles,⁷³ in which the authority of the pope is indeed formally established, yet subordinate to that of the emperor. It is there stated, that complaints against the judges and other officers shall first be taken before the pontiff, who shall apply an immediate remedy, or inform the sovereign thereof, in order that he may provide for it.

This constitution is of the year 824, and it is also the date of an oath which the Romans took in the following terms:⁷⁴

"I promise to be faithful
"to the emperors Louis and Lothaire, saving the
"faith I have promised to the pope, and not to con-
"sent to the election of a pope uncanonically, not
"that the pope should be consecrated before he has
"taken, in presence of the emperor's commissioners,
"an oath similar to that which Pope Eugene has
"made by writing."

The clause, "saving the faith promised to the pope," has not failed to draw after it arbitrary restrictions: but this formula expressed decisively the sovereignty of the emperor.

We also see Gregory IV. in 827, solicit the emperor to confirm his election;⁷⁵ which proves, as we have already observed, that Louis had not renounced this right in 819. If the prince, said De Morca,⁷⁶ had left to the people and the clergy the power of electing the popes, their consecration was, notwithstanding, to be deferred till the sovereign had consented to it.

In defiance of this preliminary, the pontificate of Gregory IV. is, nevertheless, one of the most memorable for the humiliations of the imperial dignity. It is true, they were caused by the weakness of the prince as much as by the ambition of the pontiff. The first error of Louis-le-Debonaire was the partition of his states, in 817, amongst his three sons: associating Lothaire in the empire, he gave Aquitaine to Pepin, and Bavaria to Louis; and by these arrangements he especially dissatisfied his nephew Bernard, King of Italy.

Bernard revolted: it became necessary to subdue and punish him. In commuting the punishment of death pronounced against him, Louis had nevertheless caused his eyes to be put out; and this cruel punishment cost the patient his life. Louis reproached himself with this cruelty, and evincing still less moderation in his repentance than in his crime, he claimed public penance. To add to his difficulties, Judith, his second wife, becoming the mother of Charles the Bald, claimed a kingdom for this child. She obtained a new partition, which, however, interfered with the first, and caused the three, who were portioned in 817, to rebel. They leagued against their father: Vala, abbot of Corbia, a factious but revered monk, encouraged their rebellion: like them, he heaped invectives on the emperor, his wife Judith, and his minister Bernard. Easily disconcerted by such an outcry, Louis convoked four councils, to which he referred the examination of his conduct and the complaints it occasioned. These synods favoured but little the pretensions of the revolted; but in them was professed a doctrine on the privileges of the clergy and the duties of princes, which, at a period so near to that of the unbounded power of Charlemagne, would seem incredible, if the purport itself of these assemblies⁷⁷ did not suffice, to justify and explain the idea which they had formed of their supreme authority.

We will here transcribe a speech which one of the four councils makes Constantine the Great address to the bishops:

"God has given
"you the powers to judge us; but you cannot be
"judged by any man. God has established you as
"gods over us, and it becomes not men to be the
"judges of gods. That can belong to him alone
"of whom it is written, God has seated himself in
"the temple of the gods and judges them."

Here, then, we certainly behold the question respecting the two powers more clearly laid down than ever it had been; for they could not be more

decisively reduced to one only.

While councils were giving Louis these lessons; while he was sending Judith into the bosom of a cloister, and was thinking of assuming himself the monastic gown; his sons and the abbot Vala strove to compel him to do so, and would have succeeded, if another monk, in sowing discord among the three brothers, had not restored to their father some moments of repose and vigour. He recalled Judith, exiled Vala, deprived Lothaire of the title of emperor, and, incapable of prudence, abandoned himself in such degree to the counsels of his ambitious and vindictive wife, that he disinherited Pepin in favor of Charles, and even alienated the minister Bernard. Immediately the revolt revived; and here commences the part which Gregory IV. played in these disgraceful scenes. The pope allied himself with the three princes: he entered France with Lo-thaire—entered it without the permission of his sovereign, what none of his predecessors had done. At the first report of the anathema he was about to thunder against the emperor, some French prelates had the courage to say, that if Gregory was come to excommunicate, he should return excommunicated himself;⁷⁸ but Agobard, bishop of Lyons, and many of his colleagues, said, that the pope must be obeyed. Gregory, on his part, addressed to the partisans of Louis a memorable letter, in which the secular power is, without any ambiguity, subjected to the Holy See.⁷⁹

"The term of brother savours
"of equality," said he to the prelates who had so addressed him;
"it is the title of *father* which you
"owe me: know that my chair is above Lewis's
"throne."

In the mean time Lothario and his two brothers collect their troops in Alsace; Gregory joins them, and quits them only to appear in Louis's camp in quality of mediator.

What the pope did we know not; but the same night on which he took leave of the emperor, the troops of the latter disbanded themselves. This desertion dissolved Louis's army, and doubled that of his opponents: compelled to give himself up to his sons, he was dethroned, *by the advice of the pope*, says Fleury;⁸⁰ and Gregory returned to Rome, very much afflicted, according to the same historian, at the triumph of the unnatural children whom he had served. The plain where he had negotiated, between Strasburg and Basle, is called to this day the 'Field of falsehood.'

It would be too painful to retrace here the details so well known of the humiliations of Louis I.; how Ebbon, his creature⁸¹ and other bishops, condemned him to a public penance; how the son of Charlemagne shewed himself almost worthy of the infamy by his submission; how, on his knees before these prelates, he publicly recited a confession of his crimes, in the number of which they had inserted the marching of his troops during Lent, and the convocation of a parliament on Holy Thursday; how, dragged from cloister to cloister, to Compagne, to Soissons, to Aix-la-Chapelle, to Paris, to St. Denis, he seemed destined to terminate his days there, when the excess of his misfortunes provoked the public pity, and produced against his already divided enemies the indignation of the nobles and of the people. The great lords came to offer him homage as their sovereign, but Louis dared not recognize himself such until he was canonically absolved: he did not resume, he said, the belt, but in virtue of the judgment and authority of the bishops.

On this occasion he invited Hilduin, the monk, to compose a life of St. Denis, a legend since become so famous, and which would suffice to characterize the reign of Louis I. or rather the empire of gross superstition which he permitted to rule in his place. At Thionville an assembly was held, half parliament, half council, which replaced him on his throne. Solemnly reestablished in the body of the church, at Metz, he pretended that the deposition of Ebbon, the Archbishop of Rheims, pronounced at Thionville, had need to be confirmed by the pope. Many prelates, accomplices of Ebbon, fled to Italy, under the protection of Lothaire and of Gregory; others, almost as shameless in confessing the crime as in committing it, were pardoned:—none suffered the punishment due to such wicked attempts. Louis carried his good nature so far as to re-establish Agobard in the see of Lyons, and placed no bounds to the respectful deference which the pope exacted of him. Baronius even pretends, that it was by the pope's authority the king remounted his throne: but Bossuet⁸² has victoriously refuted this assertion, which is unsupported by any contemporary witness.

Marianus Sectus, the Chronicle writer of the twelfth century, cited by Baronius, makes no mention in it of Gregory IV. and confines himself to saying, that in the year 835, Pepin and Louis restored to their father the sovereign power.

In the mean time the death of Lothaire gave occasion for a new partition, and a new revolt of Louis of Bavaria. Louis-le-Debonnaire once

more took up arms against his ever rebellious son, when a mortal fright which an eclipse produced on this emperor, whose astronomical knowledge is boasted of, terminated in the year 840 his lamentable reign, worthy of such termination.

The ambition of Lothaire having united against him the King of Bavaria and Charles the Bold, they subdued him at Fontenai; and to possess themselves of his states, they addressed themselves to the bishops assembled at Aix-la-Chapelle. "Do you promise," said these bishops, "to govern better than Lothaire has done?" the princes promised; and the prelates added:

"Reign then in his place, we allow
"you so to do; receive by divine authority the
"kingdom; govern it according to the will of God;
"we exhort you to it, we command you."

But Lothaire did not permit it, and his brother found him sufficiently formidable to treat with, and to continue to him the name of emperor, with certain states.

After the circumstances which had so humbled the imperial power, we are not astonished to see Sergius II. succeed Gregory IV. without waiting for the Emperor Lothaire's consent. Yet this prince was so irritated at it, that he sent his son Louis into Italy at the head of an army. The terrified pontiff endeavoured to appease the young prince by means of honours and of homage. Louis examined into the election of Sergius, and ratified it in the midst of an assembly in which Sergius was judicially interrogated. His premature consecration was held valid only on condition that they should act more regularly for the future. The pope and the rest of the assembly took the oath of fidelity to the emperor.⁸³ This firmness of Lothaire upheld for a while the civil power, even in the states of Charles the Bald. This prince held a parliament at Epernai, in 846, to which the bishops were not admitted; in it were reprobated the canons which limited the rights of the king and of the lords, and measures were taken against the abuse of excommunications;

In 847, Leo IV. was also consecrated before the emperor had confirmed the election; but they protested, that the ravages of the Saracens in the neighbourhood of Rome obliged them to act thus; and that nothing was meant derogatory to the fealty due to the head of the empire. Besides Leo IV. was the most venerated pontiff of the ninth century. He fortified

Rome, built the part which bears the name of the Leonine city; and, without desiring to disturb other states, he laboured for the space of eight years, for the prosperity of that which he governed. The same praise cannot be bestowed on Nicholas I. who filled the chair of St. Peter from the year 858 to 867; but he was the pope of that century, which extended most the pontifical authority.

Elected in the presence, and by the influence of Lothaire's son, the Emperor Louis, he received from this prince a devotion unknown before: Louis seems to have thought he might honor without danger a creature of his own. The emperor then was seen to walk on foot before the pontiff act as his equerry, lead his horse by the bridle, and thus realize, if not surpass, one of the directions of Constantine's pretended 'deed of gift,' Such ceremonies could not remain without effect, and Nicholas delayed not to discover occasions of availing himself of them. The power of Charlemagne was at that time divided among his numerous descendants: there were sons of the Emperor Lothaire, to wit, Louis, the heir to the empire, Charles, King of Provence, and Lothaire, King of Lorraine. Their uncles Louis and Charles reigned, the one in Germany, the other in France; while the son of Pepin, king of Aquitaine, fallen from the throne of their father, resumed it but to descend from it once more. All these princes, almost equally deprived of information and of energy, weak in the first place by their numbers, became still more so by their discord: each of them employed against the other the principal part of his limited power; it remained for Nicholas only to declare himself their master, in order to become so, and he failed not to do it.

An archbishop of Sens, named Venilon,. loaded with benefits by Charles the Bald, but stimulated to rebel against this monarch by Louis, King of Germany, had collected in the palace of Attichi some other disaffected prelates, and in conjunction with them pronounced the deposition of the King of France, loosing his subjects from their oaths, and declaring his crown to have devolved to his brother. This attempt had but one remarkable consequence; this was, the strange complaint made of it in 857 to a council held at Savonnieres,⁸⁴

"Venloon," said he,
"consecrated me in the Church of St. Croix in
"Orleans; he promised never to depose me from
"the royal dignity, without the concurrence of the
"bishops who consecrated me with him: the bishops

"are the thrones upon which God sits to promulgate
"his decrees; I have always been, I am still in
"clined to submit to their paternal corrections, but
"only when they proceed regularly."

In order to confirm this enormous authority of the clergy, Charles the Bald resorted to it against Louis. He caused the French prelates to assemble at Metz: these signified to the German monarch, that he had incurred excommunication, and presented the terms to which his forgiveness was attached. Thus, by the avowal of the King of France, bishops had, of themselves, the right to depose, and even to excommunicate, a foreign sovereign. One day these bishops contracted a solemn engagement at Savonnières, to remain united, in order to correct sovereigns, nobles, and people; and Charles heard and received these expressions with all the humility which should have been the portion of those who held them.

Nicholas cautiously avoided repressing these enterprises of the clergy; on the contrary, he was pleased to behold the advancement of their power, provided it continued in subjection to his. The quarrels which arose among these prelates, gave him an open for exercising his supremacy; and those in whose favor he exerted it supported it with ardour. Hincmar, archbishop of Rheims, had deprived of his dignity Rotade, bishop of Soissons, and Charles the Bald executed the decrees of a council, which, in defiance of this Rotade's appeal to the Holy See, had condemned him for contumacy. Nicholas cancelled these decrees, threatened Hincmar, and reestablished the bishop of Soissons. The king never thought of supporting Hincmar: on the contrary, he protected the nominated Vulfede, deposed by the Archbishop of Rheims, in another council, the sentence of which, also, Nicholas annulled. To such length had the 'False Decretals' extended the jurisdiction of the Holy See.

But the affair in which Nicholas made the most solemn display of his power, was that of the king of Lorraine, Lothaire, who after having repudiated and taken back his wife Theutberga, wished finally to part with her in order to marry Valdrade. The opposition of the popes to the divorces of princes has been often since renewed, but this is the first example: we have seen Charlemagne repudiate Imiltrade, as also Ermengarde or Desiderate, without any opposition on the part of the Roman pontiff; but he was Charlemagne, and his great-grandson neither inherited his genius nor his power.

Marriage is a civil act, which from its nature can be subject only to the regulations of the civil law. The religious rules or maxims which relate to it have no exterior force, no absolute efficacy, but inasmuch as they are inserted into the national code: they are not so inserted in those of the 9th century, and, consequently, the ecclesiastical ministry should have confined itself to recommending, in secret and without scandal, the observance, purely voluntary, of these maxims. But this wisdom, though so natural, was already foreign to the manners of a clergy, whose ministry the False Decretals had erected into authority; and neither kings nor people were capable of that degree of attention, necessary to acquire specific ideas of their civil rights and their religious duties. While Lothaire continued the husband of Theutberga, and had Valdrade but as a concubine, the pope and the bishops abstained from requiring him to give an example of a more regular and decent life: but from the time he thought of conferring upon Valdrade the rights of a lawful wife, Nicholas was earnest to apply to this project of reform the pontifical veto.

In truth, Lothaire himself provoked the intervention of the clergy, by causing Theutberga to appear before a tribunal of bishops, in order to undergo their indelicate interrogatories. Twice she confessed herself guilty of incest; and when the office of these Lorraine priests extended itself to extorting from her public avowals of the same, Nicholas whom they acknowledged as their supreme head, might consider himself authorised to revise so strong a proceeding. He therefore annulled the decision pronounced against Theutberga by the councils of Aix-la-Chapelle and of Metz; he degraded two prelates, Gonthier and

Theutgaud, whom the latter of these councils had thought proper to depute to him. These prelates condemned in plain terms the Pope's sentence; they asserted, that Nicholas wished to make himself monarch of the world.⁸⁵ The Emperor Louis seemed to believe so in part; he came to Rome resolved to support his brother Lothaire against Nicholas. But a fast and processions ordained by the pope, a tumult which he did not prevent, profanations about which he made a great noise, the sudden death of a soldier accused of having mutilated a miraculous cross; so many unlucky omens terrified Louis to that degree that it threw him into a fever. Furthermore, while Louis had been endeavouring to protect Lothaire, Charles the Bald, having declared against the latter, had received Theutberga. Hincmar himself composed a treatise respecting this divorce,

which occupied all Europe, far from favourable to the interests of Valdiade.⁸⁶

It was then enjoined by Nicholas, that Lothaire should give up the idea of a second marriage under pain of excommunication. A legate named Arsena came to compel the King of Lorraine to take back his first wife;⁸⁷ and to detach him more certainly from Valdrade, this courtesan, so she was styled by the Holy See, was borne off by the legate, who would have taken her to Rome if she had not made her escape by the way.

The holy father who wished to convert, could therefore do no more than excommunicate her. But he received from Lothaire an humble epistle, in which this prince having declared that he had not seen Valdrade since she left Arsena, conjures the court of Rome not to give the kingdom of Lorraine to one of his rivals: a supplication that may seem to us in the present day as the excess, if not delirium, of weakness, but which was dictated to this king by the apprehension of being stripped of his states to enrich Charles the Bald, who in fact did hope to obtain them from the Holy See.

Divers letters, written by Nicholas on this subject, contain a precious developement of his ideas of the royal powers, and of his own authority,:

"You say," he writes to the bishop of Metz, Adventius,
"that "the apostle commands obedience to kings: but ex-
"amine first whether those kings really be such, that
"is, whether they act justly, conduct themselves
"well, and govern their subjects properly; for other-
"wise it is necessary to account them tyrants, and
"as such to resist them. Be subject to them on
"God's account, as says the apostle, but not against
"God."

Fleury⁸⁸ here observes, "that the pope makes the bishops judges, whether kings be so legitimately, or tyrants, while the Christian morality requires their obedience of the worst of masters: in fact, to what prince did the apostle exact fidelity from them? It was to Nero."

Nicholas wrote to the bishops,⁸⁹ to know if Lothaire fulfilled his promises, and if they were satisfied with his behaviour to his first wife. He wrote to the King of Germany with new complaints of Lothaire⁹⁰

"We learn," said he,
"that he proposes
"coming to Rome without our permission: prevent
"his disobedience of us; and furthermore take care
"to preserve to us, by secure methods, the revenues

"of St. Peter, which we have not, for the two past
years, received from your states."

He declares to Charles the Bald,⁹¹ that Theutberga having had recourse to the church, she could no longer be subject to a secular tribunal. In another letter to the same monarch,⁹² he announces that he writes no longer to Lothaire because he has excommunicated him. Lothaire, indeed, though he had taken back Theutberga, had not altogether relinquished Valdrade; and Nicholas would not be satisfied with a shew of compliance.

Theutberga, finally, wearied with these contests, designed renouncing for ever the titles of wife and of queen:—the pontiff would not permit it; he addressed her in a long epistle, in which he recommended to her perseverance and intrepidity, and directed her rather to die than to yield.⁹³

The same principles relative to the jurisdiction and independence of the clergy, are to be found in 'Nicholas's Rescript to the Bulgarians':⁹⁴

"You who
are laymen," says he to them,
ought not to
judge either priest or clerk: they must be left to
the judgment of their prelates."

Thus, while the pope censures the conduct of kings, annuls or confirms their civil acts, and even disposes of their crowns, the members of the clerical body, to the lowest degree, are freed from all secular jurisdiction. Such is the *regime* to which Nicholas wished to subject the East and the West. He especially had at heart to make Constantinople submit; and his first step was to condemn and depose the patriarch Photius, in defiance of the emperor Michael. He threatened to burn, in the face of the world, an energetic letter which this emperor had written him, to excommunicate the ministers who had advised him to this step, and to annul in a Western council whatever had been done for Photius in the East. This quarrel, which was prolonged under the successors of Nicholas, was the prelude to the schism of the Greek Church.

Basilius Cephelas, or the Macedonian, assassinated his benefactor Michael, and seized upon the throne of Constantinople. Photius, on this occasion, was willing to imitate St. Ambrose, and ventured to address Basilius:

"Your hands are polluted with
blood: approach not the sacred mysteries."

But Basilius did not in any respect imitate Theodosius: he banished Photius, and re-established Ignatius, whom Michael had, not less unjustly, driven from, the patriarchal chair. Adrian II. took advantage from the disgrace of Photius to renew against him the anathemas of Nicholas. Photius, condemned already at Rome, was also condemned in a general council held at Constantinople.

Charles the Bald and Lewis the German, impatient to divide between them the states of their nephew Lothaire, hoped that Adrian would finally excommunicate that prince. But Adrian did not think it suitable to provide such means of aggrandizing their domains: he permitted Lothaire to come to Rome, and admitted him to the holy table;—did not hesitate to absolve Valdrade herself, and. contented himself for such great condescension with the King of Lorraine's oaths and promises. The monarch swore he had no connexion with Valdrade while she was under excommunication, and pledged himself never more to see her. Lothaire died at Placentia, a few days after taking this oath; and his death, which was considered as a punishment of his perjury,⁹⁵ produced the result for his two uncles, which they expected from his excommunication. They divided his kingdom between them, without respect to the rights which preceding treaties had given to the Emperor Louis.

Adrian, of his own motion, declared himself the guardian and arbiter of the respective rights of the three princes; decreed the states of Lothaire to the emperor, who had not as yet claimed them; enjoined Charles and Louis, under the usual penalties of ecclesiastical censure, to renounce the partition they had dared to make; and menaced with the same punishment every lord or bishop who should support their usurpation.

But neither in France nor Germany were any found disposed to the obedience prescribed by Adrian—his commands were despised. Hincmar, archbishop of Rheims, replied to him in the name of the nation, that a bishop of Rome was not the dispenser of the crowns of Europe; that France never received her masters from the pope's hands; that wild anathemas, launched forth from mere political motives, could not alarm a king of France; that, until Nicholas, the popes had never written to the French princes save respectful letters: in a word, that in reverencing the apostolical ministry of the pontiff, they knew how to resist efficaciously his attempts, whenever he sought to become at once both pope and king.⁹⁶

This letter, worthy of a more enlightened age, excited in the soul of Adrian the most violent anger. He knew that a son of Charles the Bald, named Carloman, had revolted against this monarch; he knew that another Hincmar, bishop of Laon, and nephew of the archbishop of Rheims, had taken part with Carloman, and carried his rashness so far as to excommunicate the king. Adrian declared himself the protector both of Carloman and the seditious bishop. The latter, seeing his acts annulled by his uncle, who was also his metropolitan, cited him before the Holy See:

"an insolent step," says Pasquier.
"unknown and contrary to the ancient
"decrees, which do not wish that causes should
"pass the confines of the kingdom in which they
"had their origin."

They hesitated not to break this appeal, they even deposed the appellant. A second fit of rage seizes Adrian, who commands the king, by his apostolic power, to send the parties to Rome to await their judgment there. In the vigorous reply of Charles, he protests that the kings of France, sovereigns in their states, never shall humiliate themselves so far as to hold themselves but as popes' lieutenants,:

"exhorting him, in fine," adds Pasquier,
"that for the future he might desist from
"letters of such a nature towards him and his pre-
"lates, lest he should be obliged to reject them."

This epistle of Charles produced the effect which persevering firmness always secures: the holy father became softened, excused himself, abandoned Carloman, confirmed the deposition of the bishop of Laon, and said no more about the partition made of the states of Lothaire. He wrote the king a letter so full of professions of regard, of praises, and of promises, that it contained the request to keep it very secret: but it became and remains public.⁹⁷ Adrian died a short time after having written it, and John VIII. succeeded him in December, 872.

The ravages of the Saracens in Italy, and especially about Rome, obliged the pope, John, to use a degree of management with the princes of Christendom. He refrained, for instance, from displeasing Basilius, when this emperor, having been reconciled to Photius, wished to replace this prelate in the patriarchal chair of Constantinople, which the death of Ignatius had left vacant. John, by his legates and letters, concurred in the

acts of the Council of Constantinople, which restored Photius, and carried his desire to please the Greeks so far, as to blame those who had added the word 'filioque,' to the Creed.⁹⁸

But the competition which divided the numerous 'heritors of Charlemagne, offered more than one opportunity to John VIII. to constitute himself arbiter, in return for the services he rendered to some, the right of humiliating others, and of ruling over all.

The Emperor Louis died in 875; and Charles the Bald, in order to obtain the imperial dignity, in prejudice of his elder brother, the king of Germany, had occasion to have recourse to the Holy Father.—John VIII. who did not expect to find in the German, and in his sons, defenders sufficiently powerful 'against the Saracens, preferred Charles, and took advantage of circumstances to dispose of the empire in favour of a king of France. He consecrated him emperor during the festival of Christmas. "We have adjudged him," said he, "worthy of the imperial sceptre: we have raised him to the dignify and-power of the empire; we have adorned him with the title of Augustus." Charles dearly repaid the ceremony of this coronation. He consented to date from this day all the charters he should henceforward subscribe: and, according to appearances, John must have obtained from him considerable sums, which served afterwards to pay the tributes enacted of him by the Saracens. It is even added, that Charles stripped himself in favor of the pope, of his sovereign rights over the city and territory of Rome; but the deed of such cession does not exist; contemporary historians, with one exception, say nothing of it: and John himself makes no mention of it in the letters of his which have reached us.

In 877, when Charles had so much difficulty in defending France against the Normans, John drew him into Italy to fight the Saracens. "Do not forget," he says to him, "from whom you hold the empire, and do not cause us to change our mind." Charles survived this threat but a short time; and the imperial crown, which he had borne for so short a period, was again solicited from the sovereign pontiff by several competitors. This time John confined himself to promising it, in order to hold it for the highest price: for three years there was no Emperor of the West: none of those who were ambitious of the title were powerful enough to assert it without the aid of the court of Rome. Louis the Stammerer, son of Charles the Bald, succeeded him only as king of the French. The pope came into France in the first year of this reign, and presided at the Council of Troyes. He there

fulminated anathemas against Lambert, duke of Spoleto, and against Adelbert, marquis of Tuscany; against Gosfrid, count of Mans; Bernard, marquis of Sep-temanei; and Hugues, son of Lothaire and Valdvide.

It is decreed by one of the canons of this council, that the bishops shall be treated with respect by the secular authorities, and that none must be so bold as to be seated before them without their invitation.⁹⁹ One of the projects of John VIII. was to exercise over the affairs of France a more immediate and habitual influence, through the medium of a legate of the Holy See; already even he had clothed with this title Angesus, archbishop of Sens: but this novelty was not pleasing to the other prelates, nor too much so to the monarch. Hincmair, especially, opposed it earnestly: he wrote a treatise to shew how pernicious it must be; and his brethren, instructed by his lessons and animated by his example, persevered in repelling this undertaking. The pope was indeed willing to relinquish it: in truth, he had much preferred obtaining military and pecuniary succours against the Saracens; but these were more abundantly promised than granted.

Sergius, duke of the Neapolitans, continued to favour the Saracens, notwithstanding the anathemas of Rome, and in despite of the remonstrances of his brother Athanasius, bishop of Naples. Athanasius took the resolution to tear out Sergius's eyes, and proclaim himself duke in his place. It is painful to relate, that the pope highly approved this crime, or as Fleury has it, 'this proceeding.'¹⁰⁰

But the letters are preserved which John wrote on this occasion,¹⁰¹ and in which he applauds Athanasius for having preferred God to his brother, and having, according to the precept of the gospel, 'plucked out the eye' that scandalized him. This barbarous, and almost ludicrous, application of a sacred text, opens to our view the character of John VIII. whose three hundred and twenty letters speak so perpetually of excommunication, that this menace presents itself as an ordinary and, as we may say, an indispensable formula.

In 880, John disposed of the imperial crown; he gave it on Christmas-day to the son of Louis the Gorman, Charles-le-Gros, who in 884 became king of France, by the death of Louis III. and of Carlo-man, son of Louis the Stammerer. The names of these princes suffice to remind us of the decline of the Carlovingian race. A bishop of France wrote one day to Louis III.¹⁰²

"It was not you who chose
"me to govern the church; but it was I, with my
"colleagues, who chose you to govern the kingdom,
"on condition of observing its laws."

And the bishop who held such language to his king, was the same Hincmar of Rheims, who had so energetically repelled the daring enterprizes of Adrian II. It seemed decreed that the monarch should have for his master, either the national clergy or the bishop of Rome; and already insecure against one of these powers, he inevitably sunk when they united.

John VIII. died in 882, and we may reckon up ten popes after him, in the course of the eighteen last years of the ninth century; none of whom had time to render themselves illustrious by any very great undertaking. We shall only observe, that the election of Stephen V. in 885, was, after his installation, examined and confirmed by Charles-le-Gros;¹⁰³ that the deposition of this emperor in 887, was pronounced, not by the ecclesiastical authority, but by an assembly of the German and French nobles;¹⁰⁴ that Formosus, in interfering in a dispute between Eudes and Charles the Simple, spoke at least a language more evangelical, and less haughty, than in similar circumstances had been held by Nicholas II. Adrian II. and John VIII. Formosus crowned two emperors, Lambert in 892, Arnulf in 896: and in both these ceremonies, the Romans took the oath of fidelity to the prince, 'saving the faith pledged to the Lord Formosus.'¹⁰⁵ This pope, in other respects, is only famous from the proceedings which his memory, and his corpse, experienced from his successors:—deplorable scenes, which are, however, foreign to the subject of which we treat.

In 898, during the pontificate of John IX. Arnulf was declared an usurper of the imperial dignity, and Lambert re-assumed the title of Emperor. The pope held, on this occasion, a council at Ravenna, in which the sovereignty of the Western Emperors over Rome and the Ecclesiastical State, was recognized by many decrees.¹⁰⁶ The following is the most important:

"Considering that on the death
"of a sovereign pontiff, the Church is exposed to
"great and many disorders, when the new pope is
"consecrated without the privity of the emperor,
"and without waiting for his commissioners, whose
"authority might prevent the outrages and irregu-
"larities which generally attend on this ceremony;
"we desire that for the future the pope be nomi-

"nated by the bishops and clergy, on being proposed by the senate and the people; that, after having thus solemnly and publicly elected him, they consecrate him in presence of the commissaries of the emperor; and, that no person dare, with impunity, under any pretence whatsoever, exact of him other promises or other oaths, than those which have been sanctioned by ancient usage; so that the church may neither suffer scandal nor injury, and that the authority of the emperor may receive no detriment."

But, in thus rendering homage to the imperial dignity, the popes seem to have reserved to themselves, by way of compensation, the right of conferring it. After the death of Lambert, and of Arnulf, the bishops and lords of Bavaria elected, in 899, a son of Arnulf, named Louis, and solicited the pope to confirm this election, excusing themselves for having made it without his approbation, in consequence of the pagans, that is the Hungarians, having cut off the passage into Italy. Neither John IX. nor his successor, Benedict IV. were in haste to crown Louis. After the example of John VIII. they endeavoured to accustom the Romans to dispense with an emperor: the empire remained vacant till 901.

We must recognize in the partition of the States of Charlemagne between the sons of Louis-le-De-bonnaire, and in the subsequent subdivisions of these states, the principal cause of the degradation of the civil authority, and the metamorphose of the pontifical ministry into a tremendous power:^{[107](#)}

"Hence," says Velly,
"these enterprises of the popes, who,
"considering themselves as the dispensers of an
"empire, of which they were only the first subjects,
"assumed under the cloak of a purely spiritual
"authority, to dispose sovereignly of empires.
"Hence, the enormous power of the bishops, who,
"after having dethroned the father at the solicitation
"of the children, believed themselves empowered to
"elect, confirm or depose their masters; ambitious
"prelates, rather warriors than priests, scarcely
"knowing how to read, much less write; terrible
"notwithstanding, as well from the spiritual thunders
"which they after, as Pasquier expresses it, tilted
"too freely and carelessly with, as from the temporal power which they had usurped in their cities
"and dioceses. Hence these almost independent
"principalities that the monks established in those
"countries, where some years before they tilled, with
"their own hands, the grounds which a pious liberally
"had abandoned to them."

Although there had been no authentic act which erected the pope into a sovereign, and which freed from the imperial supremacy the authority which he exercised at Rome, his power nevertheless became in effect independent; and as, in consecrating the emperors, he already considered himself as creating them, since he dared to speak of their dignity as a favour for which they were indebted to him, he doubtless had the means of placing limits to that obedience which they might be desirous of exacting from him. Far from imposing laws on him in his own states, they often acquiesced in his, even in the exercise of their civil rights and political powers. In the course of the succeeding centuries, every thing depended, not on the progress of ignorance or the return of knowledge alone, but on the personal energy of the kings and of the pontiffs individually.

CHAPTER III. TENTH CENTURY

PROTESTANTS take a malicious pleasure in portraying the court of Rome in the tenth century, and in extracting from Liutprand a contemporary author, the unedifying details with which he has filled up the ecclesiastical and political history of this period. But without examining whether the relations of this writer are as faithful as they are satirical, we may say with Fleury¹⁰⁸ that Rome under these unworthy popes ceased not to be the centre of Christendom. We may add with other theologians, that so many abuses not having drawn after them the destruction of the Holy See, their very excess serves to manifest the care of Providence to maintain this visible focus of Catholic unity.

For the rest, the private lives of the popes is not the object which claims our attention; we shall only consider their political relations with secular governments. In confining ourselves to this view, we shall not be troubled with unravelling the thread of succession, somewhat confused, of thirty popes, who, in the course of this century, have occupied, more or less legitimately, the chair of St. Peter. When two shall start up at the same moment, we shall not stop to inquire which of them is the true one; we shall not take on us to decide between Baronius, who never wishes to recognize save the worthiest or the most canonically elected, and those authors who adhere to the most effective, that is, to the man who has more decisively exercised the pontifical power: these are delicate questions, requiring long discussions, and the investigation of a multitude of petty circumstances, foreign to the history of those great disputes between the pontiffs and kings. In the midst of those things and of those changes, two points appear to us incontrovertible; one, that the Holy See was at this period reckoned in the number of temporal governments; the other, that occupied with its own

affairs, and the interior troubles which agitated it, it lost, without, a large portion of the influence and power which the preceding century had bequeathed to it. The first of these consequences is confirmed by Constantine Porphyrogenites, the Greek Emperor, who, previous to the middle of the tenth century, digested a sort of statistical table of the east and of the west: he in it represents the popes as 'sovereigns of Rome'.

Even in modifying this incorrect expression, we must admit, that this text places the bishops of Rome in the rank of princes who immediately governed states. As to the second conclusion, it followed almost of course: pleasure ever extinguishes the fire of ambition, discord shackles power, and the intrigues which employ us within, suspend our exterior projects; he who is compelled to defend himself in the bosom of his palace never meditates distant attacks. The excommunications so familiar to Gregory III. to Nicholas I. and to John VIII. menace, therefore, less frequently crowned heads. Theological opinions themselves become less exposed to anathemas. We find no general council, no new heresy in the tenth century.

This century may be divided into four epochs. The first would terminate in 932; it would be characterised by the influence of Theodore and her daughters. The second would present the administration of Alberic, and of his son, up to 962. The third would open with the coronation of Otho as emperor, and would terminate with the death of this prince in 973. The consulate of Crescentius would designate the fourth.

The inhabitants of Rome had never ceased to nourish ideas of independence; old customs led them back to republican forms. Their city did not belong to the kingdom of Italy; it held only from the imperial crown, which the pontiff himself had so far the disposal of, as occasionally to keep it in reserve. We have noticed examples of this interregnum of the empire, under John VIII. and John IX. p 906, when the eyes of Louis III. who on this account was called: the Blind, had been put out, the Romans ceased to insert his name in the public acts; and although this, unfortunate prince persevered in assuming the title of emperor, the imperial dignity actually remained vacant, until the coronation, of Berengarius in 916.^{[109](#)} During these interregnums, Rome accustomed herself to consider, her pontiff, alone as her sovereign, or rather her own, citizens, nobles, priests, or; sometimes even plebeians. This, collective sovereign, created popes, and sometimes unmade them. There had been seven or eight of these elections, or revolutions, in the course of the first fourteen years of the tenth century;

and each time two factions were seen attacking each other, into which the Roman nobility was divided, from the time of the proceedings against the memory of Formosus. Some authors discover at this era, the origin of the Guelphs, and Ghibelins: we must confess, we only behold as yet the families which disputed the papacy, or these influence exercised, as well over the electors as over the elected.

A party in favour of the Western Emperors is the least to be distinguished in the midst of these troubles; we rather have to remark a tendency, weak at first, towards the Greek emperors, but which disposition became much more evident towards the close of this century. From the year 907, Rome behaved with complaisance to Leo VI. called the Philosopher, whose fourth marriage had been censured by the patriarch of Constantinople. The power of the clergy was, at this period, more formidable at a distance from Rome than in the capital of Christendom. William of Aquitaine, in founding the abbey of Cluni, about the year 910, declared, that these monks should never be subject to him, to his relatives, or descendants, nor to any earthly power.¹¹⁰ In Northern and Western Europe the monks inherited, without being inherited of, and the edifice of their formidable opulence rapidly arose. They made not such a hasty progress in the Roman State, where, under ephemeral popes, the elective chiefs of a species of republic, the intrigues attached to such a system occupied every mind. In the midst of these political movements, three female patricians arose, provided with all the resources of influence with which rank, talents and beauty could arm ambition. Theodora, the mother of the other two, seduced the nobles, calmed faction, subjected to her authority the Church itself, and finally softened public manners by corrupting them.

One of her lovers, at first bishop of Bologna, she raised to the archbishopric of Ravenna, and, subsequently, to the sovereign pontificate, which he filled under the name of John X. from 914 to 928. We cannot make a favorable report of the holiness of this pontiff, but in his character, as head of a state, he merits fewer reproaches. He did not dispute the rights of other sovereigns; he acknowledged that it belonged to kings alone to invest bishops¹¹¹ he reconciled the princes whose rivalries destroyed Italy: on placing the imperial crown on the head of Berengarius, he endeavoured to ally him with the Greek Emperor against the Saracens, their common enemies: he himself marched against these Mahometans, fought them with

more bravery than belongs to the office of a pope, and drove them from the neighbourhood of Rome.

It appears that Theodora died previous to the year 928. Marosia, one of her daughters, after having united herself in second marriage with Guy of Tuscany, dethroned John and cast him into prison, where in a short time he died, no doubt a violent death. He had for successors, a Leo VI. and a Stephen VII.. creatures of Marosia's, and finally John XI. a young man of twenty to twenty-five years of age, of whom she herself was the mother, and whom she had borne to Pope Sergius II. according to Fleury¹¹² Baronius¹¹³ Sigowus¹¹⁴ and many others, who adopt on this head the relation of Liutprand.¹¹⁵ Muratori¹¹⁶ makes Alberic, the first husband of Marosia, the father of John XI. However it be, this woman governed Rome, under the pontificate of her son, to the year 932, the era of a new revolution. Marosia in her third nuptials took for husband Hugues king of Provence, maternal brother of Guy of Tuscany. This third spouse being disposed to maltreat Alberic, another son of Marosia's, a party devoted to young Alberic put him at the head of affairs: Hugues was driven from the city, and John XI. continued to fill in form, but without any actual power, the chair of St. Peter.

At this period commenced, in Rome, a secular government which continued about thirty years. Alberic with the title of consul or patrician, selected the popes, ruled them, and held them in dependence. Out of the city, the popes only possessed the property in the land; which they had infeoffed in order to secure a part. An armed nobility had arisen in their domains, which were now no longer part of their states, or which had never so been. They were ignorant, in those barbarous ages, of the art of distant government, the art of establishing over extensive territories an energetic system of unity, subordination, and connection. This art has been perfected only in modern times; and its absence in the middle ages, was probably a principal cause of the establishment and progress of feudal anarchy. They knew not how to retain an empire of any extent, but by parcelling it out to vassals, who were desirous of becoming independent, wherever the personal weakness of their liege lord permitted them to become so. The pope, therefore, from 932 till towards 966, was but bishop of Rome, without any secular power, and his spiritual influence was very much restricted. Properly speaking, the Emperor of the West had also disappeared: for Henry the Fowler did not assume this title in his diplomas:

he characterised himself only as ‘patron’ or ‘advocate’ of the Romans;¹¹⁷ and this vain title, below even that of patrician, embraced no authority, no duty, no political relation. With what independence Alberic ruled his fellow citizens, we can judge: he convoked them periodically in national assemblies; he preserved or renewed in the midst of them, the republican forms he supposed favourable to the support of his personal authority. Alberic died in 954; and his son Octavian, who succeeded him, thought it requisite to strengthen the civil power by re-annexing it to the pontifical dignity: he became pope in 956, and took the title of John XII. This double power would have been adequate to the restoration of the Holy See, if the extreme youth of John, the mediocrity of his talents, and the enterprises of Berengarius II. king of Italy, had not led to the re-establishment of the imperial dignity. John having need of Otho King of Germany to oppose to Berengarius, he crowned him emperor in 962.

Berengarius and his son Adalbert were deposed: Otho reunited to his kingdom of Germany, that of Italy, and the imperial crown. In order to acquire such extensive power, he made most magnificent promises to the Roman Church, and received in return the oaths and the homage of the pope. These documents of Otho’s and of John are still in existence: Gratian has delivered them to us in his canonical compilation; and if their authenticity be disputed, the source is unquestionable.¹¹⁸ Otho confirmed the donations of Pepin, of Charlemagne, and of Louis I. he extended them perhaps, but expressly reserving to himself, the sovereignty over the city of Rome and all the ecclesiastical domains: “saving in every respect, he says, our own power and that of our son and our successors.”¹¹⁹

The constitutions which required the emperor’s consent in the installation of a pope were renewed: Otho considered himself even invested with a right to depose the Roman pontiffs, and deferred not to lay hold on an occasion for exercising it. Scarcely had he left Rome, when John XII. measuring with terror the extent of the imperial authority, repented having re-established it, and conceived the idea of getting rid of it: Berengarius and Adalbert, with whom he had promised to hold no intercourse, were to assist him in this undertaking. The emperor who was soon apprised of it, received at the same time some relation respecting the private conduct of the pontiff: it was not the most edifying. Otho, appeared to pay but little attention to these recitals:

"The pope, said he, is a child; the example of worthy men may convert him; prudent remonstrance may draw him from the precipice down which he is ready to cast himself."

John received very ill these paternal counsels; he drew Adalbert to Rome, affected receiving him with pomp, collected troops, and openly revolted against the emperor, in defiance of the approach of this prince and his army. But the forces were too unequal: John was compelled to fly to Capua with Adalbert.¹²⁰

Otho entered Rome, and after receiving from the Romans an oath not to recognize any pope not approved of by the emperor, he wrote to John XII. a letter, which Fleury¹²¹ relates in these words:

"Being come to Rome for the service of God,
"when we demanded of the bishops and cardinals
"the occasion of your absence, they advanced
"against you things so shameful that they would be
"unworthy the folk of the theatre. All, clergy as
"well as laity, accuse you of homicide, perjury, sacrilege,
"incest with your relatives, and with two sisters,
"and with having invoked irreverently Jupiter, Venus,
"and other demons. We therefore beg of you to hasten instantly to exculpate yourself from all these charges. If you have any apprehensions from the insolence of the people, we promise you that nothing shall be done contrary to the canons."

In reply the pope declared that he would excommunicate the bishops who should dare to co-operate in the election of a sovereign pontiff. This menace did not impede the council assembled by Otho, from deposing John XII, and electing Leo VIII., notwithstanding some nobles attached to the family of Alberic excited two seditions, one under the very eyes of the emperor, the other immediately after his departure. The second of these commotions replaced John on the pontifical throne, which he stained on this occasion with the most horrible vengeance: he confined himself not to excommunications, but caused to be executed or mutilated all who had concurred in his deposition. His sudden death suspended the course of these cruel executions: he perished from a stroke on the temple, applied at night by the hand of some secret enemy, no doubt by one of the husbands outraged by the Holy Father.¹²² The Romans in contempt of all the oaths they had taken to the emperor, gave him a successor in Benedict V: but Leo VIII. who had taken refuge with Otho, was soon led back to Rome by

this prince; and Benedict the true pope according to Baronius¹²³ acknowledged himself the antipope at the feet of the head of the empire, stripped himself of his pontifical vestments, sought pardon for having dared to assume them, and finally offered his homage to Leo as the legitimate successor of St. Peter¹²⁴ The German publicists¹²⁵ have no doubt of the authenticity of an act, which Otho caused Leo to subscribe at the time, addressed to the clergy and people of Rome: it is stated in it, that no person for the future shall have the privilege of electing the pope, or other bishop, without the emperor's consent; that the bishops elected by the clergy and the people shall not be consecrated until the emperor shall have confirmed the election, with the exception, however, of certain prelacies, the investiture of which the emperor cedes to the archbishops; that Otho, king of the Germans, and his successors in the kingdom of Italy, shall have the power in perpetuity of selecting those who shall reign after them; and that of nominating the popes, as well as the archbishops and bishops who receive from these princes their investiture "by the cross and the ring."

With the exception of these last words the act is delivered down to us in Grotius's decree; yet some Italian authors consider it apocryphal, without, assigning any other reason for this opinion than the enormous extent¹²⁶ which this constitution seems to confer on the imperial power. We may, however, assert in this place, that though the authenticity of this text be not very rigorously insisted on, the testimony of contemporary historians¹²⁷ invariably proves, that Otho obliged Leo VIII. to subscribe an explicit recognition of the imperial rights.

The recent revolt of John XII. sufficed to excite in the emperor an anxiety for this new guarantee: and Leo, his own creature, had no power of placing restrictions to it. The act was such as Otho willed it to be and this prince, a conqueror and a benefactor, would not rest satisfied with an ambiguous formula.

Leo VIII. and Benedict V. died in 965; the commissioners of Otho caused the election of John XIII. but the Romans revolted against this new pope, and banished him. Otho was obliged to return into Italy, and hasten to Rome to subdue the seditious and restore the pontiff. John could forgive none of his enemies: he signalized his return by atrocious vengeance, of which the emperor condescended to become the accomplice and the instrument. They have tarnished the glory of this prince, and justified the

indifferent reception, at this period, of one of his ambassadors to the Greek emperor, Nicephoras Phocas.:

"The impiety of thy master, said the emperor of Constantinople to the ambassador of Otho,
"does not allow us to receive thee honorably: thy
"master has become the tyrant of his Roman subjects;
"he has exiled some, he has torn out the eyes of others;
"he has exterminated one-half of his people by the sword and by the scaffold."

The ambassador to whom this discourse was addressed, was the historian Liutprand, who himself relates it.

Otho, however, was not cruel by nature; in this instance he only yielded to the importunities of the vindictive John.

The successes of Otho the Great, his excursions to Rome from the year 962 to 966, laid the foundation of the power of the German emperors, his successors. He wished the imperial dignity to become forever inseparable from the united kingdoms of Germany and Italy; that Christendom in its full extent might form a republic which should recognize in the emperor its sole temporal head; that it should be the privilege of this supreme chief, to convoke councils, command the armies of Christendom, establish or depose popes, to preside over, and to create kings. But in order to elevate himself to such a pinnacle of greatness, he had need to manœuvre the German bishops; they, therefore, received from him enormous concessions. He distinguished the cities into two kinds, prefectorial, and royal, since imperial, and confided the government of the latter to the bishops, who laboured hard to render them episcopal. The bishops became Counts and Dukes with royal prerogatives, such as the administration of justice, privilege of coining money, collecting customs, and other public revenues. It was by the title of fiefs, and on condition of following him in his military expeditions, that Otho gratified them with such power and wealth: but these dangerous benefactions, in abridging the domains of the crown and the revenues of the State, served the ends of future anarchy and revolution. The clergy, as well the secular as regular, required in most of the countries of Europe a formidable power, which would have been further encreased, if already some symptoms of rivalry between these two bodies had not fettered their common aggrandizement. Converts multiplied from day to day, and enriched themselves almost beyond bounds. The Church's period of 1000 years was about to expire; and donations to the church, especially to

monasteries, passed for the most certain assurance against eternal damnation. From the retirement of the cloisters arose important personages, before whom the thrones of the world were humbled. Dunstan, from Glastonbury Abbey, sprung forward to govern Great Britain, to insult queens, and subject kings to penance. Otho the Great was at this period the only prince of Christendom who fully ruled the ecclesiastical authority: and if there remained among any people, ideas or 'habitudes' of civil independence, it was among the Romans in the centre of Christianity itself.

The reign of Otho the Great, is the era to which we would willingly refer the origin of the two factions, the papal and imperial, since called those of the Guelphs and Ghibelins. But in the tenth century, the partisans of the pope, were only citizens, emulous of obtaining the independence of their city or republic, and to withdraw their elective head from all domination. Some would have even preferred a civil magistracy simply, as that of Alberic; they united rather in opposition to the emperor, than in favor of the pontiffs chosen without, or in defiance of, his authority. Such were the elements of the factions, which revolted with John XII. which nominated Benedict V. and which repelled, as far as in their power, Leo VIII. and John XIII. The emperor had no partizans at Rome save his personal agents, and a few of the inhabitants; the rest were subjected only by his presence or his arms. Thus this pontifical faction which, in the sequel, appears to have supported the most monstrous excesses of pontifical ambition, was originally but a republican party, that more than once, it had been easy to engage in the destruction of the temporal power of the popes, by conferring on the Romans, and on some others of the cities of Italy, a suitable government.

Otho died in 973; and from his death to the pontificate of Gerbert or Sylvester II. the most remarkable events are, the accession of Hugh Capet to the throne of France, the excommunication pronounced against his son Robert, and the attempts of Crescentius to force Rome from the yokes of Otho II. and Otho III. the feeble successors of Otho the Great.

Crescentius was the son of Theodora, and, according to Fleury, of Pope John X. We behold him governing Rome in quality of Consul towards 980; but it is probable that from the year 974, he exercised a considerable influence; stormy or weak pontificates restored the civil magistracy. Benedict VI. the successor of John XIII. had been dethroned, imprisoned, and strangled, or condemned to die of hunger. Boniface VII. the usurper of

the Holy See, after having plundered the churches, fled with his booty to Constantinople: they hesitated not to fill his place, and the imperial influence determined the election in favor of Benedict VII. who belonged to the family of Alberic, now counts of Tusculum; a powerful family, by whom the Emperor Otho II. and his agents, strengthened the German party. But this emperor occupied in a war with the Greeks in the Duchy of Beneventum, feared to displease the Romans by taking too active a part in their affairs. He therefore prevented not Crescentius, who had obtained their confidence, from ruling both the city and its bishop. In 983, when Benedict VII. died, the Romans and their consul elected John XVI. Boniface, however, returned from Constantinople, made himself master of Rome and of the person of John, caused him to perish in a dungeon, and maintained himself during the space of eleven months, at the head of the city and of the church. There is reason to think that Crescentius contributed to the fall of Boniface, whom a sudden death snatched from the vengeance of the people. John XV. elected in 985, had disputes with the consul, who exiled him, and did not agree to see him until the pope had promised to respect the popular authority. In despite of this promise, Otho III. was called into Italy by John, who submitted with reluctance to the ascendancy of Crescentius. John died at the moment he expected to see himself delivered from this governor. Otho III. nominated for pope a German, who took the name of Gregory V.: this foreign pontiff elected by the influence of the Counts of Tusculum, on the approach of the imperial army, odious on every account to the Romans, became still more displeasing to them from German manners and hauteur¹²⁸

It was at this moment Crescentius formed the project of replacing Rome under the sovereign authority of the Greek emperors, masters at once more gentle and more remote, accustomed to respect the privileges of the people, and under whose protection the Neapolitans and Venetians breathed freely and prospered. Greek ambassadors proceeded to Rome under pretence of fulfilling a mission to the court of Otho; they conferred with the consul, who deferred not to expel Gregory, and to replace him by a Greek named Philogathus, who from being bishop of Placentia, became pope or anti-pope under the name of John XVI. But Otho came to Rome, and laid hold of this new pontiff, whom Gregory condemned, in spite of the prayers of St. Nil, to lose his life by a series of the most horrible torments. Crescen-tius had retired to the wall of Adrian; they affected to treat with him, they pledged themselves to respect his person: he relied on this promise given by the

emperor, quitted the fortress, submitted himself to Otho, and was instantly beheaded with his most faithful partisans.

It was John XV. who filled the chair of St. Peter, when in 987 Hugh Capet dethroned the Carlovingian race, and made himself king of France. This prince knew how to make this necessary revolution acceptable to the French nobles and bishops; it proceeded without commotion, and above all without the intervention of the Roman Court. Hugh did not apply to John as Pepin before had done to Zachary; and the happiness of not being indebted to the Holy See, for his elevation, was without doubt, one of the causes of the security of Hugh, the long duration of his dynasty, and the propagation of those maxims of independence, which have distinguished and done honour to the Gallican church. These maxims were proclaimed from the reign of Hugh, by a bishop of Orleans, and by Gerbert archbishop of Rheims¹²⁹ It was in the affair of an archbishop of this same city of Rheims, named Arnoul, who had betrayed the new king, and whom this prince had deposed. John wished to re-establish Arnoul and annul the election of Gerbert; but the monarch was firm, and, while he lived, Gerbert remained in the See of Rheims, and Arnoul in the prison of Orleans.

Robert, son of Hugh, did not resist with equal success the attempts of Gregory V. Robert had married Bertha, although she was his relative in the fourth degree, and that he had been godfather of a son that she had by the Count of Chartres, her first husband. They exclaimed against a marriage made in contempt of two such serious impediments. Too much terrified by these clamours, Robert resolved to restore Arnoul to the See of Rheims: this complaisance by which he hoped to reconcile himself to the See of Rome, appeared but an indication of his weakness. The pope did not hesitate to declare the marriage void; he excommunicated the two spouses, and Robert, compelled to part Bertha, married Constance. This pliability has been much urged against him; but after the re-establishment of Arnoul, a perseverance in retaining Bertha would have led almost infallibly to fatal consequences. We must consider that Robert was the second king of his family; that this new dynasty had scarcely reigned ten years; that Gerbert, one of the most judicious men of this epoch, had left the King of France in order to attach himself to Otho III.; that this emperor had appeared at the council in which Gregory V. had excommunicated the son of Hugh; and finally, that these anathemas were then so dreadful, that at the present day we can scarcely avoid suspecting exaggeration in what is related to us of their effects.¹³⁰ It

was the first time France beheld herself placed under an interdict, and that she received the injunction to suspend the celebration of the divine offices; the administration of the sacrament to adults, and religious sepulture to the dead. We are assured that Robert, when excommunicated, was abandoned by his courtiers, his relations, his household, and that even two servants who remained with him caused to pass through the fire the things which he had touched.

This Gerbert whom we have mentioned, became pope after Gregory V. by the name of Sylvester II. It was he who, being archbishop of Rheims, and seeing himself condemned by John XV. had expressed himself in these words:^{[131](#)}

"If the bishop of
"Rome sin against his brother, and that, often warn-
"ed, he obey not the church, he ought to be re-
"garded as a publican: the more elevated the rank,
"the greater the fall. When St. Gregory said, that
"the church ought to fear the sentence of its pastors,
"whether just or unjust, he did not mean to recom-
"mend this fear to the bishops, who do not consti-
"tute the flock, but are the heads and leaders thereof.
"Let us not furnish our enemies with an occasion to
"suppose that the priesthood, which is one in every
"church, be in such sort subject to a sovereign pon-
"tiff that if this pontiff suffer himself to be corrupted
"by money, favor, fear or ignorance, no person can
"hence be a bishop, unless he upholds himself by
"such means. The church has for a rule, the
"Scriptures, the decrees, and the canons of the Holy
"See, when these are conformable to Scripture."

Driven from Rheims, Gerbert was received by Otho the III., who created him, first, archbishop of Ravenna, then head of the church in 998. He died in 1002, after having in this short pontificate, confirmed as far as in his power, the imperial authority at Rome, and refused the indications of independence which had agitated her citizens.

We cannot take leave of the 10th centuiy, without lamenting the gross ignorance into which Europe was plunged. Possessions were regulated by custom, and transactions pursued by remembrance alone. In the midst of these people, these nobles, these kings, who knew neither how to read nor write, the rudest instruction was, in the clergy suffered to put them in possession of the civil administration.^{[132](#)}

"The ecclesiastics, says Pasquier, di-
"vide among themselves the keys as well of reli-

"gion as of letters, altho' so to speak, they derived
"from these only sufficient provision for their
"cubs."

They alone could spell ancient writings, and trace some letters. They assumed the dictating of wills, the regulation of marriages, contracts, and public acts; they extorted legacies and donations, they freed themselves from the secular jurisdiction, and endeavoured to subject all things to a jurisprudence of their own. [133](#)

CHAPTER IV. ENTERPRISES OF THE POPES **OF THE ELEVENTH CENTURY**

A SHORT time after the death of Sylvester II. a patrician, consuls, twelve senators, a prefect, and popular assemblies, were seen to re-appear at Rome. A second Crescentius, the son perhaps of the first, filled the prefectorial office. As to the patrician, who was named John, and who was the principal author of the reestablishment of this civil magistracy, he is expressly designated to us as son of the first Crescentius. But in 1013, Henry II. came to Rome: he received from Pope Benedict VIII. the imperial crown: and the Romans, in spite of their menaces, lost once more their independence. Baronius¹³⁴ relates a diploma in which Henry confirms the donations of his predecessors: it is added that Benedict, before receiving this emperor, made him swear that he would be faithful to the pope, and regard himself only as the defender and advocate of the Roman Church. Glaber,¹³⁵ a contemporary historian, after having related this coronation, says, that it appears very reasonable, and a thing well established, that no prince could take the title of emperor, 'save he whom the pope shall have chosen and clothed with the insignia of this dignity:' words which seem much less to express in this place the sentiment of an individual than an opinion generally established in his time.

However Mabillon¹³⁶ and Muratori¹³⁷ deny the authenticity of the diploma instanced by Baronius; and we see that in 1020, when Benedict VIII. resorted to Henry in Germany, this prince confirmed the donations of his predecessors with an express reservation of the imperial sovereignty.

John XIX. the successor of Benedict, was banished by the Romans, and restored by the Emperor Conrade, in 1033, whom he had crowned in 1027. After John, who survived his re-establishment but a short time, his

nephew was elected pope, and took the name of Benedict IX. when he, according to Glaber,¹³⁸ was but ten years of age.

The elevation of an infant to the pontifical throne is not probable; but all circumstances concur in proving that Benedict IX. was in 1033 but a very young man: he bore to the chair of St. Peter the thoughtlessness and irregularities of youth; and he was equally reproached for his robberies and assassinations as for his gallantries. Behold how he is pourtrayed to us by Victor III. one of his successors and contemporaries¹³⁹ :

"I am horrified to state how shameful was the life which Benedict led, how dissolute, how detestable. Therefore I shall commence my relation at the period when God took pity on his holy church. After Benedict IX. had wearied the Romans with his thefts, his murders, his abominations, the excess of his villainy became insupportable; he was expelled by the people: and to replace him they elected for a stipulated price, in contempt of the holy canons, John, Bishop of Sabine, who filled the Holy See for three months only, under the name of Sylvester in. Benedict IX. who was descended from the Consuls of Rome, and whom a powerful party recalled, wasted the environs of the city, and by the aid of his soldiers, compelled Sylvester to retire ignominiously to his bishoprick of Sabine. Benedict in resuming the tiara, did not leave behind him his manners, always hateful to the clergy, and to the people, whom his irregularities continued to disgust; terrified with the outcry raised against his crimes, given up besides to voluptuous pleasures, and more disposed to live as an Epicurean than as a pontiff, he adopted the resolution of selling the pontificate to the arch-priest John, who paid him a considerable sum for it. This John nevertheless passed in the city for one of the best of the ecclesiastics; and while Benedict took up his abode in houses of pleasure, John under the name of Gregory VI. governed the church two years and three months, till the arrival of Henry III., king of Germany."

Such is the picture drawn for us by a pope, of the condition of the Holy See, under three popes, his predecessors, from 1033 to 1046.

It may be proper to observe, that Benedict the VIII. his brother John XIX. and their nephew, Benedict IX. were of the house of the Alberics counts of Tusculum. This is one of the first examples of pontifical nepotism, or of the efforts of a family to perpetuate itself in the Holy See.

We have seen by the statement of Victor III. that in 1045, there existed at the same moment three popes; to wit, Benedict IX. who had retired to his

castle; Sylvester III. exiled to his original bishopric; and Gregory VI. seated at Rome, since 1044. This last pontiff, who had purchased his place, wished to reap its fruits, and could not behold them without grief considerably lessened from the loss of many domains, usurped by seculars from the Holy See. He took up arms to reconquer them, without neglecting, however, the excommunication of their possessors. These were the principal acts of his pontifical court. He is represented to us, as a very ignorant man, even for the age in which he lived; it is doubtful whether he could read;¹⁴⁰ and history relates, that a coadjutor was given him to perform the pastoral functions, while he was signalizing himself by warlike exploits.

At the moment of Henry's arrival, at Rome, the three popes were there, Benedict IX. at the palace of the Lateran, Sylvester III. at the Vatican, and Gregory VI. or John his coadjutor, at Saint-Mary-Major. Henry deposed the whole three without any difficulty, and caused a fourth to be elected, Suidger, bishop of Bamberg, who took the name of Clement II. To this Clement succeeded Damasius II.

Leo IX. and Victor II. all like himself, the creatures of Henry III. The ten years of this emperor's reign, are one of the epochs during which the Romans and the popes have been most decidedly subject to the imperial power.

Leo IX. the relative and subject of Henry, indemnified himself for that obedience which he could not refuse to this emperor, by acts of authority against other sovereigns. He held a council at Rheims in defiance of the King of France, Henry I. proclaimed in it the pontifical supremacy, and deposed and excommunicated prelates and seculars. In a council at Rome, he decreed that the females whom the priests should abuse in the bosom of this city, should remain slaves of the palace of the Lateran.¹⁴¹ This pontiff, whom they have placed in the catalogue of saints, should rather have obtained a place in the rank of warriors. He led an army against the Normans, who defeated him, and kept him prisoner at Beneventum. His pontificate is memorable from the completion of the schism of the Greek church; but the religious discussions which belong to the history of this schism, exceed the limits of our subject: the principal political result of this division was, to extinguish the already very feeble influence of the Emperors of the East over the affairs of Italy.

'Tis under Leo IX. that Hildebrand begins to be distinguished, a man the most celebrated of his age. Born in Tuscany, where his father, they say,

was a carpenter, he studied in France, embraced the monastic rule there, and returned into Italy to give counsel to Leo IX. Nicholas II. and Alexander II. and finally to succeed them in the pontifical throne. The idea of a universal theocracy had assumed in his fiery and iron soul the character of a passion; all his life was devoted to the undertaking. To assure the empire of the priesthood over the rest of mankind, he saw the necessity of reforming their manners and concentrating their relations, to isolate them more strictly, and to form them into one great family, the members of which should no longer recollect having belonged to a secular one. Ecclesiastical celibacy was as yet but a general practice, introduced into and renewed in almost every church, but in almost all, nevertheless, modified by exceptions or transgressions. Hildebrand resolved to reduce it to a rigorous law: at his instigation, Stephen IX. in 1058 declared marriage incompatible with the priesthood; treated as concubines all the priest's wives; and excommunicated both them and their husbands, if the union was not instantly divided. The clergy made some resistance; the priests of Milan, especially, objected the permission granted them by St. Ambrose to marry, but in first nuptials only, and provided it was with a virgin.¹⁴² Hildebrand to cut these remonstrances short, classed in the number of heretics the obstinate gain-sayers.¹⁴³

Under Nicholas II. Hildebrand changed the mode of electing the popes. Until his time, all the Romans, clergy, nobles, and people, had assisted in these elections. It was ruled that for the future they should be selected by the cardinal bishops alone, to whom the cardinal clerks should afterwards be united, and they were to close the matter by demanding the approbation of the rest of the clergy, and even that of the body of the faithful. The cardinal bishops are no others than the seven bishops of the Roman territory: Nicholas, in the same decree calls them his fellow countrymen, "comprovinciales episcopi."¹⁴⁴ With respect to the cardinal priests or clerks, it was those who administered the offices of the twenty-eight principal churches of the city of Rome. Long before Nicholas, these twenty-eight priests and these bishops, had been designated by the appellation of 'cardinals'; but now for the first time, behold them invested with the exclusive and determinate privilege of nominating the new popes: the rest of the clergy and the people preserve no more than the power of rejecting the proposed. Such was the origin of the Electoral College of Cardinals; a college, however, which received subsequently, and by

degrees, its present organization. It had, as we see, for its first founder, Nicholas II. or rather Hildebrand. Let us not omit the clause which terminates this decree:^{[145](#)}

'saving the honour and respect due to king Henry,
'future emperor, to whom the Apostolic See has given
'the personal privilege of concurring in the election
'by consent.'

The rights of the emperor were as yet too firmly founded to permit being silent on them: they satisfy themselves by misrepresenting them, and by referring to them as a concession granted by the Holy See, as a personal privilege with which it was pleased to gratify Henry.

In founding ecclesiastical benefices, kings and nobles had reserved to themselves the right of appointing to them; none could possess them until after they had been invested by the donor or his heirs. It was a simple application of the feudal system to ecclesiastical domains; but the Court of Rome complained of the bad selection to which this system led, and especially of the bargains which were driven between the patrons and the candidates. A vast number of benefices were disposed of no doubt: but this traffic has subsisted under every regime; the question never has been other than that of knowing for whose benefit it should be earned on. Hildebrand armed himself with a sanctified zeal against this abuse: to extinguish it, he ventured to dictate for Nicholas II. a decree, which prohibited the acceptance of a benefice from a layman, even gratuitously.^{[146](#)} This decree, published in 1059, in the same council which confined to the cardinals the election of the popes, presented itself under the form of a special rule against simony. Little attention was at first given to it, it was rarely carried into effect; but we are bound to point it out here as the prelude to the quarrels about investitures.

For a long period, kings and nobles had invested prelates in presenting them with a switch or branch, as is practised in the investiture of counts and knights. But the clergy, from the tenth century, had more than once thought to deprive the patrons of benefices of their privileges, by proceeding without delay to the election and consecration of the prelate. It seemed allowed on all sides, that the consecration rendered the election irrevocable: and if the patron layman had been advertised of neither one nor the other, he lost the opportunity of bestowing or selling the dignity. To escape this stratagem, the sovereigns decreed that, immediately after the death of a

prelate, the ring and crozier should be transferred to his successor only in investing him. Adam de Brema¹⁴⁷ refers to the reign of Louis le Débonnaire this form of investiture: but it is infinitely more probable, that it was not introduced until under Otho the Great, after the middle of the tenth century: it was almost universally established in the eleventh.¹⁴⁸ Hildebrand promised to himself its abolition, firstly, because it secured to laymen the right of nomination or of sale, and further, as it caused two symbols of the ecclesiastical power to pass through the hands of the profane.

Far from reconciling himself to the continuance of a ceremony, in which the secular authority seemed to confer sacerdotal offices, he pretended, on the contrary, to erect the head of the church into the supreme dispenser of temporal crowns. From the year 1059, he made, in the name of Nicholas II. the first essay of this system. Nicholas received the homage of the Romans, and created one of their chiefs Duke of Apulia Calabria and Sicily, on condition that as vassal of the Apostolic See, this chief, named Robert Guiscard, should take to the Roman Church the oath of fidelity, pledge himself in the same character to pay it an annual tribute, and enter into the same engagement for his successors.¹⁴⁹ Such was the origin of the kingdom of Naples; and this strange concession stripped the emperors of Constantinople of every remnant of sovereignty over Grecia Major. Nicholas II. died in 1063; and to elect and instal his successor Alexander II. the imperial consent was in no way sought for. The court of Henry IV. then a minor, was offended, and caused another to be nominated pope, Cadaloo, who named himself Honourous II. Cadaloo defeated the army of Alexander, and succeeded in fixing himself in the Vatican; but the duke of Tuscany drove him thence: Alexander was recognised as the true pontiff, and Hildebrand continued to reign.

Hildebrand did not sit in person in St. Peter's chair until 1073. We may be surprised he did not sooner occupy it; some authors think the pride and inflexibility of his character indisposed the electors towards him: to us it appears more than probable that he in fact did not aspire to become pope, provided the pope became the sovereign of kings; for were he ambitious of the tiara, if he had desired, as he was capable of desiring it, how easily had he triumphed, since the year 1061, or even previously, over some feeble resistance. It was to the unlimited aggrandizement of the pontifical power, much rather than to his personal elevation, his opinions and character impelled him. We perceive in his conduct none of the manœuvring which

private interest suggests: it evinces all the outlines of an inflexible system, the integrity of which is never permitted to be compromised by concession or compliance. His zeal, which was not merely active but daring, obstinate and inconsiderate, proceeded from an incurable persuasion. Hildebrand would have been the martyr of theocracy, if circumstances had called for it; and they were little short of it. Like all rigid enthusiasts, he considered himself disinterested, and became without remorse, the scourge of the world. Without doubt, interest is the spring of human actions: but the success of an opinion is an interest too; and to sacrifice thereto every other, has been in all ages the destiny of some. There are those who, cautious of troubling their neighbours, compromise only their own happiness; these are the more excusable, as it is perhaps to truth they offer so pure and so modest a sacrifice. Others, like Hildebrand, think to acquire by the privations they impose upon themselves, the privilege of terrifying and tormenting nations: and their melancholy errors cost the world a train of misfortunes.

There are attributed to Gregory VII. the papal name of Hildebrand, twenty seven maxims which compose a complete declaration of the temporal and spiritual supremacy of the Roman Pontiff,¹⁵⁰ comprising in it the right of dethroning princes, disposing of crowns, and reforming all laws. It is not very certain whether or not he really drew up or dictated these articles; but the substance of them and their developement will be found in his authenticated letters: they may be entitled “The Spirit of Hildebrand;” they were the rule of his conduct, the creed which he professed, and would have wished to impose on Christendom. In them it is expressly stated that the pope has never erred, and that he never can fall into any error; that he alone can nominate bishops, convoke councils, preside over them, dissolve them; that princes should stoop and kiss his feet; that by him subjects may be loosed from their oaths of fidelity; and in a word that there is no name upon earth but that of the pope.

With reason has it been remarked how very much circumstances favoured the designs of Hildebrand. Since the death of Otho the Great, the German Empire had done nothing but weaken itself; Italy was divided into petty states; a young king governed France; the Moors ravaged Spain; the Normans had just conquered England; the northern kingdoms, newly converted, were ignorant of the bounds of the pontifical authority, and were to set the example of docility.

When Gregory VII. saw William the Conqueror established in England, he did not hesitate prescribing to him to render homage for his kingdom to the Apostolic See.¹⁵¹ This strange proposition had for its pretext, the alms which the English had paid for about two centuries to the Roman Church, and which was called Peter's pence. The Conqueror, replied that perhaps the alms would be continued, but it therefore did not follow, that homage should be demanded of those from whom he received charity. William at the same time forbade the English from going to Rome, and prohibited them acknowledging any other pope than him whom he should approve. This trifling affair had no other consequence; and we only mention it in this place as it evinces better than any other, that Gregory knew not how to fix any bounds to the pretensions of the Holy See. Perhaps he imagined that the newness of William's power in England might incline him to wish for the protection of Rome, and make him willing to purchase it by an act of vassalage: but it was evincing a very false idea of the state of this conqueror's affairs, his power, his character, and his ascendancy over his new subjects. The least reflection would have diverted Gregory from so ridiculous a step, shameful because useless.

Sardinia, Dalmatia, Russia, were in Gregory's eyes but fiefs which ornamented the tiara. "On behalf of St. Peter," thus he writes to Demetrius the Russian prince, "we have given your crown to your son, who receives it from our hands in taking the oath of fidelity to us." We must mention the names of all the princes who reigned in this pope's time, in order to fill up the catalogue of those whom he threatened or struck with his excommunications: Nicephoros Bonotiate, the Greek emperor, whom he enjoined to abdicate his crown¹⁵²; Boleslaus, king of Poland, whom he declared deprived of his authority, and added that Poland should be no longer a king-dom¹⁵³; Solomon, king of Hungary, whom he sent to learn from the old men of his country, that it belonged to the Roman church¹⁵⁴; the Princes of Spain, to whom he stated that St. Peter was supreme and sovereign lord of their states and domains, and that it would be preferable that Spain should fall into the hands of the Saracens, than cease to render homage to the vicar of Jesus Christ¹⁵⁵; Robert Guiscard, his vassal, whose slightest neglect he punished with anathemas¹⁵⁶; the Duke of Bohemia, of whom he exacted a tribute of a hundred marks of silver: Philip I. king of France, whom he affected to subject to similar exactions, and whom he

denounced to the French bishops as a tyrant plunged into infamy and crime, who deserved not the name of a monarch, and of whom they would render themselves the accomplices, if they did not rigorously resist him.

"Imitate, says he to them, the Roman Church your mother; separate yourselves from the service and communion of
"Philip, if he remain obstinate; let the celebration of
"the holy offices be interdicted throughout all France;
"and know that, by God's assistance, we shall deliver
"this kingdom from such an oppressor."

But of all the sovereigns of Europe, the emperor Henry IV. who had the principal influence in Italian affairs, was, on this account, the most exposed to the thunderbolts of Hildebrand.¹⁵⁷

Against so many potentates, and especially against Henry IV. Gregory had no other support, no other ally, than an Italian princess, with little talent, but much devotion, this was Matilda, countess of Tuscany. She possessed for him a generous and tender friendship; he addressed to her also, as a spiritual director, extremely affectionate letters; she lived unhappily with Godfrey-le-Bossu, her first husband: from this circumstance, and others, rash inductions have been drawn not supported by any positive fact.¹⁵⁸ It is not the tender passions we can reproach Hildebrand with; and the ascertained consequences of the connexion with Matilda, belong only to the history of the pontifical ambition.

This princess gave all her possessions to the Holy See, and three distinct monuments have been cited of this famous liberality. The first act, subscribed by her in 1077, has not been found. The second, which she signed twenty-five years later, when Hildebrand no longer lived, is preserved at Rome,¹⁵⁹ and a will is also spoken of, which is not forthcoming, but which they say, confirms the two preceding donations. There exist indeed some difficulties, respecting these three acts: why has the first been allowed to go astray? wherefore do historians say, it was signed at Canossa, while it is referred to in the second, as having been subscribed at Rome? And this second deed itself, which so completely divests the giver, which reserves to her only some life enjoyments, how reconcile it with the extensive domains with which she continued to enrich monks and canons, from the year 1102, to 1115? Why not publish her will, which had, perhaps, explained these apparent contradictions? To all these questions we shall reply, that the act of 1102 subsists; that it expressly

renews that of 1077; and that of all the donations of which the Holy See hath availed itself, that of Matilda is undoubtedly the best authenticated as well as the richest.

In truth, the emperor Henry V. the heir of this Countess, made himself master of all she had been possessed of, and which reverted at a later period to the Court of Rome; but, with time, the popes have secured a part of this inheritance, and have termed it the Patrimony of St. Peter: they are indebted for it to the cares of Gregory VII.

Henry IV. had obtained a victory over the Saxons, when he was addressed by two legates, who communicated to him the order, to appear at Rome, in order to reply to the accusations brought against him: it related to investitures granted by him, 'by the cross and ring;' it was requisite to obtain pardon, or submit to an excommunication¹⁶⁰ Henry, although he despised the menace, thought proper to give the pope some trouble in the city of Rome: a tumult took place, and Gregory was seized, struck, imprisoned, and ransomed. The effect of this ill-treatment was to cast an interest on the person of the pontiff, and to prepare him against a more serious vengeance. The emperor in a council at Worms, deposed Gregory, who, too confident of the inefficacy of such a decree, replied to it by the following:¹⁶¹

"On the part of the Almighty God, and of my full
"authority, I forbid Henry, the son of Henry, to
"govern the kingdom of the Teutons and Italy:
"I absolve all Christians from the oaths they have
"taken, or shall hereafter take to him; and all per-
"sons are forbidden to render him services as a "king."

We would willingly discredit it, but it is proved that these extravagant words, snatched from the monarch the fruit of all his victories. The civil war was again kindled in the centre of Germany; an army of confederates was assembled near Spire, surrounded Henry, opposed to him the sentence of the pope, and made him pledge himself to forbear the exercise of his power, until the decision, to be pronounced at Augsburgh, between him and the pope, in a council over which the latter was to preside.

To prevent this last decision, Henry determined to seek pardon of Hildebrand; he found him in the fortress of Canossa, where the pontiff was shut up with his countess Matilda. The prince presented himself without guard, and without retinue: stopped in the second enclosure, he suffered himself to be stripped of his vestments and clothed in sackcloth. With naked

feet, in the month of January 1077, he awaited in the midst of the court the Holy Father's reply. This reply was, that he should fast three days before he could be permitted to kiss Hildebrand's feet; and at the end of three days, they would be willing to absolve and receive him, under the promise of a perfect submission to the forthcoming decision of Augsburg. Gregory might have foreseen that this excess of pride and tyranny would disgust the Italians, by whom he was already detested. His power had this disadvantage in their eyes, that it was not beheld at a sufficient distance. Lombardy armed itself in behalf of Henry, whom the Germans deserted; and while Germany elected another emperor Italy chose another pope.¹⁶²

Rodolphus duke of Swabia having been nominated emperor, Gregory excommunicated Henry once more. "I take the crown from him he said, and give the Teutonic kingdom to Rodolph." He even made a present to the latter of a crown, round which was to be seen an indifferent Latin verse, of which here follows a translation. "La Pierre a donne a Pierre, et Pierre donne a Rodolphe le diademe."¹⁶³ Peter, a stone, has given to Peter, and Peter gives to Rodolph a diadem. At the same time Henry elevated to the papacy Guibert the archbishop of Ravenna, and assembled an army against Rodolph. In vain Gregory prophesied that Henry would be vanquished, would be exterminated before St. Peter: it was Rodolph who fell; he was killed in a skirmish by Godfrey of Bouillon, nephew of Matilda. Henry marched down on Rome: after a long siege, he took it by assault; and Gregory shut up in the mole of Adrian, continued to excommunicate the conqueror.

It will be perceived that the pun is perfect only in the French, the English is wholly incapable of it.

The commotions which were prolonged in Germany, compelled Henry to make frequent journeys. During the siege of Rome, and after his entrance into this capital, he quitted it more than once. Robert Guiscard took advantage of one of these occasions to deliver Gregory, but still more to ravage and pillage the city: he burned one quarter, which has since remained almost deserted, that between St. John de Lateran and the Coliseum, and reduced to slavery a great number of the inhabitants. This was the most memorable result to the Romans, and the most lasting to this pontificate¹⁶⁴

Hildebrand, borne away by the Normans to Salerno, terminated his career there the 24th of May, 1085, excommunicating Henry to the last,

with the antipope Guibert, and their adherents¹⁶⁵ So lived and so died Gregory VII., whose name, under Gregory XIII., was inscribed in the Roman martyrology, to whom Paul V. decreed the honours of an annual festival¹⁶⁶ and for whom Benedict XIII. in the 18th century, challenged the homage of all Christendom: but we shall see the parliaments of France oppose this design with an efficacious resistance.

It is deserving of greater reprehension than Gregory himself merited, the canonization, after five hundred years of study and experience, of his deplorable wanderings. For the excuse cannot be alleged in favour of his panegyrists that his enterprises may find in his enthusiasm, his ignorance, and the thick darkness of his age. Pasquier,¹⁶⁷ with too much reason describes him as:

"one of the boldest
"combatants for the Roman See, who forgot nothing,
"whether of arms, of the pen, or by censures, of what
"he conceived to tend to the advantage of the Papacy
"or disadvantage of Sovereigns."

The audacious Gregory VII. had a timid successor in Victor III. It is from him we have borrowed the words at the commencement of this chapter, to depict some of the preceding popes. Victor III. filled scarcely for a year the pontifical chair. He confirmed, however, in a council at Beneventum, the decrees passed against investitures.

Urban II. who succeeded him, was during ten years a more worthy successor of Hildebrand: he instigated against Henry, Conrade, the eldest son of this emperor, encouraged this ungrateful son to calumniate his father, and recompensed him by crowning him king of Italy. Christendom was then divided between Urban II. and Guibert, who had taken the name of Clement III. and whom Henry IV. re-established in Rome in 1091. Urban till 1096 travelled in France and Northern Italy. Philip, king of France, repudiating his Queen Bertha, had married Bertrade: Philip was excommunicated in his own States by Urban, his born subject, to whom he had given an asylum¹⁶⁸ But these journies of the pontiff are especially celebrated by the preaching up of the first crusade.

Hildebrand had conceived¹⁶⁹ the earliest idea of these distant expeditions, which were, in aggrandizing the church, to diminish the power of the Greek emperors, or compel them to return under the domination of the Holy See. He beheld in them an opportunity of regulating at once all the

movements of the Christian princes, of establishing himself judge of all the quarrels which might arise among them, to divert them from the Government of their States, and to augment by their absence the habitual influence of the clergy over all kinds of affairs. The pilgrimages to the Holy Land became under Gregory VII. more frequent than they had previously been: the recitals of the pilgrims were one day to provoke a general movement. This day did not arrive till Urban's time: a man named Cucupietre, called Peter the Hermit, made to the pope a lamentable recital of the vexations which the Christians experienced in Palestine; he implored on their behalf powerful succours against the Musselmans. Urban dispatched Peter to all the princes and churches of Italy, France, and Germany; and after leaving the preacher time sufficient to spread his enthusiasm among the people of these countries, the crusade was finally proposed in a council or assembly at which the pope presided, in an open plain not far from Placentia. There were collected upwards of thirty thousand laics alone, independent of prelates and priests: the expedition projected was universally applauded, but it was applauded alone; no one as yet assumed the cross. Urban had better success in France; the crusade was resolved on at Clermont, in an assembly at which he presided and harangued. They exclaimed "'Tis the will of God;" and these words became the device of the crusaders, the number of whom encreased beyond measure. The military history of this expedition does not concern us: we have only to observe, that the first act of this army was to re-establish 'en-passant' pope Urban, in the city of Rome, at the end of the year 1096. Henry, driven from Italy by the troops of the Countess Matilda, retired to Germany. Urban did not die till 1099; and the pontificate of his successor Pascal II. belongs principally to the twelfth century.

The age which we have passed over, ought to remain for ever famous in the history of the popes. If they are not yet recognized as sovereigns, if their temporal power has not yet been declared independent, it in effect rivals and threatens the throne which ought to govern it. Already the Two Sicilies had become fiefs of the Holy See; the donations of Matilda have extended, over almost all Middle Italy, the rights or pretensions of the court of Rome. But what signify the limits and the nature of these temporal possessions, when the spiritual authority no longer recognizes restriction, when the gospel ministry transforms itself into a universal theocracy, which brands, curses, deposes kings, and disposes of their crowns. One man alone,

it is true, had fully conceived this tremendous system; but the opinions, of which the ignorance of this man, as well as his contemporaries, was composed, encouraged his undertakings, however monstrous, and political circumstances promised him success from them. New dynasties had arisen in France, England, and other countries: the French emperors, threatened in their own palaces, had lost every remnant of authority in Italy: it was sufficient to humble the Emperor of the West; he alone counterbalanced in Europe the weight of the Holy See. In attacking him one might reckon on the support or neutrality of other monarchs; they were jealous of his preponderance: Rome in humiliating them, disposed them to reconcile themselves to it by the spectacle of more serious outrages reserved for their head; they childishly rejoiced in the great share he should have in the common humiliation. They turn, in the mean time, against him, the old or new factions which troubled Germany; they redouble their insolence and their power by the thunder of the anathemas with which they struck him; and if so many efforts did not overthrow him, at least, they staggered and weakened him. Such was the war waged by Hildebrand, against Henry IV. the first at the period, or as we may term him, the only representative of the civil power in the West. In bequeathing this war to his successors, Hildebrand vanquished as he was, had pointed out the object, traced the plan, and tempered the arms.¹⁷⁰ There had needed to complete his work, perhaps, in the course of the following century, but two or three successors of his inflexible enthusiasm. Giannone accuses him of having forged the Donations of Constantine, Pepin, Charlemagne, and Louis-le-Debonnaire. We have seen the first of these donations adduced in the eighth century;¹⁷¹ the rest are mentioned by writers anterior to the eleventh: all these acts were spoken of before Gregory's time: at the most he could only have arranged the texts more categorically, and more favourable to his pretensions. It is certain, that no means adopted for the establishment of pontifical tyranny would have alarmed his conscience: the most efficacious, therefore, appeared to him the most laudable; and, if some of his proceedings, judged of after the events, seem to us equally imprudent and violent, we should reflect that so enormous an enterprise could only be accomplished by audacity in the extreme.

CHAPTER V. CONTESTS BETWEEN THE POPES AND THE SOVEREIGNS OF THE TWELFTH CENTURY

WITH the pontifical power, such as Hildebrand would have it, not to gain a great deal was to lose a little. Now under the popes of the twelfth century it was not much extended: they knew not how to reap the fruits of the labours of Gregory VII. Pascal II. however, who reigned near twenty years, from 1099 to 1118, very earnestly aspired to universal monarchy; but his designs, opposed by circumstances, were still more so by the weakness of his character. The antipope Guibert, who died in 1100, had for a long period for his successors, an Albert, a Theodoric, a Maginulph: obscure persons, whose pretensions, nevertheless, though weakly supported by a small Dumber of partisans, sufficed to intimidate Pascal. He did not press the excommunication of Henry king of England, when in 1101, the war of investitures was kindled between this monarch and Anselm archbishop of Canterbury. If he evinced greater boldness against Philip, king of France, it was, doubtless, because Urban II. had commenced the quarrel, and that the notoriety, the censures with which this prince had been struck, admitted of no retraction. Pascal II. therefore, ventured to send legates into France, who were to excommunicate king Philip anew, but still on account of his divorce. Indignant at the attempts of these priests, William, count of Poitou, and Duke of Aquitain, did himself honour under these circumstances, by a courage, that Philip, however, did not imitate.—. Philip demanded absolution of the pope, and obtained it, on swearing to renounce Bertrade. He came with bare feet in the depth of winter to take, in a council at Paris an oath which he did not observe.—We

know of no authentic act, which re-established the marriage of Bertrade with Philip; but they continued to live together without being disturbed by the church: the states and rights of their children were never called in question.

At the same period that Matilda renewed her donation, Pascal II. confirmed the anathemas of his predecessors against Henry IV.¹⁷² and raised him an enemy in an ambitious and ungrateful son.

In vain did a paternal letter invite this son to repentance:¹⁷³ it was replied, that an excommunicated person was not acknowledged as father, or as king.

Loosed from his oaths, and from his duties, by the sovereign pontiff, the youthful Henry took up arms, and had himself elected emperor in a diet held at Mayence. Henry the elder, retired to the castle of Ingelheim: there the archbishops, sent by the Diet, came to summon him to surrender to them the crown and other insignia of his power:

"Thou
"hast rent the church of God, said they to him,
"thou hast sold the bishopricks, the abbeys, every
"ecclesiastical dignity; thou hast in no case res-
"pected the sacred canons: for all these causes, it
"has pleased the pope and the German princes to
"expel thee from the throne as from the church."

"I adjure you," replied the monarch,
"you archbi-
"shop of Cologne, and you of Mayence, who
"hold of me your rich prelacies, to declare, what
"was the price at which you purchased them of
"me. Oh! if I only exacted from you the oath of fide-
"lity to me, wherefore do you become the accom-
"plices, the chiefs of my enemies? Could you
"not wait the termination of a life which so many
"misfortunes might abridge, and at least, permit
"my own hands to place the crown on the head of "my beloved son."

But Henry was not speaking to fathers; he addressed himself to inflexible prelates:

"Is it not to us, cried one of them, the privilege
"belongs to create kings, and to dethrone them
"when we have made a bad choice?"

At these words, the three archbishops fell on their sovereign; they tore the imperial crown from his head; and while he assured them, that if he suffered at this moment for the sins of his youth, they would not escape the

punishment due to their sacrilegious disloyalty, they smiled at his menace, and to secure impunity for their crime by consummating it speedily, they hastened to Mayence, to consecrate and bless in the name of God the parricide Henry V.^{[174](#)}

Henry IV. shut up in Louvain, saw an army of faithful subjects assemble around him. At their head he obtained a victory over the rebels; but, vanquished without resource, in a second combat, he fell into the hands of his enemies, who loaded him with insults. "The hatred of the popes," writes this unhappy sovereign to Henry the I. King of France,^{[175](#)}

"the hatred of the popes, has carried
"them so far as to violate the laws of nature; they
"have armed my son against me; this son, in con-
"tempt of the fidelity he had sworn to me as my
"subject, comes to invade my kingdom; and what
"I would I could conceal, he has even practised "on my life."

Escaped from prison, but plunged into extreme misery, the old emperor was reduced to solicit in a church, formerly built by his cures, a subaltern employment, which he did not obtain. He died; they disinterred him; Pascal II. would not allow an excommunicated corpse to repose in peace; five years, the remains of an emperor who had distinguished himself in sixty-six battles, remained without burial; the clergy of liege, who ventured to collect them, was punished for it by anathemas, and almost in our own days, a Jesuit named Longueval^{[176](#)} has adjudged the fidelity and boldness of this clergy to have been inexcusable.

The best authenticated history has almost the air of a moral fiction, when after 1106, it represents Henry V. and Pascal occupied in avenging one upon the other, their common outrages on the rights and repose of Henry IV. Henry V. came to Rome, kissed the pope's feet, and desired to be crowned emperor. Pascal deemed the conjuncture a favourable one for regaining a formal renunciation of the investitures, which he had just condemned in a council held at Troyes. But he had hardly mentioned this pretension, when he was arrested, carried off to the Sabine, and confined in a fortress. There such a terror seized the Holy Father, that he, with sixteen cardinals; signed a treaty, in which he secures to the emperor, the right of investiture, provided he mingles with it no simony; he did more, he bound himself never to excommunicate Henry V. and consented to the inhumation of Henry IV. To seal this compact on the faith of the most awful mysteries, a

host is divided between the pope and the emperor: “As these are divided into two parts, said the pontiff, so may he be separated from the kingdom of Jesus Christ, who shall violate this treaty.” Such was the oath which Pascal took, and which he renewed after he had recovered his liberty.

From this period he had no resource from the reproaches addressed to him by the Roman clergy, and which were redoubled in proportion as the emperor and his army removed from Rome. Behold, then, the head of the church, who permits himself to be taxed with prevarication, who retires to Terracina to weep his error, who suffers cardinals to annul his decrees and his promises! he was about, he said, to abdicate the tiara; happily they opposed this design; and such is the docility of the holy pontiff, that he constrains himself to preserve power, in order to make a better use of it. Finally, he revokes, in a council, the treaty he had the misfortune to subscribe; he declines, however, to excommunicate Henry him-himself, so scrupulous is he still of violating his engagement! It was the Cardinals who pronounced this anathema in the presence of Pascal II. Not only did this Council condemn investitures, but furthermore, it termed all those heretics who did not condemn them. Henry V. conceived little danger from it. He came into Italy in 1116, to take possession of the rich inheritance bequeathed by Matilda to St. Peter. She had not transferred either sovereign rights or prerogatives, nor yet fiefs, but merely landed property, which the Roman Church was to enjoy as the proprietor, ‘*jure proprietario*’.¹⁷⁷ It matters not—the emperor pretends that the countess had no power, even on these grounds, to dispose of those domains; and during the whole of the 12th century, the popes remained deprived of this inheritance. After having taken possession, Henry advanced towards Rome; a sedition had burst out there against Pascal, whose long pontificate displeased the great, and whose person every one. While the pope fled to Monte Cassino, and shut himself up in Beneventum, the excommunicated monarch entered Rome, as if in triumph, and there received the imperial crown from the hands of Bourdin, archbishop of Bruges. Pascal excommunicated Bourdin, endeavoured to raise up against Henry, now France, now the Normans established in Lower Italy, and, finally, terminated his career, rather ingloriously, in the month of January, 1118.

His partisans gave him for successor, Gelasius II. whom the Frangipani, a family devoted to the emperor, were unwilling to recognize. Gelasius, arrested, released, and pursued, took the determination to fly to

Gaeta, his country, from the time he was aware that Henry approached Rome. Henry had Bourdin raised to the papacy, who, having taken the name of Gregory VIII. crowned the new emperor. But the moment the latter quitted Rome, Gelasius entered it secretly. Driven out by the Frangipani he fled, returned, fled again, retired into Provence, and died at Cluni. He had reigned but one year, if, indeed, it can be said he reigned at all.

From the time of Gregory VII. to Gelasius II. inclusive, almost all the popes, drawn from the shade of the cloister, had borne to the throne the obstinacy and asperity of the monastic spirit. Calixtus II. who replaced Gelasius, sprung from the house of the counts of Burgundy. The relative of the emperor, and of many other monarchs, he possessed at least some idea of the art of governing, and of reconciling great interests. He had the honour of terminating the disputes about investitures. A diet at Worms ruled, that for the future the prelates should be elected only in the presence of the emperor, or of his lieutenants:—that in case of misunderstanding, the matter should be referred to the emperor, who should take the opinion of the bishops: that, finally, the emperor should bestow investiture by the sceptre, and not by the crozier and ring¹⁷⁸ Calixtus ratified this treaty in the midst of the general Lateran Council of 1123. We may also applaud this pontiff for saving the life of his rival Bourdin; he contented himself with exposing him to the jests of the populace, consigning him for ever to the depths of a dungeon, and with causing himself to be represented trampling this antipope under his feet.¹⁷⁹ Such was the generosity of this friend! Calixtus pressed the king of England to restore a deposed bishop. ‘I have sworn,’ replied the king, ‘never to suffer him to re-ascend his seat.’ ‘You have sworn,’ said Calixtus, ‘very well, I am pope, and I release you from your oath.’ ‘How,’ replied the monarch, ‘shall I confide in this bishop’s oaths, or in your’s, if your will alone is necessary to cancel them.’

Honorius II. who filled the Holy See from 1124 to 1180, is only remarkable for his disputes with Roger, Count of Sicily, whom he wished to prevent uniting Apulia and Calabria, an inheritance left him by William II. his father, to his States. The pope fearing that Roger might become powerful enough to invade the Ecclesiastical States, sent an army against him, which was defeated. The king of France, Louis le Gros, was then exposed to the censures of the bishops of his own kingdom: the seditious conduct of the bishop of Paris having required repressive measures, this prelate, whose temporalities were seized, dared to place his own diocese,

and the possessions of the king, under interdict. The most praiseworthy action of Honorius is the removal of this interdict, and the having coldly seconded the ardent zeal of St. Bernard, when this pious abbot, treating his king as an infidel, a persecutor, a second Herod, solicited the pope to bring this affair before the Holy See. Louis was indebted for the tranquillity of the last ten years of his reign; to the prudence of Honorius, whom St. Bernard accused of weak-ness.¹⁸⁰

It was in the pontificate of this Honorius, that the two factions, the imperial and the papal, originating as we have seen, in the tenth century,¹⁸¹ took, in a more decided form, the distinctions of Guelphs and Ghibelini-. nes. These two appellations are the names of two German houses, which in 1125, when Henry V. died, disputed the imperial crown. One of these families, sometimes called* Salique, sometimes Guiebelinga or Waiblinge, reigned in Franconia, and had furnished the four last emperors; it was distinguished by its long disputes with the Church: the other family, originally of Allfort, possessed Bavaria; and many of its heads, devoted to the popes, had borne the name of Welf or Guelpho.

The duke of Saxony, Lothaire, chosen at Mayence, as successor to Henry, was impatient to manifest his attachment to the house of Guelph, by espousing the heiress of Henry duke of Bavaria. The duke of Franconia, Conrade, was then in Palestine; he hastened to combat Lothaire, re-animated the partisans of the house of Ghibeline, and caused himself to be crowned emperor, by the archbishop of Milan, while Honorius II. declared himself in favour of the confederate of the house of Guelph.¹⁸²

At Rome, another powerful family, the Frangipani, had for rivals the children of a Jew named Leo, who, opulent, and a convert, had become, under these two qualifications, as formidable as famous. Peter de Leon, the son of this Jew, sought, under the name of Anaclet, to succeed Honorius II. to whom the Frangipani gave for a successor, Innocent IT. The two popes were enthroned and consecrated at the same time in Rome: but Anaclet proved the strongest there; Innocent took refuge in France, where St. Bernard had him acknowledged, and held many councils up to the year 1133. Returned to Rome, he crowned the Guelph, Lothaire, emperor, in ceding to him the usufruct of Matilda's domains. Anaclet died; his successor Victor abdicated the tiara; the schism was extinguished; and Pope Innocent II. considered himself sufficiently firm upon the pontifical throne, to menace Count Robert, and the king of France, Louis the Young. Roger

defeated the troops of Innocent, who, fallen into the hands of the conqueror, saw himself compelled to confirm the title of king, given to Roger by Anaclet. Louis VII. defended himself with less success: exercising the right which all his predecessors had exercised, he had refused to ratify the election of an archbishop of Bourges. Innocent received the pretended archbishop, consecrated him, and sent him to take possession, spoke of the king as of a young man whom it was necessary to instruct, that it was not proper he should in anywise accustom himself to meddle in the affairs of the church,—and, enraged with the opposition of this prince, he laid his kingdom under an interdict: a sentence then so much the more terrible, as, echoed by the French prelates supported by St. Bernard, it presented to Thibault, Count of Champagne, a turbulent and hypocritical vassal, the opportunity of exciting a civil war. Louis armed himself against Thibault, entered Vetry, and tarnished his victory by delivering thirteen hundred of its unfortunate inhabitants to the flames. This excess was subsequently expiated by a crusade which had itself needed expiation.

Celestine III. the successor of Innocent II. took off the interdict laid on France, refused to confirm the treaties entered into by his predecessors with Roger, king of Sicily, and declared himself against Stephen, who had taken possession of the English throne. The pontificate of Celestine II. and that of Lucius II. who followed him, scarcely completed two years; but these are memorable from the disturbances which agitated the city and environs of Rome.

Arnauld of Brescia, an austere monk, but eloquent and seditious, had denounced the ambition and the despotism of the clergy. To maxims of independence, which were qualified political heresies, he united certain less intelligible errors, which he adopted of Abelard, his master and his friend. From 1139, Arnauld, condemned by the second Lateran council, had left Italy, and had taken refuge in the territory of Zurich. During his exile the Romans, discontented with Innocent II. restored some semblance of their former liberty; and these attempts, more bold under Celestine II. became, under Louis, serious undertakings. They created a patrician, popular magistrate, and president of a senate composed of fifty-six members. The patrician was a brother of the antipope Anaclet; the thirteen districts of Rome concurred in the choice of these fifty-six senators. Deputies were sent by this senate to Conrade III. whom the death of Lothaire had left in full

possession of the empire. The Romans invited Conrade to come and take in the midst of their city the imperial crown:

"Let your wisdom, said they to
"him, call to mind the attempts undertaken by the
"popes against your august predecessors. The
"popes, their partisans, and the Sicilians, at the pre-
"sent time in league with them, prepare for you
"still greater outrages. But the senate is restored,
"the people have resumed their vigour; this
"people and this senate, by which Constantine,
"Theodosius, and Justinian governed the world,
"and whose vows, prayers and exertions, call you
"to a similar degree of power and glory."

Conrade was perfectly aware of the projects of independence which this language harboured, and did not think it prudent to imitate Lucius, who also had addressed an epistle to him. Bold against enemies whom Conrade had abandoned, and whom Roger threatened, Lucius advanced towards the capital; he marched surrounded by priests and soldiers. This parade of all his temporal and spiritual arms, however, was useless; a shower of stones crushed the double army of the pope, and he himself received a mortal wound. His party very hastily gave him a successor; but this person, who was named Eugenius III. hastened to quit Rome, lest he should see himself compelled to ratify the re-establishment of the popular magistracy¹⁸³

Eugenius armed against the Romans the inhabitants of Tivoli, and nevertheless re-entered Rome only by recognizing the senate. He obtained but the abolition of the dignity of patrician, and the re-establishment of the prefect. These transactions did not lead to a permanent peace; Eugenius again took flight and passed into France, where he seconded as far as possible St. Bernard, the apostle of the fatal crusade of 1147¹⁸⁴ During the absence of Eugenius, Arnould of Brescia returned to Rome, followed by two thousand Swiss¹⁸⁵ he proposed restoring the consul, the tribunes, the equestrian order of the ancient Republic of Rome, to allow the pope the exercise of no civil power, and to limit the power they were obliged to leave in the emperor's hands. Eugenius re-appeared in the capital in 1149, quitted again almost immediately, again returned in 1153 to quit it no more. Imploring the assistance of Barbarossa, who had been elected emperor, he offered to crown him, and obtained from this prince a promise to receive the pontifical authority at Rome. Louis VII. broke at this time his marriage with Eleanor of Aquitaine: this divorce, the only one perhaps which has had fatal

consequences for France, is also the only one which has not experienced on the part of the church, any sort of opposition. Neither the pope, nor the bishop, nor St. Bernard complained of it.

Suger, who had advised against it, no longer lived; the French prelates, whom Louis condescended to consult, expressly approved of it; and the heiress of Guienne and Poictou, repudiated under the usual pretext of distant consanguinity, disinherited the daughters whom she had by the king of France, married Henry Plantagenet, and added two large provinces to Maine and Anjou, already possessed by Henry, who became afterwards king of England. Here we behold one of the principal causes of the long rivalry of these two kingdoms; and if the clergy, for a long time accustomed to pass the limits prescribed by their profession, had attempted to transgress them on the present occasion, for once, at least, we should have been enabled to bless the abuse of their ecclesiastical functions.

That which must render the pontificate of Eugenius III. memorable in the History of the Power of the Popes is, the approbation which he bestowed on Gratian's Decree. The name of 'Decree' designates in this place, a canonical compilation at first entitled 'Concord of the Discordant Canons,' which was completed in 1152, by the aforesaid Gratian, a Benedictine monk born in Tuscany. The then recent discovery of Justinian's Pandects, caused the revival in Italy of the study of civil jurisprudence: the collection of Gratian, became the 'text' of ecclesiastical jurisprudence; and the first of these studies, soon subjected to the other, appeared only as its appendage. This collection is divided into three parts, of which one treats of general principles and ecclesiastical persons, the second of judgment, and the third of sacred things. The tautology, the impertinencies, the irregularity, the errors in proper names, the disregard of correctness in the quotations, are the smallest faults of the compiler; mutilated passages, canons, false decretals, every species of falsehood, abound in this monstrous production. Its success was only the more rapid; they began to expound it in the schools, to cite it at the tribunals, to invoke it in treaties; and it had almost become the general law of Europe, when the return of learning slowly dissipated these gross impostures. The clergy withdrawn from the secular tribunals; the civil power subjected to the ecclesiastical supremacy; the estates of individuals, and the acts which determined them, sovereignly regulated, confirmed, annulled, by the canons, and by the clergy; the papal power freed from all restriction; the sanction of all the laws of the church

conferred on the Holy See, itself independent of the laws published and confirmed by it: such are the actual consequences of this system of jurisprudence. Some churches, and that of France in particular, have modified it; but it is preserved pure and unaltered in the Roman Church, which has availed itself of it in the succeeding centuries to trouble the world. From the end of the eighth century the decretals of Isidore had sowed the seeds of the whole pontifical power. Gratian has compiled and enriched them. Represented as the source of all irrefragable decisions, the universal tribunal which-determines all differences, dissipates all doubts, clears up all difficulties, the Court of Rome beholds itself consulted from all parts, by metropolitans, bishops, chapters, abbots, monks, by lords, by princes, and even by private individuals. The pontifical correspondence had no limits but in the slowness of the medium of communication; the flow of questions multiplied bulb, briefs and epistles; and from these fictitious decretals, attributed to the popes of the first ages, sprung up and multiplied, from the time of Eugenius III. millions of responses and too well authenticated sentences. Matters, religious, civil, judicial, domestic, all at this period more or less clogged with pretended relations to the spiritual power; general interests, local disputes, quarrels of individuals, all was referred as a 'dernier resort', sometimes in both first and last instance, to the Vicar of Jesus Christ; and the Court of Rome obtained that influence in detail, if we may so term it, of all the most tremendous, precisely for this reason, that each of its consequences, isolated from the rest, appeared the more unimportant. Isidore and Gratian have transformed the pope into a universal administrator.

Frederick Barbarossa was then the principal obstacle to the progress of pontifical power. Young, ambitious and enterprising, he was connected, by the ties of blood, with the families of Guelph and Ghibeline. He seemed destined to extinguish, or at least to suspend, the fury of the two factions. He announced the design of confirming in Italy the imperial power; and it could not have been anticipated, that a new crusade should divert him as speedily from it, after the misfortunes attendant on that of 1147.

In the mean time, Adrian IV. born in a village in the neighbourhood of the abbey of St. Alban, mounted the chair of St. Peter in the month of December 1154.¹⁸⁶ The king of England, Henry II. congratulated himself on seeing an Englishman at the head of the Church, and asked his permission to take possession of Ireland, in order to establish Christianity there in its

primitive purity. Adrian consented to it, with this observation, that all the isles, in which the Christian faith had been preached, belonged indubitably to the Holy See, even as Henry himself acknowledged. The pope, then, did consent to dispose of Ireland in favour of the king of England, on condition that the king should cause the Roman church to be paid an annual tax of one penny out of each house in Ireland. Fleury¹⁸⁷ supposes that John of Salisbury was one of the ambassadors sent by the king to the pontiff to solicit Ireland from him; but Matthew Paris¹⁸⁸ names the deputies without mentioning John of Salisbury; however, the latter might have been commissioned to second the application to Adrian, whose intimate friend he was.—They passed three months together at Beneventum. There it was that Adrian, having asked John what they said of the Roman Church, was answered, that she passed for the step-mother rather than the mother of other churches, that the Pope himself was a great expense to the world, and that so many violences, so much avarice, and so much pride disgusted Christendom. Is that, said the pope, your own opinion of the matter? “I am really puzzled,” replied John; “but since the Cardinal Guy Clement joins the public on this point, I cannot be of a different sentiment. You are most Holy Father out of the right way; wherefore exact of your children such enormous tributes? and that which you have received freely, why not freely bestow it¹⁸⁹ ?” The pope, says Fleury,¹⁹⁰ began to laugh, and to exculpate Rome, alleged the fable of the stomach and the other members. But in order that the application should be correct, says the same historian, it would have been requisite that the Roman Church should have extended to other churches similar benefits to those she derived from them.

At the above period, reigned in Sicily, William surnamed the Bad, who enraged at receiving from the pope only the title of lord, in the place of that of king, carried hostilities into the ecclesiastical states.¹⁹¹ Adrian, after having excommunicated him, raised against him the nobles, vassals of this prince, promising to support their privileges with an invincible constancy, and to have them restored to the heritages of which they had been deprived. However, the pope shut up in Beneventum, saw himself obliged to capitulate, and to sacrifice the Sicilians who had armed themselves in his defence. William of Tyre has blamed him for it;¹⁹² but according to Baronius,¹⁹³ we must only pity him, for he lacked the means of remaining faithful to his engagements; and he was so far from free, that he was

constrained to acknowledge, by authentic deed, that he enjoyed a perfect liberty. However it was, William the Bad, and the pope were reconciled; and there were none discontented save the barons, who, on the word of the holy father, had expected never to be abandoned.

From the commencement of his pontificate Adrian had been relieved of Arnould of Brescia. An interdict launched for the first time against the churches of Rome, terrified the people, and compelled the senators to exile Arnould, who scarcely out of the city, was delivered to the sovereign pontiff by Frederick Barbarossa, and buried alive at the break of day, without the knowledge of the people. His ashes were thrown into the Tiber, for fear, says Fleury¹⁹⁴ that the people should collect them as those of a martyr. But this service rendered by Frederick to Adrian did not prevent their becoming enemies. From the year 1155, when Frederick came to Rome to receive the imperial crown, the first germs of their discord were perceptible.¹⁹⁵ Frederick, after having refused to hold the stirrup for the pope, acquitted himself of it with a very bad grace. He observed in the palace of the Lateran a picture, in which the Emperor Lothaire was represented on his knees before the pontif with the well known inscription:

Rex venit ante fores, jurans prim urbis honores;
Post homo, fit paps, sumit, quo dante, coronam:—

that is to say, “the king presents himself at the gates; and after having recognised the rights of the city, becomes the vassal of the pope, who bestows on him the crown.” Frederick complained of these two verses, as well as of the emblems they explained, and obtained but the vague promise of their future suppression. They still subsisted when, in the month of April, 1157, the pope’s legates presented themselves before the emperor, who held a court at Besancon¹⁹⁶ and placed in his hands a letter from Adrian. It had for its purport an attack committed in the emperor’s states on the person of the Bishop of Lunden.:

“How, said the pope, can
“the impunity of such a crime be explained? Is it
“negligence? Can it be indifference? Can the
“emperor have forgotten the benefits conferred on
“him by the Holy See? Has not the sovereign
“pontiff willingly conferred on him the imperial
“crown? Are there not other favours still which
“he may be disposed to confer?”

This language highly displeased the princes by whom Frederick was surrounded; they murmured, they menaced; and when one of the legates replied to them, “of whom then does the emperor hold the crown, if he holds it not from the pope?” one of the princes no longer restrained his indignation; he drew his sword, and he had infallibly cut off the legate’s head, if Frederick had not hastened to oppose his imperial authority to this violence, and to have the envoys of the Holy See conducted to their residences, directing them to depart very early the following morning, and to return to Rome by the shortest road, without resting at the houses of either bishops or abbots.¹⁹⁷

Adrian took the step of addressing the bishops of Germany; he exhorted them to neglect no means of bringing Frederick back to more humble sentiments.¹⁹⁸ We have the reply of these prelates;¹⁹⁹ it is judicious and firm:

“Your
“words, they say to the holy fathers, have shocked
“the whole court, and we cannot approve them.—
“The emperor can never suppose, that he holds
“from you his dignity: he swears that when the
“Church wishes to subject thrones, such ambition
“comes not from God; he speaks of figures and
“inscriptions which you possess, and which outrage
“his authority; he will not suffer, he says, such
“gross attempts. We invite you to destroy these
“movements of hostility between the empire and
“the priesthood; we adjure you to pacify a chris-
“tian sovereign, in addressing to him henceforth a
“language more conformable to the Gospel.”

At the same time that the bishops wrote this epistle, Frederick prepared to pass into Italy!²⁰⁰ Adrian called to mind William of Sicily and perceived that it was time to shew some deference to the emperor. Legates more skilful and more complying, came to Augsburg, and presented Frederick with another epistle from Adrian²⁰¹ The pope explained in it the terms of his first letter, and the explanation amounted to a retraction. “By the word ‘beneficium,’ he says, we understand not a benefice or a fief, but a benefit or a service. In speaking of your crown, we do not pretend having conferred it on you; we refer only to the honour we have had of placing it on your august head; ‘contulimus’ that is to say, imposuimus.” This commentary, which by no means pleases Baronius,²⁰² satisfied the emperor, and

produced between this prince and the pope a reconciliation which was not of long duration.

In the month of October 1150,²⁰³ Frederick held at Roncaille, between Parma and Placentia, an assembly, in which the bishops and abbots acknowledged that they held from him their royal privileges. Dissatisfied with this declaration, and with the asperity with which the officers of the emperor asserted the right of forage over the lands of the Roman Church, Adrian wrote an epistle to Frederick which has not been preserved; but Radevic, who gives us a relation of it,²⁰⁴ says, that it concealed, under humble and gentle terms, much bitterness and hauteur. In replying to it, Frederick affected to place, in the inscription, his own name before that of the sovereign pontiff.²⁰⁵ It was to revert to an ancient custom, to which were substituted for some time past forms supposed to be more respectful. This bagatelle nettled the holy, father; and history relates, that letters were intercepted which he wrote to the Milanese, and other subjects of Frederick, to invite them to revolt. We do not possess those letters; but the reply of Adrian to the emperor has been transmitted to us.²⁰⁶

“To place your name before ours, says the servant “of the servants of Christ, is arrogance, is insolence; “and to cause bishops to render homage to you, “those whom the Scriptures call Gods, sons of the “Most High, is to want that faith which you “have sworn to St. Peter, and to us. Hasten then “to amend, lest that in taking to yourself that which “does not belong to you, you lose the crown with “which we have gratified you.”

This epistle²⁰⁷ did not remain unreplied to; the minds of both became inflamed, and in despite of the négociations attempted in an assembly at Bologna in 1159, war was going to break out, had not the pope died the first of September of the same year, at the very moment, says an historian²⁰⁸ at which he pronounced the excommunication of Frederick.

Alexander III. elected pope after Adrian IV. did not die until 1181. His pontificate is the longest of the twelfth century. But four anti-popes, who succeeded each other in the lapse of these twenty-eight years, under the names of Victor III., Pascal III., Calixtus III., and Innocent III., disputed and

weakened the authority of the head of the church. Alexander who had been at Besancon as one of the envoys of Adrian, found in Frederick Barbarossa a formidable enemy. This emperor seeing that they had at the same moment elected two successors of Adrian, Alexander and Victor, summoned them to appear at Pavia, where he would decide between them in a council convoked by him. Victor appeared there and was pronounced the true pontiff. Alexander excommunicated by this council, in return excommunicated Frederick and Victor, loosed from their oaths the subjects of the former, and took refuge in France, then the usual common asylum of the popes expelled from Rome. Returned to this city in 1165, after the decease of Victor, he left it again in 1167, and behold in what way. The Romans besieged by the Germans, conjured him to sacrifice to their safety the title disputed with him,:

"No! he replied, a sovereign
"pontiff is not subject, to the judgment of any mortal,
"neither of kings nor of people, nor yet of the
"church; let them know that no power on earth
"shall make me descend from the rank to which God
"has elevated me;"

and, while the cardinals carried to the citizens of Rome this pontifical reply, the holy father stole away without noise.²⁰⁹ Frederick at this time supported a famous war against almost all Italy, confederated under the name of the League of Lombardy. Alexander III. became the head of the Lombards, who gave the name of Alexandria, to a city built by them in 1168, at the confluence of the Tanaro and the Bormida. The pope excited the Greek emperor Manuel to arm against the emperor of the West, and attempted to reconcile the two churches, separated since the pontificate of Leo IX. But when Manuel required that the Holy See should be established at Constantinople, this condition caused the failure of both projects. To occupy a secondary rank in a capital inhabited, possessed, and ruled by a secular sovereign, this subordinate situation, which for five centuries had suited the successors of St. Peter, was not to be listened to by the successors of Gregory VII.

As France, so England likewise, acknowledged Alexander III. notwithstanding the protection he seemed to grant to Thomas a Becket, Archbishop of Canterbury. This prelate elevated by the king, Henry II., to the most eminent dignities, dared to oppose himself to the punishment of a

priest convicted of assassination, and to determine that the sole punishment should be, deprivation of his benefice.

The king wished that the common law should be applied, by the regular tribunals, to the frequent crimes of the members of the church; he desired that no bishop should without his permission go to Rome or appeal to the Holy See, nor excommunicate or suspend a vassal or officer of the crown. A parliament at Clarendon adopted these articles: Becket after having at first rejected them without examination, next adopted them without reserve, lastly accused himself to the pope of having betrayed the rights of the clergy, did penance for it, and renounced the exercise of his ministry until the sovereign pontiff had absolved him. Treated as a rebel by all the peers of Great Britain, as well ecclesiastical as secular, he took refuge in France, threatened the king with the fate of Nebuchadnezzar, and pronounced anathemas against the most faithful ministers and subjects of Henry. This prince attempted to recal Becket to reason and his duty: he exhausted every way for the purpose, even that of taking for arbiter his rival Louis the Young, king of France. Let the archbishop, said he, conduct himself towards me, as the most holy of his predecessors did with the least illustrious of mine, and I shall be satisfied. An apparent reconciliation led Becket back to England; but if he returned it was to excommunicate anew all the clerks, curates, canons and bishops, who had declared against him. Henry lost all patience; even to that degree that he exclaimed: will none of my servants avenge me of the most meddling and ungrateful of men? Four assassins went, in effect, to seek the arch-bishop, and dispatched him in his church of Canterbury. Alexander, who had condemned the Articles of Clarendon, placed Thomas a Becket in the number of the holy martyrs; and the king, whose imprudent words had rendered him guilty both of the murder and the canonization, finished, by tarnishing with the most ignominious penance the rights and dignity of his throne. This quarrel has given place to a multitude of letters, as well of Alexander III. as of many English and French prelates: a deplorable correspondence, in which we behold with what rapidity were propagated the unsocial maxims preserved in the decree of Gratian.²¹⁰

Nevertheless, Alexander III. thought of establishing himself, and dreaded the consequences of too long a war with the emperor. He detached himself from

Some English writers say that the four assassins, Fitzurse, Tracy, Britton and Morville, were so far from having an order to kill Becket, that they dared not re-appear at Court after the commission of the crime. Hume adds, that the king suspecting the intention of these gentlemen from some words which had escaped them, dispatched a messenger after them, prohibiting their attacking the person of the prelate, but that the messenger arrived too late.

the Lombard League, and came to Venice in 1177, to offer Frederick a peace, which the reverses of this prince were to render useful and glorious to the church. The pope reaped the fruits of the labours and combats of Italy. Frederick acknowledged Alexander, kissed his feet, held the stirrup of his horse, and restored the ecclesiastical goods, without, however, including herein the inheritance of Matilda, and signed a truce for six years²¹¹ For ten years past, Alexander had invariably resided at Anagni; he seldom resorted to Rome, where the seeds of sedition had not ceased to ferment. He returned to it in 1178; his entry was solemn; he received the homage of the people and the oaths of the nobles, and held in 1179 the third general council of the Lateran. A crown being sent by him to the king of Portugal, Alphonso Henriquez, in order that this conqueror should not reign without the approbation of the Holy See, he was repaid by an annual tribute of two marks of gold.²¹² Such have been the principal events of the pontificate of Alexander III. to whom the college of cardinals is indebted for the exclusive privilege of electing the popes; he ruled that this election should be effected by the union of two thirds of the suffrages in favour of one candidate. The memory of this pope has remained dear to the Italians, who were pleased at beholding in him the defender of their liberties; but he evinced still more zeal for the aggrandizement of the ecclesiastical power. They owe greater praise to his address and constancy than to his patriotism. He knew how to triumph over obstacles, support long reverses, weary out the prosperity of Frederick Barbarossa, and subject to the pontifical authority, the enemy of the Italian republics.

Lucius III. the first elected in the the forms established by Alexander, displeased the Romans on this very account, who compelled him to retire to Verona. Urban III. and Gregory VIII. proposed a third crusade, which was not undertaken until under Clement III. in 1189. To draw France and England towards the Holy Land, it was requisite to deaden the ardour of the quarrels which, from the divorce of Louis VII., divided the two kingdoms.

A legate of Clement III. threatened France with a general interdict, if Philip Augustus did not hasten to reconcile himself to the English.^{[213](#)}

"What do I care for
"your interdict, replied Philip: does it belong
"to Rome to threaten or disturb my States,
"when I think proper to bring back to duty my
"rebel vassals? we may plainly see you have got
"a relish for the sterling money of the English."

Philip assumed the cross, nevertheless, as well as Richard, who had succeeded his father, Henry, on the throne of England. Frederick Barbarossa also took the cross and died in Armenia, in 1100, leaving the empire to his son Henry, VI. Clement III. had need to occupy the peoples minds with this remote expedition. The papal authority had been weakened anew under the short and feeble pontificates of his two predecessors. The Romans who had obtained royal privileges, restored them to the Holy See, only on condition that the cities of Tusculum and of Tivoli should be given up to their vengeance. Tusculum sacked and reduced to cinders under Celestin III. took the name of Frescati, when branches of trees^{[214](#)} served to form asylums for those that remained of the inhabitants.

Celestine III. elected in 1191, is the last pope of the 12th century. Innocent III. who reigned from 1198 to 1216 ought to be considered belonging to the XII. Baronius relates^{[215](#)} that in consecrating Henry VI. Celestine pushed with his foot the imperial crown. Muratori disputes the fact,^{[216](#)} which proves, according to Baronius, the popes right to depose the emperor: in fine there can no finer reason be given for such a privilege. However it may be, Celestine excommunicated Henry VI. Leopold Duke of Austria, Alphonso X. king of Leon, and annulled the decision of the French bishops, who had approved the repudiation of Ingelburg II. the wife of Philip Augustus. It is to be remarked that these anathemas although still formidable, had lost a large portion of their unfortunate efficacy. Philip took a third wife, without any new opposition on the part of Celestine. This pope, for some marcs of silver, acknowledged, as king of Sicily, Frederick II. a child of three years, son of the emperor Henry VI. In 1197, Henry died, and Germany was divided between Philip of Swabia, and Otho of Saxony; the simultaneous election of these two emperors became one of the causes of the aggrandizement of the pontifical power. Divisions in Germany, rivalry between France and England, new governments in almost all the states of

Italy, expeditions into Palestine, hostilities of the crusaders against the emperors of the East, the propagation of the false decretals in the West: all concurred to promise the most splendid success to the pontiff, who, uniting boldness to skill, should reign sufficiently long to conduct a great enterprise: and this pontiff was Innocent III.

CHAPTER VI. POWER OF THE POPES OF THE THIRTEENTH CENTURY

INNOCENT III. in one and the same year, bestowed in the plenitude of his power three royal crowns; to Ioanice, that of Walachia²¹⁷ ; to Premislaus, that of Bohemia²¹⁸ ; to Peter II., that of Arragon. Peter received his at Rome, and did the pope homage for his states, which became tributary to the Holy See.²¹⁹ But Innocent, the dispenser of kingdoms, and who even gave away that of Armenia, distinguished himself still more frequently by his anathemas. Venice, France, England, the emperor, all the great potentates of Europe, have experienced the force of his spiritual arms.

The Venetians, already powerful by their commerce, had assumed the cross but for the purpose of extending it; they gained lands and riches in meriting indulgences. Alone capable of equipping great fleets, they exacted eighty-five thousand crowns of gold for transporting the Christian army into Palestine; and, with the assistance of the legions they conveyed, conquered important places in Dalmatia. Innocent, in order to put a stop to their progress, thought of excluding them from the bosom of the Church. But one of the effects of commercial prosperity is, to weaken in people's minds the dread of ecclesiastical censures: the Venetians made themselves masters of the city and territory of Zara: they continued to fortify and aggrandize themselves; the anathema launched against their republic, had no important effect: the pontiff abstained from renewing it.

He treated Philip Augustus more rigorously. This monarch of France received from Innocent an express order to take back the divorced Ingelburg, and send away Agnes or Maria de Meronie, whom he had married after this divorce. The king at first assumed an attitude sufficiently bold; but the kingdom was under interdict; the divine offices, the

sacraments, marriages, had ceased; the permitting the beard to grow enjoined; the use of flesh forbidden; mutual salutation prohibited. It was in vain that Philip humbled himself, he was obliged to ask of the pope a new enquiry into the affair; it even became necessary to prevent the result of this examination, by declaring that he was about to recall Ingelburg. She was indeed allowed the titles of wife and queen, but it was in the confinement of a castle. Emboldened by this success, Innocent did not hesitate to erect himself into a supreme arbiter between the kings of France and England, then armed one against the other. He commanded them to assemble their bishops, abbots, and nobles of their states, to deliberate on a peace, and to think on the best means of restoring the churches and abbeys which had suffered during the war. Philip replied that it did not belong to the pope to interfere in the disputes of kings, nor especially to convey to them such ordinances. Some French lords added, that the order to make peace was but another reason for continuing the war.²²⁰ But Innocent replied, that an unjust war being a crime, and all crimes having for their judge the Holy Church, he fulfilled a pontifical office in disarming them both. On this principle says Fleury²²¹ the pope is judge of all the wars between Sovereigns: that is, to speak in plain terms, he is the sole Sovereign in the world. However it may be, Philip, after having renewed his course of conquest, thought proper to consent to a truce, and not irritate too far a pontiff determined on the boldest undertakings. He thus deferred, but by no means avoided, the excommunication. An anathema against Philip was one of the last acts of Innocent III., and one of the results of a new war kindled by this pontiff himself, between the king of England and France, whom he had affected to reconcile.

In fact, this very king of Great Britain whom Innocent had appeared, in 1204, to support against the French, became, a few years after, one of the victims of pontifical despotism. The pope having been desirous, in contempt of the canons and the laws, to dispose of the see of Canterbury in favour of cardinal Langton, John opposed himself to it only by fits of rage which exposed his weakness. Innocent, who knew how to use his power with more prudence, employed by degrees, three modes of repressing this intractableness: first, an interdict upon the kingdom; next, the personal excommunication of the monarch; finally, the deposition of a king who had been so fully convicted of obstinacy in his disobedience to the Holy See.²²²

The English, already dissatisfied with their sovereign, were loosed from the oaths which they had taken to him, and the crown of England was decreed to Philip Augustus, who, imprudent enough to accept it, evinced his gratitude, by releasing Ingelburg from the castle of Etampes, and re-calling her to the throne. But while Philip prepared to reap, with arms in his hands, the fruits of the pontiff's liberality, a legate named Pandolph, took advantage in England of the fright of the deposed king, and presented him the means of recovering his sceptre, by accepting it as a pure gift from the hands of the Church. On his knees before Pandolph, John placed his hands between those of this priest, and pronounced in the presence of the bishops and lords of Ireland, the following words,^{[223](#)}

"I, John, by the Grace of God, king of
"England, and lord of Ireland, for the expiation
"of my sins, of my perfect accord, and by the
"advice of barons, give to the Roman Church, to
"Pope Innocent and his successors, the kingdom of
"England and the kingdom of Ireland, with all the
"rights attached to the one and the other: I hence-
"forward hold them of the Holy See of which I shall
"be the faithful vassal, faithful to God, to the Church
"of Rome, to the sovereign pontiff, my lord, and to
"his successors lawfully elected. I pledge myself
"to pay every year, a tax of one thousand marks of
"silver; to wit, seven hundred for England, and
"three hundred for Ireland."

This discourse is scarcely ended, when the legate is presented with a part of the tribute promised to St. Peter: Pandolph casts the money on the ground, tramples it under his feet, nevertheless collects it again, satisfied with thus expressing the subjection of temporal treasures as well as temporal powers.^{[224](#)} The sceptre and the crown remain in his hands: he keeps them five days; and when, after he has obtained some additional securities, he finally restores them, he pretends forsooth, that they are received as a perfectly gratuitous favour. He now passes immediately into France to announce what he has performed in England.— Philip learns from Pandolph, that John, the vassal of the pope, occupies, under the protection of the Holy See, the throne of Great Britain, and that henceforth every enterprise against this kingdom will be punished by excommunication. Philip replied, that he took up arms at the solicitation of the pope alone, that the preparations for it had cost two millions, that a fleet, recently equipped, is in the road at Boulogne, that it waits the troops destined to land at Dover, and that the time for receding is departed. In the mean time, the rebellion of

a vassal compels the French monarch to carry the war into Flanders: to this vassal the king of England, the emperor Otho IV. and almost all the princes of Europe join themselves. But the victory which the French obtain at Bouvines, dissipates the hopes of their enemies: Otho is no longer emperor, save in name; and John would have been already dethroned, if Rome had not obtained for him a truce of five years.

It was the English themselves who at this interval pronounced, regardless of the menaces of Rome, the dethronement of their monarch; they offered his crown to Louis, son to Philip Augustus. New decrees of Innocent's prohibit both father and son from invading the State of a prince, a feudatory of the Holy See. The father affects to disapprove a conquest which Rome deems sacrilege, but furnishes, nevertheless, all the means for its execution: the son, in fine, embarks; and the sovereign pontiff, who clearly sees that the father and son understand each other, excommunicates them both. Louis was almost in possession of Great Britain, when the death of John gave a different direction to men's thoughts and their affairs.²²⁵

As sovereign of Rome, and as possessing in Italy a very galling preponderance, the Western Emperor was the most exposed to the attempts of Innocent III. To depress the empire, it behoved above all things to re-establish at Rome and in the ecclesiastical domains, the pontifical authority; the pope commenced, therefore, by turning to account the ascendancy which his birth, reputation, and talents, gave him over the Romans; he abolished the consulate, and arrogated to himself the imperial rights, invested a prefect, installed the public officers, and received the oaths of the senators. It was at this moment, says Muratori,²²⁶ that the imperial authority at Rome breathed its last sigh.

Out of Rome, Orbitello, Viterbo, Umbria, Romagna, and the March of Ancona, acknowledged Innocent III. for their sovereign. Reigning thus from one sea to the other, he conceived the hope of conquering Ravenna, which was still wanting to him, of possessing himself of the complete heritage of Matilda, of subjecting still further the two Sicilies, and, especially, prevent-ing their having for master the head of the empire; this last point was always a principle in the policy of the Holy See. Once should it govern in a direct manner the most part of the Italian provinces, it would be content to exercise elsewhere, a spiritual supremacy: the States which it could not possess, it would be satisfied to bestow, to resume, or to confer on such princes as should render themselves worthy by their docility. The

conjunctures of the time altogether, as we have said, favoured this plan, at the accession of Innocent III. Frederick the II. was a child whom his father had caused to be elected King of the Romans, and his mother Constance, had placed him under the protection and even tutelage of the pope. One of this guardian's first acts was, to deprive his pupil of the title of King of the Romans, as well as of the prerogatives attached to the crown of Sicily. Between Philip of Swabia, and Otho of Saxony, simultaneously nominated emperors, the first of whom represented the house of Ghibeline, the second that of Guelph, Innocent determined in favour of Otho, even in prejudice of Frederick, whom he considered as a third competitor. It was, he said, to the Holy See belonged the privilege of judging sovereignly the claims of these competitors of the empire. The fortune of war favoured Philip of Swabia, with whom the prudent court of Rome already treated, when he was assassinated.—His daughter became the wife of Otho the IV. who thus having United all rights and suffrages, considered himself sufficiently powerful to refuse the pope the heritage of Matilda. Innocent now took the part of fulfilling his obligations as a guardian; he opposed his ward, Frederick, to the ungrateful Otho, excommunicated this prince, whom he had himself crowned, and raised Upper Italy against him. In this conjuncture the Ghibelines were seen armed by the pope against an emperor, whom the Guelphs sustained in his resistance to the pontiff: an historical phenomenon, which ought not to astonish us, as we have already observed, that these two parties were attached rather to particular families than to opinions. We may add, that it is the fate of permanent factions to experience many unlooked for changes, to modify according to circumstances their original designs, to retain their names, and their insignia, much longer than their thoughts or their sentiments, to preserve, in fine, no other invariable interest than that of remaining rivals, and falling foul of each other; it suffices then to be, and to be at war, it matters not to what end. It was especially the battle of Bouviines, which determined, as we have remarked, the fall of Otho IV. and the preponderance of the party of Frederick II. Innocent thus reaped in part the fruits of the triumph of Philip Augustus.

These disputes were connected with the crusade of 1202, which like that of 1095, and those of 1147 and 1189, placed in the hands of the pope the clue of all the movements of Europe. Each of these expeditions occasioned quarrels between the crusaders and the Greeks, and this

misunderstanding appeared to Innocent an open for re-conquering the Eastern Church, escaped now two centuries from the domination of the court of Rome. The Greek empire, worn out by war and by faction, became the prey of the crusaders, who, being unable to retain Jerusalem, made themselves masters of Constantinople. Baldwin, Count of Flanders, was nominated Emperor of the East; after him four other Frenchmen filled successively the same throne, while, having taken refuge in Nice, the Greek emperors reigned only over some provinces. The palaces and temples of Byzantium were plundered, and the booty, collected by the French lords was estimated at a quantity of silver of two hundred thousand pounds weight. They found it convenient to indemnify themselves in Greece for the losses sustained in Palestine; the vow which they had made, to combat only infidels, no longer repressed their covetousness; the re-establishment of holy places was but a pretext for pillaging the rich ones; and already the affectation of sentiments of religion was relinquished.:

"They
"cast, says Fleury, the relics into unclean places,
"they scattered on the ground the body and blood
"of our Lord; they employed the sacred vases
"for profane uses, and an insolent woman danced in
"the sanctuary and seated herself in the chair of the
"priest."

Innocent, who was not ignorant of these profanations and complained of them, did not approve the less of the conquest:[227](#)

"God, said he, willing to
"console the church by the re-union of the schisma-
"tics, has caused the empire of the haughty, supersti-
"tious and disobedient Greeks to pass over to the
"humble, catholic, and submissive Latins."

Another benefit derived from the crusades was, the application of their names to many other leagues formed or fomented by the Roman Church. Innocent III. is the inventor of this artifice, which evinces an abundant acquaintance with the means of leading minds astray by the illusion of words: he applied to the service of his serious political designs, the enormous power of a word which, for the period of one hundred and ten years, had the effect of exciting through Europe the most blind and restless enthusiasm. He preached therefore a crusade against England when he had determined on dethroning John; a crusade against the Hungarians when he

affected to become the arbiter of their intestine dissensions; a crusade against a king of Norway, whom also he wished to depose; but above all, a crusade against the Albigenses, a sect extended through the entire south of France. Raymond VI. Count of Tholouse, because he protected the Albigenses his subjects, was excommunicated as the abettor of heresy; and, one of the legates, who excited these troubles, having received a mortal wound, the states of the count, accused without any proof of the assassination, were declared vacant, and the prize of the first crusader who possessed himself of them. In vain Raymond humbled himself to degradation: in vain he had the more culpable weakness to take up the cross himself against his own subjects; Simon de Montford obtained these wretched provinces, purchased by torrents of blood, with which he had inundated them. Raymond took refuge with his brother-in-law, Peter II. king of Arragon, who, after useless intercession with Innocent, took arms against Simon de Montford, and perished at the battle of Muret, in 1213. Two years afterwards the pope in the midst of a Lateran Council, definitely deposed Raymond, granting him a moderate pension, and bestowed his states on Simon, whom they dared to name Maccabeus, and who died in 1218 at the siege of Thoulouse. We do not mean to exculpate the Albigenses altogether, sometimes also denominated Vaudois, because there are numbers residing in the valleys of Piedmont, and often Good-men, from the regularity of their manners; but, to exterminate thousands of worthy men, because they were deceived, and to dethrone him who ruled them, because he did not persecute them speedily enough, such excessive severity unveils the character and displays the power of Innocent III.²²⁸

It is not without an object that this pope is applauded for the establishment of the inquisition. In fact, Lucius III. from the year 1184, had ordered the bishops to seek out heretics, to subject them to Spiritual, and deliver them over to secular punishments; but this first germ of so formidable an institution was developed before the time, when Innocent III. thought of sending into Languedoc two Cistercian monks, charged to pursue the Albigenses, to excommunicate them, and denounce them to the civil authority, which was to confiscate their wealth, or proscribe them, under pain of incurring itself ecclesiastical censures. Friar Raynier, friar Guy, and the archdeacon Peter of Castelnau, are the first inquisitors named and known in history. Innocent enjoined the people and their rulers, to obey them; the sovereigns, to proceed against the heretics denounced by these

missionaries; the people, to take up arms against disobedient princes, or those who evinced too little zeal. Those first ministers of pontifical vengeance had soon fellow helpers, among whom St. Dominick is distinguished; and from the year 1215, their functions had acquired sufficient consistence and splendour to be solemnly approved in the Lateran council.²²⁹ Without doubt, the inquisition, a kind of permanent crusade, had not been perfected or consolidated, save under the successors of Innocent: but, without the memorable experiment he had the honour of making, it is doubtful if it had so tremendously flourished or brought forth its fruits.

Among three hundred popes, or anti-popes, of which history presents us with the names, we know none of them more imposing than Innocent III; his pontificate is most worthy the attention and study of European monarchs: there they may learn to what extent temporal power, united with ecclesiastical functions, amplifies and perverts them; to what universal supremacy was the papacy destined; in fine, what tyranny did it not exercise over princes, and over people, whenever political circumstances, even in a small degree, favoured sacerdotal ambition. A pope, said Innocent, the vicar of Christ, is superior to man, if he be inferior to God—*minor Deo, major homine*; he is the light of day; the civil authority is but the pale planet of the night. It was Innocent III. who discovered in the chapter of Genesis this celestial theory of the two powers, and it was by similar allegories, proofs of the ignorance of the age and of his own, that he subjugated the West, troubled the East, and governed, and deluged the world with blood.:

"Sword, sword," cried he, on learning the descent of the French on England;
"sword, sword
"spring from the scabbard and sharpen thyself to
"exterminate."

Such were the words of his last address.²³⁰ In the midst of the anathemas which he pronounced against Louis and Philip Augustus, he was seized with a fever, which, in a very few days brought on a paralysis, a lethargy, and finally the death of the most haughty of pontiffs, of the most skilful enemy of kings. He had governed the Church, or rather Europe, for eighteen years ten months and nine days; it is the most brilliant period of the papal power. England, Poland, Portugal, and we know not how many other States besides, became his tributaries. All historians of this era²³¹ relate, that in a mysterious vision, St. Latgarde saw Innocent III. in the midst of flames, and that this pious maid having asked him, wherefore he was thus tormented, he

answered, that he should continue so to be till the day of judgment, for three crimes which would have plunged him into the depths of the eternal fire of hell, if the holy virgin to which he had dedicated a monastery had not averted the divine wrath. We may be allowed to doubt respecting the vision: but, says Fleury²³² this relation proves persons of the greatest virtue were convinced that this pope had committed enormous crimes. What were the three to which St. Lutgarde alluded? It would be extremely difficult to select them in the life of Innocent.

After having had too weak a successor in Honorius III. his place was more worthily supplied by Gregory IX. This pope announced his pretensions by the extraordinary pomp of his coronation.—Historians²³³ describe this gorgeous ceremony, in which nothing was omitted which could threaten Europe with a universal monarchy. Frederick II. who in receiving the imperial crown from the hands of Honorius, had ceded the heritage of Matilda, and placed his own son on the throne of the two Sicilies, in order that this kingdom should not remain united to the domains of the empire; notwithstanding so many compliances, and though he was the foster child as it were of the court of Rome, Frederick II. became the principal victim of the enterprises of Gregory IX.

Not content with creating against this prince a new Lombard league, Gregory, impatient to remove him from the midst of European affairs, summoned him to perform the vow which he had taken to go and combat the infidels in Palestine. Frederick embarked, but called back to Brundisium by illness, was excommunicated as a perjurer: he resumed his route, and for proceeding without absolution he was excommunicated anew. He arrives, he compels the sultan of Egypt to abandon Jerusalem, Bethlehem, Nazareth, and Sidon to him, yet, because he treats with an infidel and signs a truce, he is a third time excommunicated. On returning to Europe, he found La Foulle invaded, Italy armed against the empire, and his own son drawn by the pontiff into rebellion and almost into parricide. He triumphed, nevertheless, over so many enemies, arrested and imprisoned his unnatural son, and above all took advantage of a sedition of the Romans against the pope. The Romans who had resumed under Honorius the love of independence, banished Gregory IX. who, compelled to negotiate with the emperor, consented to absolve him for a large sum of money. But Gregory, among other pretensions, claimed Sardinia as a domain of the Holy See. Frederick claimed it as a fief of the empire. Now follows a fourth

excommunication, in which Gregory, by the authority of 'Father, Son and Holy Ghost,' the authority of the apostles and his own, anathematizes 'Frederick, late emperor,' looses from their oaths those who had sworn fidelity to him, and forbids them to recognize him as sovereign. This bull, sent to all monarchs, lords, and prelates of Christendom, was accompanied by a circular letter, which commands the publication of the anathema, to the sound of bells, throughout all the churches. Various writings of the Holy Father²³⁴ represent Frederick as one of the monarchs described in the Apocalypse; political and religious crimes of every species are imputed to this prince by him, even that of having termed Moses, Jesus, and Mahomet, three impostors. Frederick stooped to reply to this torrent of accusation and insult; and that the apology should correspond with the accusation, he treated Gregory as Balaam, as Antichrist, the great dragon, the prince of darkness. By a special epistle²³⁵ to the king of France, Louis IX. or St. Louis the pope offered the empire to the brother of this monarch, Robert count of Artois, on condition that the French should make a crusade against Frederick. St. Louis replied, that he saw with astonishment a pope attempt to depose an emperor; that such a power belonged to a general council alone, and only on the plea of the acknowledged unworthiness of the sovereign; that Frederick on the contrary appeared irreproachable; that he had exposed himself to the dangers of war and of the sea, for the service of Jesus Christ, while Gregory, his implacable enemy, took advantage of his absence to plunder him of his States; that the pope, counting for nothing the rivers of blood which had flowed to satisfy his ambition or his vengeance, wished to subject the emperor, for the sole purpose of afterwards subjugating all the other sovereigns; that his offers proceeded less from a predilection for the French, than from inveterate hatred for Frederick; that he would, however, make inquiry as to the orthodoxy of this prince, and if he proved a heretic, would make the most implacable war against him, as in such case he would not fear doing with the pope himself. This epistle, without doubt, mingled errors of the grossest kind with the expression of the most generous resolutions. What! an assembly of priests possess the right of dethroning a sovereign! What! the religious opinions of a prince be a sufficient motive, with those who did not possess the same, to declare war against him! Yes, such were the indisputable results of those decretals from which the popes had compiled the public law of Christendom.

But the more deplorable this madness, the greater is the homage due to the prince, who, fettered by the bands of so many prejudices, could find in his own excellent heart a disinterestedness, a loyalty, and a courage, worthy of the happiest periods of history.

All the reputation of his exemplary piety was needed by Louis IX. to escape the anathemas of Gregory IX. and even the enterprises of the French bishops; for he repressed the bishops with firmness, whenever his understanding allowed him to perceive the abuses of their spiritual functions which they practised. They were seen, for the most trifling temporal interest, shut the churches, and suspend the administration of the sacraments. Experience had taught them the efficacy of these measures; they obtained by this species of pettishness the various objects of their desires. But a bishop of Beauvais, and an archbishop of Rouen, having employed this system with too little caution, and thinking proper to excommunicate some royal officers, St. Louis had their temporalities seized, and obtained from the pope a bull which forbade the interdiction of the royal chapels.:

"He had
"for a maxim, never to yield a blind respect to the
"orders of the ministers of the church, whom he
"knew to be subject to the intemperancies of passion
"as well as other men."

Thus does Daniel the historian express himself, the least suspected assuredly that we can instance here. Joinville relates how the clergy complained bitterly of the little concern of civil officers for sentences of excommunication, and how Louis IX. expressed himself so decisively, on the necessity of ascertaining the justice of these sentences, that they abstained from urging the matter on him. This pious monarch one day caused the money levied for the Holy See to be seized, being unwilling it should be applied to the accomplishment of the ambitious projects of Gregory IX. The pontiff, to be revenged, annulled the election of Peter Chariot to the bishoprick of Noyou; this person was a natural and a legitimated son of Philip Augustus. Louis IX. was not to be shaken; he declared that no other person should possess this bishoprick. Gregory, though he exaggerated his pontifical power, though he protested, that God had confided to the pope the privileges of empire on earth as well as in heaven, confined himself to simple menaces; and France was indebted to

her pious sovereign for a firmness, which he had still further occasion to manifest under the succeeding pontificates.

That of Gregory IX. more particularly memorable for the disputes with the emperor Frederick II., is so, likewise, for the publication of an ecclesiastical code compiled by Raymond de Pennafort the third general of the Dominicans. Since the decree of Gratian, decretals, and collections of decretals, had multiplied to that degree that one could scarcely see his way among them. Gregory had, to his own decisions, caused those of his predecessors from Eugenius III. to be added. There resulted from it a collection, of which the subjects are distributed into six books. A sorry verse²³⁶ which announces this distribution, maybe too faithfully translated and appreciated in the following:

Judges, judgments, the clergy, marriages, and crimes.

The canonists cite this code under the name of ‘The Decretals of Gregory IX.’ or simply ‘The Decretals,’ and sometimes by the word ‘extra,’ that is, without the decree of Grattan; which decree had been for two centuries the sole source of ecclesiastical jurisprudence. As fruits of the vast correspondence of Alexander III., of Innocent III. and of Gregory IX., these five books are in every respect worthy to serve as a sequel to the decree: they have with it contributed to the propagation of maxims subversive of all government.

The election of Sinibald of Fiesque to the papacy, seemed to promise some years of peace between the priesthood and the empire: Sinibald had for a long time been connected by friendship with Frederick; but the cardinal friend became a pontiff enemy, even as the emperor had foretold. Innocent IV. the name of this pope, having placed on the absolution of Frederick, conditions which he would not accept, war was rekindled, and the pope, compelled to fly from Genoa, his country, came thence to solicit an asylum in France. Louis IX. consulted his barons, who maintained, that the court of Rome was always expensive to its guests, that a pope would obscure the royal dignity, and would form in the state another independent one.²³⁷ Rejected by the King of France, refused also by the King of Arragon, Innocent addressed himself to the English, whose reply was not more favourable. What! they say, have we not already simony and usury, wherefore then need a pope, who would come in person to devour the kingdom and our churches. Very well! cried the pontiff incensed at this triple affront; we must finish with Frederick; when we have crushed or

tamed this great dragon, these petty serpents will not dare to raise their heads, and we shall crush them under our feet.²³⁸ To attain this object, he holds a general council at Lyons, a city which at that time belonged neither to France nor the emperor: the archbishops usurped to themselves the sovereignty in it, and maintained that it had ceased to be a fief of the empire.²³⁹ There Frederick II. was deposed:

"In virtue, says the pope, of the power to
"bind and to loose, which Jesus Christ has given
"us in the person of St Peter, we deprive the late
"emperor, Frederick, of all honor and dignity; we
"prohibit obedience to him, to consider him as em-
"peror or king, or to give aid or counsel to him,
"under the penalty of excommunication by the act
"alone."

To annihilate the house of Swabia had been for a long time the most ardent wish of the popes, especially of Innocent IV.; but he proclaimed almost fruitlessly, a crusade against Frederick: real crusades occupied them at the time, that is, expeditions into the East, and the fugitive Innocent IV. did not inherit the omnipotence of Innocent III.. The low clergy itself no longer adored the pontifical decrees: a curate of Paris, announcing to his parishioners that which deposed Frederick, addressed them in these remarkable words;:

"I am igno-
"rant my very dear brethren, of the motives of this
"anathema, I only know, that there exists between
"the pope and the emperor great differences, and an
"implacable hatred; which of them is right I can-
"not inform you: but I excommunicate as far as
"in me lies, him who is wrong, and I absolve him
"who is aggrieved in his privileges."

This is the most sensible sermon which, to our knowledge, has been preached in the 17th century. St. Louis, who censured more loudly than the curate the deposition of Frederick, went to Cluni, and drew the pope there also, whom he would not suffer to enter farther into the kingdom. Their first conferences remain secret; and all that can be said of them is, that the obstinate pontiff was deaf to the pacific counsel of the sainted king. But history²⁴⁰ has handed down to us a little more of the details of a second interview, which took place the following year, at Cluni also, between Innocent and Louis.:

"The Holy-
"land is in danger, said the king; and no hope ex-
"ists of delivering it without the help of the emperor
"who holds so many ports, isles, and coasts under
"his authority. Most Holy Father, accept his
"promises, I beseech you in my own name, and
"in the name of the thousands of faithful pil-
"grims, in the name of the universal church:
"open the arms to him who seeks for mercy:
"it is the gospel which commands you to do
"so; imitate the goodness of him whose vicar you
"are."

The pope 'bridling up,' says Fleury,^{[241](#)} persisted in his refusal. Thus these two personages, we may say, exchanged their provinces; it was the monarch who assumed the charitable language of the gospel, it was the priest who preserved the inflexible attitude of presumptuous power. At the same period, we behold a sultan of Egypt, Melie-Saleh, giving lessons of probity to the successor of St. Peter. Pressed by Innocent IV. to abandon, contrary to the faith of treaties, the interests of Frederick, Melie-Saleh replied:

"Your envoy has spoken to us about Jesus
"Christ, with whom we are better acquainted than
"you are, and whom we more worthily honour.—
"You pretend that peace between all nations is the
"object of your desires; we do not desire it less
"than you. But there exists between us and the
"emperor of the West, an alliance, a reciprocal
"friendship, which commenced with the reign of the
"sultan our father, whom may God receive to glory:
"we shall therefore, conclude no treaty unknown to
"Frederick, or contrary to his interests."

However, after useless attempts at reconciliation, and various vicissitudes of success and misfortune, Frederick died in 1250, probably strangled, as they say, by his son, Manfred. On receiving this news, Innocent IV. invites the heavens and the earth to rejoice; these are the very words of a letter which he wrote to the prelates, lords, and people of the kingdom of Sicily. He terms Frederick the son of Satan.^{[242](#)}

Conrade IV. son of Frederick II. was called to succeed him; and, in the absence of Conrade, Manfred his brother governed the two Sicilies. Innocent declares, that the children of an excommunicated person can inherit nothing from their parent; he proclaims a crusade against them, and draws into the revolt the Neapolitan nobles. Manfred succeeded in subduing them; he took the city of Naples by assault, and compelled the pope to fly once more to Genoa. The crusade is again preached against the sons of

Frederick, and their kingdom is offered to an English prince. The quarrels which soon sprang up between the two brothers, re-animated the hopes of the Court of Rome; it received the most lively expectations from them, when it learned the death of Conrade, when Manfred was suspected of parricide, and nothing more was wanting, but to destroy the last branch of the house of Swabia, Conradine, a child of ten years of age, the son of Conrade, and as grandson, legitimate heir of Frederick II. The pope hesitated no longer to erect himself into king of Naples: in order to support this title, he levied an army; but this army had only a legate for its leader; it was beaten by Manfred. Innocent IV. died from despair in consequence, at the moment he had entered on a negociation with Louis IX. which had for its basis, the conferring on a brother or son of this monarch, the kingdom of the two Sicilies. This pope had excited a civil war in Portugal, by deposing the king Alphonso II., already interdicted by Gregory IX., and calling to the throne a count of Boulogne, brother of Alphonso. Innocent had disputes also with the English, who complained loudly of his extortions, his breach of the laws, and disregard of treaties.^{[243](#)}

"The Peter's pence tax did not satisfy him,
"they said; he exacted from all the clergy enormous contributions; he had general taxes assessed, and levied, without the king's consent: in contempt of the right of patrons, he conferred benefices on Romans, who did not understand the English tongue, and who exported the money of the kingdom."

Let us observe further, that in publishing crusades against Frederick II. and against his son, Innocent granted greater indulgences to them than to the expeditions into Palestine. The pope, said the French nobles, extends his own sovereignty by crusades against the Christians, and leaves our sovereign the task of fighting and suffering for the faith. St. Louis was then in the Holy Land, just released from his captivity. His mother, Queen Blanche, caused the property of the pope's crusaders against Conrade to be seized: let the pope, said she, maintain those who are in his service, and let them begone never to return.^{[244](#)} Thus did the Guelph crusade miscarry in France, in spite of the exertions of the 'pious preachers' and 'pious minors,' the zealous servants of the Holy See. But from the accession of Gregory IX. Italy and Germany never ceased to be torn by the factions of Guelph, and Ghibeline, which assumed more and more their original direction, the latter

against the pope, the former against the emperor, and especially against the house of Swabia.

Alexander IV. who succeeded Innocent in 1254, continued to contend with Manfred, summoned him, excommunicated him, and designed him for the victim of a crusade, which did not, however, take place. The pope succeeded only in extorting from the king of England, Henry III. fifty thousand pounds sterling. Henry had made a vow to go into Palestine; this vow was commuted into a stipulated contribution, destined to the support of the war against Manfred. To obtain such a sum, Alexander promised the crown of Naples to prince Edward, son of Henry; which did not, however, prevent his continuing the negociation with Louis IX. and his brother Charles of Anjou. But Alexander was not sufficiently favoured by circumstances, and was too little endowed with energetic qualifications, to obtain much success; he could scarcely keep his ground in the midst of his own domains: a sedition of the Romans compelled him to withdraw to Viterbo, and his seven years reign produced no important result, unless we consider as such the establishment of the inquisition in the bosom of France. We are concerned we cannot conceal, that St Louis had solicited as a favour such an institution. It had become from the time of Innocent III. much consolidated: in 1229, a council at Thoulouse had decreed, that the bishops should depute in each parish one clergyman, and two laymen, for the purpose of seeking out heretics, denouncing them to the prelates appointed to try them, and delivering them to the officers charged with their punishment. Gregory IX. in 1233, had invested the Dominicans, or brother preachers, with these inquisitorial functions; the church was unquestionably enriched by this new power, and St. Louis had the misfortune of not preserving his subjects from it. He paid two enormous tributes to the ignorance of his age, the crusade, and the inquisition.—He was even not far from assuming the Dominican habit, and ceasing to be a king in order to become an inquisitor.²⁴⁵ We enter into these particulars, because they are all effects of the ascendancy of the popes, of that unbounded extent which their temporal royalty gave to their ecclesiastical authority.— Alexander IV. was a zealous protector of the monks, especially the mendicants. This predilection made him unjust to the universities; he was the avowed enemy of that of Paris. The historian of this university, Egasse du Boulay,²⁴⁶ tells us, that the death of this pope gave peace to the Parisian muses.

It was a Frenchman, born at Troyes, who became pope by the name of Urban IV. advanced principally the negotiations with the count of Anjou. Impatient to exterminate Manfred, Urban saw too well that the publication of crusades, indulgencies, the equipment of pontifical troops, with all the temporal and spiritual arms of the Holy See, would remain powerless, without the active participation of a sovereign, interested by the allurements of a crown, to complete the ruin of the house of Swabia. Popular commotions rendered the residence of Rome rather uneasy to the sovereign pontiff; Urban had retired to Orvieto, whence by some mutinous acts, he was again driven to Perugia. He was, therefore, solicitous to conclude with Charles of Anjou; although this prince had seemed to detach himself from the pope, in accepting the dignity of senator of Rome, and the treaty, was about to be signed when Urban died: his successor, Clement IV. completed his design.

The incompatibility of the crown of Sicily with the imperial crown, as also with the sovereignty over Lombardy, or over Tuscany; the cession of Beneventum and its territory to the Holy See: annual tributes and subsidies to the church; recognizance of the immunities of the clergy of the Two Sicilies; inheritance of this kingdom reserved to the descendants of Charles alone; in default thereof, power granted to the pope to choose the successors to them. Such were the principal conditions of the treaty, which called Charles of Anjou to reign over the Neapolitans. He would have subscribed to still more humiliating ones. He promised to abdicate before the expiration of three years the title of senator of Rome; even to renounce it sooner, if he completed before this period the conquest of the kingdom which had been bestowed him, and, to neglect nothing to dispose the Romans to concede the disposal of this dignity to the sovereign pontiff: he subjected himself to interdiction, excommunication, deposition, if he should ever break his engagements: he finally pronounced an oath, framed in these terms:²⁴⁷

"I, per-
"forming full allegiance and vassalage to the church,
"for the kingdom of Sicily, and for all the territory
"on this side the Pharos of Messina, to the fron-
"tiers of the ecclesiastical state, now and hence-
"forward promise to be faithful and obedient to St.
"Peter, to the pope my supreme liege, and to his
"successors canonically elected; I shall form no
"alliance contrary to their interests; and, if from
"ignorance I shall be unfortunate enough to form

"such, I shall renounce it on the first order which
"they may be disposed to signify to me.

It was in order to obtain so precarious a crown, to usurp a throne so degraded, that Charles of Anjou entered Sicily, animated by his presence the Guelphic faction, and set it at variance, from the Alps to Mount Etna, with that of the Ghibelines. The latter attached itself more than ever to Manfred, who, after some success, fell and perished at the battle of Beneventum. The young Conradine, until now eclipsed by Manfred, and detained by his mother in Germany, at length appeared: everywhere the Ghibelines received him, and strenuously supported him against the arms of Charles, and the anathemas of Clement; but, defeated at the plain of Tagliaozzo, he fell into the hands of his rival. Charles was ungenerous enough to deliver his disarmed enemy into the hands of corrupt judges: distrust and revenge borrowed juridical forms; Conradine, at the age of eighteen, was decapitated at Naples, the 26th October, 1258; and the most faithful defenders of his indisputable rights shared his fate. The Ghibelines were proscribed through all Italy; rivers of blood bathed the steps of the subaltern throne, in which Charles went to seat himself at a pontiff's feet. Some writers assert that Clement disapproved of the murder of the young prince; others accuse him of having advised it, and of having said, that the saving of Conradine, would be the ruin of Charles; that the safety of Charles exacted the death of Conradine²⁴⁸ However it was, the Holy See triumphed by the extinction of the house of Swabia.

Full of the idea of his power²⁴⁹ Clement decided, that all ecclesiastical benefices were at the disposal of the pope; that he could confer them whether vacant or not vacant, giving them in the latter case in reversion, or as they term it in expectancy. Such audacity astonished Louis, and the indignation he conceived at it dictated an ordinance, known by the name of 'the pragmatic sanction' of which the following is a summary:

"The prelates, patrons, and collators to benefices,
"shall fully enjoy their privileges.
"The cathedral and other churches of the king-
"dom shall make their elections freely.

"The crime of simony shall be banished the
"kingdom.

"Promotions and collations to benefices shall be
"made according to common right and the decrees
"of councils.

"The intolerable exactions, by which the court of
"Rome has impoverished to such a wretched de-
"gree the kingdom, shall cease, save in cases of
"urgent necessity, and by consent of the king, and
"of the Gallican church.

"The liberties, franchises, immunities, rights and
"privileges, granted by the sovereigns to churches
"and monasteries are confirmed."

This act is so important, and does so much honour to Louis IX. that the Jesuit Griffet²⁵⁰ disputes its authenticity. We may oppose to Griffet, the authority of his brethren Labbe and Cossart;²⁵¹ of Bouchel, of Tillet, Fontanon, Pinson, Girard, Lauriere, Egasse du Boulay, in fine, that of all the jurisconsults, historians, and even theologians, who have had occasion to speak of the pragmatic sanction of St. Louis. But further, we see it cited in 1491, by the University of Paris; in 1483, in the states held at Tours; in 1461 by the parliament Charles VII. on the occasion of the pragmatic published by this king, expresses himself in these words: in 1440, by John Juvenal des Ursins,:

"You are not the first who has done
"such things; thus did St. Louis, who is sainted and
"canonized, and we must acknowledge he did well,
"your father and others have approved it."

There is, then, no room to doubt, that the most pious of the French kings was the most zealous defender of the liberties of the Gallican church; and this glorious resistance, which he made in 1268 to Clement IV. expiates the unfortunate consent that he gave to the treaty concluded between this pope and Charles of Anjou.

Thirty months elapsed from the death of Clement, to the election of his successor, Gregory X. Charles of Anjou profited of this interregnum to acquire a great authority in Italy; he aspired even to govern it altogether. Gregory X. who, perceived this, endeavoured to oppose four obstacles to it: a new crusade; the reconciliation of the Eastern church; the restoration of the Western empire, and the extinction of the factions of Guelph and Ghibeline. Since the death of Conradine, the discord of these factions was almost without object: it survived from habit and personal animosities, rather than from opposition of political interests. The Guelphs more powerful from day to day, were about re-establishing the independence of the Italian cities, and perhaps reuniting under a head who was not to be a pope.—To provide against this danger, and to keep in check Charles of

Anjou, Gregory X. confirmed the election of a new German emperor: this was Rodolph of Hapsburg, head of the house of Austria. This Rodolph renounced, in favour of the Roman church, the heritage of Matilda, and was nevertheless excommunicated, for having supported his sovereign rights over the Italian cities, and for having neglected to assume the cross. They at length became tired of these expeditions into Palestine, where the Christians, driven from the pettiest hamlets, scarcely preserved a single asylum. The Greek church, apparently reconciled to the second general council of Lyons, was not actually so for a long period. The most complete result of the pontificate of Gregory X. was the acquisition of the Comtat Venaissin, in which, however, the king of France, Philip the Hardy, reserved to himself the city of Avignon.

Nicholas III. annulled the oath taken to the emperor by the cities of Romagna; he obliged Charles of Anjou to renounce the vicarship of the empire, and the dignity of senator of Rome; he even incited Peter of Arragon to recover the kingdom of Sicily, which belonged by right of inheritance to his wife Constance. On which we must observe, that Charles had refused to marry one of his granddaughters to a nephew of Nicholas, and that this pontiff sprung from the house of the Ursini, had conceived the idea of dividing among his nephews the crowns of Sicily, of Tuscany, and of Lombardy, These projects did not succeed.

Martin IV. elected by the influence of Charles of Anjou, laid an interdict on the city of Viterbo, excommunicated the Forlivians, confiscated whatever they possessed in Rome, excommunicated Peter III. king of Arragon, and excommunicated Michael Paleologus, emperor of Constantinople. A league of the Venetians, of Charles of Anjou, and the pope, had little success. Another crusade was undertaken against Peter of Arragon, who beat the crusaders: the Sicilian vespers, not without some appearance of justice, were attributed to this prince; a horrible massacre, in which the French were the victims, in the year 1282, and which Martin IV. and Charles of Anjou might have prevented by a more prudent conduct.

When Celestine V. yielding to the advice of the cardinal Benedict Cajetan, had abdicated the papacy, this cardinal succeeded him, imprisoned him, and under the name of Boniface VIII., disgraced the chair of St. Peter, from the year 1294 to 1303. He excommunicated the family of the Colonnas, confiscated their estates, and preached a crusade against them. They were Ghibelines; Boniface, who had belonged to this faction, detested

them for it the more. The pope answered in plain terms, that the Roman pontiff, established by providence, over kings and kingdoms, held the first rank on earth, dissipated every evil by his sublime regards, and from the height of his throne, tranquilly judged the affairs of men. You know, he writes, to Edward I. that Scotland belongs to the Holy See of full right. He treated Albert of Austria, elected emperor in 1298, as a usurper, summoned him to appear at Rome, and dispensed his subjects from their allegiance; but he menaced especially Philip the Fair, king of France.^{[252](#)}

By the bull ‘Clericis Laicos,’ Boniface had forbidden, under pain of excommunication, every member of the secular and regular clergy from paying, without the pope’s permission, any tax to their sovereigns, even under the title of a gratuitous gift: Philip answered this bull by prohibiting the transportation of any sum of money out of the kingdom, without permission from under his hand. This measure at first seemed to intimidate the pontiff who, modifying his bull, authorised, in cases of pressing necessity, the contributions of the Clergy; but a legate soon arrived to brave Philip, and summon him to alter his behaviour, if he did not desire to expose his kingdom to a general interdict. This seditious priest was arrested; his detention set the pope in a rage.:

“God has appointed me over empires, to pluck up,
“to destroy, to undo, to scatter, to build up and to
“plant.”

Thus does Boniface express himself in one of his bulls against Philip IV. That which is known by the name of ‘Unatn sanctam,’ contains these expressions:

“The temporal sword ought to
“be employed by kings and warriors for the church,
“according to the order or permission of the pope:
“the temporal power is subject to the spiritual, which
“institutes and judges it, but which can be judged
“of God alone; to resist the spiritual power, is
“to resist God, unless they admit the two principles
“of the Manicheans.”

An archdeacon, the bearer of these bulls, enjoined the king to acknowledge, that he held from the pope his temporal sovereignty. Finally, Boniface excommunicated Philip: he ordered this monarch’s confessor to appear at Rome, to render an account of the conduct of his penitent; he destined the

crown of France to this same emperor, Albert, before treated as a criminal, but who now acknowledged by a written document.:

"that the "Apostolic See had transferred from the Greeks to
"the Germans the Roman empire, in the person of
"Charlemagne; that certain secular and ecclesiasti-
"cal princes, hold from the pope the right of electing
"the king of the Romans, the destined successor to
"the empire; and that the pope grants to kings and
"to emperors the power of the sword."

An eulogium is due to the victorious firmness of Philip, in opposition to these extravagancies: the commoners and the nobles of France supported him; the clergy, though already imbued with ultramontane maxims, was led away by the ascendancy of the two former orders. The prelates at all times adhered to the king with a reservation in favour of 'the faith due to the pope', and thirty-four of them proceeded to Rome in defiance of Philip.

A letter of this prince to Boniface, VIII. commences with these words:

"Philip, by the grace of God,
"king of the French, to Boniface pretended pope,
"little or no greeting. Let your very great Fatuity
"take notice, &c."

These insulting expressions, but little worthy of him who employed them, would have very badly succeeded, addressed to any pope who had at all less merited them than Boniface; but his pretensions really bordered on delirium, and he was altogether destitute of the political address requisite for their success. Three men, in the course of the thirteenth century, have checked the menacing progress of the pontifical power. Boniface VIII. by disgracing it with his impotent excesses;²⁵³ Philip IV., in publishing this discreditable conduct with unpunished insults; but above all, Louis IX. whose resistance, edifying like his other good works, had assumed against the worldly pride of the popes, the character and authority of the religion of Jesus Christ.

Gregory VII. or Boniface VIII. would infallibly have excommunicated Louis IX.: the anathemas of the former would have been formidable, those of the latter could injure the court of Rome alone.

Boniface caused an ecclesiastical code to be compiled, which bore the name of 'Sexte,' because it was considered as a sixth book, added to the decretals compiled under Gregory IX., by Raymond de Pennafort. This sixth book itself is divided into five, which correspond in the distribution of

their contents with those of Raymond's collection, and embrace, with the decretals of Boniface VIII., those of his predecessors since the death of Gregory IX. When so many pontifical laws become accumulated in the several codes, ecclesiastical tribunals, of course, become requisite in order to apply them: episcopal courts therefore sprung up. Father Thomassin fixes their origin under Boniface VIII. and this opinion appears to us a more probable one than that which traces this institution up to the twelfth century.

By officials, we understand, judges properly so called, attached to the cathedrals, and to the sees of archbishops, for the purpose of pronouncing special, civil, or even criminal sentences: now this character does not sufficiently belong to certain dignitaries mentioned in the writings of Peter de Blois, and of which, in 1163, a council of Paris complained.—Furthermore, whether in the thirteenth or twelfth century, the era of the establishment of ecclesiastical courts is certainly long subsequent to the publication of the 'False Decretals,' and to the corruption, of the ancient discipline of the church.

Legates, another instrument of the papal power, were divided into two classes: the first, chosen in the very places in which they exercised their functions; the second, dispatched from the bosom of the Roman court, like arms extended by St. Peter, over the wide extent of Christendom. Among the former are also distinguished those who received an express and personal mission, and those who born, as it may be said, legates, held this title from a privilege annexed to the episcopal or metropolitan see which they filled. Of all these various ministers, or commissaries of the pontifical government, the most powerful would always have been detached from their proper centre, if the very excess of their pomp and power had not too often humbled, in every kingdom, the prelates they came to eclipse and to rule. Their splendour, defrayed in each place by the churches, the monasteries, and the people, excited less of admiration than of murmurs; and even, after the third council of the Lateran had reduced them to twenty-five horses, they were still considered burdensome. It became necessary to dispose of sacred vases in order to make them presents; and to purchase at enormous prices the decisions, answers, favours, commissions, one had occasion to demand of them.

“The legations, says Fleury²⁵⁴ were mines of gold to the cardinals, and they usually returned from them loaded with riches.”

Their avarice was so notorious and so unchangeable, that St. Bernard²⁵⁵ speaks of a disinterested legate as a prodigy; but their pride, more intolerable still, displayed too openly beneath the eyes of monarchs, the pretensions of the court of Rome, and provoked a signal resistance. Very early these Legates ‘a latere’ became unacceptable in France, and it was ruled, that none should be received there, save when they should have been demanded and approved of by the king: this is one of the articles of the Gallican liberties.

The thirteenth century is that in which the popes arrived at their highest pitch of power: councils, crusades, anathemas, canonical codes, monastic orders, legates, missionaries, inquisitors, all the spiritual arms, re-tempered and sharpened by Innocent III. were, during this century, directed against thrones, and often triumphed over them. Innocent bequeathed a universal monarchy to his successors: they have been unacquainted with the means of fully preserving this empire; but, in the year 1300, some small portion of wisdom had sufficed to Boniface VIII. to have been still the first potentate in Europe, and, notwithstanding the disgrace of this last pontificate, the influence of the Holy See still continued to sway that of other courts.

CHAPTER VII. FOURTEENTH CENTURY

THE residence of the popes within the walls of Avignon, from 1305 till subsequent to the year 1370, and the schism which, in 1378, divided for a long time the church between rival pontiffs, are the two leading circumstances of the ecclesiastical history of the fourteenth century; both have contributed to the decline of the pontifical empire. It is true that in leaving Italy the popes sheltered themselves from some perils: they removed from the theatre of the commotions which their ambitious policy excited or reanimated. It is also true that the apprehension of authorising, by so imposing an example, the wandering life of the bishops, was no longer worthy of restraining the sovereign pontiff: the time was past, in which sacred laws confined each pastor within the bosom of his flock; interests had amplified, had reformed these humble manners, and dissipated these apostolic scruples. But, to disappear from Italy, was to weaken the influence of the Holy See over the then most celebrated and enlightened country of Europe; it was to desert the post where they had obtained so many victories, the centre in which were united all the radii of the power they had achieved; it was to renounce the ascendancy which the very name of Rome conveyed, whose ancient glory was reflected on the modern pontificates that seemed to continue it; it was, in fine, to discontent the Italians, to deprive them of the last remains of their ancient consequence, and, by private rivalries, to prepare the way for a general schism. We may be astonished that this consequence should have been deferred for seventy years; but it was inevitable; and this schism, in exposing publicly the ambition of the pontiffs, in placing before the eyes of the multitude the picture of their scandalous quarrels, in revealing, by their reciprocal recriminations, the

secret of their vices, dissipated for ever the illusion with which the power of their predecessors was environed.

The sojourn of the popes in the Comtat Venaissin, evinces at least that the pope could dispense with a residence in Rome; and many other proofs unite here to demonstrate, that any other city could become the seat of the first pastor of the church. To fix the papacy to a geographical point would be, to cut it off from the number of institutions necessary to Christianity; for it is, without doubt, impossible that an essential article in the gospel establishment should depend on any particular locality, changeable at the will of a thousand circumstances.

Not one word in the gospel, or in the writings of the apostles points out the city of Rome as the indispensable metropolis of Christianity. There is no spot upon earth, where one may not be, a Christian, bishop, patriarch, or pope. But this demi-theological discussion exceeds the limits of our subject: let us return to the popes of Avignon.

To throw a light on this portion of the history of the papacy, and to compensate for the details which would occupy too much space here, we shall present in the first place, a slight sketch of the political revolutions of the fourteenth century.

In the East, the Turks were masters of Palestine. Ottoman, their head, founded the empire which bears his name; he turned to account the discord of the Persians, the Saracens, and the Greeks; he deprived them of Asiatic, and European provinces. The throne of Constantinople verged towards its ruin; seditions menaced it in the city, conspiracies encompassed it in the court; and the sons of the emperor were frequently the conspirators against him. The Russians were as yet barbarous; but in Denmark, Valdemar, taught by adversity, did honour to, and established the throne. Under his daughter Margaret, Sweden and Norway, formed with Denmark, but one monarchy. Poland, agitated for a long time by the Teutonic knights, respired under Casimir III. The English deposed Edward II., seconded the activity of Edward III., and condemned and banished the proscriber Richard. In Spain, Peter the Cruel perished at the age of thirty-five, the victim of Henry Transtamare who succeeded him. In France, Philip the Fair had for successors his three sons, Louis X., Philip the Long, and Charles IV., weak princes, and dupes of their barbarous courtiers. After them, Philip of Valois, and John his unfortunate son, supported against the English an unsuccessful war: in vain did Charles V. devote himself to the reparation of so many

evils; they recommenced with aggravations during the minority of Charles VI., continued during his derangement, during his whole reign, which was prolonged into the fifteenth century.

Since the Sicilian vespers, Sicily had remained subject to the king of Arragon, Peter III., who, in spite of the anathemas of Rome, transmitted it to his descendants; from the year 1262, Charles of Anjou had only reigned over Naples. Robert, the grandson of Charles, contributed in a singular degree to fix the popes in Avignon: he thus preserved a more immediate influence over the Guelphs, over Florence, over Genoa, and the other cities which belonged to this faction. The Holy See had clothed Robert with the title of vicar imperial in Italy during the vacancy of the empire; and, when the emperors Henry VII. and Louis of Bavaria restored once more the Ghibeline party, Robert served as a counterpoise. Joanna, his granddaughter, married the king of Hungary, Andrew, whom she is accused of having murdered; she herself died the victim of Charles Durazzo, who, fixing himself after her on the throne of Naples, transmitted it to his own children Ladislaus and Joanna II.

The exterior power of the Venetians rose or fell, their territories were extended or confined, according to the various success of their eternal wars with Hungary and Genoa. They took Smyrna and Treviso; they lost a part of Dalmatia; they made themselves masters of Verona, of Vicenza, and of Padua; they possessed, but could not preserve Ferrara: but they maintained and consolidated the aristocratical government which Gradenigo had given them, and punished the attempted alteration by Salieri. Liguria, on the contrary, harassed for ages by intestine changes, presented in the fourteenth century a spectacle fickle as ever: we behold her obeying in succession a captain, two captains, sometimes Genoese, sometimes foreigners; a council of twelve, of twenty-four; a mayor; a doge: and, in the intervals of these ephemeral governments, receive or reject the yoke of the emperor, of the pope, of the king of France, or of the lord of Milan. This last title at this time belonged to the family of Visconti. From the thirteenth century, an archbishop of Milan, Otho Visconti, had become lord of this city, and had obtained for his nephew Matthew the title of vicar imperial of Lombardy. Matthew, at the beginning of the fourteenth century, associated with himself his son Galeas. Overthrown by the Torriani, restored by Henry VII., and upheld by Louis of Bavaria, the Visconti resisted the pope, the king of Naples, the Florentines, and the whole Guelphic party. After the emperor

Venceslas had bestowed on one of these Visconti, John Galeas, the title of Duke of Milan, they became powerful enough to defend themselves against the head of the empire himself. When Robert, the successor of Venceslas, wished to deprive them of the cities of which they had become masters, a decisive battle in 1401, confirmed their possession and retarded their fall.

The emperors of the fourteenth century were, Albert of Austria, whose yoke the Helvetians shook off; Henry VII. of Luxemburgh, who, during a reign of five years, began to shed some lustre on the imperial crown; Louis of Bavaria, the restless enemy of the popes; Charles IV. or of Luxemburgh, their creature; and his son Venceslas, a vindictive monarch, deposed in 1400. Robert belongs more pro-perly to the fifteenth century.

Thus the Visconti, being substituted for the emperors in Italy, erected themselves into heads of the Ghibeline faction, at the same time that the Ghelphic escaped from the popes, and submitted to the influence of the house of Philip the Fair, sovereign of France and of Naples. The war continued between the two Italian factions, without any reference, of esteem or of interest, to their ancient chiefs; the pope was as little regarded by the Guelphs, as the emperor by the Ghibelines; even the latter were seen in arms against the emperor, Charles IV., when he suffered himself to be drawn by the pope into the Guelphic party; and against Robert, when he had declared war against the Visconti. On their side, the Guelphs, whom the weakness of their chiefs, pontiffs, kings of France, or of Naples, abandoned to their own exertions, fought only for the independence of their cities or the general liberty of Italy. At the end of the fourteenth century, Guelphs and Ghibelines, animated by similar interests, tended towards the same end; but it was undesigned; they would have feared to perceive it; and, when their ancient discord had no longer any motive, habit still continued to preserve it.

It results from this statement, that the court of Avignon had for rivals, Germany and France: Germany, which preserved till near 1300, the management of the Ghibeline faction; France, which protected the popes only to rule over them, and which endeavoured to become master in Italy of the Guelphic one.

It was requisite to temper, or elude by intrigue, the French influence, to repress by anathemas the imperial power, and, when Charles IV. devoted himself to the Holy See, to direct against the Visconti, the thunders of the church. Such were, in Avignon, the cares of the supreme pastors of the flock

of Jesus Christ. They taught little, and edified less; they were temporal princes, and reign they would.

Benedict XI. the immediate successor of Boniface VIII. reigned but one year; he had retired to Perugia, to withdraw from the domination of the lords and cardinals who pretended to the government of Rome; the Colonnas, proscribed by his predecessor, entered it again. Out of Rome, Philip the Fair, aspired to the preponderance; connected at first, with the Ghibeline party by the anathemas of Boniface, absolved subsequently by Benedict XI., he little dissembled his intention of ruling the Holy See. Benedict became uneasy in consequence, and directed enquiries to be made after the authors of the outrages which Boniface had experienced. An excommunication thundered against the Florentines, for a political interest of trifling importance, was perhaps the principal fault which Benedict XI. had time to commit: Italian authors have imputed, without proof, to Philip the Fair, the premature death of this pontiff.

After an interregnum of nearly a year, the election of Bertrand de Gotte, or Clement V. was the work of Philip the Fair, who had reason to complain of him: the monarch wished to select, from among his personal enemies, a pope who would be altogether indebted to him for the tiara, and who would pledge himself to pay dearly for a benefit so little merited beforehand. Gotte made six promises to Philip, all of which were not redeemed by Clement V. For instance, this pontiff excused himself from condemning the memory of Boniface VIII.; and, when the empire became vacant by the decease of Albert I., the king of France, who canvassed for this place for a French prince, vainly counted on the services of the holy father: whilst seconding by a public letter the claims of this candidate, Clement transmitted to the electors a secret brief, in order to exclude him²⁵⁶ It is certain that there needed only this accession to assure to the house of France, already established at Naples, a universal preponderance, especially when Clement, despairing to reduce the Romans to a tranquil obedience, consented to fix at Avignon the pontifical court. Yet he served the king but too faithfully in the affair of the templars: inasmuch as sound policy required the suppression of this order, insomuch it was accordant, as it ever must be with justice and humanity, to dissuade from so many judicial assassinations.

When Clement V. cancelled a decision of Henry VII. against Robert, King of Naples; when he decreed to the same Robert the title of Vicar of the

empire, he erected himself expressly into a sovereign, and placed the emperor in the number of his vassals.^{[257](#)}

"Thus we do, he says, as well in virtue of the indubitable supremacy which we hold over the Roman empire, as of the full power that Jesus Christ has given us, to provide for the sovereign's place during the vacancy of the imperial throne."

He maintained also that Ferrara belonged to the Holy See; and the Venetians having taken this place from the house of Este, he excommunicated them; declared the doge and all the citizens infamous, deprived of every right, incapable, they and their children, to the fourth generation, of all secular or ecclesiastical dignity.^{[258](#)}

But these anathemas were no longer formidable.^{[259](#)}

"The Italians," as a cardinal then observed, "no longer dreaded excommunications; the Florentines treated with contempt those of the cardinal bishop of Ostia, the Bolognese those of Cardinal Orsini, the Milanese those of the Cardinal Pellagrué: the spiritual sword terrifies them not, if the temporal one does not strike them."

Clement V. also published a crusade against the Venetians: this very Cardinal Pellagrué led an army against them; they were defeated, driven from Ferrara, and absolved.

The decretals of Clement V. united to the decrees of the general council of Vienna, held in 1313, form a canonic code which is designated "The Clementines." The decretals of John XXII., the successor of Clement, are termed the "Extravagantes," that is to say, supplementary to the preceding codes; and the name of "Extravagantes communes" is applied to a collection of the statutes of many popes, whether anterior or posterior to John. Thus the canon law of the middle age is composed of, the decretals forged by Isidore in the eighth century, the decree by Gratian in the twelfth, the decretals of Gregory IX., compiled by Raymond de Pennafort, in the thirteenth, of the "Sexte of Boniface VIII.," of the "Clementines," of the "Extravagantes" of John XXII., and of the "Extravagantes communes:" to which may be added the collections which comprize the bulls published by the popes of the latter ages. Such are the sources of the modern jurisprudence of the clergy: such the cause and the effect of the temporal power of the pontiff, and the unlimited extent of their spiritual authority:

such the voluminous codes which have taken the place of the pure and simple rules of the primitive church; laws which, since the age of St. Louis to 1682, the Gallican Church has never ceased to re-assert.

A pontifical interregnum of two years, from Clement V. to John XXII., comprised the entire reign of the king of France, Louis X. or “le Hutin.” His brother and successor Philip the Long, received from John XXII. a pedantic and high flown epistle²⁶⁰ which will suffice to shew what this second Avignon pope would have dared under different circumstances. He created bishopricks in France: in authorizing the divorce of Charles the Handsome, who repudiated Blanche of Burgundy, he conceived a hope that he could subject by degrees a government which sought compliances of him. But Philip de Valois, who perceived his ambitious designs, threatened to have him burned,²⁶¹ and provoked a celebrated discussion on the bounds of the two powers. The king’s advocate, Peter de Cugnieres, supported the rights of the civil power by arguments, not always of the best description, though much less wretched than those made by the prelates to perpetuate the abuse of the ecclesiastical jurisdiction. It is, say they, by the exercise of this jurisdiction that the clergy are enriched; now the opulence of the clergy, the splendor of the bishops and archbishops is one of the prime interests of the king and of the kingdom. Philip de Valois, but little sensible to this interest, commanded that within the space of a year the abuses should be reformed, without the intervention of the Roman or Avignon court.

This discussion had not adequate effects; but it was from it appeals as of abuse or error sprung, that is to say, appeals from ecclesiastical decisions to secular tribunals.²⁶²

After the death of the emperor, Henry VII. Frederick the Handsome, duke of Austria, disputed the empire with Louis, duke of Bavaria, whose rights were established by victory. However, John XXII, cancelled the election of Louis; he maintained that it belonged to the sovereign pontiff, to examine and ratify the nomination of the emperors, and that, during the vacancy, the imperial government should immediately revert to the Holy See, from whence it emanated²⁶³ The pope reproached Louis with protecting the Visconti, excommunicated as heretics; their heresy, we have seen, was the supporting and directing the Ghibeline party. Louis resisted, he kept no bounds in the invectives with which he loaded John. While John was deposing the emperor, the emperor caused John to be deposed by the clergy, nobility, and citizens of Rome. A Franciscan took the name of

Nicholas V., and seated himself on the pontifical throne; but the repentance and obedience of Nicholas, injured so materially the cause of Louis, that he consented to renounce the empire, when John died, leaving twenty-five million of florins in his coffers.^{[264](#)}

"This immense treasure, says Fleury, was amassed by his Holiness's industry, who, from the year 1319, established the reservation of the benefices of all the collegiate churches of Christendom, saying, that he did it in order to do away simony. Furthermore, in virtue of this reservation, the pope seldom or never confirms the election of any prelate: but he promotes an archbishop to a bishopric, and puts an inferior bishop in his place; whence, it often happens that an archbishop's see, or patriarchate, becoming vacant, produces six promotions or more, and a consequent flow of large sums of money into the apostolic treasury."

In 1338, Benedict XII. having refused to absolve Louis of Bavaria, the Diets of Rensee and of Frankfort declared, that ancient custom conferred the vicariate of the vacant empire on the count Palatine of the Rhine; that the pretensions of the pope to replace the emperor during an interregnum were untenable; that the pope had over the German empire no sort of superiority; that it was not his province to regulate, nor confirm the elections of the emperors; that the plurality of suffrages of the electoral college conferred the empire without the consent of the Holy See, and, that to assert the contrary would be a crime of high treason.^{[265](#)} The Germans gave to their decree, the name of "Pragmatic Sanction," and, at the same time, it was forbidden to pay any respect to the censures fulminated against the head of the empire, to receive bulls from Avignon, or keep up any correspondence with the pontifical court.^{[266](#)} Four years after the publication of this decree arose Clement VI. who demanded of the emperor a perpetual edict, in which the empire should be declared a fief of the Holy See, a benefice that none could possess without the authority of the sovereign pontiff. This Clement said, that none of his predecessors knew how to be a pope; Benedict XII. more modest, said to the cardinals his electors: You have elected an ass.^{[267](#)}

Clement renewed the anathemas of John XXII. against Louis of Bavaria; he added thereto more solemn imprecations:

"May the divine wrath! he

"cried, may the vengeance of St. Peter, and St.
"Paul, fall upon Louis in this world, and in the
"next! may the earth swallow him up alive! may
"all the elements combine against him! and may his
"children famish before the eyes of their father, by
"the hands of his enemies!"

But Clement, aware that cursing no longer availed, excited a civil war in the heart of Germany, leagued the nobles against Louis, deposed him anew, nominated a vicar of the empire in Lombardy, and caused to be elected emperor in 1340, the Margrave of Moravia, who took the name of Charles IV. Louis of Bavaria, everywhere conqueror, died in 1347, and Clement VI. triumphed. About this time a horrible plague ravaged Italy: the sovereign pontiff who had founded great hopes on this scourge, watched the moment in which the petty princes of Italy, reduced to the last degree of weakness, and having no longer an army to oppose to his anathemas, would be brought to acknowledge and sue to the pontifical authority. To accelerate this event, and second the plague, Clement employed money, stratagem, and force, in order to conquer the insubordination of the cities and nobles of Romagna; in particular, he menaced the Visconti, cited them before the consistory of cardinals, and summoned them to restore Bologna to the church; but, when he heard speak of twelve thousand horse, and six thousand infantry, who were to make their appearance at the court of Avignon with the lords of Milan, he took the course of negociation with this powerful house, and for one hundred thousand florins, sold it the investiture of Bologna. Avignon he had purchased: Joan, queen of Naples, had ceded this place to him for eighty thousand florins, which, it is said, were never paid. But Clement declared Joan innocent of the murder of her first husband, Andrew; he acknowledged the second; he placed difficulties in the way of the projects of Louis, king of Hungary, who in order to avenge his brother Andrew was about to invade the kingdom of Naples. It was thus that Clement VI. paid for Avignon; and, as this city was a fief of the empire, the sale was confirmed by Charles IV., who, indebted for his crown to the sovereign pontiff could refuse him nothing.

This Pope died in 1352; the picture of his manners, has been drawn by Matteo Villani, a contemporary historian, whose expressions Fleury²⁶⁸ thus translates and softens:

"He kept up a regal estab-
"lishment, had his tables magnificently served, a great
"train of knights and equerries, and a numerous

"stud of horses, which he often mounted for amuse-
"ment. He took great pleasure in aggrandizing his
"relations; he purchased extensive lands in France
"for them, and made many of them cardinals; but
"some of them were too young, and of too scanda-
"lous a life. He also made some at the request of
"the king of France, who were many of them also
"too young. In these promotions, he had regard
"to neither learning nor virtue. He himself had a
"moderate share of learning; but his manners
"were gallant, and unbecoming an ecclesiastic.—
"When an archbishop, he preserved no restraint
"with women, but went further than the young no-
"bles; and when pope, he neither knew how to
"refrain nor correct his conduct in this way. Great
"ladies, as well as prelates, visited his apartments;
"among othes a Countess of Turenne, on whom
"he conferred numerous favours. When he was
"sick, it was the ladies who waited on him, as female
"relations take care of seculars."

A short time before his death, Clement received a letter written, they say, by the archbishop of Milan, John Visconti, and of which the following are lines:[269](#)

"Leviathan, prince of darkness, to Pope Clement
"his vicar.....Your mother, the haughty, salutes
"you; Avarice; Lewdness, and your four other
"sisters, thank you for your good will, which has
"caused them to thrive so well.'

It was during this pontificate that the Romans saw a man of low rank, Cola Rienzi, raise himself to a high degree of power. Deputed to Clement VI., to invite him to return to Rome, and not being able to prevail on him, Rienzi returned to plant the standard of liberty on the capitol, proclaimed himself tribune, and governed for several months the ancient capital of the universe.

The emperor Charles IV. had promised to renounce all claim of sovereignty over Rome and the ecclesiastical domains; these were the conditions on which Clement VI. had raised him to the empire; Charles kept his word. When in 1355 he resumed the imperial crown, he acknowledged the absolute independence of the temporal power of the popes, and swore never to put his foot in Rome, nor on any spot belonging to the Holy See, without the permission of the holy father, annulling all the contrary acts of his predecessors, and obliging his successors, under penalty of deposition, to the maintenance of the engagement entered into by him. This is the first authenticated act which elevated the pope into a temporal sovereign, an independent monarch: till this period he had been but a vassal of the

empire. Innocent VI., who reigned in 1355, profited by this event to enrich his family.²⁷⁰

Charles IV., a prince as weak as he was ambitious, was commonly surnamed the emperor of the priests.:

"You have then," Petrarch writes to him,
"you have promised with an oath never to return to
"Rome. What a shame for an emperor, that priests
"should have the power or rather the audacity to
"compel him to such a renunciation! What pride
"in a bishop to deprive a sovereign, the father of
"liberty, of liberty itself! And what opprobrium in
"him whom the universe should obey, to cease to
"be his own master, and obey his vassal!"

This Petrarch, who beheld too nearly the court of Avignon, compares it to²⁷¹

"a labyrinth in which an
"imperious Minos casts into the fatal urn the lot of
"humanity, where bellows a rapacious Minotaur,
"where triumphs a lascivious Venus. There is no
"guide, no Ariadne; to chain the monster, to bribe his
"hideous porter, there is no means but gold. But
"gold there opens heaven, gold in that place buys
"Jesus Christ, and, in this impious Babylon, a
"future existence, immortality, the resurrection, the
"last judgment, are placed with Elysium, Acheron
"and the Styx, in the class of fables imposed upon
"the grossest credulity."

Although the weakness of the emperor Charles IV. had opened a new career to pontifical ambition, yet the return of some degree of light, and the perpetual commotions in the city of Rome, which kept innocent VI. at Avignon, which compelled Urban V. to return to it²⁷² and which would have sent Gregory XI. back, when he died; finally, the schism with which this pope's death was followed; all these causes concurred in depriving the Holy See of the fruits of the policy and enterprises of Clement VI.

In 1378, the cardinals, assembled to give a successor to Gregory XI. proclaimed Barthelemi Pregnano, who took the name of Urban VI., and they a few months after withdrew to Fondi, where they elected Robert of Geneva, or Clement VII.: they pretended that the election of Urban was but a formality to appease the fury of a people which wished to control their choice. Clement was installed in Avignon: France, Spain, Scotland and Sicily acknowledged him: the rest of Europe supported Urban, who resided at Rome, and published in England a crusade against France. Urban died in

1389, and the cardinals of his party supplied his place by Peter Tomacelli or Boniface IX. On the other hand, Clement being deceased in 1394, the French cardinals raised to the pontificate Peter de Lune, a Spaniard, who was called Benedict XIII. Modes of reconciliation were proposed from all quarters; France especially evinced her anxiety to extinguish the schism: but neither of the pontiffs would listen to relinquishing the tiara; and the spiritual arms directed by each pope against the other became harmless in their hands. What one did against the supporters of the other; what dangers they encountered; what cardinals, what kings, what cities, they excommunicated; how many threats, how many bulls, how many censures they published, we will not undertake to relate here: we shall only remark, that the Church of France, after useless efforts to reestablish concord, ended by withdrawing, in the year 1298, from obedience to either one or the other pontiff.:

"We," says Charles VI.,
"supported by
"the princes of our blood, and by many others, and
"with us the church of our kingdom, as well the
"clergy as the people, we, altogether withdraw from
"obedience to Pope Benedict XIII. as from that of
"his adversary. We desire that henceforth no
"person pay to Benedict, his collectors, or other
"officers, any ecclesiastical revenues or emoluments:
"and we strictly forbid all our subjects from obeying
"him or his officers in any matter whatever."

Villaret²⁷³ adds, that Benedict having caused a report to be spread, that the French were desirous to withdraw from obedience to him in order to substitute a pope of their own nation, the king to do away such suspicions, declared, in his letters, that any pope would be agreeable to him, whether African, Arab or Indian, provided he did not dishonour by his passions the chair of St. Peter.

The French profited by these events to repress the exactions of the pontifical court. The churches were restored the right of freely electing their prelates, and collators the disposal of other benefices. Boniface IX. had perfected the art of enriching the Holy See; he had, as Fleury observed,²⁷⁴ doubly need of money, for himself, and, to support Ladislaus at Naples against the house of Anjou. We may read in Fleury,²⁷⁵ how the clergy, who possessed benefices at Rome, paid for the favour of being examined; how Boniface in the second and third year of his pontificate, dated as of the first

the bulls for benefices; how he exacted compensation for this antedate; how he extended to prelaties the right of first fruits, that is, the reservation of the revenue of each benefice for the first year; how he kept couriers throughout Italy, to be apprised, without delay, of the sickness or death of prelates or other dignitaries, and in order to sell twice, or thrice, the same abbey or church; how, by clauses of preference, he revoked the reservation, and the survivorship, the price of which he had received: how he would even annul the preferences which paid a higher price; how in fine, this traffick, combining with the plague, and the consequent rapid mortality of the incumbents, brought into the treasury of the apostolic see, the innumerable contributions of all those who obtained, hoped for, or coveted, a rich or a poor ecclesiastical benefice.

It was, without doubt, impossible but that these scandalous abuses, multiplied and extended through the lapse of time from Hildebrand to Boniface IX. and Benedict XIII., should excite the indignation of upright minds and honest hearts. The French, much more christianized in the fourteenth century than the people of Italy or Germany, evinced, by this alone, more zeal in repressing the irregularities and excesses of the clergy. They had seconded Philip the Fair against Boniface VIII.; under Philip of Valois, Peter de Cugnieres had expressed their honourable wishes; and more than twenty years before their renunciation of Benedict XIII. as of Boniface IX. they had, under Charles V. enquired into the limits of ecclesiastical authority. A monument of this discussion has been preserved to us under the title of “The Verger’s dream, or Disputation between the clerk and the squire:”²⁷⁶ a work the author of which is not well known; but which we would attribute to John de Lignano, or to Charles de Louvieres, rather than to any other. The clerk in it claims for the successor of St. Peter, the title of Vicar-General of Jesus Christ upon earth.—The squire distinguishes two eras in our Saviour’s history, one of preaching and humility before his death, the other of power and of glory after his resurrection. St Peter, according to the squire and the pope as well as St. Peter, can represent but the poor and the modest: Jesus, preaching the gospel, and affecting over thrones and temporal things, no sort of pretension, acknowledging that his kingdom is not of this world, submitting himself to the civil power, and, in fine, rendering to Cesar, that which to Cesar belongs.

CHAPTER VIII. FIFTEENTH CENTURY

FOUR great councils were held in the fifteenth century, all previous to the year 1460. The council of Pisa in 1409: it is not revered as an oecumenical one; it nevertheless, in deposing. Gregory XII. and Benedict XIII. elected Alexander III. to their place. This act did not extinguish the schism; on the contrary it occasioned at once three popes.

The council of Constance in 1414: this had greater authority; it caused John Huss and Jerome of Prague to be burned; further, it declared the superiority of general councils over the popes; a doctrine always disapproved of at Rome, and to which Martin V: did not adhere, though elected by this very council of Constance. But the church had no longer more than two heads, Martin V. and the obstinate Benedict XIII. Gregory XII. sent in his resignation; and John XXIII. the successor of Alexander V. was thrown into prison, from whence he did not come out until he had acknowledged Martin V. There is no vice, no crime, which contemporary historians and the council of Constance do not reproach John XXIII. with. An act of accusation prepared against him, presented, they say, a complete catalogue of every mortal crime²⁷⁷ They assert that he had seduced three hundred nuns²⁷⁸ according to Theodoric de Nieve²⁷⁹ he kept at Bologna two hundred mistresses. These exaggerations discover calumny; and the friendship and hospitality with which the Florentines, especially the Medicis, a family at this period distinguished, honoured a pontiff so weakly established, would suffice to refute or weaken the accusations with which, his enemies and his misfortunes have loaded his memory. The weakness of his character stimulated the insults of his rivals, and his disgraces those of the historian. Stripped of his states by Ladislaus, king of Naples, betrayed by Frederick, duke of Austria, hunted by the emperor Sigismund, John used

too liberally the sole resources which remained to him, simony and usury; he brought to perfection, even after Boniface IX. the traffic in benefices²⁸⁰ and we read²⁸¹ that a note for one thousand florins would be passed him where he lent eight hundred for four months.

The council of Basle in 1431: theologians declare it oecumenical to its twenty-fifth session only; it held forty-five. This council also humbled a good deal the papal authority; and its decrees on this head, as well as those of Constance, served to prepare in France the celebrated pragmatic sanction, to which we shall revert by and by. The fathers of Basle deposed Eugene IV., the successor of Martin V., describing the said Eugene as a disturber, a heretic, and a schismatic. Eugene excommunicated this third council, and held a fourth at Florence in 1459. In it the reconciliation of the Greeks was treated of: John Paleologus, emperor of the East, was at it, endeavouring to confirm by this re-union the throne upon which he tottered; but the priests of Constantinople persisted in the schism.

Louis III. of Anjou, had disputed the throne of Naples with Joan II., daughter of Charles Durazzo. Delivered from Louis by Alphonso V. king of Arragon, Joan adopted the Arragonese monarch, and her liberator was to become her heir. Subsequently some misunderstanding between Alphonso and Joan determined her to revert to Louis of Anjou, and to revoke in his favour the act of adoption obtained by Alphonso. Joan and Louis died: and, two competitors present themselves to reign over Naples, Alphonso and Reni, the brothers of Louis. Pope Eugene declares for Alphonso, precisely because Reni, more acceptable to the Neapolitans, and to Italy generally, would have been too formidable a neighbour for the Holy See. This is the principal affair purely political in which the pontiff concerned himself. He however obliged Uladislaus, king of Poland and Hungary, to break a peace with the Turks, sworn to on the Evangelists and on the Koran. A rupture fatal as it was perfidious, and which drew after it, in 1444 near Varne, the defeat and death of Uladislaus.

Eugene retained to his death the title of pope, although the counsel of Basle had conferred it on the duke of Savoy, Amadeus VIII. whose papal name was Felix V. This duke afterwards abdicated the tiara, and the church had at last but one head Nicholas V., the successor of Eugene; Nicholas, a pacific prelate; the friend of literature, and founder of the Vatican library, and one of the most generous protectors of the learned Greeks, who took refuge in Italy after Mahomet II. had taken Constantinople in 1446.

We have seen that during the first half of the fifteenth century, the priesthood, divided, had no means of very seriously threatening great empires. This opportunity ought to have been seized on for effecting those reformations, provoked by the corruptions which the false decretals had produced in the ecclesiastical discipline.

The ancient rules left to the clergy, to the people, and to the sovereign, an active part in the election of bishops, and the new law reserved to the pope the institution of the incumbents. Excommunications, formerly rare and confined to matters altogether spiritual, were multiplied after the tenth century against emperors and kings, whose power they shook. The popes of the eight first centuries never thought of enacting tributes from the newly elected bishops; now, the pope demands first fruits of them. Before the decretals, the ecclesiastics were in civil and criminal cases amenable to the secular tribunals: after the decretals, the pope wished to become, in all sorts of causes, the supreme judge of every member of the priesthood. In fine, dispensations, pardons, reservations and reversions, and appeals to the Holy See, were perpetual; the abuses, become excessive, wearied France in an especial manner.

After having withdrawn, as we have said, from obedience to both the candidates for the papacy, the Gallican church began to regulate itself agreeable to the primitive laws, and received with transport the decrees of the councils of Constance and Basle, which limited the power of the pope and subjected it to that of the united church. The council of Basle, when Eugene IV. had quitted it, sent its decrees to the king of France, Charles VII. who communicated them to the great nobles of his kingdom, secular as well as ecclesiastical, met together for this purpose in the holy chapel of Bourges. The decrees of Basle and of Constance, approved and modified by this assembly, formed the pragmatic sanction, which was read and proclaimed as the king's edict, in the parliament of Paris, the 3d of July, 1439. It is determined by this edict, that general councils ought to be held every ten years, that their authority is superior to that of the pope, that the number of cardinals should be reduced to twenty-four, that the presentation to ecclesiastical benefices should be perfectly free, that the first fruits should no longer be demanded, and that neither reservations or reversions should be recognised.²⁸² All orders of the state received this "pragmatic" with enthusiasm; and the whole course of history attests how dear it was to the French.

In Italy the schism had gradually produced a revolution in their political views. Under doubtful and rival demi-popes; under the feeble influence of the emperors Robert, Sigismund, Robert II. Frederick III. the Guelph and Ghibeline factions become almost extinct either from want of heads or of standards, or lassitude consequent on four or five centuries of madness and misfortune. The Visconti, become the chiefs of the Ghibelines, sunk and disappointed, replaced by the Sforza, a family just hatched and destined to combat for interests new as itself. The Medicis, less recent, laboured to calm the commotions which agitated Florence, and indulged the hope of seeing liberty, laws, and literature flourish, in the loveliest country they could make their abode.— Impelled also by the idea of their advances in the fine arts, other cities of Italy aspired to free themselves altogether from the German yoke, and to exercise an habitual influence over the people they had outstripped in civilisation. This national pride it was which reconciled them secretly to the papacy, disposed them to consider it as the centre of Italian power, and to mourn over the ancient splendour of this once dreaded focus. The middle of the fifteenth century, is the true era in which was confirmed, and propagated in Italy, the doctrine elsewhere denominated ultramontane, a doctrine which has since been but the mask of the political interests of this nation, well or ill understood by her. Since then, the Italians have generally abstained from seconding the resistance that the English, the Germans, the French, have not ceased to oppose to the pretensions of the Roman pontiff, to his worldly ambition, and abuse of his spiritual ministry. Already, in the councils of Constance and Basle, the Italian prelates were in general remarked for the lukewarmness of their zeal in the reformation of ecclesiastical irregularities. Terrified no doubt, by the rash boldness of Wickliffe and many other innovators, they did not perceive that propriety of manners and wise laws would be the most certain security against alterations in doctrine; or rather, the preservation of the faith was not what they most sincerely desired to secure. Behold then, in what disposition the successors of Nicholas V., found the clergy, the learned, the rulers, and consequently the people of Italy; and such were the points of support on which the pontifical levers went to work, in order to put it under way once more.

Six popes, after Nicholas V, governed the church during the second half of the fifteenth century: Calixtus III., from 1445 to 1458; Pius II. to

1464; Paul II. to 1471; Sixtus IV. to 1484; Innocent VIII. to 1492; and Alexander IV. for the following years.

Calixtus III. who vainly preached a crusade against the Turks established at Constantinople, shewed much more zeal still for the particular interests of his family. This pope had three nephews: he raised two of them to the cardinalat, which they disgraced by the open irregularity of their conduct. He heaped secular dignities on the head of the third: he made him duke of Spoleto, and general of the troops of the Holy See; he was desirous of making king of Naples, and thus terminate the rivalry existing between Ferdinand, the son of Alphonso, John, the son of Rene, and other candidates, whose object this kingdom was. Calixtus endeavoured to arm the Milanese against Ferdinand, and forbid this prince on pain of excommunication from taking the title of king: but Calixtus reigned only three years, and his ambitious intentions had no durable consequence.

After him came Pius II., who before, under the name of Eneas Sylvius, was an author sufficiently distinguished: he had also been secretary to the council of Basle, and as such a zealous partisan of the supremacy of councils; but finally, when pope, an ardent defender of the omnipotence of the Holy See. He even formally retracted all that he had written at the dictation of the council; and, by an express bull, Pius II. condemns Eneas Sylvius.²⁸³ His bull 'Execrabilis,' anathematizes appeals to general councils, to one of which France appealed on this very bull. Charles VII. still reigned; he maintained the pragmatic sanction; and observe in what terms the attorney general Douvet protests against this bull:²⁸⁴

"Since our holy father the pope, to
"whom all power has been given for the building up
"of the church and not for its destruction, wishes to
"disturb and insult our lord the king, the ecclesi-
"astics of the kingdom, and even his secular sub-
"jects, I, John Douvet, attorney general of his
"Majesty, do protest such judgments or censures to
"be null, according to the decrees of the sacred
"canons, which declare void, in many cases, this
"sort of decisions; submitting, nevertheless, all
"things to the judgment of a general council, to
"which our very Christian king purposes to have
"recourse, and to which I, in his name, appeal."

But Louis XI. succeeded Charles in 1461, and repealed the 'pragmatic' yielding to the solicitations of Pius, who wept for joy at it, ordained public festivals, and caused the act of the assembly at Bourges to be dragged

through the puddle of Rome. Louis had affixed two stipulations to his compliance; one, that the pope should favour John of Anjou and proclaim him king of Naples; the other, that a legate, a Frenchman by birth, should be appointed to invest the incumbents in France. Pius, who had made both these promises, fulfilled neither; but he composed verses in honour of the king, and sent him a sword, ornamented with diamonds, to fight Mahomet II.—Louis highly irritated, directed the parliament secretly to oppose the edict which rescinded the pragmatic. This opposition it was not difficult to secure, it was sufficient not to thwart it: the parliament embraced so rare an opportunity of testifying their obedience, by refusing to obey. Louis XI. armed not against the Turks; but while Pius II. thus stimulated the kings of Europe to combat the new masters of Constantinople, let us see what the holy father writes to Mahomet II. himself.^{[285](#)}

"Do you
"wish to become the most powerful of mortals?
"What prevents your becoming so to-morrow? a
"mere trifle certainly, what may be found without
"the seeking, some drops of baptismal water.
"Prince, but a little water, and we will declare you
"emperor of the Greeks and of the East, of the
"West also, if need be. In former times, freed
"from Astolphus and Didier, by the good offices of
"Pepin and of Charlemagne, our predecessors
"Stephen, Adrian, and Leo, crowned their liber-
"ators. Do you act like Charlemagne and Pepin,
"and we shall do as Leo, Adrian and Stephen."

These are plain terms, we see, and disguise nothing of the pontifical policy.

To Pius II. succeeded Barbo, a Venetian, so handsome and so vain, that he was tempted to assume the name of Formosa:^{[286](#)} he contented himself with that of Paul II. His efforts to league the Christian sovereigns against the Turks, and to have the abrogation of the pragmatic registered by the parliament of Paris, were equally unsuccessful; other interests occupied the former, and the parliament of Paris was obstinate. In vain Cardinal Balne obtained from Louis the deprivation of the solicitor general John de Saint Romain: the university united with the magistrates in an appeal to a future council. In the mean time letters are discovered which prove to Louis that he is betrayed by Balne. The cardinal is already cast into prison; but Paul pretends to be the sole legitimate judge of a prince of the church, and Balne, after a long detention in an iron cage, is finally liberated.

Paul also vainly endeavoured to make himself master of Rimini: in vain he armed the Venetians against Robert Malatesti who occupied this place: Robert, aided by the Medicis, opposed a formidable army to the Venetians, and which, under the command of the Duke d'Urbino, put that of the pope to flight²⁸⁷ His holiness received such conditions as his conquerors dictated; he loaded the Medicis with invectives, and no longer made war but with men of letters;²⁸⁸ he condemned many of these to horrible tortures to extort from them the avowal of heresies which they never professed; and when their constancy in refusing to make false confessions, when all the evidence, all the witnesses proclaimed their innocence, the holy father declared they could not leave their dungeons until they had completed in them an entire year, having at the time of their arrest made a vow not to release them before the expiration of this term.

Platina, one of Paul's victims, has compiled a history of the popes in which, this pontiff is not spared: Platina is doubtlessly here a suspicious testimony; but as the reverend Benedictine fathers judiciously observe,:

"his relation is supported by the evidence of James Piccolomini, cardinal bishop of Pavia, a respectable writer, who, both in his commentaries, in the letter he wrote to Paul himself a short time after his exaltation, and in that addressed to the cardinals who had elected him, draws a very unfavourable portrait of this pope."

Two nephews, invested the one with the duchy of Sora, the other with the county of Imola; an expedition fruitless against the Mahometans; alternate alliances and enmities with the Venetians; disturbances encouraged in Ferrara, Florence and Naples; arms, stratagems, and anathemas, in turn assayed against the enemies of the Holy See: these several details of the history of Sixtus IV. would possess greater interest if the conspiracy of the Pazzi did not absorb all the attention this pontificate can claim.

The Medici had offended Sixtus IV. by some shew of resistance to the elevation of his nephews, and to the nomination of the archbishop of Pisa, Salviati. Their power, so much the more imposing as it was then connected with the most honourable renown, restrained and wearied the pontiff, who aspired to become master of Florence and the North of Italy. One of the first cares of Sixtus was, to deprive the family of the Medicis of the situation of treasurer of the Holy See, in order to give it to that of the Pazzi. Till this period, no jealousy was manifested between these two illustrious houses,

united on the contrary by alliances and by mutual services. The Florentine authors exhaust in vain their investigations to discover motives or pretexts for the enmity of the Pazzi to the Medici. To represent the latter as tyrants, the conspirators as liberators, is at once to oppose sound morality and contemporary history. No, it is impossible to imagine any other causes here than the instigations of the court of Rome, and the hope presented to the Pazzi, of invading under the protection of the Holy See, the government of Florence, if they were willing to become, not the rivals of the Medicis, but their assassins. To the Pazzi were joined the Count Riaccio, nephew of the pope, the cardinal Riaccio, nephew of the Count, the archbishop of Pisa, a brother of this prelate; one Bandini, known by the excess of his debaucheries; Montesecco, one of Sixtus's 'condottieri,' with other robbers and priests. It was arranged to poignard Lorenzo and Giulio de Medici, on Sunday, the 26th of April, in the church, in the middle of Mass, at the moment of the elevation of the host. These circumstances, which added to the crime the character of sacrilege, terrified the conscience of Montesecco,²⁸⁹ who had received, as the best skilled of them all at assassination, the commission to strike Lorenzo; two ecclesiastics took the office on them. But they acquitted themselves with less skill than zeal; and Lorenzo, only wounded, escaped from their hands, while Giulio expired under the blows of Bandini and Francisco Pazzi.

The death of Giulio was instantly revenged: the traitors were seized, and exterminated by the populace. The archbishop of Pisa was seen when hanged by the side of Francisco Pazzi, biting in his agony the carcase of his companion. Montesecco revealed at the foot of the scaffold the dark clues and sacred origin of the conspiracy. Bandini, after having fled to Constantinople, was sent back by Mahomet 11. to Florence, where he was executed: a sultan would not afford an asylum to an assassin that a pope did not blush to arm; and while Lorenzo, scarcely recovered from his wounds, endeavoured to repress the popular indignation, even while he saves the Cardinal Riario, what does Sixtus do? As if his being an accomplice was not sufficiently exposed by Montesecco, was not abundantly demonstrated by the circumstances themselves, he proclaims it himself by the excommunication of Lorenzo de Medicis and the Florentines. He terms Lorenzo and the magistrates, children of perdition, suckers of iniquity: he declares them and their successors born or to be born, incapable of receiving or transmitting any property by will or inheritance; he summons

the Florentines to deliver Lorenzo up to him; and, when he can no longer hope for so unprincipled a treason, he raises troops against Florence; he arms some Neapolitans; at any price he is desirous to consummate the crime, of which the Pazzi succeeded in effecting but the half. In the mean time Italy, Germany, and France, interested themselves for the Medicis; Louis XI. himself declares that he will restore the 'pragmatic,' if the pope does not revoke his anathemas: but the descent of the Turks at Otranto was requisite, and that the fears and the forces of the courts of Naples and of Rome should have to turn their attention to this point, before the pontiff would pardon the victim who had escaped his thunders and his poignards.^{[290](#)}

Sixtus, to associate the court of Naples in his vengeance, had abolished a quit rent which it paid to the Court of Rome. Innocent VIII. designed its re-establishment, as necessary to the undertakings he meditated against the Mussulmans. Upon the refusal of king Ferdinand, the pope encouraged the Neapolitan barons to revolt, partisans of the Duke of Calabria, and little attached to the house of Arragon. He promised, and sent them troops; he excommunicated the king, deposed him, and called the king of France, Charles VIII. into Italy: but, indolent and unskilful, Innocent merited no success; and the eight years of his pontificate have left behind but trifling mementos.

Of Alexander VI. the private life is well known; the nature of our subject will excuse us from pursuing the details which compose it, of, robbery, perjury, revelings, sacrilege, obscenity, incest, poisoning, and assassination. Our business is with his politics not his manners. He persuaded Charles VIII. to pass into Italy, for the purpose of conquering Naples; and, while Charles was preparing for it, Alexander entered into negociations with every court, even that of the Sultan, to raise up enemies to France. His writing to Bajazet II. that Charles menaced Naples but in order to fall on the Ottoman empire; his delivering Prince Zizim, the brother of Bajazet, to Charles, by order of the Sultan, but delivering him up poisoned, and receiving from the latter the price of his crime: such were, in his political career, the feats of Alexander VI. Yet this did not prevent his holiness from concluding a treaty of alliance with Charles, and almost immediately after leaguings with the Venetians and the Emperor Maximilian against the same Charles, whose greatest error was, opposing the designs of

eighteen cardinals who, already wearied with the excesses of Alexander, resolved to depose him.

The pope had a daughter named Lucretia, and four sons, of whom one named Geoffrey remains almost unknown; another obtained from the King of Naples the title of Squillace; another became celebrated under the name of Cesar Borgia; and the eldest was Duke of Gandia and Beneventum. To advance Cesar, who was only a cardinal, Charles VIII. was promised support in a second expedition of the French into Italy: Charles died before it could be undertaken, and Frederick, king of Naples, was then resorted to. This prince was required to give his daughter in marriage to Cesar, who should be created prince of Tarentum: Frederick having rejected this proposal, it was necessary to recur a third time to the French, then governed by Louis XII.

Cesar arrived in France: he took with him a bull which authorised Louis to part with his first wife; and he instigated him to conquer Naples and Milan: Naples, which from the time of Charles of Anjou, had not ceased to belong to a French prince; Milan, where Louis was to recover the rights he derived from Valentine Visconti, his grandmother: and, to prevent his being over-ruled by wiser counsels, his minister, cardinal Amboise, was seduced with the hope of being one day the successor of Alexander VI. Behold here, how the best of kings, having become the ally of the most perfidious of pontiffs, engages in a dangerous war, in which the treacheries of Rome snatch from the French the fruits of their victories. But the Cardinal Cesar becomes Duke of Valentinois; the family of Borgia triumphs over its enemies, and enriches itself with their spoils; in fine, Alexander VI. became the first potentate in Europe, when a drug which he had prepared for others terminated, by a happy mistake, his abominable pontificate.

This pope and his predecessors, since Calixtus, have been much reproached with their nepotism, or zeal for the elevation of their nephews, their children, and their relations. Certainly we do not mean to justify this abuse of the apostolate, this triumph of the interests of individuals over those of the religion of Jesus Christ; but, in order to clear up as far we are able, by general observations, a history, the details of which we could not embrace here, we may say that Nepotism was a weakening, a degradation of the political ambition; that the papacy, regarded as a means of enriching and aggrandizing families, became, by these means alone, less formidable to sovereigns: and, that after the extinction of the schism from 1450 to

1500, the civil authority had suffered much more frequent attacks, if these domestic cares, these family interests, had not so often diverted the popes from the vast undertakings necessary to restore the importance of the Holy See. Sedulous to humble kings, Innocent III. and Gregory VII. did not busy themselves in elevating particular families: they sought to exercise themselves, and transmit to their successors, a universal supremacy. Many circumstances, which we have pointed out, would have favoured, at the middle of the fifteenth century, the re-establishment of this enormous power, if the popes had united the austere and disinterested enthusiasm of Hildebrand, to the knowledge which must have been possessed by the contemporaries of Politiano, and almost of Machiavel. It was not that Pius II. wanted sense, nor Paul II. wickedness, nor Sixtus IV. perfidy, nor Borgia any vice; but it is not sufficient to be unprincipled, a pope must know also how to turn to account the errors of others and his own crimes.

CHAPTER IX. POLICY OF THE POPES OF THE SIXTEENTH CENTURY

OF all the periods of modern history, the sixteenth is the fullest of tempests, of revolutions, and of important events. It shines with the bright lustre of Italian literature; but, it is tinged with all the blood which fanaticism could shed in the lapse of an hundred years. Each of the eras which divides the duration of this age, is itself a memorable event; the league of Cambray in 1508; the concordat of Leo X. and Francis I. in 1515; the conquest of Egypt by the Turks, new expeditions to the two Indies, the English schism, and the establishment of the Jesuits, in 1540; the abdication of Charles V. and the accession of Elizabeth in 1558; the council of Trent from 1545 to 1563, and, the increase of heresies, the Batavian confederation, the excesses of Philip II. and St. Bartholomew's-day in 1572; the league, the assassination of Henry III. by James Clement, in 1589; the victories of Henry IV. his recantation, and the edict of Nantz, in 1598. Fifteen popes during these tragical events governed the church, almost all of them of distinguished talents, and some of an energetic character: but the remembrance of the Avignon schism, the permanent scandal of nepotism, the invention of printing, the discovery of a new world, the general advancement of knowledge, the exertions of Luther and Calvin, the influence of their doctrines, and propagation of their errors; so many obstacles were opposed to the progress of the pontifical power, that it required extreme dexterity in the bishops of Rome to retard its decline.

After the concessions made by the emperor, Charles IV. in 1355 the German Sovereigns had lost their ancient preponderance in Italy; and the French, in carrying their arms into it, had obtained a considerable influence, which was much less opposed by the popes than by the Venetians, the

princes of Arragon, and the powerful families that ruled Florence and Milan. Pope Julius II. nephew of Sixtus IV. resolved to enfranchise Italy, that is, to subject it to the court of Rome, to expel foreigners, to sow divisions among the rivals of the Holy See, and to take advantage of them in order to re-assume in Europe that supremacy before aspired to by Gregory VII. and exercised by Innocent III. Gregory VII. Innocent III. and Julius II., among so many popes, are the three most violent enemies of kings.

After the death of Alexander VI, and during the twenty-seven days of the pontificate of Pius III. the Venetians had regained important places taken from their republic at the end of the fifteenth century: they occupied a part of Romagna; Cesar Borgia had secured the other, as well as many cities of the March of Ancona, and of the Duchy of Urbino; the Baglioni possessed Perugia; the Bentivoglio, Bologna: divers portions of the pontifical domains were then to be recovered. Julius succeeded in despoiling Borgia, the Bentivoglio, the Baglioni: but, to subdue the Venetians, he concluded against them with the king of France, the emperor, and the king of Arragon, the famous league of Cambray.—But, soon after, the advancement of Louis XII. rendered him uneasy: he feared to allow that of the emperor; he hastens to enter into a secret négociation with the Venetians, and promises them, provided they restore Faenza and Rimini, to join them in repelling the ‘barbarians’; it is thus he calls the French, the Spaniards, and Germans. The Venetians, who rejected these offers, were excommunicated, defeated, and absolved by submitting to the pope. Then Julius leagued, in fact, with the Venetians against the French; he puts on the cuirass, lays siege to, in person, and takes Mirandola. Vanquished by Trivulzio, general of the French, he excommunicates Louis XII. lays France under an interdict, and endeavours to arm England against her. Apostolic legates labour to corrupt the French soldiers: the title of defenders of the Holy See rewards the ravages of the Swiss; the Genoese are excited to revolt; the states of John d’Albret, king of Navarre, the ally of Louis XII. are delivered over by the Roman court to the first occupier.^{[291](#)}

To crush France, overthrow Florence, such were the designs of Julius when he died in 1513, the tenth year of his pontificate. Medals, struck by his order, represent him with the tiara on his head, a scourge in his hand, pursuing the French, and trampling under his feet the crown of France. Julius II. was so much of a temporal prince, that it would be hard to

discover the bishop in him; he attended too little to even the forms of the Apostolat; this was the principal deficiency in his policy.²⁹² It was nevertheless in his pontificate that the doctrine of the infallibility of the pope was established. Julius II. according to Guicciardini,²⁹³ did not merit the title of a great man; and he obtains it from those only who, incapable of appreciating the value of words, imagine that a sovereign pontiff becomes less illustrious by setting an example of the pacific virtues, than in extending the domains of the church by the effusion of Christian blood. He was detested even in Italy. Before his death, the inhabitants of Bologna, threw down his statue, the work of Michael Angelo.

Leo X. though he reigned but eight years, has given his name to the age in which he lived: the just and invariable effect of liberal protection extended to men of letters, when it is bestowed with equal judgment and generosity. This pontiff loved power still less for its own sake and the vast designs it facilitates, than for the magnificence and gratifications it procures. The son of Lorenzo de Medicis, he especially interested himself in ways of securing to his family a lasting ascendancy in Italy. He destined for his nephew the sovereignty of Tuscany, and to his own brother the kingdom of Naples. Louis XII. absolved from the anathemas with which Julius had loaded him, was pledged to favour the ambition of the Medicis, who, on their part, were to support their pretensions to Milan. This alliance, secretly stipulated²⁹⁴ not having sufficiently speedy effects, Leo purchased the state, of Modena from the emperor Maximilian, which he purposed uniting with those Of Reggio, of Parma, and of Placentia, and possibly Ferrara, to bestow on his brother, or enrich with them the court of Rome.

After being leagued with the king of France, Francis I. to compel the emperor Charles V. to relinquish the kingdom of Naples, incompatible, he said, with the empire, the pope formed an alliance against the French with this same Charles, whose menaces terrified him to that degree, that he acceded in his favour to the re-union of the two crowns. Leo took into his pay a body of Swiss troops, and vowed thenceforward so violent a hatred to the French, that, when he had heard of their repulsion from the Milanese territory, he almost instantly expired, as is asserted from joy. He was but forty-six years of age; and notwithstanding the errors into which pontifical policy led him, we must regret that he did not live to protect for a longer period the advancement of the fine arts. He encouraged them like a man worthy of cultivating them; he cherished them with a sincere and constant

love, with which they never inspire bad princes. His interior administration merited the gratitude of the Romans:²⁹⁵ their grief when deprived of him was profound; and, a few years before, equally pure homage was rendered to him when he escaped a conspiracy similar to that of the Pazzi, and in which the same Cardinal Riario, one of the accomplices in the former with Sixtus IV. was concerned. Guicciardini and other writers have judged too hastily of Leo X. For what pope can obtain approbation, if it be not due to him, who has done more for Rome than any of his predecessors since Leo IV. and who did in Europe but a part of the mischief which tradition and example had bequeathed to him.

The expense which the building the church of St. Peter exacted, obliged Leo to have recourse to the sale of indulgences. The clamours of Luther against this traffic were the prelude of a great revolution in Christendom. Leo X. excommunicated Luther and his followers. Bossuet²⁹⁶ thinks with reason, that the heresies and schisms of this century might have been prevented, if necessary reformatations had not been neglected. But, in the history of this pontificate, what most relates to the present subject is, the concordat concluded between Leo X. and Francis I. in 1516.

In vain Julius II. excommunicated Louis XII. and menaced transferring the title of the Very Christian King to the king of England who was destined to merit it so badly, Henry VIII.; in vain the fifth council of the Lateran published a monitory against the parliament of Paris, and all the abettors of the pragmatic sanction, enjoining them to appear at Rome to give an account of their conduct: Julius died without shaking Louis. This excellent prince himself died at the moment in which Leo was preparing to deceive him and the crown of France devolved on Francis I. of whom Louis had often said: 'This great booby will spoil all.'—In fact, Francis I. in an interview with Leo at Bologna, consented to a concordat, and directed his chancellor Anthony Duprat to digest it in unison with two cardinals appointed for this purpose by the pope. The principal articles of this concordat are those which import, that for the future the chapters of the cathedral and metropolitan churches should not proceed in future to the election of bishops; that the king, within the term of six months from the date of a see becoming vacant, shall present to the pope a doctor or lieutenant of twenty-seven years of age at least, who shall be made by the pope incumbent of the vacant see; but, if the person proposed does not possess the requisite qualifications, the king shall be required to propose

another within three months, reckoning from the day of the refusal; that moreover the pope, without the previous presentation of the king, shall nominate to the bishops and archbishops' sees, which shall become vacant whilst the incumbents are in attendance at the court of Rome. It is proper to remark that, in granting the nomination to the king, the pope reserved to himself the first fruits.²⁹⁷

Francis I. went himself to the parliament to have the concordat registered, and the chancellor Duprat explained the reasons which dictated it. They refuse to register it; the king gets angry. The parliament places a protest in the hands of the bishop of Langres, that, if the registry take place, it will be by constraint, and that they will not act in consequence in less conformity with the pragmatic. It is at length registered, but in endorsing on the folds of the concordat, that it has been read and published at the express command of the king, many times reiterated.

The see of Alby became vacant in 1519: the chapter nominated agreeable to the pragmatic sanction, and the king according to the concordat; the parliament of Paris, deciding between the two candidates, pronounced in favor of the one elected by the chapter of Alby. In 1521, a bishop of Condom, elected by the chapters of this church, was in the same manner supported against him whom the king had nominated. All the causes of this kind were similarly decided, until after the imprisonment of Francis I. and would have continued so to be, if a declaration of the 6th of September, 1529, had not referred to the grand council the cognizance of all proceedings relative to bishopricks, abbeys, and other benefices, the nomination to which had been granted to the king by Leo X.

The president Henault²⁹⁸ has collected all the reasons alleged in favor of the concordat, and which may be reduced to the two following: 1st, kings in founding benefices, and in receiving the church into the state, have succeeded to the right of election exercised by the early believers: 2dly, simony, intrigue, and ignorance, govern electors, and give to the dioceses unworthy pastors.²⁹⁹

But, at bottom, the royal nominations were not the thing which most excited the clamours of the parliament; it complained more particularly of the first fruits, and the bull of Leo against the pragmatic sanction; of the first fruits, which, from St. Louis to Charles VII. all the kings of France had prohibited, and which the early popes had declared improper and simoniacal, when they were enacted by the emperors; of the bull of Leo,

which denounces as a public pest, as an impious constitution, a pragmatic, founded on the decrees of general councils, cherished by the people and promulgated by the sovereign. This bull suspended, excommunicated, menaced with loss of temporal possessions, civil or ecclesiastic, the French prelates, and even lay lords, who should re-demand or regret the pragmatic sanction of Charles VII. In fine, they dared to cite in this same bull of Leo X. the bull of Boniface VIII. "Unam sanctam," in which the right of humbling thrones, of taking and bestowing crowns, is ascribed to the Roman pontiff. This is what provoked the opposition of the parliament; and we must admit, apparently, this was neither unreasonable nor contrary to the interests of the monarchy.³⁰⁰ If the question had only been to substitute to the right of confirming the elections, possessed for a long time by the monarch, that of making the choice himself, we have reason to think the registry would have experienced much less difficulty.

Such as it was concluded, in 1516, the concordat could not be pleasing to a people who had received with enthusiasm the pragmatic of 1439. Under Francis I., under his successors Henry II., Francis II., Charles IX., Henry III., the universities and the parliaments seized every opportunity of remonstrating against this alteration of the fundamental laws of the Gallican church. The states of Orleans under Charles IX., those of Blois under Henry III. expressed the same regret: the clergy themselves have often demanded the restoration of the 'pragmatic;' they said in their remonstrance of 1585, that the king Francis I., when near death, had declared to his son, that there was nothing which weighed so heavily on his conscience as the concordat.³⁰¹

After Leo X. Adrian VI. born of very obscure parents, occupied for but twenty months the chair of St. Peter. He had taught when a simple doctor of Louvain, that the pope was subject to err in matters of faith: far from retracting this doctrine when pope, he caused a work to be printed in which he professed it.³⁰² On this head, some sophist of Louvain might have, after the example of an old Greek sophist, argued in this manner:³⁰³

"If the pope be infalli-
"ble, it follows that Adrian must have been so when
"he asserted he was not; therefore by this very in-
"fallibility they prove it not to exist. Either Ad-
"rian deceives himself, and therefore the pope is in-
"fallible, or Adrian is right, and then we must ac-
"knowledge with him the pope may be de-
"ceived."

The natural and posthumous son of Giulio de Medicis, assassinated in 1478 by the Pazzi, Clement VII. was elected pope, infallible or not, in 1523 (?? Ed.).—The successes and genius of Charles V. restored at this time to the imperial dignity its ancient splendour and its preponderance in the affairs of Italy. Clement wished to place difficulties in the way of it; he formed against the emperor a league, which was called holy, because the pope was its head, and into which the king of France, the king of England, the Venetians, and other Italian governments, entered: but the constable of Bourbon, quitting Francis I. for Charles V. led a German, and, in great part, Lutheran army against Rome, took this city, sacked it, and compelled the people to retire to the castle of Saint Angelo. Clement did not leave it, but by pledging himself to deliver it up to the officers of the emperor, and to pay three hundred and fifty thousand gold ducats. He bound himself, to deliver up to the Imperialists Ostia, Civita—Vechia, Citta di Castello, and, to cause to be restored to them Parma and Placentia. Not being able to fulfil his engagements, the pope escaped in the disguise of a merchant to Orvieto. Affected with the great distresses of the pontiff, Francis I. resolved to march to his assistance, and made arrangements which compelled Charles to become reconciled with Clement. Charles, crowned emperor by Clement in 1530, promised to re-establish the Medicis in Florence, for the pontiff did not neglect the interests of his family; he married his niece Catherine, to the son of Francis I, that niece but too famous in the annals of France, down to the year 1589. It was in these circumstances Henry VIII. of England thought of putting away his wife, Catherine of Arragon, aunt of the emperor, in order to marry Ann Boleyn. While the war continued between the Holy See and Charles, Clement seemed favourable towards this project, and the bull of divorce was prepared. The reconciliation of the pope and the emperor led to quite an opposite decision. In vain did the theologians of England, of France, and of Italy, declare, that the marriage of a brother with his brother's widow should be considered void; this was the situation of Henry with Catherine of Arragon; Charles dictated to Clement a decision which declared the validity and indissolubility of this marriage. Henry is excommunicated if he persists in the divorce. The monarch appeals to a general council on the matter; the English clergy decide, that the pope has no authority over Great Britain: the parliament gives him the title of supreme head of the church. Thus is completed a schism it would have been so much the more easy to avoid, as the king abhorring the name of

heretic, and emulous of the glory of being a very zealous catholic, had written against Luther, and obtained from Leo X. the title of defender of the faith. Henry, cut off from the church, fell to persecuting alike the partisans of the pope and the Lutherans.

Paul III. who reigned from 1534 to the end of the year 1549, confirmed the excommunication of Henry, convoked the council of Trent, approved the new institution of the Jesuits, and was the first author of the bull, "In cœnâ Domini". Those who appeal from the decrees of the pope to a general council, those who favour the appellants, those who say that a general council is superior to a sovereign pontiff; those who, without consent from Rome, exact from the clergy contributions for the necessities of the state; the civil tribunals which presume to try bishops, priests, those who are only tonsured, or monks; chancellor, vice-chancellors, presidents, counsellors, and, attorney-generals, who decide ecclesiastical causes: all those, in fine, who do not admit the omnipotence of the Holy See and the absolute independence of the clergy, are anathematized by this bull, which, published for the first time on holy Thursday, of the year 1536, was to be so published annually on the same day: it is on this account, therefore, denominated: In coena Domini; for the practice of thus publishing it every year at Rome was established in despite of the just remonstrances of sovereigns.

We shall here render homage to certain cardinals and prelates who addressed to Paul III. some very judicious, though very useless remonstrances.[304305](#)

"You are aware," they say, "that your predecessors were
"willing to be flattered. It was unnecessary to de-
"sire it, they would have been sufficiently so without
"exacting it; for adulation follows princes as a sha-
"dows follows a body, and to this day the throne is
"difficult of access to uncompromising truth. But,
"in order to secure themselves the better from its
"intrusion, your predecessors surrounded them-
"selves with skilful doctors, whom they commanded
"not to teach duties, but to justify caprices. The
"talents of these doctors were to be exercised,
"in discovering every thing to be lawful which pre-
"sented itself as agreeable. For instance they have
"declared the sovereign pontiff absolute master of
"the benefices of Christendom; and, as a lord has
"the right of selling his domains, that so, they con-
"clude, the head of the church can never be guilty
"of simony, and that in affairs relating to benefices,
"simony can only exist when the seller is not pope.
"By this, and similar reasoning, they have arrived

"at the sweeping conclusion they were to demon-
strate, to wit, that, that which is pleasing to the
pope is always lawful to him. Behold, holy fa-
ther, the remonstrating cardinals add, behold the
indubitable source from whence have issued as
from the wooden horse, all the abuses, and all the
plagues which have afflicted the church of God."

Paul III. had destined for his grandson, Octavius Farnese, the States of Parma and Placentia: Charles V. who intended to unite them to the duchy of Milan, was threatened with the heaviest censures. Afterwards the pontiff wished for Parma for the Holy See, and they say, died of grief when he learned that Octavios was on the point of obtaining this duchy.

Julius III. by agreement with the emperor, refused the investiture to Farnese; but the king of France, Henry II. protected the duke, and sent him troops. At this news Julius excommunicated the king of France, and threatened to place the kingdom under interdict. Henry was not terrified; he forbade his subjects from taking money to Rome, or addressing themselves to others than the usual prelates in ecclesiastical matters. This firmness softened the holy father, who even laboured to reconcile the emperor with the king of France.

After Marcellus II. who reigned but twenty-one days, John Peter Caraffa, was elected pope, who took the name of Paul VI.:

"Although he was se-
venty nine years old," says Muratori,
his head
was an epitome of Mount Vesuvius near which he
was born. Overbearing, passionate, cruel, inflex-
ible, his zeal for religion, was without prudence,
and without bounds. His savage look, his eyes
hollow, but sparkling and inflamed, presaged a
severe and sullen government. Paul neverthe-
less began with acts of clemency and liberality
which seemed to belie the apprehensions which
his character had inspired: he so lavished
favours and courtesies, that the Romans erected
a statue to him in the capitol. But his natural tem-
per soon returned, burst the banks, and verified the
most unfortunate forebodings."

Family interests made him the enemy of Spain: he not only persecuted the Sforzi, the Columnas, and other Roman families attached to this power, but he entered into a league with France to deprive the Spaniards of the kingdom of Naples. The cardinal of Lorain and his brother, the duke of Guise, led Henry II. into this league in spite of the constable, Montmorenci. But the cardinal Pole, minister of Mary, Queen of England, and wife of

Philip the Spaniard, had the address to make the French monarch sign a truce of five years with the court of Madrid. Paul is enraged; his nephew, the cardinal Caraffa, comes to France to complain of the treaty they have presumed to make with Spain, without the knowledge of the Court of Rome. The duke of Alba, viceroy of Naples is desirous of lulling this quarrel; he sends a delegate to the pope, whom the pope imprisons. This outrage compels the viceroy to take arms; he makes himself master in a short time of a great part of the ecclesiastical state. Alarmed at the progress of the duke of Alba, the court of France sends an army of twelve thousand men against him, commanded by the duke of Guise. But, in the mean time the French lose the battle of Saint Quentin: to repair this loss, they are obliged to recall Guise and his troops, and the pope is compelled to negotiate with the viceroy.

Charles V. in uniting the imperial crown to that of Spain and of the Two Sicilies, had obtained, not only in Italy, but in Europe, a preponderance vainly disputed by Francis I. The abdication of Charles, in 1556, divided his power between his brother Ferdinand, who became emperor, and his son, Philip II. who reigned over Spain and Naples. But, in spite of this division, this house was nevertheless, during the greatest part of the sixteenth century, that which most justly excited the jealousy of the sovereign pontiffs; and Paul IV. in declaring war against him, was led into it by the general policy of the Holy See, as much as by family interests and personal resentments. He refused to confirm Ferdinand's election to the empire, and maintained that Charles V. had no power to abdicate this dignity without the approbation of the Court of Rome³⁰⁶ Frederick had the good sense to dispense with the pope's concurrence, and the succeeding emperors followed his example. The most certain means of restraining the pontifical power within just bounds was, to suppress in this way, the forms and ceremonies which had so importantly contributed to extend it.

Elizabeth, who succeeded her sister Mary in 1558 on the British throne, was disposed by the circumstances of her accession to favor catholicity. The impetuous Paul, mistook the prudence of this queen for weakness and fear: he replied to the ambassador of Elizabeth, that she was but a bastard, and that England was but a fief of the Holy See; that the pretended queen ought to commence by suspending the exercise of her functions, until the Court of Rome had sovereignly pronounced on her claims. A bull declared that all prelates, princes, kings and emperors, who

fall into heresy, are, by the act itself, deprived of their benefices, states, kingdoms and empires, which belong to the first catholic who may wish to make himself master of them, and that the said heretical princes or prelates never can resume them. From this moment Elizabeth no longer hesitated to establish the English schism; she embraced, favoured, and propagated heresy: we must blame her no doubt; but how can we excuse a pope whose violence led him to such extremities, and who refrained not from participating in the conspiracies framed against the authority and even life of this sovereign? When after four years reign this pontiff died, the Romans broke his statue and cast it into the Tiber; scarcely could his body be secured from the fury of the populace: the prison of the Inquisition was burned; Paul had made a terrible use of this detestable tribunal, and he reproached with severity the German princes for their indulgence towards heretics.

Pius IV. exercised against the nephews of Paul the most cruel revenge, advised to it, it is said, by the King of Spain, Philip II., the implacable enemy of the Caraffa. The Queen of Navarre was summoned by this pope to appear at Rome within six months, under the usual penalties of excommunication, deprivation, and degradation: menaces almost as ridiculous as they were criminal, the only effect of which was to irritate the court of France. But the pontificate of Pius is especially remarkable for the termination of the council of Trent, which had lasted eighteen years, from 1545 to 1563. The doctrinal decisions of this council do not concern us: we shall say something of its legislative decrees.

The council of Trent pronounces, in certain cases, excommunication, deposition and deprivation, against kings themselves. It ascribes to bishops the power to punish the authors and the printers of forbidden books, to interdict notaries, change the directions of testators, and apply the revenues of hospitals to other uses. It renders the marriages of minors, without the consent of parents, valid: it permits ecclesiastical judges to have their own decisions against laymen executed, by seizure of goods and imprisonment of person; it screens from the secular jurisdiction all the members of the clergy, even those who have only received simple tonsure; it desires that criminal proceedings against bishops should be judged only by the pope; it authorises the pope to depose non-resident bishops, and appoint successors to them; it subjects in fine its own decrees to the approval of the sovereign pontiff, whose unbounded supremacy it recognizes. Gregory VII., Innocent

III., Boniface VIII., and Julius III., never aspired to a more absolute theocracy, more subversive of all civil authority and of all social principle.³⁰⁷ In consequence, they determined in France, that the council of Trent, infallible in its dogmas, was not so in its legislation; and not to be surprised into it, they published neither its legislation nor dogmas: the States of Blois in 1570, and of Paris in 1614, opposed themselves warmly to this publication, demanded by the popes, and solicited even by the clergy of France; for we are obliged to avow, that since 1560 the larger proportion of this body did not cease, whatever they may say to the contrary, to confound its interests with those of the court of Rome; and if it appeared for a while to detach itself from it, by the Five Articles of 1682, of which we shall shortly treat, it has since amply repaid by compliances and connivance, a step into which peculiar circumstances had led it.

Pius V. had been grand inquisitor under Paul IV.; he continued to act the part when pope: no pontiff has burned more heretics, or persons suspected of heresy, at Rome than he. Among the victims of his zeal we observe many learned men, and especially Palearius, who had compared the Inquisition to a poignard directed against men of letters; “sicam districtam in jugula litteratorum.” A bull of Pius V. against certain propositions of Michael Baius, was the first signal of a long and melancholy quarrel. This pope in renewing and amplifying the bull of Paul III. “In cænâ Domini,” commanded it to be published on holy thursday throughout all the churches; previously it had been fulminated only at Rome:³⁰⁸ it may be said, that Pius V. wished to arm against the Holy See the remnant of the Catholic princes, and to condemn them to the alternative of renouncing the independence of their crowns or the faith of their ancestors.

The remonstrances were universal; Philip II. the most superstitious of the kings of this period, forbade under severe penalties the publication of this bull in his states. By another bull Pius excommunicated Elizabeth: an anathema at least superfluous, and which produced no other consequence than the execution of John Felton, who had ventured to placard this sentence in London. A league entered into between the Pope, Spain, and Venice, against the Turks, was successful: Don John of Austria, rendered himself illustrious by the victory of Lepanto; and the pope was not afraid to apply to this warrior, the bastard of Charles V. these words of the Gospel: “There was a man sent from God, and this man’s name was John.” Finally, by the power which he said he held from God, and in character of pastor

charged with examining into the claim of those who had merited extraordinary honours by their superior zeal for the Holy See, Pius V. decreed the title of grand duke of Tuscany to Cosmo de Medicis. The emperor remonstrated in vain: Cosmo with his new title had himself crowned at Rome, and took the oath at the hands of the pope. But that which is most remarkable here is, the reasons assigned to Maximilian by the cardinal Commendon to justify this pontifical act: Commendon said, that the pope had deposed Childerick, invested Pepin, transferred the empire of the East into the West, appointed the electors, confirmed and crowned the emperors; from whence he concludes that the pope is the distributor of thrones, of titles, and in some sort, the nomenclator of princes, as Adam had been that of animals.

We shall here remark that the same Pius V. who, to avenge some articles of the Catholic faith, armed Christian against Christian, wrote to the Persians and to the Arabs, that in spite of the diversity of worship, a common interest ought to unite Europe and Asia to combat the Mussulmans. This apparent contradiction should surprise no one: we know that in religious dissensions, hatred is proportionately lively as the sentiments recede least from each other.

Gregory XIII. crowned pope the 25th of May, 1572, three months before the too celebrated St. Bartholomew's day, no sooner heard of this massacre than he caused cannon to be discharged, and kindled fires, for joy: he returned thanks to heaven in a religious ceremony; and history records a picture which attested the formal approbation bestowed by the pontiff on the assassins of Coligny: "Pontifex Colignii necem probat." In 1584, Gregory also sanctioned the league, on the exposé of the Jesuit Mathieu, who was deputed to Rome for this purpose. "For the rest," writes this Jesuit, "the pope does not think it proper to attempt the life of the king; but if they can secure his person, and give him those who will hold him in rein, he will approve it much." Gregory even avoided signing any writing which the league could take advantage of; he assisted them only with the 'small money' of the Holy See, said the Cardinal of Este: now this money consisted of indulgences.

The dissensions which distracted France at this time had without doubt various causes, but among them the abolition of the 'pragmatic' and the establishment of the concordat were not sufficiently noted. On one side, so fatal an alteration in the discipline, in scaring people's minds, had disposed

them to receive new doctrinal opinions disapproved by the court of Rome; on the other, the ultramontane maxims that the concordat had introduced, and that Catherine de Medicis had propagated, inspired sentiments of intolerance in those who remained in the communion of the Holy See: the 'pragmatic' would have preserved France both from heresy and from persecuting zeal. Under the reign of the concordat, these two seeds of discord, rendering each other fruitful, had enveloped with their horrible fruits, the reigns of Charles IX. and Henry III. The new interests which the concordat gave to the clergy of France, rendered them devoted to the court of Rome, and weakened more and more the ties which ought to have held them to the state. They applied themselves so to the maintenance and renewal of the maxims of the middle age, that Gregory ventured, in this enlightened age, a new publication of the decree of Gratian; but the pope, in reforming the calendar, performed a service which the people separated from the Romish communion had, for a long time, the folly not to profit by.

The successor of Gregory was the too famous Sixtus V., a sanguinary old man, who knew how to govern his states only by punishments, and who, without advantage to the Holy See, reanimated by bulls the troubles which disturbed other kingdoms. He professed a high esteem for Henry IV. and for Elizabeth; he excommunicated both, but in some measure for form sake alone, and because such a step seemed required in his pontifical character. He detested and dreaded Philip II.: he wished to take the kingdom of Naples from him; he supported him against England. A solemn bull gave Great Britain to Philip, declared Elizabeth a usurper, a heretic, and excommunicated; commanded the English to join the Spaniards to dethrone her, and promised rewards to those who should deliver her to the catholics to be punished for her crimes. Elizabeth with the same ceremony excommunicated the pope and the cardinals at St. Paul's cathedral in London. Nevertheless Philip failed in his undertaking, and Sixtus was almost as well pleased as Elizabeth at it; he invited this princess to carry the war into the heart of Spain.

Notwithstanding his detestation and contempt of the league, Sixtus launched his anathemas against the king of Navarre and against the prince of Conde, calling them an impious blasted race, heretics, relapsed enemies of God and of religion; loosed their present and future subjects from their oaths of allegiance, finally declaring these two princes and their descendants deprived of all rights, and incapable of ever possessing any

principality. This bull commences with the most insolent display of the pontifical power:

"superior to all the potentates of the earth,
"instituted to hurl from their thrones infidel princes,
"and precipitate them into the abyss of hell as the
"ministers of the devil."

The king of Navarre, afterwards Henry IV. acted like Elizabeth; he excommunicated Sixtus, 'styling himself pope,' and Sixtus applauded this courageous resistance. But these bulls, which their author himself laughed at, did not serve the less as cause of civil wars; the fanaticism they cherished in the catholics, compelled Henry III. to persecute the calvinists the more rigorously, to command them to abjure or quit the kingdom; while, on his part, the king of Navarre found himself compelled to take severe measures against the catholics. Henry III. more than ever distracted between the two parties, had neither the skill nor the power that such a situation demanded. We behold him depriving the king of Navarre of the right of succession to the throne of France, and afterwards throwing himself into the arms of this generous prince. This reconciliation provoked a Monitory, in which Sixtus orders Henry III. to appear at Rome in person, or by Attorney, within sixty days, to give an account of his conduct, and declares him excommunicated if he do not obey. We must conquer, said the king of Navarre to Henry III. whom this anathema had terrified, we must conquer: if we are beaten we shall be excommunicated and harassed again and again. These censures had preserved so little of their ancient power, that a bishop of Chartres said, they were without force at this side of the mountains, that they froze in passing the Alps. The poignard of James Clement was more efficacious. Henry III. fell beneath the blows of the assassin: and, if we may believe the league, Sixtus V. was in an extacy at so daring an enterprise, compared it to the incarnation of the word and the resurrection of Jesus.

If it were necessary to explain the policy of this pontiff we would say, that his real enemy, the rival whom he wished to overthrow, was Philip, whom he did not excommunicate, and against whom he dared not do any thing openly: circumstances did not permit it. Sixtus hoped, no doubt, that the commotions excited in England, and kept up in France by pontifical anathemas, would extend further and lead to some result fatal to Philip. This display of the papal supremacy, exhibited against the kings of Navarre and

of England, more truly menaced him who, governing Spain, Portugal, Belgia, the Two Sicilies, and a part of the new world, surpassed in riches and in greatness every other potentate. To declare Great Britain a fief of the Roman church, was to renew abundantly the pretensions of the church over the kingdom of Naples; and, when the pope erected himself into a sovereign arbiter of kings, he gave it plainly to be understood, that an error or a misfortune might suffice to draw after it the fall of the most powerful.

Unhappily, the catholicity of Philip was impregnable; Henry IV. was satisfied in defending himself against Spain, Queen Elizabeth preferred securing her own throne to disturbing those of others, and Sixtus finally died too soon.³⁰⁹

After him Urban VII. reigned but thirteen days, Gregory XIV. but ten months, and Innocent IX. but eight weeks. Gregory had sufficient time to encourage the leaguers, notwithstanding, to excommunicate Henry IV., and to levy at a great expense an army of brigands, who ravaged some of the provinces of France.

Clement VIII., the last pope of the 16th century, having ordered the French to choose a king catholic in name and in deed, the sudden Catholicism of Henry turned the tables on the court of Rome, the league, and the intrigues of Spain. The pope preferred absolving Henry to seeing him reign and prosper in defiance of the Holy See. In truth, the representatives of the king, Perron and d'Ossat, lent themselves very complaisantly to the ceremonies of the absolution;³¹⁰ and they had not much difficulty in obtaining the suppression of the formula: "We reinvest him in his royalty." But the absolved prince took a decisive measure against the pretensions of the court of Rome, in securing to the Protestants, by the Edict of Nantes, the free exercise of their religion and full enjoyment of their civil rights. When the catholic clergy came to require of him the publication of the decrees of the council of Trent, he evaded the proposition with that ingenious and easy politeness which distinguished the manners of the French, and which embellished in those of Henry IV. courage, fortitude and truth. Yet this Henry, publicly adored by the nation, fanaticism proscribed in secret; and the Jesuits, whom the poignards of Barriere and John Chatel had ill served, sharpened that of Ravailiac.

In 1597, Alphonso II. duke of Ferrara, dying without children, Clement resolved to make himself master of this duchy, and made so good a use of his spiritual and temporal arms, that he succeeded in this undertaking to the

exclusion of Cesar d'Este, the heir of Alphonso. This pope and his predecessors have been often reproached, since the death of Julius II. with a vacillating policy, and an extreme fickleness in their enmities and alliances. Let us not mistake these charges for proofs of unskilfulness; they evidence only the difficulties of the circumstances, and the state of weakness, in which the the schism of Avignon, the progress of heresy, and the ascendancy of some princes, had placed the Holy See. If during the sixteenth century the chair of St. Peter has been almost continually occupied by skilful pontiffs, this age also presents to us seated on most of the thrones, celebrated sovereigns, whose virtues, talents, or energetic characters, severally recommended them to the historian: for example, Henry VIII. and his daughter Elizabeth, in England; Louis XII. Francis 1. and Henry IV. in France; Charles V. and Philip II. in Spain. None of our modern eras has been more fertile in memorable men in all pursuits. And yet the court of Rome renounced none of its pretensions; it upheld the traditions of its ancient supremacy; it continued to speak in the language of Gregory VII. and Innocent III. What more could she do in the midst of so many formidable rivals? It was doing much to weather the tempests and preserve herself for better times. But these times did not come, and the popes of the seventeenth century, far inferior to those of the sixteenth, to Julius II. to Leo X. and to Sixtus V. have suffered even the hope to be lost of ever re-establishing in Europe the pontifical authority.

Among the numerous writings published in the course of this century on the liberties of the Gallican church, that of Peter Pithou in 1504 is particularly distinguished. Comprised in eighty-three articles, it has the form and has almost obtained the authority of a code; for, we find it not only quoted in pleadings but in the laws themselves.³¹¹ The pragmatic of St Louis in the thirteenth century, the Vergers Dream in the fourteenth, the pragmatic of Charles VII. in the fifteenth, Pithou's treatise in the sixteenth, and the Four Articles in 1682, present, among the French, an unbroken tradition of the soundest doctrine on the limits of the pontifical office.

CHAPTER X. ATTEMPTS OF THE POPES OF THE SEVENTEENTH CENTURY

NO pope since the year 1600 united to an energetic ambition talents worthy of seconding it. Henceforward the Holy See becomes but a power of the second order, which, scarcely capable of bold aggressions, defends itself by intrigue, and no longer attacks but by secret machinations. The reforms which separated from the Romish Church one part of Christendom, serve to deliver the remainder from the pontifical tyranny. Everywhere the civil power became confirmed; disturbances even tended either to organize and especially to enfranchise it. The annals of the popes become more and more detached from the general history of Europe, and thus lose all their splendour and a great part of their interest. We shall therefore only have to collect into this chapter a very limited number of facts, after we shall have considered in a general point of view the influence of the Roman court in the seventeenth century over the principal courts of Europe.

In England, James I. the successor of Elizabeth had escaped, himself, his family and his parliament, from the powder plot, hatched by the Jesuits and other agents of the sovereign pontiff. A prodigal and consequently indigent king, James had seen the formation of the opposite parties of Whigs and Tories. The House of Commons, in which the Whigs governed, resisted Charles I.; Charles menaced, they insulted him; he takes arms, they compel him to fly; he perishes on a scaffold, the ignoble victim of tragical proceeding. The protector of the English republic, Cromwell, tyrannizes over it, and renders it powerful: but Cromwell dies, and Monk delivers England up to Charles II. The inconstancy and contradictions which accumulated during this new reign, disclose the indecisive influence of the

Roman court; the catholics are tolerated, accused, protected, excluded from employments; five Jesuits are decapitated; the king dissolves the parliament, and signs the act of Habeas Corpus; an anti-papistical oath is enacted, and the duke of York, who refuses to take it, is, nevertheless, appointed to the rank of high admiral; soon after he succeeds Charles his brother, under the name of James II. and wearies by barbarous executions the patience of his subjects. James without friends, even among the catholics whom he loaded with favours, deserts himself, and loses without a combat his degraded sceptre. The English government re-organized itself, and William of Nassau, prince of Orange, the son-in-law of James, was called to the throne of Great Britain. William, at the same time Statholder in Holland, and king of England, governed both countries with energy, and triumphed over the conspiracies continually fomented or encouraged against him by the Holy See. Thus disturbances and crimes, the weakening of catholicity, the restoration of the civil authorities, such have been among the English of the seventeenth century the only results of the dark manœuvres of the court of Rome.

The peace of Munster, in 1648, proclaimed the independence of the united provinces. In spite of the soil, the climate, and their discord, Holland, already flourishing, and freed from the Spanish yoke, assumed a distinguished rank among the powers escaped from the dominion of the Holy See. The king of Spain, Philip III. also lost Artois, which Louis XIV. became master of, and Portugal which crowned the duke of Braganza king. Charles II. son of Philip IV. lost Franche Comte, died without children, and bequeathed his kingdom to a grandson of the king of the French. The ascendancy which the popes still possessed over Spain, so fallen herself, and who seemed to place herself under French influence, was therefore a weak resource.

In Germany, the orthodoxy of the emperors Ferdinand II. Ferdinand III. and Leopold, did not check the progress of heresy. After the despotism of Ferdinand II. had disgusted the Germans and the North of Europe, we behold the imperial authority decline in the hands of Ferdinand III.; and Leopold, ruled for forty-seven years by his ministers, women, and confessors, the useless friend of the popes, supported himself only by the idea he inspired of his weakness.

After Henry IV. who was assassinated in 1610, the seventeenth century presents us with but two kings of France, Louis XIII. and Louis XIV. Louis

XIII. banished Mary de Medicis his mother, recalled her, and banished her once more; he insults her because he fears her: he does not esteem Rich-lieu whom he receives as minister and as master. The Protestants, always restless and menaced, take arms; Rochelle, their bulwark, capitulates after a long siege. Richlieu publishes an act of grace: he is too fearful of Rome and the children of Loyala, to crush as yet the followers of Calvin.³¹² He is more desirous of humbling the great; and terrifies them by the executions of Marillac, of Montmorency, and of Cinq-Mars; and, finishing by unworthy means what Henry IV. had not time to perfect, he established in the interior of France the monarchical power. His death, and that of Louis XIII. led to a stormy minority: the Fronde repulsed Mazarin; Mazarin wearied out the Fronde, and applied himself to ruling carelessly a frivolous people. What he most neglected was the education of the young king, that Louis XIV. who, from 1661 to 1716 reigned over the French, and for awhile gave law to Europe. The revocation of the edict of Nantes, in 1685, divides this long reign into two parts: good services, and triumphs, immortalize the first: hypocrisy, fanaticism, vain glory, and misfortunes, filled the latter with intrigues, proscriptions, and slow calamities. Yet, whatever may have been the misfortunes of Louis XIV. the most glorious recollections of French history under its third dynasty belong to his reign. The nation whose pride he cherished pardoned the excesses of his; and so many of those who surrounded him merited the appellation of just, that he has obtained it himself; other princes on the contrary reflect their personal greatness on that which surrounds them. But his imposing authority for a long time repressed the ambition of the popes; and the influence which they exerted over the latter period of his reign, has tended much more to injure France than to benefit the Roman Court.

The wars of the Venetians against the Turks, the conspiracy of the Spaniards against Venice, in 1618, the sedition of Mazaniello in Naples, in 1640, and the enterprizes of some of the Roman pontiffs, are in this century the principal events in the annals of Italy. Never was the country more disposed to bear and to extend the dominion of the popes: but the popes failed in the address necessary to draw the full advantage from this disposition: they suffered the fine arts to languish and decay about them, while they grew and flourished elsewhere: in this century the Italians ceased to be the most enlightened people of Europe, a preeminence which they

needed, to preserve any share of it, and not suffer themselves to be reduced in all respects to a state of inferiority.

The most remarkable popes of the seventeenth century were Paul V. Urban VIII. Innocent X. Alexander VII. Clement IX. Innocent XI. Alexander VIII. and Innocent XII.

The republic of Venice had punished with death, without the intervention of the ecclesiastical authority, an Augustine monk convicted of enormous crimes; a canon and an abbot were imprisoned for similar reasons; the senate forbade the encrease, without its permission, either of convents or churches; it prohibited the alienation of lands for the benefit of monks or of the clergy. These acts of independence irritated Paul V.; he excommunicated the doge and the senators, and laid an interdict on the whole republic. He required that within twenty four days the senators, revoking their decrees, should deliver into the hands of the nuncio, the canon and the abbot they had imprisoned. If, after the twenty-four days, the doge and senators persisted in their refusal for three days, the divine functions were to cease, not only in Venice, but through all the Venetian dominions; and, it was enjoined on all patriarchs, archbishops, bishops, vicars-general, and others, under pain of suspension, and deprivation of their revenues, to publish and affix in the churches this pontifical decree, which Paul pronounced, as he said, by the authority of God, the apostles, and his own. The Capuchins, the Theatins, and the Jesuits, obeyed the interdict, which was disregarded by the rest of the Venetian clergy as it was by the people. Little attention was paid to the Theatins and Capuchins; but the Jesuits, more powerful and more culpable, were banished for ever. A protest against the anathemas of Paul was addressed by the doge to the prelates and clergy; and the senate wrote on the same head to all the cities and communes of the state. These two pieces are distinguished for their calm energy, which mingles no insult, no indication of passion, with the expression of unshaken resolution. We have omitted nothing, say the senators, to open the eyes of his holiness; but he has closed his ear to our remonstrances, as well as to the lessons of Scripture, of the holy fathers and of councils; he perseveres in not acknowledging the secular authority which God has committed to us, the independence of our republic, and the rights of our fellow-citizens. Shall we appeal to a general council? our ancestors have done it in similar circumstances; but here the injustice is so palpable that a solemn appeal would be superfluous. Our cause is too immediately

that of our subjects, of our allies, of our enemies themselves, that such an excommunication should disturb for a moment the external or internal peace of our republic.

In fact, the anathema remained inefficacious within and without.³¹³ In vain did the pope employ the Jesuits to raise or indispose the European courts against the Venetians. In Spain even, where these Jesuitical intrigues were somewhat more successful than elsewhere, the Venetian ambassador was admitted to all the ecclesiastical ceremonies, in spite of the threats of the nuncio. The governor of Milan, the dukes of Mantua and Modena, the grand duke of Tuscany, the viceroy of Naples, openly espoused the interests of the excommunicated republic. Sigismund, king of Poland, also declared that it was the cause of his kingdom; and the duke of Savoy, that it was that of every sovereign in Christendom. The court of Vienna blamed the pope's conduct, and invited Sorance, the Venetian ambassador, to a procession of the holy sacrament, in despite of the apostolic nuncio, who refused to be present at it. The nuncio Barberini did not succeed better in France when he required that entrance into the churches should be prohibited the Venetian ambassador. Priuli. Abandoned thus at all the courts, and reduced to his own spiritual and temporal resources, the sovereign pontiff resolved to levy troops against Venice: happily for this papal army, Henry IV. offered his mediation, and ended the dispute,³¹⁴ on terms more favourable than Paul could have hoped for, although he had formed a 'board of war:' it was in truth a committee of priests, and a perfectly novel application of sacerdotal functions.

Paul V. conspired to disturb England also, by two briefs, in which he forbade the catholics to take the oath of allegiance to their king James I: he renewed the bull 'In caena Domini,' and inserted it in the Roman ritual, accompanied by a surplusage of anathemas.³¹⁵ The pretensions of this pope gave rise to many publications on the pontifical power. The 8th of June, 1610, twenty-four days after the assassination of Henry IV. the parliament of Paris condemned to the flames a book in which the Jesuit Mariana permitted, nay advised, the attempting the lives of intractable kings. The 28th of November following, justice was done the treatise in which Bellarmin extends over the temporalities of princes the spiritual power of the popes.³¹⁶

In 1614 the same parliament consigned to the flames a book, equally seditious, of the Jesuit Suarez. The court of Rome took a tender interest in

these three works; that of Suarez is more frequently referred to in the correspondence kept up with the nuncio resident in France, in 1614: By what right does a parliament judge of points of doctrine? What does Suarez teach but the catholic faith? What dogma is more sacred than that of the sovereignty of popes over kings; direct sovereignty in religious matters, and not less efficacious though indirect in political ones? Even if some inaccuracies had glided into the book of father Suarez, did it not belong to the Holy See, alone, to perceive and ratify them? Such is the substance, during one entire year, of the letters written in the popes name to his nuncio Ubaldini³¹⁷ However, the civil authority found defenders in two Scotch men, William Barclay and John his son; then in Anthony de Dominis, who did not spare the visible head of the church; but, especially in Edmund Richer, who combated with more calmness the ultramontane opinions, and yet was not the less the victim of his zeal for the Gallican liberties.³¹⁸

Disputes with the dukes of Parma and of Savoy, the republic of Lucca, the Ligurians, and with the Swiss; attempts on the Valtaline; intrigues to support the inquisition at Naples, and to favour the Jesuits in Spain: these trifling details we shall dispense with, as generally tending but to prove the impotence of pontifical ambition from 1505 to 1621.

Urban VIII. who gave to the cardinals the title of 'Eminence,' refused to Louis XIV. that of king of Navarre. This refusal, of which there are other examples, had for its source the excommunication and deposition of John d'Albret by Julius II³¹⁹ To support the sentence of Julius, the popes have been as silent as possible on this title of king of Navarre, in speaking of the kings of France, heirs to John d'Albret.

The parliament refused registering any bulls in which they noticed this omission: Urban VIII. was particularly reproached with it. This pontiff being desirous to interfere in the differences of the courts of France and Spain, on the affair of the Valteline, he had the vexation to learn that these two powers had signed the peace without his knowledge. Nevertheless he succeeded in uniting to the Holy See the duchy of Urbino, with the counties of Montefeltro and Gubbio, the lordship of Pesaro, and vicariat of Sinigaglia: these domains were given him by the duke Francis Maria, the last branch of the house of Rovere. But cardinal Richlieu kept his eyes fixed on the designs of the pontiff; he refused an audience to the nuncio Scoti, and never suffered him to be ignorant, that the court of France would not consent to a dependence on the Holy See. The parliament had a publication

of an Italian Jesuit, Santarelli, burned, which ascribed to the pope the right of deposing kings, condemning them to temporal punishments and loosing their subjects from their oath of allegiance. The work of Peter de Marca, on the concord of the priesthood and the empire, appeared about this time, and so displeased the court of Rome that it refused to confirm the nomination of the author to a bishoprick. De Marca had the weakness to modify his opinions at the pleasure of this court; and in the sequel, coveting the cardinalat, he dictated, a short time before his death, a treatise to Baluze on the infallibility of the pope. Intriguing as he was learned, de Marca sacrificed his sentiments to his interests: the works of this writer are useful from the quotations and facts which they embrace.

A pope could no longer declare war but against petty princes. Urban VIII. did so with the duke of Parma, who had refused to the holy father's relatives the price of services he pretended to have rendered him. The duke is cited, excommunicated, his duchy of Castro taken possession of, which was obliged to be restored him, by treaty, after four years of disputing and fighting. But, this war, badly extinguished, recommended under Innocent X. the successor of Urban: and, because the duke of Parma could not pay soon enough the enormous interests due to the 'Mont-de-piete,' Castro was confiscated, sacked, and razed, by order of the head of the church: on the ruins of this city, a column was raised with tills inscription, "Here Castro was."³²⁰ When a terrible war in which two great states engage, two powerful princes, or two blind and numerous factions, leads to such disasters, humanity must lament it: but, when a pecuniary interest, an obscure and trifling quarrel between two petty rivals, leads to the destruction of a city, the depression of its inhabitants, and the ruin of their families, and that this useless devastation was coolly ordered by one who had conquered without danger, and almost without an effort, we are filled with more astonishment than indignation; and we could not anticipate such gratuitous severity in a prince, if this prince were not a pontiff, and this pontiff not the successor of Boniface VIII. Yet, it is astonishing that the popes could have been so ignorant of their direct interest in husbanding the Italian cities, in attaching them to the Holy See by benefits, and finally, in restoring them that degree of prosperity and influence, which would enable them to contribute to the re-establishment in Europe of the pontifical dominion. Many popes of the sixteenth century acted on this policy; and it is in consequence of its neglect by those of the fifteenth and seventeenth,

that the temporal power of the Roman church seems henceforth doomed to languish and become extinct.

A revolution had placed on the throne of Portugal John of Braganza, or John IV. whose ancestors had been dispossessed by the king of Spain, Philip II. Philip IV. who languished in a disgraceful supineness, did not attempt to re-conquer the kingdom of Portugal by arms. The court of Madrid had recourse to the pope Innocent X. who refused bulls to the bishops nominated by John of Braganza, and declared he would never recognize this new monarch. John consulted the universities of his States: they replied, if the pope persisted in his refusal, they had only to dispense with his bulls.—This was also the opinion of the assembly of the French clergy, interrogated on the same point by the Portuguese ambassador. This assembly did more, it wrote to the pope, respectfully representing to him, that it was but right to grant the bulls to the prelates named by John; by which perhaps the French clergy evinced too great an interest in foreign affairs; but it shews us what its views were of canonical institution, and the right to consider it as obtained, when refused by a vain caprice. Furthermore, Innocent at this period feared France and Portugal more than Spain: he therefore dispatched the bulls, and no longer contested with John of Braganza the title of king.

Innocent even detached himself so from the court of Spain, that to support the Neapolitans who had revolted against her, he invited the duke of Guise, a descendant of the princes of Anjou, former kings of Naples, to assert his claims on this kingdom, and endeavour to conquer it; but the pope kept none of his promises which seduced the duke; and this perfidy was one of the causes which prevented his success. We shall observe, that there did not exist at this period any sort of alliance or friendship between the courts of France and of Rome. Innocent X. having commanded all the cardinals to reside in the capital of Christendom, with a prohibition to quit the territories of the Holy See, without the permission of the sovereign pontiff, the parliament of Paris annulled the decrees as unjustifiable; and cardinal Mazarin forbade the sending money from France to the Roman court. In reflecting on this last arrangement, the pope perceived he must relinquish the residence of the sacred college; but was consoled with the acquisition of the city of Albano from the duke Savelli.

But the most remarkable event of the pontificate of Innocent was, the opposition he presumed to make to the treaties of Munster and Osnabruck.

—Long rivalries and bloody wars harrassed, and almost exhausted, Europe; these treaties were at length to terminate those disasters. But a bull arrives, in which the vicar of the lamb of God protests against the peace of the world, and in which he annuls, as far as in him lies, the concord of the Christian republic. They have, he said, given up ecclesiastical property to the reformed; they have permitted to the reprobate the exercise of civil employments; they have, without the permission of the Holy See, encreased the number of electors; they have preserved privileges in the states to those who have ceased to have them in the church; the church abrogates these odious articles, these rash concessions, these heretical conventions. Innocent, no doubt, suspected, that war would afford more chances to the court of Rome, and that the ecclesiastical power had nothing to gain by a peace which would restore to the secular governments more stability, activity, and interior prosperity: but he was too little acquainted with the period at which he published such a bull; he did not perceive, that the pontifical ambition, before detested, was now only ridiculed; and he compromised by a silly step, which they scarcely deigned to notice, the weak remains of the authority of his predecessors.

Not having undertaken a detailed history of all the pontifical intrigues, we shall take leave to be silent on the five propositions of Jansenius, condemned by Innocent X. and his successor Alexander VII. who ordered the signature of a formulary, long famous. These quarrels, already deplorable at the end of the seventeenth century, became so contemptible in the course of the eighteenth, that success or defeat was equally attended with dishonour. In dividing the clergy into two parties, almost equally disregarded, these wretched controversies weakened the influence of the priesthood, and consequently that of the first pontiff. From 1659, Alexander might have perceived the decline of his credit in Europe, when, after having attempted to mingle in the negociations between France and Spain, he found they had treated without him. Nevertheless he ventured three years after to displease the most powerful monarch of the age. Crequi, the ambassador of Louis XIV. at Rome, was insulted by the pontifical guard, which killed one of his pages and fired on the carriage of his lady. Obtaining no satisfaction of the pope or of his ministers, Crequi retired to the Florentine territories. Louis demanded a solemn reparation: and, not considering that adequate which he had been made wait four months for, he marched some troops against Rome, and took possession of the city and

county of Avignon, which a decree of the parliament re-united to the crown the 26th of July 1663. Alexander did not let slip this opportunity of displaying against a great prince the spiritual and temporal arms, only until he had solicited in vain the support and concurrence of all the catholic states rivals of France. Then the Holy See prudently humbled itself, and the cardinal Chigi, nephew of the pope, came to make to Louis all the reparation which this monarch required. In Europe no high idea existed of the veracity of Alexander: "We have a pope," writes Renaldi, the ambassador of Florence at Rome, "we have a pope who never speaks a word of truth."³²¹

This pontiff died in 1664, leaving his family abundantly enriched, and the Roman people loaded with nine new subsidies besides the old, which had been very scrupulously maintained.

After Clement IX. had suppressed for awhile the disputes excited by the formulary, and that the cardinal Altieri had, for the space of six years, peacefully governed the church under the name of Clement X. his uncle Odescalchi, or Innocent XI. bore with him to the chair of St Peter more energy and ambition. He felt for Louis XIV. a personal enmity which he could not dissimulate, and which burst forth on two important occasions, that of the 'regale.' and that of the right of franchise.

The 'regale' was a right which the kings of France had for many centuries enjoyed, and which consisted in receiving the revenues of the vacant sees, and in nominating to the benefices dependent on the bishop. Some churches having attempted to emancipate themselves from this law, Louis, by an edict of 1673, declared that the 'regale' applied to all the bishoprics of the kingdom. Two bishops protested against this edict; those of Pamiers and of Aleth, known by their opposition to the formulary of Alexander VII. These two prelates, refractories to the decrees of the popes, were supported by Innocent XI. in their resistance to the will and rights of their sovereign. An assembly of the clergy of France, having adhered to the king's edict, and the pope having condemned this adhesion, the heat of their disputes led minds on to an examination into the rights and pretensions of the pope himself, and the four celebrated articles of 1682 were produced.

That the ecclesiastical power does not extend to the temporals of sovereigns; that a general council is superior to a pope, as decided by the fathers of Constance; that the judgment of the pope in matters of faith is not an infallible rule, until after having received the approbation of the church;

that the laws and customs of the Gallican church ought to be maintained: such is the substance of the four articles. Innocent XI. condemned them; he refused bulls to the bishops nominated by the king, and forgot nothing that might provoke a separation; already a patriarchate was spoken of in France, independent of the court of Rome.

It is of Innocent XI. that Fontaine speaks in these lines, addressed in 1688 to the Prince de Conti:

Pour nouvelles de l'Italie
Le pape empire tons les jours—
Expliquez, seigneur, ce discours
Du côté de la maladie:
Car aucun Saint-pere autrement
Ne doit empirer nullement
Celai-ci, véritablement.
N'est envers nous ni saint ni pere, &c.

In English:

As to the news from Italy,
The pope each day grows worse and worse.—
Upon the score of malady
Explain my lord this strange discourse.
In any other sense than this
So to decline would be amiss,
Yet much I fear the man you paint
Will prove to us no other father-saint.

Racine, in 1689, alluded to the same pope in these lines of the prologue of 'Esther':

Et l'enfer, couvrant tout de ses vapeurs funèbres,
Sur les yeux les plus saints ajete les tenèbres.

In English.:

"And hell with darkness spreading all the skies
"Casts its thick film o'er the most holy eyes."

Bossuet had been the principal compiler of the four articles; the court of Rome, which wished to oppose to him an adversary worthy of him, offered the cardinalat to the celebrated Arnauld, if he would write against these four maxims. Arnauld replied to this proposal as to an insult: it became necessary to, he says, "have not concealed the fact, that it depended on himself alone to be clothed with the Roman purple, and, that to attain a dignity which would have so gloriously washed away all the reproaches of

heresy which his enemies have dared to make against him, it would have cost him nothing but to write against the propositions of the clergy of France relative to the pope's authority."

Far from accepting these offers, he even wrote against a Flemish doctor who had treated these propositions as heretical. One of the king's ministers who read this piece, charmed with the force of its reasoning, proposed having it printed at the Louvre; but the jealousy of M. Amauld's enemies carried it against the fidelity of the minister and even the interest of the king; it might apply for defenders to an humbler rank, to the theologians of Louvain, to Gonzales general of the Jesuits, to Roccaberti the Dominican, Sfrondati the Benedictine, and to Aguirre, another Benedictine, who was rewarded with a red hat. Their writings are forgotten, but the 'Defence of the four articles,' remains among the number of Bossuet's best works. We must observe, it was not printed till 1730, a delay which can only be ascribed to the intrigues of a part of the clergy, already repentant for their firmness in 1682. A more correct edition of the work of Bos-suet, and a French translation accompanied by notes, appeared in 1745, without privilege, and as issued from the press of Amsterdam. No direction of Louis XIV. if we except those of his will, has been worse executed than the edict by which he commanded that the doctrine of the four articles should be annually taught in the schools of theology. The Jesuits have never professed them, and the idea of abrogating them has been often entertained from the year 1700 to the end of cardinal Fleury's ministry. If this abrogation has not taken place it was, that they feared the remonstrances of the Jansenists, and foresaw the credit it would give them, by constituting them sole defenders of the liberties of the Gallican church. In the matter of the franchises Louis XIV. was perhaps wrong. The other catholic monarchs had relinquished this strange privilege, by which the palaces of the ambassadors, and even their precincts, offered an asylum to malefactors from the pursuit of justice. The king of France declared that he never took the conduct of others for his rule, but on the contrary, that he meant to serve as their example. His ambassador, Lavardin, in 1687, came to Rome to assert the 'Franchises' and affected to brave the pontiff by a pompous entry. The censures thundered against Lavardin irritated Louis XIV: Avignon was once more taken; and these hasty disputes had led to a decisive rupture, if it were not possible to reconcile it with the severities exercised since 1685 against the protestants.

The proscription of the Calvinists restored harmony in this delicate conjuncture between the court of France and the Holy See.

Avignon was restored to the successor of Innocent XI. Alexander VIII. who condemned equally the Four Articles of 1682. Innocent XII. after him, persevered in refusing bulls to the bishops, favourers of the four articles, and he obtained from them a letter which he accepted as a retraction. It said, in effect,³²²

"that
"all which might have been held decreed in 1682, on
"the ecclesiastical power, ought to be held as not de-
"creed, since they had no intention of making any
"decree, nor of doing prejudice to the churches."--

Ambiguous words and most fortuitously framed, which assuredly do not tend to confirm the four articles, but which, on the other hand, would be quite insignificant, if they did not evince a disposition to abandon them. This letter, but little creditable, was one of the effects of the revocation of the edict of Nantes, one of the evidences of the decaying character of Louis the Great,³²³ and one of the proofs of what we have elsewhere³²⁴ asserted, the secret inclination which, since the year 1560, biassed the French clergy towards the ultramontane system.

Happily, the other orders of the state upheld with perseverance the four maxims of the clergy, against the clergy itself, and the interests of the throne, almost forgotten by the declining monarch. Among the magistrates to whom the Gallican church owes the maintenance of her ancient doctrine, at this era, the advocate general Talon is distinguished, author of a treatise on the authority of kings in the administration of the church, one of the best works published on this subject. He professed the same principles in the exercise of his duties, and especially in a request preferred in 1688. We shall terminate this chapter by some extracts from this requisition.:

"In an assembly held on the subject matter of
"the regale, the bishops, aware that the ultramon-
"tane doctors, and the emissaries of the Court of
"Rome, omitted no care to spread through the
"kingdom the new doctrines of the pope's infalli-
"bility, and of the indirect power which Rome en-
"deavours to usurp over the temporal power of the
"king, this assembly, we say, does not pretend to
"make a decision on a doubtful point of contro-
"versy, but, to render public and authentic testi-
"mony to an established truth, taught by all the
"fathers of the church; confirmed by all the coun-

"cils, and especially by those of Constance and
"Basle.

"We have seen however with astonishment, that
"the pope looks on this declaration as an insult
"offered to his authority; insmuch that the king,
"having nominated to the episcopacy some of those
"who were present at this assembly, and who are
"as meritorious from their piety and virtue as from
"their knowledge and learning, of which they have
"on various occasions given proof, he has refused
"the bulls, under pretence that they do not make
"profession of a sound doctrine.

"This refusal which has not the appearance of
"reason, does not fail to occasion great scandal, and
"to produce irregularities we can scarcely express.

"Who could ever suppose that the pope, whom
"we have held up to us as the model of sanctity
"and of virtue, should remain so wedded to opinions,
"and so jealous of the shadow of an imaginary au-
"thority, that he leaves the third of the churches of
"France vacant, because we are not disposed to ac-
"knowledge his infallibility?

"Those who imbue the pope with these ideas,
"do they imagine they can make us change our
"sentiments? and are they so blind, that they do
"not perceive we are no longer in those wretched
"times, when the grossest ignorance, united to the
"weakness of governments, and false prejudices,
"rendered the decrees of the pope so terrific, how-
"ever unjust they may have been; and, that these
"disputes and bickerings, far from augmenting their
"power, can only serve to excite enquiry into the
"origin of their usurpations, and diminish rather
"than encrease the veneration of the people.

"We shall say more: the bad use the popes have
"made on so many occasions of the authority of
"which they are the depositories, in prescribing no
"bounds to it but that of their will, has been the
"source of the almost innumerable evils with which
"the church has been afflicted, and the most speci-
"ous pretext for the heresies and schisms which have
"sprung up in the last century, as the theologians
"assembled by direction of Paul III. honestly con-
"fessed, and even, at present, the idea alone of
"the infallibility and indirect power, which the com-
"plaisance of the Italian doctors confers on the See
"of Rome over the * temporal* of kings, is one of
"the greatest obstacles which is opposed to the con-
"version, not of individuals alone, but, whole provin-
"ces; and we cannot too strongly impress, that
"these new opinions are no part of the doctrine of
"the universal church....

"The thunders of the Vatican have nothing terrible in them; these are transient fires which go out in smoke, and which do neither ill nor prejudice but to those who launch them.

"The refusal of the pope to grant the bulls to the bishops nominated by the king, causes a derangement which encreases daily, and which requires a prompt and efficacious remedy. The councils of Constance and of Basle having laboured to reduce to some moderation the usurpations of the court of Rome, and the confusion which was introduced in the distribution of benefices, the pragmatic sanction was subsequently compiled from the decrees of these councils. But the popes, seeing their authority diminished by it, exerted every artifice to cause its abolition; and by the concordat entered into between Francis I. and pope Leo X., the mode of appointing to the vacant sees and abbeys was regulated: not only the devolution, or right of presentation by lapse, but the reversion, was granted to the pope, with power to admit resignations in favour of individuals, and many other articles; which were very burdensome on the ordinary collators, and altogether opposed to the ancient canons.

"Besides, our ancestors for a long period have remonstrated against the concordat: the ordonnance of Orleans had restored the elections; and it would be very advantageous if all ecclesiastical affairs were arranged in the kingdom, without being obliged to have recourse to Rome. In the sequel, however, the concordat was acted on faithfully by us, and we cannot conceive that the pope by an invincible obstinacy, wishes now to compel us to deprive him of the advantages which the court of Rome derives from a treaty so advantageous to it....

"After all, those who, before the concordat, were elected by the clergy and people, and afterwards by the chapters, in presence of a king's commissioner, were they not ordained by the metropolitan, assisted by the bishops of the province, after the king had approved of the election? The right acquired by the king in the concordat, authorised in this case by the tacit consent of all the Gallican church, and confirmed by a possession of near two hundred years, ought so much the less be subjected to change or attack, as, during the four first ages of the monarchy, they did not resort to Rome to ask for appointments to benefices; the bishops disposed of all those which became vacant in their dioceses, and our monarchs almost invariably nominated to the bishopricks; and, if they occasionally granted to the clergy or the people, the privilege of electing a pastor, they more frequently reserved the selection to themselves; and without the pope having any concern in it, those who they elected were immediately consecrated. What prevents us from following these examples, founded

"on this excellent principle, that the right, which all
"the faithful had originally in the appointment of a
"head, when it could no longer be so exercised,
"should pass into the hands of the sovereign, on
"whom the people had conferred the government of
"the state, of which the church is the nobler
"part."

"But, with respect to the pope, since he declines
"to grant to the king's nomination the concurrence
"of his authority, we may presume that he is de-
"sirous of relieving himself from a part of the painful
"burden which oppresses him; and, that his infir-
"mities not permitting his extending his pastoral vigi-
"lance over every part of his universal church, the lapse
"which sometimes takes place in cases of negli-
"gence, even of the superior to the inferior, may
"authorize bishops to confer the imposition of hands
"on those whom the king shall nominate to the
"prelacies."

CHAPTER XI. EIGHTEENTH CENTURY.

IF the temporal power of the popes has subsisted later than the year 1701, it is principally because no one was concerned to accelerate its inevitable fall. Placed between Milan and Naples, as a barrier to the preponderance of either Austria or the Bourbons over Italy, the feeble States of the Holy See seemed to belong to the political system of Europe, and to contribute to the maintenance of the general equilibrium. Each prince being interested in not suffering another to invade them, all concurred to retard a revolution, which the progress of general knowledge would soon bring about, which would be accomplished of its own accord, from the moment they would cease to prevent it, and which, at a future time, other circumstances perhaps would render more reconcilable with the situation of European affairs.

Besides the general cause which we have pointed out, three particular causes have perpetuated, during the eighteenth century, the temporal sovereignty of the Roman pontiffs; at first, the ill-enlightened devotion of Louis XIV. from 1700 to 1715; in the second place, the influence of the Jesuits, as well during these first fifteen years as under the ministry of cardinal Fleury from 1726 to 1743; finally, the wisdom of the two popes, Lambertini and Ganganelli of whom the one governed the church from

1740 to 1758, the other from 1769 to 1774. If, like these two, the other popes of the eighteenth century had known how to manage and circumscribe their power, they would have preserved, perhaps confirmed it: but they aspired to aggrandize it, the spiritual arms have continued to serve as instruments to pontifical ambition; while they have dared to reproduce the silly doctrines of the supremacy and infallibility of the popes; and the Holy See, which might have remained a power of the third order, has fallen even below this rank in aspiring to reassume the first.

Clement XI. taking advantage of the circumstances in which the king, the clergy, the government, and the people of France found themselves, published the bull 'Vineam Domini' in 1705, the bull 'Unigenitus' in 1713.³²⁵ It is well known what an uproar the latter excited the Holy See and the Jesuits had the misfortune to triumph; a defeat had been less injurious to them than such a victory. Clement XI. nevertheless conceived so high an idea of his own power, that he engaged in a long dispute with Victor Amadeus king of Sicily: he re-claimed over the Sicilies the same rights in the 18th century, which had been relinquished by Urban II. a pope of the eleventh, and the almost immediate successor of Hildebrand; he confirmed the excommunications launched by the Sicilian bishops against the magistrates of this country; he abolished by a constitution, in 1715, a tribunal which for six hundred years had exercised the right of deciding sovereignly, within this kingdom, many kinds of ecclesiastical affairs.—But this constitution which attacked a prince, had not the success of the 'Unigenitus' which a monarch was pledged to support. Clement died without having humbled Victor Amadeus.

At the instigation of the Jesuits, Benedict XIII.. in 1729, re-canonized the much celebrated Hildebrand, whom Gregory XIII. and Paul V. had already inscribed in the catalogue of the blessed. The liturgy was enriched by Benedict XIII. with an office to be celebrated the 25th of May each year, in honour of St. Hildebrand or St. Gregory VII. A legend inserted in this office relates the high achievements of this exemplary pontiff:

"how he
"knew how to oppose with generous and athletic
"intrepidity, the impious attempts of the emperor
"Henry IV. how, like an impenetrable wall, he de-
"fended the house of Israel; how he plunged this
"same Henry in the deep abyss of misery; how
"he excluded him from the communion of the faith-
"ful, dethroned him, proscribed him, and absolved

"from their duty towards him the subjects who had
"pledged fidelity to him."

Such are the Christian words which Benedict XIII. directed to be recited or sung in the churches, for the edification of the faithful and instruction of kings. But the parliament of Paris took offence at this very pious legend, condemned it as seditious, and forbade its publication.—The parliaments of Metz, of Rennes, and Bourdeaux, opposed themselves, not less vigorously, to the insertion in the breviaries of this novel style of praying to God. There were even French bishops, those of Montpellier, Troyes, Metz, Verdun, and Auxerre, who would not recognize this new supplement to the divine office, and published directions, to refuse expressly the worship of St. Hildebrand. It may be proper to observe, that Cardinal Fleury, who then ruled France, abstained from mingling his voice with that of those who remonstrated against this canonization: in truth, he did not take up more openly the defence of the legend;³²⁶ but he knew where to find the members of the parliament who had rejected it; he obliged them to register, on the 3rd of April 1730, without any modification, the bull 'Unigenitus', which was not a whit more pleasing to them. In France then they were quit for this bull; and the government did not compel the celebration of the sainted pontiff who had dethroned an emperor. Benedict was obliged to content himself with establishing this devout practice in Italy, where, since 1729, all the churches pay religious adoration annually to Gregory VII. The sovereigns of Europe are either ignorant of it, or disdain to complain of it.

In a letter to the first president, dated 24th of February, the same year, Fleury testifies 'much joy' that kings passed off so well in the parliament with respect to the decree by which the briefs of Benedict XIII. had been condemned and suppressed; but the cardinal adds: "I have forgotten to represent to you, that it would not be suitable that this decree should be cried about the streets, for fear of wrong interpretations, and the noise that the ill-disposed might make about it."

We cannot avoid remarking, that in this affair the bishop of Auxerre and the parliaments defended the rights of the throne and the independence of the royal authority, and that their opponent was the prime minister of the monarch. Behold the peril to which a young prince was exposed in yielding such unlimited confidence to a cardinal.

After Benedict XIII. Clement XII. reigned ten years; an economical and charitable pontiff, who did good to his subjects, and little ill to

foreigners. His successor Lambertini, or Benedict XIV. merits greater praise: he was one of the best men and wisest princes that the eighteenth century produced. He mounted the chair of St. Peter the same time as Frederick II. the throne of Prussia; and for eighteen years they were the two sovereigns the most distinguished by their personal qualifications. Frederick, separated as he was from the communion of the Holy See, rendered to Benedict those testimonies of esteem which did honour to both. Lambertini inspired the schismatic Elizabeth Petrowna, empress of Russia, with similar sentiments; and the English, attracted to Rome by the celebrity of this pontiff, as well as by the love of the arts, of which he was the protector, praised him with enthusiasm when they wished to paint him with truth. His amiable mind and gentle manners obtained the more approbation, from his knowing how to combine the talents and the graces of his age, with the austere virtues of his office, and the practice of every religious duty. Benedict XIV. had reconciled Europe to the papacy: in beholding him, it were impossible to recall to memory a Gregory VII. an Alexander VI. or even a Benedict XIII. His evangelical toleration confirmed, in a reasoning age, the pontifical throne, shaken by the restless ambition of his predecessors; and his successors had needed only to have copied his example, in order to secure their temporal enjoyments by the benefits of their pastoral office.

But he was succeeded in 1758 by Rezzonico, whose narrow mind and incurable self-sufficiency, plunged again the Roman court into the most fatal disrepute. He was a second Benedict XIII. a pope of the middle ages, cast by mistake into the midst of modern knowledge, inaccessible to its influence, and even incapable of perceiving its presence. When Portugal, Spain, France, and Naples, bitterly accused the Jesuits, and got rid of them but too late, Clement XIII. persevered in upholding and falling with them; he seemed to connect with the cause of the Holy See, that of a society whose rebellion monarchs would no longer endure. In Portugal they had attempted the life of the king, and three Jesuits were among the number of those detected; the court of Lisbon asked permission of that of Rome to try them in the same manner as their accomplices, by the ordinary tribunals; Clement would not allow it. They were obliged to accuse one of the three Jesuits, Malagrida, of heresy, not of high treason; to seek in writings he had before published, for certain mystical errors and extravagant visions, and to deliver him to the inquisition, which had him burned as a false prophet,

without deigning to question him as to the attempt on the life of the monarch. It was impossible to accumulate more fully all the iniquities calculated to rouse the indignation of Europe. Priests suspected strongly of the most horrible crimes escaped from the secular tribunals, the throne was not avenged, but the Inquisition burned a poor enthusiast; Rome exacted the impunity of a parricide, and Malagrida, without a trial, perished the victim of superstition, and of a detestable policy.

About the same time Ferdinand of Bourbon, duke of Parma, reformed the inveterate abuses in the churches and monasteries, and disregarded the rights which the pope arrogated to himself, of conferring benefices, and deciding all suits in the territories of Parma, Placentia and Guastalla. Clement assembled the cardinals: in the midst of them he condemned as sacrilege all the acts of Ferdinand's administration; he declared unlawful whatever he had dared to do in a duchy which appertained to the Holy See "in ducatu nostro" he annulled the edicts published by the dukes; he directed the anathemas of the 'holy thursday bull', "in cœna Domini," against those who drew up these edicts, those who executed them, and whoever adhered to them. Ferdinand, by new decrees, suppressed the pope's brief and banished the Jesuits. Naples, Venice, Spain, Austria, France, all Europe, took up the duke of Parma's cause against the holy father. The brief is condemned as invasive of the independent rights of sovereigns; the parliament of Paris extends this condemnation to the bull of holy thursday and, while the king of Naples makes himself master of Beneventum and Ponte Corvo, Louis XV. like Louis XIV. resumes possession of the Comtat Venaissin; the parliament of Aix declares this territory to belong to France, and the count de Rochefoucauld arrives, and thus addresses the vice-legat, governor of Avignon:

"Sir, the king commands me
"to replace Avignon in his hands, and you are so-
"licitated to withdraw:"

this was the usual formula in such cases. They spoke also of obliging the pope to restore Ronciglione; Portugal thought of appointing for herself a patriarch: the Romans themselves murmured; and they had in all probability taken very decisive measures, if Clement had not departed this life the 3d of February 1769,^{[327](#)} and behold wherefore those arms are directed against the church, with which sovereigns are only armed to defend her; behold the

cause why they dare to attack with arms in their hands the pastor of the flock of Jesus Christ, even to seduce the people from the authority of their only legitimate sovereign, to invade our states, and a patrimony, which is not ours, but that of St. Peter, of the church, and of "God." He alludes to Beneventum, Ponte-Corvo, Avignon, &c. and these domains he here calls in direct terms, 'the patrimony of God.'

We transcribe these lines from one of the ten Authentic registers which contain the letters of Clement XIII. to the sovereigns. These letters contain the pleadings on behalf of the Jesuits, for the bull 'In cœna Domini' and for the omnipotence of the Holy See: invectives against the Jansenists, the parliaments and laical authority; much lamentations, mysticisms and trifles.

We shall publish in our Second Volume, the allocation pronounced by the same pope, the 3d of September 1762, in secret consistory, to abrogate all the acts of the parliaments of France against the Jesuits. This manuscript was found enclosed in a second paper, on which was to be read the following note of the keeper of the Archives, Garampi:

"Allocation which his holiness, our lord the pope, held in his secret consistory, the 3d of September 1762, in abrogation of all the acts and proceedings of the parliaments of France for the expulsion of the Jesuits; which his holiness commanded me to preserve sealed in the office of Archives in the castle of St Angelo with the secrets of the holy office, and which was to be opened by no one without the special authority (oracolo) of his holiness, or of his successors in faith, this 24th day of August 1763." Joseph C. Garampi, prefect of the secret office of Archives of the Vatican, and that of the castle of St. Angelo, with my proper hand.

The conduct of Ganganelli or Clement XIV. was so judicious and so pure that Avignon, Ponte-Corvo, and Beneventum, were restored to him. The prejudices, but too legitimately entertained against the court of Rome, once more began to yield, in the minds of both sovereigns and people, and the temporal power of the popes began again to appear compatible with the peace of Europe. Two great acts have peculiarly done honor to this pontificate; the bull 'In cœna Domini,' and the suppression of the Jesuits. This society had existed now two hundred and thirty years, and had never ceased to be the enemy of kings and people. The particular interests which it cultivated attached it only to the court of Rome; it embraced by its establishments every country subject to the Holy See, and recognized itself, no other country save the church, no other sovereign but the pope. Its

ambition was to exercise, under the protection of Rome, an active influence over courts, families, the clergy, youth, and literature. Having become odious since 1610, by serious and unjustifiable enterprises, it felt the necessity of uniting, with its political intrigues, the affectation of learned labour and literary employment. We behold it devoting itself to public education, and cultivating every department of literature, obtaining scarcely in any an eminent distinction, but producing in almost all a great number of men who filled and did honour to the second rank. This success restored it, and conferred on it a power which it abused in various ways from 1685 to 1750: and its fall, demanded by the people and determined by kings, might have drawn after it that of the temporal power of the popes, if Ganganelli had not detached the interests of the Holy See from those of the Jesuits, and, finally, consummated their abolition. When he died, some months after their suppression, they were accused of having shortened his days. If it were true that he fell the victim of their implacable resentment, as is generally believed, they have by this last crime hastened by many years the extreme decrepitude, and hour of dissolution, of that pontifical power of which they had been the supports. Apparently they were unwilling it should survive them; they immolated the man who alone rendered it tolerable. Since the year 1774, it has done little else than wander about, exhaust itself, fall into agonies, and expire.

CHAPTER XII. RECAPITULATION

CHRISTIANITY had for a period of seven hundred years, glorified God, sanctified man, and given consolation to the earth, before any minister of the gospel ever thought of erecting himself into a temporal prince. This ambition sprung up in the eighth century, after the dissolution of the Roman empire, and the ravages of the barbarians, in the bosom of universal ignorance, and of troubles which overturned Europe, but in an especial manner rent and divided Italy. But the popes had scarcely obtained the exercise of a precarious civil power when, corrupted by functions so foreign to their apostolic ministry, unfaithful vicars of Christ and of the sovereign, they aspired to be no longer dependent, and speedily to rule. Menacing in the ninth century and dissolute in the tenth, the pontifical court had weakened itself by the publicity of its vices, when the stern Gregory VII. conceived the idea of a universal theocracy: an audacious enterprize, weakly sustained by most of the pontiffs of the twelfth century, but which Innocent III. realized at the opening of the thirteenth; this is the era of the greatest display of the spiritual and temporal supremacy of the bishops of Rome.—Their residence within the walls of Avignon in the fourteenth century, and the schism which was prolonged to the middle of the fifteenth, abated their power and even their ambition; after the year 1450, the popes no longer thought of any thing but the aggrandizement of their families. Julius II. came too late to attempt anew the subjugation of kings; his successors during the sixteenth century, to prevent being too much humbled themselves, had need of an address which those of the seventeenth did not inherit; and the foil of the temporal power of the popes has been only retarded, since the year 1700, by the wise conduct of two pontiffs and the little attention which the errors of others claimed.

The political revolutions which followed the dethronement of Augustulus; the elevation of Pepin to the throne of France, and of Charlemagne to the empire; the weakness of Louis le Debonnaire, and the partition of his states among his children; the imprudence of some kings who solicited against one another the thunders of the Vatican; the fabrication of the decretals; the propagation of a canonical jurisprudence contrary to the ancient laws of the church; the rivalry of two houses in Germany; the schemes of independence adopted, by some Italian cities; the crusades, the inquisition, and the innumerable multitude of monastic establishments: such were the causes which produced, confirmed, extended, and for so long a period sustained the temporal power of the popes, and favoured the abuse of their spiritual functions.

This power had for its effects the corruption of manners, the vices of the clergy, heresies, schisms, civil wars, eternal commotions, the deepest misery in the states immediately under the government of the popes, and the most terrible disasters to those which they aspired to rule. The popes of the first seven centuries generally set an example of the Christian and sacerdotal virtues: the generality of their successors have proved bad princes without being good bishops. We have rendered our homage to some: for instance, to a Gregory II. in the eighth century; a Leo IV. in the ninth; to Calixtus II. Honorius II. and Alexander III. in the twelfth; to Nicholas V. in the fifteenth; to Leo X. in the sixteenth; and to Benedict XIV. and Clement XIV. in the eighteenth. We would have been pleased in having much more opportunity to praise; but when we reflect on the confused mixture of the sacred ministry with political power, upon this amalgamation so calculated to deprave both of these heterogeneous elements, we are not astonished at finding much fewer good governors in the catalogue of popes than in the list of any other description of sovereigns.

All these bitter fruits of pontifical dominion have contributed to destroy it: eventually, so many abuses, excesses, and scandals, rendered Christian Europe justly indignant. But, causes more direct, and which we have in succession noted, have since the middle of the thirteenth century shaken the edifice of this intolerable tyranny: let it suffice that we here recall a few of them; the holy opposition of Louis IX. the firmness of Philip the Fair; the frenzy of Boniface VIII. the irregularities of the court of Avignon; the schism of the West; the pragmatic sanction of Charles VII. the restoration of letters; the invention of printing; the despotism of the popes

of the fifteenth century; the ambitious designs of Sixtus IV. the crimes of Alexander VI. the ascendancy of Charles V. the progress of heresy in Germany, England, and other countries; the troubles in France under the son of Henry II. the wise administration of Henry IV. the Edict of Nantes; the Four Articles of 1682; the dissensions arising from the formulary of Alexander VII. and the bull, 'Unigenitus,' of Clement XI.; lastly, the Quixotic enterprises of Benedict XIII., Clement XIII. and other pontiffs of the eighteenth century. No! the Papal power can never survive so much disgrace: its hour is come; and there remains no alternative to the popes, but to become, as they had been during the first seven centuries, humble pastors, edifying apostles: it is a destiny abundantly noble.

Once relieved from the burden of temporal affairs, and devoted to their evangelical ministry, they would be so much the less tempted to abuse their sacred office; as there exists to bound their spiritual authority, efficacious means which have been taught by experience. It would even be superfluous to revert to the decrees of the councils of Constance and Basle; or to the pragmatic sanction of 1439: the Four Articles of 1682 are sufficient.

The king of France, Henry IV. had given the example of another security against the pontifical enterprises, when, by his edict of Nantes, he permitted the free exercise of a religion which was not that of the state, and of which he had the happiness to acknowledge and abjure the errors. Toleration of all modes of adoring the Deity is a debt due from sovereigns to their subjects; the gospel which directs the preaching of truths and the enlightening those who are in error, forbids by this very act itself the persecuting of them; for persecution must rather confirm in heresy or extort hypocritical abjurations, which deprave morality and outrage religion. All the Christian kings who have harassed religious sects, have been in their turn disturbed by the popes, and obliged to resist them: St. Louis himself did not escape this just ordination of Providence. To know how far a prince yields to the yoke of the pontiffs; we have only to look to what degree he limits the consciences of his subjects; his own independence is to be measured by the religious liberty which he permits to them: it is necessary, if he wish not to be subjected himself, that he inflexibly refuse to priests, or to the prince of priests, the proscription of modes of worship which differ from the dominant church.

The liberty, or if you please, the toleration of these various professions, supposes in those who exercise them the perfect enjoyment of every right,

civil and political, granted to other subjects; whence it follows, that legislation should altogether detach from the religious system the particular situation of individuals, and consequently the circumstances of births, marriages, divorces, burials, which tend to determine it. Here the ecclesiastical office is confined to exhorting the faithful to the observance of certain precepts, or to religious advice, and administering to them the rites of the church or the sacraments, instituted to sanctify the various periods of human life. It is to civil legislation, and to it alone, can belong the establishment of offices purely civil to verify these acts, to invest them with the forms it has prescribed, and which ought to ensure the public authenticity of them, and guarantee all their effects. Now such a legislation is in itself one of the firmest barriers against ecclesiastical usurpation, and the fatal influence which the head of the clergy would willingly exercise in the bosom of empires and of families.

The history of the first ages of Christianity would, perhaps, point out other preservatives against the pontifical ambition. It should be the endeavour to substitute the ancient laws of the church, in place of those of the middle age, framed to give a separate interest to the clerical body, and render it devoted to the court of Rome, in loosing it from all domestic and patriotic ties. We must avow that these delicate reformatations should be matured by time, and carried into effect with circumspection: it is requisite that, induced by public wish, and as it were enacted by public opinion, they should be previously agreed upon, and looked for with hope before being established. But, to submit to a regime purely civil all the circumstances which determine the personal state, to tolerate the various modes of worship which may desire peaceably to exist around the established one; to render to the articles of 1682 the most sacred authority; and, above all, to abolish for ever the temporal power of the popes; these four steps, as easy as they were salutary, have been but too long deferred: no obstacle, no fear, no anticipation, can advise to defer them; and without doubt they will for a long period be sufficient to prevent the principal abuses of the spiritual office.

Among these abuses, however, there are two that we conceive it our duty to point out more particularly: the one consists in excommunications, the other in the refusal of canonical investiture.

Although the Christian churches were only individual associations, they ought to possess the right of excluding from their bosom vicious or

dissentient members, who, by their scandalous conduct or discord, disturbed the sacred harmony of those assemblies. From this so natural right, the exercise of which had for a long period been as gentle as it was secret, sprung up, in the middle ages those thundering anathemas, which shook thrones and overturned empires. It was no longer either vice or error which was excommunicated: the sacred thunder served only to avenge the temporal interests of the clergy and of the sovereign pontiff. Who can particularize the number of emperors, kings, and other princes who, from the eighth century to the eighteenth, have been struck by this, often formidable, arm? To confine ourselves to the very-christian kings of France, we may count, between Charlemagne and Louis the Just, twelve sovereigns who have suffered ecclesiastical censures: in the ninth century, Louis-le-Debonnaire and Charles the Bold; in the tenth, Robert; in the eleventh, Philip I.; in the twelfth, Louis VII. and Philip Augustus; in the sixteenth, Louis XII. Henry II. Henry III. and Henry IV. Now of all these excommunicated kings Henry the IV. alone could have been accused of heresy: the orthodoxy of the others was without reproach; there was no question but that of their political relations with Rome, and the independence claimed for their crown. But, the excessive, the profane use of these anathemas, brought them into such discredit, that in the present day it would be as ridiculous to fear them as it would be to renew them.

Stripped of all temporal power, and become the subject of one of the princes of Europe, will the pope excommunicate his own sovereign? Such audacity or extravagance is not by any means probable. It is true that past ages offer examples of it; but, at the present time, too just an idea is formed of such anathemas; it would now be regarded but as a seditious libel, a public instigation to revolt, an insult on the majesty of the sovereign and of the laws, a penal though an impotent attempt.

Will the sovereign under whom the pope shall live, permit him to excommunicate foreign princes, whether allies or enemies? we cannot imagine such an imprudence. We have, no doubt, beheld monarchs thus direct against their rivals those spiritual arms which were soon after turned against themselves: but experience has sufficed to deter them from a description of warfare as uncertain as it is ungenerous. Besides, where shall we now find a nation, a mob even, ignorant enough not to be aware that they are only expressive of pontifical caprice or spleen, or a puerile regret for some foolish prerogative?

In fine, will the sovereign of the pope permit his other subjects, magistrates, public officers, or private individuals, to be struck by ecclesiastical censures? we will never suppose it. In a regulated state every condemnation is pronounced in the name of the prince, by the officers specially appointed for this description of judicial functions; and no public censure should emanate from an authority foreign to his.—Let us add, that from the moment the church becomes incorporated with the state, it ceases to be a distinct association: Christianity becomes an institution recognized by the laws: and the acts of the religious ‘regime,’ from the time they require publicity, belong to the general administration. Thenceforward if it belong to the bishops, the pope, or the councils, to condemn dogmatical errors, without the intervention of the sovereign, at least their persons remain under his protection, and ought not to be officially marked out or disgraced, but agreeable to the forms prescribed by him.

It now remains for us to speak of canonical institution.

That each newly elected bishop should pay homage to the head of the church, is an act of communion with the Holy See extremely commendable. That the nominator of this bishop should be expressly approved by the pope, is a practice calculated to draw closer the ties which ought to connect the first pastor with all the others. That the pope should even profit of this circumstance to examine the qualifications of the elected, and to remonstrate against an improper choice, is also a security of the honour of the clergy and the discreet administration of the dioceses; it is also a means of enlightening the religion of the prince, and providing against surprise or error. But, that the pope should refuse investiture to a prelate whom the sovereign thinks irreproachable, or that, from considerations foreign to the person of the individual elected, from motives merely political, or, because of certain differences between the sovereign and the pope, the latter should persevere in with-holding all canonical investiture; so criminal an abuse of a respectable office authorizes a reversion to the ancient privilege of nomination. We have collected, in concluding the tenth chapter, the principles professed on this head by the advocate general Talon at the close of the seven-, tenth century; about which time Bossuet traced the origin of bulls of investiture and acknowledged their novelty.^{[328](#)}

“As the pope,” he says, “gives

“bulls for the investiture of bishops, Bellarmin fixes

“on this point, which he exhibits as an important

"proof in favor of his opinion. But he does not
"condescend to observe how modern this practice
"is, and how often the church has united with the
"Greeks and other Orientals, yet leaving them in
"full possession of their ancient customs, and with-
"out obliging them to look for bulls.... The church
"of Carthage possessed the absolute right of or-
"daining the bishops dependent on it, as also the
"bishops of Ephesus, of Cesarea in Cappadocia,
"and Heraclia. Our Gallic churches and those of
"Spain enjoyed the same privilege."

These two authorities, Talon and Bossuet, might suffice; but it may not be useless to establish on this important point a chronological series of facts and of evidence.

We read in the Acts of the Apostles³²⁹ that the bishops are appointed by the Holy Ghost to rule the church of God: neither this verse of Scripture, nor any other sacred text, makes mention of the pope as a universal pastor by whom all the rest are to be ordained. We should vainly seek for the slightest vestige of a bull of ordination, granted by the sovereign pontiff to the bishops of the earlier ages: for example, to St. Cyprian, St. Chrysostom, St. Basil, St. Ambrose, or St. Augustine. St. Cyprian, on the contrary, having adopted an erroneous opinion, was scarcely in communion with the pope. The Council of Nice³³⁰ directs that each diocesan bishop may be confirmed by his metropolitan or archbishop; a regulation which leaves no pretext for supposing that the bishop of Rome had, in this respect, any function to perform. Three popes of the fifth century, Zosimus, Leo the Great, and Gelasius, have spoken of the installation of prelates, claiming for the metropolitan, and for him alone, the right of investiture. Zosimus³³¹ says, that the Apostolic See itself ought to respect this prerogative of the metropolitans. That a bishop should be required by the people, elected by the clergy, consecrated by the bishops of the province, under the presidency of the metropolitan, is all that is insisted on by Leo I.³³² and lastly, Gelasius³³³ decides, that when the metropolitan is dead, it belongs to the provincial bishops to confirm and consecrate his successors. A council of Toledo in 681,³³⁴ confers the same right on the bishop of the metropolis; and this doctrine was so well established in Spain, that before the thirteenth century, the bishops of this kingdom had never applied to the pope for bulls of investiture or confirmation.

Many authors fix the origin of this pretension of the pope in the pontificate of Alexander III, 1159, 118-1.

Potestas sane vel confirmatio pertinebit per singulas provincias ad metropolitanum episcopum.

See a like regulation in the twelfth canon of the Council of Laodicea.

“We may easily suppose,” they add, “that the metropolitans of Germany, and especially those who are also electors of the empire, have borne with much unwillingness this great diminution of their rights, with respect to the confirmation of the new bishops, elected in their respective provinces; and the grievances drawn up at Constance under the emperor Sigismund, by the deputies of the provinces of Germany, and laid before the Council of Constance afterwards, by deputies of the same nation, as Galdart relates, clearly evinces: [here follows what we read in the 3d chapter]: Every time that it becomes necessary to proceed to an election, after it shall have been terminated, let it be examined according to legal form by the immediate superior; and, if found canonical, let it be confirmed; and let not the sovereign pontiff be allowed in any way to attempt any the smallest thing to the contrary, unless that the elected be immediately subject to him; in which case he may intimate his prohibition; or, unless they have acted in some way contrary to the regular forms: in such case, as he is bound to the observance of the law, so is it allowable to him when any thing is done contrary to that law, or attempted to be done, to reform it, and even correct and punish the transgressors. We have before proved, that this latter power belongs to the sovereign pontiff of common right. Although the council of Constance in the 36th session, to prevent the peace of the church being disturbed, ratified the confirmation of bishopricks, made by popes whom it deposed shortly after; and, although it directed the expediting and signing in its name the bulls which had never been given to bishops who had abdicated, or who were driven from their sees; it, nevertheless, thought seriously at the same time of reducing the confirmation of bishops to the terms of the ancient law, since, in the decree of the 40th session, by which it prescribed to the pope who was about to be elected, by way of salutary caution, many points of the great-est importance, to which in the sequel a better form was to have been given, it inserted in the 5th article that of the confirmation of electors. But what the council of Constance only premeditated, we know that the council of Basle carried more fully into effect: for, after having annulled the reservation as well general as particular, it only allowed, that in cases where the church or the commonweal might suffer damage, the sovereign pontiff might be resorted

to for the confirma* tion of canonical elections; adding, that if the confirmation was refused at Rome, the new election should devolve on the chapters. For the rest, it clearly directs, that the elections be made without impediment; and confirmed after examination, agreeable to the disposition of the common law. The grievances of Mayence, drawn up after the council of Basle in 1440, and reported in Scakenburg under the term ‘project of a concordat’ are entirely in unison with these complaints; they explain the meaning of these words ‘according to the disposition of the common law,’ when they assert, that according to common right, the privilege of confirming elections should be restored to the immediate superior: the election being terminated, they say, the decree of “election ought to be presented to the immediate superior” to whom belongs the right of confirmation; this superior ought, in this matter, examine with care the form of the election, the merits of the elected, and every other circumstance relating thereto; so that if the election ought to be affirmed, it maybe so judicially. The father of the diocesan synod of Freisingen in Bavaria adopted, in the same year 1440, these projects of the States of the Empire, &c.

It is nevertheless to the eleventh century we may trace up in many churches the custom of an oath, by which each newly elected prelate bound himself “to defend the domains of St. Peter against every aggressor; to preserve, augment, and extend, the rights, honours, privileges, and powers, of the lord pope and his successors; to observe, and with all his power cause to be observed, the decrees, ordonances, reservations, provisions, and directions whatever, emanating from the court of Rome; to persecute and combat heretics and schismatics to the utmost extremity, with all who will not render to the sovereign pontiff all the obedience which the sovereign pontiff pleases to exact.”

This oath, who can believe it? has been taken by bishops whose sovereigns were not catholic princes.

How are we to conceive that sovereigns, catholic or not, could have allowed their subjects to enter into engagements so opposed to the good order of society at large:—it was complained of in Hungary, in Tuscany, and in the kingdom of Naples; and the prelates of Germany placed restrictions on this formula. But it is in itself so revolting, and besides so foreign to the discipline of the ten first centuries of the church, that we

cannot believe they mean seriously to allege it as a proof of the necessity of bulls of investiture.

Some French authors have observed how the public and notorious dissensions between pope Innocent XI. and Louis XIV. seemed to present a favorable opportunity for re-establishing the ancient discipline, and for terminating this shameful subjection, which drew after it the obligation of soliciting and obtaining pontifical bulls for consistorial benefices. By so doing, there would not only remain in the kingdom immense sums of money, now sent every year to Rome, but the bishops would again enter into their ancient rights, and the clergy, as well regular as secular, would be in consequence better governed.—On the Government of the Church translated from the Latin of Febronius, vol. i. c. 4. s. 3.—For original see Appendix B.

Another formula was introduced in the thirteenth century, to wit, that by which the prelates were termed “bishops.... by the grace of the Holy Apostolic See.” An archbishop of Nicosia first employed it in 1251, and was followed in it by many of his brethren. The French bishops did not adopt it till a later period; and some suppressed it as incorrect, abusive, and novel: Bossuet termed himself ‘bishop by the divine permission.’

At the close of the fourteenth century, when the Castilians had withdrawn from their obedience to Peter de Lune, Henry III. king of Castile, commanded the archbishops to invest the bishops.³³⁵—The king of France did the same, when, at the same period, the Gallican church refused to recognize any of the three contending popes. In 1587 the bishop of Constance was consecrated, installed, and put into full possession of his office ten years before the bulls from Rome were received; this is attested by the pleadings of the advocate-general Servin, wherein the right of dispensing with these bulls is proved by the ancient discipline of the church. This was, as we have seen, the doctrine of the French bishops consulted by the court of Portugal;³³⁶ it was that of Simond, of Peter de Marca, of Thomassin, and of Talon and Bossuet.

Simond³³⁷ observes, that before the fifteenth century, when Gaul was subject to the Romans, the bishops, elected by the people and the clergy, were invested only by the metropolitans.

De Macra,³³⁸ desires they may banish from Christian schools, the novel and unheard-of doctrine, unknown to the twelve first centuries, which inculcates the belief that the bishops receive their authority from the pope;

he is of opinion, that many circumstances may fully authorize the bishops to dispense with the modern custom of appointments termed canonical, and the reverting to natural and divine right, without any respect to the forms introduced by the new law; and father Thomassin³³⁹ assures us that, notwithstanding the efforts he has made to discover in antiquity some vestiges of this institution, he has found, on the contrary, that the ancient bishops, and especially those of the East, ascended their sees without the popes having been made acquainted with it. Lastly, in 1718, the council of Regency consulted the Sorbonne on this point, which decided, that, circumstances or occasion requiring, it might restore to their ancient privileges of investing, without pontifical bulls, the prelates legitimately elected. This is surely enough to demonstrate that these bulls are in no wise necessary, and that, at least, they may be considered as obtained, when they are refused from motives foreign to the personal qualifications of the elected.

The historical details of this feeble and too hasty essay, rather glanced at than fully developed, expose slightly, at least, the dangers of the temporal sovereignty of the pope, and the limits which ought to confine his spiritual authority. These limits had need to be assigned by a victorious hand, capable of setting bounds to all subaltern ambition, and unaccustomed to suffer any restrictions to be put on the progress of civilization, the diffusion of knowledge, and the glory of a great empire. The abolition of the terrestrial power of the pontiffs, is one of the greatest benefits Europe can be indebted for to a Hero. The destiny of a new founder of the Western Empire is, to repair the errors of Charlemagne, to surpass him in wisdom, and therefore in power; to govern and consolidate the States which Charles knew only how to conquer and rule; in fine, to render eternal the glory of an august reign, in securing, by energetical establishments, the prosperity of succeeding sceptres.³⁴⁰

CHRONOLOGICAL TABLE

FIRST CENTURY.

	YEAR
1. St Peter,	66
2. St. Lin, son of Hercolanus, born at Volterra in Toscana, died in	78
3. St. Anaclet, or Clet, died in	91
4. St. Clement, son of Faustinas, born at Rome, died in	100

SECOND CENTURY.

5. St. Evanstas, born in Syria, died in	109
6. St. Alexander I.	119
7. St. Sixtus I. born at Rome,	127
8. St. Telesphore,	139
9. St. Hyginus, died in	142
10. St. Pius I.	157
11. St. Anacetius,	168
12. St. Soter, born at Fondi,	177
13. St. Eleutherius, died the last day of the year	192
14. St. Victor,	202

THIRD CENTURY.

15. St. Zephirinus,	died in	219
16. St. Calixtus I.	14th October,	222

17. St. Urban I.	25th May,	230
18. St. Pontien,	28th Sept.	235
19. St. Antherus,	3rd Jan.	236
20. St. Fabian,	28th Jan.	250
21. St. Cornelius,	14th Sept.	253
22. St. Lucius, I.	4th or 5th March,	255
28. St. Stephen I.	2nd Aug.	257
24. St. Sixtus II.	6th Aug.	258
25. St. Dionysius,	26th Dec.	269
26. St. Felix I.	22nd Dec.	274
27. St. Eutychian,	7th or 8th Dec.	283
28. St. Caius,	22nd April,	296
29. St. Marcellinus,	24th Oct.	304

FOURTH CENTURY.

30. St. Marcellus, a Roman by birth, died	16th Jan.	310
31. St. Eusebius,	26th Sept.	310
32. St. Miltiades or Melchiades, died	10th or 11th Jan.	314
33. St. Sylvester I. born at Rome, died	31st Dec.	335
Pretended donation of Constantine.		
Council of Nice, 1st oecumenical, in		325
34. St. Mark, died the	7th Oct.	336
35. St. Julius I. a Roman by birth, died	13th April,	352
36. St. Liberius,	24th April,	366
Felix II. antipope, 22nd Nov. 365		
37. St. Damasiuc, a Roman, died	10th or 11th Dec.	384
Council of Constantinople 2nd oecum. 381.		
38. St. Siricius, a Roman, died	25th Nov,	398
The first of whom we have an authentic decree		
39. St. Anastasius I. a Roman, died in	401 or	402

FIFTH CENTURY.

40. St. Innocent I. died	12th March	417
41. St. Zosimus, born in Greece, died	26th Dec.	418
42. St. Boniface I. a Roman, son of the priest	Jocundus, died 4th Sept.	422
43. St. Celestine I. a Roman, died	30th July,	432

Council of Ephesus, 3rd oecumen. in 431.	
44. St. Sixtus III. a Roman, 18th Aug.	440
46. St. Leo I. or the Great, born at Rome, one of the doctors of the Latin Church, died 6th or 8th Nov.	461
Council of Chalcedon, 4th oecumen. 451.	
46. St. Hilary, a Sardinian, died 21st Feb.	468
47. St. Simplicius, native of Tivoli, died 25th Feb.	483
48. St. Felix III. a Roman, 24th or 25th Feb.	492
49. St. Gelaaia, born at Rome, 19th Nov.	498
50. St. Anastasias II. 17th Nov.	498

SIXTH CENTURY.

51. Symmachas, born in Sardinia, died the 9th July	514
52. Hormisdas, born at Frusignone in Campania died 6th Aug.	523
53. St. John I. a Toscan, 18th May,	525
54. Felix IV. a Samnite, in	530
55. Boniface II. born at Rome, of Gothic origin, died	532
56. John II. called Mercnrins, born at Rome, died	535
57. Agapit, son of the priest Gordian, died the 22d of April	536
58. Sylverius, a native of Campania son of pope Hormisdas	538
59. Vigilius, son of the Consul John, elected pope Nov. 537, before the death of Sylverius, died at Syracuse, 10th Jan. 2nd Council of Constantinople, and 6th œcumenical, held in 553	555
60. Pelagias I. died 1st March,	560
61. John III. called Cateline, born at Rome, died 13th July	575
62. Benedict Bonosius, 30th July,	557
63. Pelagias II. died 8th Feb.	590
64. St. Gregory I. or the Great, born at Rome, one of the fathers or doctors of the Latin Cburch 12th March,	604

SEVENTH CENTURY.

65. Sabinian, died 22nd Feb.	606
66. Boniface III.	607

67. Boniface IV. native of Valeria, country of the Moors,	615
68. St. Dens Dedit, a Roman, 3rd Dec.	618
69. Boniface V. born at Naples, died 22d Oct.	626
70. Honoriua I. a native of Campania, son of the consul Petronius, died 12th Oct. AN INTERREGNUM OF TWENTY MONTHS	638
71. Severinus, born at Rome, consecrated in May, died	640
72. John IV. of Dalmatia, 11th Oct.	642
73. Theodore I. born at Jerusalem, died 13th May, The first who received the title of sovereign pontiff.	649
74. St. Martin I. of Todi, 17th Sept.	654
75. St. Eugene I. a Roman, 1st Jan.	657
76. Vitalian, born at Segni, 27th Jan.	662
77. Adeodat, a Roman, in June,	676
78. Donus or Domnas, a Roman, 11th April,	678
79. Agathon, a Sicilian, 10th June, Third Council of Constantinople, the 6th oecumenical, held in 680 and 681.	682
80. St. Leo II. a Sicilian, died in 683 or	684
81. Benedict II. a Roman, died 7th May,	685
82. John V. a Syrian, 7th Aug.	687
83. Conon, born in Sicily, of Thracian origin, died Sept.	687
84. St. Sergius I. born at Palermo, of Antiochian 8th Sept.	701
EIGHTH CENTURY.	
85. John VI. a Greek, died 9th Jan.	705
86. John VII. a Greek, 17th Oct.	707
87. St. Sinnius, a Syrian, 7th Feb.	708
88. Constantine, a Syrian, 9th April,	715
89. St. Gregory II. a Roman, died the 10th Feb. Quarrel with the Emperor Leo the Isaurian.	731
90. Gregory III. a Syrian, 27th Nov. Excommunication of the Iconoclastes —Roman Republic.	741
91. Zachary, a Greek, 14th March,	752

Accession of Pepin the Short. Stephen elected pope in died before being consecrated.	752
92. Stephen II. died 25th April, Pretended sacred donation of Pepin, letters of St. Peter, &c.	757
93. Paul I. brother of the preceding, died 28th Jan.	767
94. Stephen III. a Sicilian, 1st Feb.	772
95. Adrian I. son of Theodale, duke of Rome, 25th Dec. Charlemagne in Italy. Second Council of Nice, 7th oecumenical, in 787.	795
96. Leo III. a Roman, 11th June, Charlemagne crowned emperor in 800. False decretals	816
NINTH CENTURY.	
97. Stephen IV. installed 22d June 816, died 24th Jan.	817
98. Pascal I. a Roman, installed 25th Jan. 817, died May	824
99. Eugene II. born at Rome installed and died in Aug.	827
100. Valentine, born at Rome installed and died,	827
101. Gregory IV. installed at the close of 827, died in Jan. Humiliation of the emperor Louis-le-Debonairre.	844
102. Sergius II. installed the 27th January 844, 27th Jan.	847
103. St. Louis IV, elected in 847, died 17th July, Leonine City, pages 48, 50.	855
104. Benedict III. installed 29th Sept. 855, died 8th April	858
105. Nicholas I. a Roman, installed 24th April 858 died Nov.	867
106. Adrian II. a Roman, installed 14th Dec. 867, died in 4th Council of. Constantinople, the 8th œcumenical, held in 869.	872
107. John VIII. installed the 14th December 872, died Dec. Charles the Bold crowned emperor in 875, and Charles the Fat in 880.	888
108. Marinas, installed the end of December 882, died in May,	884
109. Adrian III. a Roman, installed in 884, died in Sept.	885
110. Stephen V. a Roman installed in Sept. 885, died 7th Aug.	891
111. Formosus, installed in Sept. 891, died in April	896
112. Boniface VI. installed and died in	896

113. Stephen VI. installed in 896, strangled	897
114. Romanus, born at Rome, installed 20th Aug.	897
115. Theodore II. installed and died in	898
116. John IX. a native of Tibar or Tivoli, died	900

TENTH CENTURY.

117. Benedict IV. elected in December, 900, died in October	903
118. Leo V. a native of Ardee, installed 28th Oct. 903, banished in Nov.	903
119. Christophas, a Roman, installed in November, 903, banished in Jane,	904
120. Sergios III. installed in 905, died in August,	911
121. Anastasias III. a Roman, installed Aug. 911, died Oct.	913
122. Landon, installed in 913, died April,	914
123. John X. installed the end of April, 914, died in prison The lover of Theodora, the conqueror of the Saracens, dethroned by Marosia	928
124. Leo VI. installed Jan. 928, died the 3rd of February	929
125. Steshen VII. installed in March 929, died in Mar.	931
126. John XI. son of Marosia, and it is said of Sergios III. born in 906, installed on 20th March, 931, died in prison, in Jan.	936
127. Leo VII. inst. in Jan. 936, died in July,	939
128. Stephen VIII. inst. July, 939, died Nov.	942
129. Martin III. a Roman, installed March, 942, died Jan.	945
130. Agapit II. a Roman, installed March, 946, died end of	955
131. John XII. Octavian, born at Rome in 938, of the patrician Alberic, and afterwards patri- cian himself in 954, installed in Jan. 956; banished in 963 by the emperor Otho the Great,	963
132. Leo VIII. installed the 6th Dec. 963, died 17th March,	965
133. Benedict V. elected after the death of John XII. May, 964 and died at Hamburg, the 5th of Jnly,	965
134. John XIII. called Poole Blanche, born at Rome, installed the 1st Oct. 965, died 6th Sept.	972
135. Benedict VI. installed at the end of 972, strangled in	974

136. Boniface, Francon, son of Femicio, Anti-pope,
under the name of Boniface VIII. died in 975
137. Donas II. elected pope after the expulsion of
Francon or Boniface, died 25th Dec. 974
138. Benedict VII. a Roman, nephew of the patrician Alberic,
installed in 975, died 10th of July 983
139. John XIV. installed by the emperor Otho II.
in Nov. 983, banished by Francon or Boniface
in the month of March following put to death 20th Aug 984
John XV. who died before the month of July
is not counted: he is distinct from the following,
to whom the name of John XV. remains.
140. John XV. a Roman, son of the priest Leo,
installed in July, 906; banished by the
consul Creseentius in 987, restored by Otho III. died 996
141. Gregory V. Brunon, son of Duke Otho, and grandson
of the Emperor Otho I. installed 3d May,
banished by Creseentius in 997
142. John XVI. Philagathus, a Greek, installed by Cresenius
in 997, put to death by order of Gregory V.
who died 9th Feb. 999, 998
143. Sylvester II. Gerbert, born in Auvergne, archbishop
of Rheims, afterwards of Ravenna, installed Pope,
2d April, 999, died the 11th May, 1003
- ELEVENTH CENTURY.
144. John XVII. Siccon or Secco, installed 9th Jan. 1003,
died 1st Oct. 1003
145. John XVIII. Phasian, born at Rome of the priest Orso,
installed 26th Dec. 1003, abdicated the end of May
1009, and died 18th July, 1009
146. Sergius IV. Petrus Bucca Porci, Peter Groin,
installed in 1009, died in 1112
147. Benedict VIII. John of Tusculum, died in 1024
Coronation of Henry II. emperor in 1013.
148. John XIX. a Roman, of Tusculum, brother of the
preceding, formerly consul, duke, senator:
installed pope in Aug. 1024; banished by the Romans;
restored by the emperor Conrade, died in 1033
149. Benedict IX. Theophylacte, of Tusculum, nephew of
the two preceding, installed in 1033; banished
and restored in 1038; banished again in 1044,
and restored in 1047; retired in 1048
150. Sylvester III. John, bishop of Sabine,
pope in 1044, 1045, 1046

151. Gregory VI. John Gratian, pope in 1044, 1045, 1046
 Benedict IX. Sylvester III. and Gregory VI.
 all three, popes at the same time,
 were deposed by the emperor Henry III.
152. Clement II. Suidger, a Saxon (bishop of Bamberg)
 installed pope the 35th Dec. 1046, died 9th Oct. 1047
 Return of Benedict IX.
153. Damasius II. Poppon, bishop of Brixen, Installed pope
 the 17th July, 1048, at the moment of the retiring
 of Benedict, died 8th Aug. same year, 1048
154. St. Leo IX. Brunon, son of Hugues, count of Egesbeim
 in Alsace, born in 1002, installed pope in Feb. 1049
 died the 10th April 1054
 The Greek schism is completed under this pontificate.
155. Victor II. Gebehard, son of Hardulg, count of Calw
 in Swabia, installed the 13th April, 1055,
 died, in Tuscany, the 29th July, 1057
156. Stephen IX. Frederick, son of Gothelon, duke of
 Basse-Lorraine, installed the 3d Aug. died March 1058
157. Benedict X. John, bishop of Veletri, elected pope
 30th March, 1058, resigned the 18th Jan. 1060
158. Nicholas II. Gerard, born in Burgundy, installed the
 18th Jan. 1059, died the 21st or 22d July, 1061
 Election of the popes by the cardinals.
 Quarrel respecting investitures.
159. Alexander II. Anselm Badage, a Milanese, installed
 the 30th Sept. 1061, died the 21st April, 1073
 Cadaloo or Honorius II. antipope
160. Gregory VII. or Hildebrand, born near Soane in Tuscany,
 elected pope the 22d April, 1073, died 25th May 1085
 Quarrels with all the sovereigns.—Excommunication
 and deposition of the Emperor Henry IV.
 Donation of the Countess Matilda
 Gaibert or Clement III. antipope.
 Between Gregory VII. and Victor III. the
 Holy See is vacant one year.
161. Victor III. Didier, sprang from the house of the dukes
 of Capua, elected the 34th May, 1086, died Sept. 1087
162. Urban II. Otton or Odon, born at Rheims, bishop of
 Ostia, elected pope 12th March, 1088, died 1099

Excommunication of Philip king of France.
 First crusade in 1095.
 Death of the antipope Guihert 1100.

TWELFTH CENTURY.

163. Pascal II. Rainier, born at Bleda, in the diocese of Viterbo, elected pope the 13th Aug. 1099, died June 1118
 Degradation of the emperor Henry IV.—
 Quarrels's of the pope with Henry V.
 Albert, Theodoric, Maginulfe, antipopes
 after Guibert.
164. Gelasius II. John of Gaôte, elected pope the 25th Jan. 1118, died at Cloni 29th Jan. 1119
 Bourdin or Gregory VIII. antipope
165. Calixtus II. Gui, born at Quingey, of a count of Burgundy, archbishop of Vienne, elected pope the 1. Feb. 1119, died Dec. 1194
 End of quarrel about investitures.
 First council of the Lateran,
 9th œcumenical, in 1123
166. Honorius II. Lambert, born at Fagnano, installed the 21st of Dec. 1124, died 14th Feb. 1130
167. Innocent II. Gregorie of the house of the Papi, elected 15th Feb. 1130, died the 24th Sept. 1143
 Quarrells with the king of France, Louis the Young, &c.
 Peter of Leon, antipope under the name of Anaclet, and after him, Gregory or Victor IV.
 Second council of the Lateran, tenth œcumenical, in 1139.
168. Celestine II. Gui, a Tuscan, elected 26th Sept. 1143, died 9th March 1144
169. Lucius II. Gerard, born at Bologna, installed the 12th March, 1144, died the 25th Feb. 1145
 Arnauld of Brescia.
170. Eugenius III. Bernard, born at Pisa, elected 7th of Feb. 1145, died the 7th of July 1153
 Crusade of 1147.
 Decree of Gratian published in 1152.
171. Anastasius IV. Conrade, born at Rome, elected the 9th July 1153, died 2d December, 1154
172. Adrian IV. born at St. Albans in England, elected 3rd Dec. 1154, died 1st September 1159
 Disputes with the emperor Frederick Barbarossa
173. Alexander III. Roland, of Sienna, of the house of Bandinelli, elected 7th of Sept. died 30th of Aug. 1181
 Octavian or Victor III. Pascal III. Ca-

lixus III. and Innocent III. antipopes.
 Lombard-league against Frederick Barba-
 rossa.—Alexandria; Thomas a Becket
 &c.—3rd Council of the Lateran, 11th
 oecumenical, in 1179.

174. Lucius III. Ubalde, born at Lucca, elected the
 1st September 1181, died the 24th Nov. 1185
175. Urbanlll. Hubert Crivelli, elected 25th of Nov. 1185,
 died at Ferrara, 19th October. 1187
176. Gregory VIII. Albert, born at Beneventum, elected
 20th Oct. 1187, died 17th December 1187
177. Clement III. Paul or Paulin Scolaro, born at Rome,
 elected 19th December 1187, died 27th March,
 Crusade in 1189. 1191
178. Celestine III. Hyacinth Bobocard, born in 1108,
 elected pope 30th March 1191, died 8th of Jan. 1198

THIRTEENTH CENTURY.

179. Innocent III. Lothaire, of the house of the counts of
 Segni, born in i 160, elected pope 8th Jan. 1198,
 consecrated 23d Feb. following, died 16th July, 1216

 Disputes with the Venetians, with the
 king of France Philip Augustus, with
 John king of England, with the emperor
 Otho IV. &c.
 Crusade of 1203; taking of Constantinople
 by the crusaders.
 Crusade against the Albigeoses; Inquisition;
 Twelfth Council of Lateran, twelfth œcumenical,
 in 1215.
180. Honorius III. Cencio Savelli, a Roman, elected at
 Perugia, 18th July 1216, consecrated
 24th of same month, died 18th March, 1227
181. Gregory IX. Ugolin, of the family of the counts
 of Segni, a native of Anagni, bishop of Ostia,
 elected and installed pope the 19th March,
 1227, died when nearly one hundred years
 old, 21st Aug. 1224
 The emperor Frederick II. four times ex-
 communicated.
 Body of decretals compiled by Raymond
 de Pennafort.
182. Celestine IV. Geoflrey de Castiglione, a noble
 Milanese, a Cistertian monk, bishop of Sabine,
 elected pope at the end of Oct. 1241, died Nov. 1241

 Between Celestine IV. and Innocent IV.
 the Holy See is vacant for 19 months.

183. Innocent IV. Sinibald de Fiesque, a noble Genoese, elected pope at Anagni, 25th Jane, 1243, consecrated 29th of the same, died at Naples, 7th Dec. 1254
Council of Lyons, 13th œcumenical, in 1245.
- The emperor Frederick II. deposed:—
Conferences of Louis IX. and Innocent at Clusi: Crusade against Conrade IV. and Manfred the son of Frederick.
184. Alexander IV. Reinald, of the family of the counts of Segni, bishop of Ostia, elected pope the 12th Dec. 1254, died at Viterbo, 25th May, 1261
- Excommunication of Manfred: Negociation with Louis IX. and Charles of Anjou, respecting the kingdom of Naples
185. Urban IV. Jacques-Pantaleon Court-Palais, born at Troyes in Champagne, archdeacon of Liege, bishop of Verdan, patriarch of Jerusalem, elected pope at Viterbo, 29th Aug. 1261, consecrated 4th Sept. following, died 2d Aug. 1264
186. Clement IV. Gui de Foulques, born at Saint-Gilles-le-Rhone, bishop of Puy, archbishop of Narbonne, cardinal, bishop of Sabine, elected pope at Perguia, the 5th Feb. 1265, crowned 26th of same month at Viterbo, where he died the 29th Nov. 1268
- Charles of Anjou called to the throne of Naples: Death of Concradine the 28th Oct. 1268: Pragmatic Sanction of Saint Louis
- The Holy See remains vacant from the 29th Nov. 1268 to the 1st Sept. 1271.
187. Gregory X. Thealde or Thibaud, of the family of the Visconti of Placentia, canon of Lyons, archbishop of Liege, elected pope 1st Sept. 1271 consecrated 27th Nov. of same year, died at Arezzo, the 10th Jan. 1276
- Coronation and excommunication of the emperors Rhodolph of Hapsburg, &c.
Second Council of Lyons, 14th œcumenical in 1274.
188. Innocent V. Peter de Tarantaise, a Dominican, cardinal, bishop of Ostia, elected pope at Arezzo, 21st Feb. 1276, crowned at Rome, 23d of the same, died 22d June, 1276
189. Adrian V. Ottoboni, a Genoese, cardinal deacon, elected pope 11th July, 1276, died 1276
190. John XXI. Pierre, a Portuguese, cardinal, bishop of Tusculum, elected pope at Viterbo

- 13th Sept. 1276, crowned 20th of the same;
died 16th or 17th May, 1277
191. Nicholas III. John Gaétan, a Roman, of the
Orsini family, cardinal deacon, elected pope
at Viterbo, 25th Nov. 1277, after a vacancy
of six months, crowned at Rome 36th Dec.
the same year, died 22d Aug. 1280
192. Martin IV. Simon de Brion, cardinal priest,
elected pope at Viterbo, 22d Feb. 1281,
crowned at Orvieto, 23d March, same year,
died the 28th March, 1285
- Sicilian vespers in 1282
193. Honorius IV. James Savelli, a noble Roman,
cardinal deacon, elected pope at Perugia,
2d April, 1285, consecrated at Rome, 4th of
May following, died 3d April, 1287
194. Nicholas IV. Jerome, a native of Ascoli,
brother minor, cardinal, bishop of Palestrina,
elected pope in 1288, died 4th April, 1292
- Vacancy of two years.
195. St. Celestine V. Peter Mouron, a native of
Isernia in the kingdom of Naples, elected
pope at Perugia, 5th July 1294, consecrated
24th Aug. following, abdicated 13th Dec.
of the same year, and died 19th May, 1296
196. Boniface VIII. Cajatan, a native of Anagni,
cardinal legate, elected pope 24th December
1294, consecrated 2d January, 1295, died October
1303
Proscription of the family of Colonna.
- Quarrels with the king of France, Philip
the Fair.
- FOURTEENTH CENTURY.
197. Benedict XI. Nicholas Bocasin, of Treviso,
the son of a shepherd; ninth general of the
Dominicans, cardinal bishop of Ostia,
elected pope 22d Oct. 1303, and crowned the
37th, died at Perugia the 6th or 7th of July, 1304
- A vacancy of eleven months
198. Clement V. Bertrand de Gotte, born at Villandran
in the diocese of Bourdeaux, bishop
of Comminges, elected pope at Perugia the
5th of June, 1305, crowned at Lyons the
14th Nov. of same year, died at Roquemaure
near Avignon, the 20th April, 1314
- The Holy See transferred to Avignon,

suppression of the Templars.—Excommunication
of the Venetians.—Clementines,

Council of Vienna, 15th œcumenical, in
1311.

From Clement V. to John XXII. an in-
terregnum of two years.

199. John XX, James d'Euse, born at Cahors,
cardinal, bishop of Porto, elected pope at
Lyons the 7th of Aug. 1316, died 4th Dec. 1334

Excommunication of the emperor Louis of
Bavaria.

Peter de Corbieres, a Franciscan, anti-
pope under the name of Nicholas V.

Treasures of John XXII.—His 4 extravagants.

200. Benedict XII. James Fournier, born at Laver-
dun, in the county of Foix, cardinal,
elected pope 20th Dec. 1334, crowned at
Avignon 8th January 1335, died 25th Apr. 1342

Pragmatic Sanction of the Germans

201. Clement VI. Peter Roger, born in the diocese
of Limoges, a monk of the Chaiae-Dieu,
archbishop of Rouen, cardinal, elected pope
7th May, 1342 and crowned the 19th,
died at Villeneuve, near Avignon, 6th Dec. 1352

Anathemas against Louis of Bavaria.—
Joan II. queen of Naples, sells Avignon
to the pope, &c.

202. Innocent VI. Stephen d'Albert, born in the
diocese of Limoges, bishop of Noyou, in
Clermont, cardinal, bishop of Ostia, elected
pope, 18th Dec. 1352, and crowned the 30th
died at Avignon the 12th Sept. 1362

Cessions of the emperor Charles IV. and
beginning of the sovereignty of
the popes in 1355.

203. Urban V. William, son of Orimond, lord of
Grisac in Gevaudan, a Benedictine, elect-
ed pope in Sept. 1362, and crowned the 6th
of November, died 19th December, 1570

He was compelled to return from Rome
to Avignon

204. Gregory XI. Peter Roger, born in the diocese
of Limoges, nephew of Clement VI. cardi-
nal, elected pope the 30th Dec. 1370,
crowned the 5th Jan. 1371, died at
Rome the 27th March, 1378

After the death of Gregory XI. in 1278,
the schism of Avignon; and, of the West.

205. Urban VI. Bartholomew Piegnano, a Neapolitan, elected pope at Rome the 9th of April 1378, crowned the 18th, died the 18th Oct. 1389
206. Clement VII. Robert, of the house of the counts of Geneva, canon of Paris, bishop of Therouane and Cambray, cardinal legate, elected pope at Fondi the 21st Sept. 1358, acknowledged in France, England, died 16th Sept. 1394
207. Boniface IX. Peter or Perrin Tomacelli, called the cardinal of Naples, elected by fourteen cardinals the 2d Nov. 1289, to succeed Urban VI.; died 1404
208. Benedict XIII. Peter de Lune, a Spaniard, born in 1325, cardinal deacon, elected the 28th Sept. 1394, to succeed Clement VII. died at Rimini the 18th Oct. 1417
- France withdrew from obedience to either pontiff

FIFTEENTH CENTURY.

209. Innocent VII. Cosma de Megliorati, born at Sulmone, cardinal, elected the 17th October, 1404, to succeed Boniface IX. crowned in November the same year, died 6th of Nov. 1406
210. Gregory XII. Ange Corrario, Venetian, cardinal, elected the 30th Nov. 1406, to succeed Innocent VII. ; abdicated the 4th July 1415, died at the age of ninety-two the 18th Oct. at Rimini, 1417
- Council of Pisa in 1409; it deposes Gregory XII. and Benedict XIII.; it elects Alexander V.
211. Alexander V. Peter Philarge, born in the Isle of Candia, bishop of Vicenza and Novara, archbishop of Milan, cardinal, elected pope, in the Council of Pisa, the 26th June, 1409, crowned 7th July, the same year, died at Bologna, May, 1410
212. John XXIII. Balthasar. Cossa, born at Naples, of a noble family, cardinal deacon, elected at Bologna by sixteen cardinals, the 17th May; 1410, to succeed Alexander V. is deposed by the Council of Constance, 29th May, 1415, died 22d of Nov. 1419
- Council of Constance, from the 5th Nov. 1414, to the 22d April, 1418; 16th æcu-

menical

213. Martin V. Otho Colonna, a Roman, cardinal
deacon, elected pope at the Council of Con-
stance, the 11th Nov. 1417, crowned the
213th: he entered Rome the 22d Sept. 1420,
died the 21st Feb. 1431
214. Clement VIII. Gilles de Mugnos, canon of Bar-
celona, elected by two cardinals in 1424, to
succeed Benedict XIII. or Peter de Lune,
abdicates the 26th July, 1429
216. Eugene IV. Gabriel Condolmere, a Venetian,
cardinal, bishop of Sienna, elected in the
month of March 1431, to succeed Martin V.
crowned the 11th of the same month;
declares for the Orsini against the Colon-
lias; is deposed by the Council of Basle,
22d of June, 1439, died the 23d of Feb. 1440
- Council of Basle, from the 23d of July,
1431, to the month of May 1043, the 17th
œcumenical Council of Florence, from the 26th Feb.
1439, to the 26th April, 1442, 18th œcu-
menical
Pragmatic Sanction of Charles VIII. in
1439
216. Felix V. Amadeus VIII. duke of Savoy, elected
pope by the Council of Basle, the 6th of Nov.
1439, crowned the 24th of July, 1440,
renounced the pontificate the 9th April, 1449
217. Nicholas V. Thomas de Sarzane, a Tuscan,
cardinal, bishop of Bologna, elected 6th
Nov. 1447, to succeed Eugene IV. and
crowned pope the 18th of the same month,
died the 24th March, 1455
- End of the schism in the West in 1449.
Taking of Constantinople by the Turks
in 1453
218. Calixtus, III. Alphonso Borgia, born in 1377
at Valencia in Spain, cardinal, archbishop
of Valencia, elected pope the 8th April,
1455, and crowned the 20th, died 8th Aug. 1458
219. Plus II. Piccolomini, born in 1405 near Sienna,
an author under the name of Eneae Sylvias,
cardinal, bishop of. Sienna, elected pope in 1468,
died at Ancona, in July, 1464
- Bull 'Execrabiis.'—Abrogation of the
Pragmatic of Louis XI.—Letter of Pius II.
to Mahomet II.

220. Paul II. Peter Barbo, born at Venice in 1417, cardinal of St. Mark, elected pope the 31st Aug. 1464, crowned the 16th of Sept. the same year, died the 28th July, 1471
221. Sixtes IV. Francisco d'Albeacola de la Rovere, born in 1413 at Celles near Savona, a Franciscan, cardinal, elected pope 9th Aug. 1471; died the 13th Aug. 1484
- Conspiracy of the Pazzi against the Medici at Florence in 1478
222. Innocent VIII. John Baptist Cibo, a noble Genoese, of Greek extraction, born in 1432, cardinal, elected pope the 29th Aug. 1484, crowned 12th Sept. same year, died the 26th July, 1492
222. Alexander VI. Rodrigo Borgia, born at Valencia in Spain in 1431, cardinal, archbishop of Valencia, elected pope 11th Aug. 1492, crowned the 26th: died the 18th Aug. 1503
- He betrayed Charles VIII. Louis XII.

SIXTEENTH CENTURY.

224. Pius III. Peter Piccolomini, nephew of Pius II. cardinal of Sienna, elected pope the 22d Sept. 1603, crowned the 8th Oct. same year, died the 18th of same month. 1503
225. Julius II. Julian de la Rovere, born in 1441 near Savona, nephew of Sixtus IV. bishop of Carpentras, Albano, Ostia, Bologna, and Avignon, cardinal, elected pope 1st of Nov. 1503, and crowned the 19th, died the 21st Feb. 1513
- League of Cambray.—Louis XII. excommunicated &c.
- Fifth Council of the Lateran, 19th œcumenical, in 1512, 1517.
226. Leo X. John de Medicis, son of Lorenzo, born at Florence in 1447, cardinal deacon, elected pope the 11th of March 1513, died 1st Dec. 1521
- Excommunication of Luther.—Concordat with Francis the I. in 1516
227. Adrian VI. Adrian Florent, born in 1459, cardinal, bishop of Tortosa, elected pope the 9th of January, 1522 died Sept. 1523
228. Clement VII., natural and posthumous son of Julian de Medicis, born at Florence in 1478, archbishop of Florence, cardinal, elected pope 19th Nov. 1523, and crowned the 25th; died Sept 1534

Holy league against Charles V.—Excommunication
of the king of England, Henry VIII.

229. Paul III. Alexander Famese, born at Rome
in 1466, bishop of Ostia, dean of the sacred
college, elected pope the 13th Octo. 1534,
crowned the 7th of Nov. died 10th Nov. 1549

Bull "In cœna Domini,"
Council of Trent, from 1545 to 4th Dec.
1563, and last œcumenical.

230. Julius III. John Maria del Monte, born at
Rome, the 10th Sept. 1487, bishop of Pales-
trina, archbishop of Siponte, cardinal, elected
pope the 8th of February 1550, and crowned
the 20th; died the 23rd of March, 1555

Excommunication of the king of France,
Henry II.

231. Marcellus II. Marcel Servin, born at Monte
Pulciano, cardinal, elected pope 9th of April,
crowned the 26th, and died the 30th same month 1555

232. Paul IV. John Peter Caraffa, a noble Venetian,
born in 1476, cardinal, elected pope
25th May 1555, crowned the 26th; died 18th Aug. 1559

The enemy of Spain.—Excommunication
of Elizabeth, Queen of England

233. Pius IV. John Angelo de Medicis, born at
Milan in 1499, cardinal, elected pope the
26th Dec. 1559, and crowned the 6th of Jan.
1550; died the 9th Dec. 1565

Proscribes the nephews of his predecessors

234. Pius V. Michael Ghisleri, a Ligurian, born the
17th Jan. 1504, a Dominican, cardinal, elect-
ed pope the 7th Jan. 1556, and crowned the
17th ; died the 1st of May, 1572

Canonized by Clement XI. in 1712
Pius renews the bull: "In cœna Domini."
He bestows on Cosmo de Medecis the title
of Grand Duke of Tuscany

235. Gregory XIII. Hugues Buon-Compagno,
born at Bologna in 1502, bishop of Vesti,
cardinal, elected pope 13th of May 1572,
and crowned the 25th; died 10th of April, 1585

Massacre of St. Bartholomew's-day the
24th of Aug. 1572.—The league

236. Sixtus V. Felix Peretti, born at Montalto,
in the Marche of Ancona, the 12th Dec.
1521, a herdsman, Cordelier, bishop of St.

- Agatha, cardinal, elected pope the 24th of April, 1585, died 27th Aug. 1590
- Anathemas against Elizabeth, against Henry IV. king of Navarre, &c.—Henry III. assassinated by James Clement.—The power of Philip II. king of Spain, detestable to Sixtus Quintus
237. Urban VII. John Baptist Castagna, born at Rome in 1521, son of a Genoese gentleman, archbishop of Rossano, cardinal, elected pope the 15th Sept. 1520, died the 27th of Sept. 1590
238. Gregory XIV. Nicholas Sfondrate, born at Cremona in 1535, bishop of Cremona, cardinal, elected pope the 3rd Dec. 1590, and crowned the 8th; died the 15th October 1591
239. Innocent IX. John Anthony Facchinetti, born at Bologna in 1519, bishop of Nicastro in Calabria, elected pope the 29th Oct. 1591, crowned the 3rd Nov. died the 30th Dec. 1591
240. Clement VIII. Hippolytus Aldobrandiri, born at Fano in 1536, cardinal, elected pope the 30th of Jan. 1593, crowned eight days after, died in the month of March 1605
- Abjuration and absolution of Henry IV.
- Pithou's Treatise on the Liberties of the Gallican Church, published in 1594
- SEVENTEENTH CENTURY.
241. Leo XI. Alexander Octavian de Medicis, born at Florence in 1535, cardinal, elected pope 1st of April, and died 27th of April, 1605
242. Paul V. Camillus Borghese, born at Rome, cardinal, elected pope 16th May 1605, and crowned the 29th, died 28th January 1621
- Excommunication of the Venetians.—Troubles excited in England.—Bull "In Cœna Domini," &c.
243. Gregory XV. Alexander Ludovisi, born 9th Jan. 1554 at Bologna, archbishop of this city, cardinal, elected pope 9th Feb. 1621, died 1623
244. Urban VIII. Maffeus Barberini, of an ancient Florentine family, archbishop of Nazareth, cardinal, elected pope 6th Aug. 1623, and crowned the 29th Sept. died 29th July, 1644
- Excommunication of the Duke of Parma
245. Innocent X. J. B. Pamphili, born at Rome

7th May 1574, cardinal in 1629, elected
pope 15th Sept 1644, and crowned 29th, died 7th Jan. 1655

Destruction of Castro.—Refusal of bulls
to the Portuguese bishops nominated by
John of Braganza.—The Duke of Guise
invited to Naples and betrayed.—Bull
against the Peace of Munster

246. Alexander VII. Fabio Chigi, born at Sienna,
the 15th of Feb. 1599, legate, nuncio,
cardinal in 1652, elected pope the
7th of April, 1655, died the 22d of May 1667

Formulary.—The ambassador of Louis
XIV. insulted at Rome, See.

247. Clement IX. Julius Rospigliosi, born at Pistoia in 1600
cardinal in 1657, elected pope the 20th June, 1667
died the 9th Dec. 1669

- 248 Clement X. J. B. Emile Altieri, born at Rome
in 1590, cardinal in 1669, elected pope the
27th April, 1670, died the 22d July, 1676

249. Innocent XI. Benedict Odescalchi, born at
Como in 1611, cardinal in 1647, elected
pope the 21st Sept. 1676, died 12th Aug. 1689

The Four Articles of 1682

250. Alexander VIII. Peter Ottoboni, born at Venice
the 19th April 1610, bishop of Brescia,
of Frescati, a cardinal in 1652, elected
pope the 6th October 1689, died the 1st of Feb. 1691

251. Innocent XII. Anthony Pignatelli, born at
Naples the 13th March 1615, archbishop
of Naples, cardinal, elected pope the 13th
July 1691, and crowned the 15th of the
same, died the 27th Sept. 1700

Refusal of bulls of Investiture

EIGHTEENTH CENTURY

252. Clement XI. John Francis Albani, born at
Pesaro the 22d July 1649, cardinal in 1690,
elected pope the 23d November 1700, and
consecrated the 30th, died the 19th March, 1721

Bull 'Vineam Domini' in 1705.—Bull
'Unigenitus' in 1713.—Quarrels with Vic-
tor Amadeus, king of Sicily

253. Innocent XIII. Michael Angelo Conti, Segni,
born at Rome the 15th May 1655, bishop
of Viterbo, cardinal in 1707, elected pope
the 8th May 1721, and crowned the 18th;
died the 7th Mar. 1724

254. Benedict XIII. Peter Francis Orsini, born the 2d Feb. 1649, a Dominican, cardinal, archbishop of Beneventum, elected pope the 29th May, 1724, and crowned the 4th June; died the 21st Feb. 1730

Legend of Gregory VII.

255. Clement XII. Lorenzo Corsini, born at Rome the 7th April, cardinal in 1706, bishop of Frascati, elected pope the 12th July, 1780, and crowned the 16th, died 6th Feb. 1740

256. Benedict XIV. Prosper Lambertini, born at Bologna, the 81st March 1675, cardinal in 1728, archbishop of Bologna, elected pope the 17th Aug. 1740, died the 3d of May, Esteemed by all Europe 1758

257. Clement XIII. Charles Rezzonico, a noble Venetian, born the 7th of March 1693, cardinal in 1737, bishop of Padua, elected pope the 6th July 1758, and crowned the 16th; died the 2d February, 1769

Affair of Malagrida in Portugal.—Quarrels with the Duke of Parma

258. Clement XIV. Vincent Antoine Ganganelli, born the 31st October 1705, at St. Archangelo near Ripaini, Cordelier, cardinal in 1765, elected pope the 19th May, 1769, crowned the 4th of June, of same year, died the 22d Sept. 1774

Abrogation of the bull 'In cœna Domini.'

—Suppression of the Jesuits

259. Pius VI. John Angelo Braschi, born at Cesena the 27th Dec. 1717, cardinal in 1773, elected pope the 15th Feb. 1775, crowned the 22d of the same month, died 29th Aug. 1799

N.B. In the above Chronological Table of thee Popes, the names of Clement VII. Benedict XIII. Clement VIII. and Felix V. be found twice: the latter however are considered as the true successors of St. Peter; this distinction is refused, or but partially allowed, to the first Clement VII. to Peter de Lune, to Gilles de Jugnos, and to Amadeus Duke of Savoy.

END OF THE FIRST VOLUME.

ENDNOTES AND

Footnotes

- [1] John xviii. 36.
- [2] Luke xxii. 25.
- [3] Matt, xxviii. 20.
- [4] Rom. xiii.
- [5] Qui resistit potestati, Dei ordinationi resistit; qui autem fesistunt, ipsi sibi damnationem acquirunt.
- [6] Chrysostom. Comm, on Epistle to the Romans.
- [7] Deum esse solum in cujus solius, imperatores sunt potestate, à quo sunt secundi, post quem primi ante omnes.— Colimus imperatorem ut hominem à Deo secundum, solo Deo minorem.— Tertull.
- [8] Quod rex delinquit, soli Deo reus est.—Cassiodoi'us, Si quis de nobis, O rex, justitiæ tram item transcendere volu-erit, à te corrigi potest: si verô tu excesseris, quis te corripiet, quis te condemnabit, nisi is qui se pronunciavit esse justitiam? —Gregor,

Turon. ad Chilpericum. Reges non sunt à nobis graviter exasperandi, divino judiciû sunt reservandi.—Yvo. Carnot. See Bossuet's reflections on these various texts of Scripture, and of the fathers. De(. Cler. Gail. par. 2. b. 6. ch. 13, 18, 26, 31, 32.

[9] Pelag. 1 Concilior. vol. 5. p. 803. Greg. Mag. vol. 2. p. 675, 676, 677.

[10] Nihil ecclesia sibi nisi fidem possidet.—Ambros. Op. tom. 2, p. 837.

[11] Abr. Chron. History of France, years 753, 754, 755.

[12] De Consider, ad Eugen. book 4. ch. 4.—Dante de Monarchiâ, book 3, proves that this donation could not bind the successors of Constantine; he declares it null, but without disputing its authenticity.

[13] A copy of this donation will be found in the 2d volume.

[14] Or puzza forte: Questo era il dono, se pero dir lece, Che Costantino al buon Silvestro fece. Or I. Fur. 14th chap. 8th stanza: This was the gift, with reverence be it said, Which Constantine to good Sylvester made.

[15] St Marc. Abridged History of Italy, vol. 1. p, 1 to 129.

[16] Anastas. Bibliotb. of the Lives of the Roman Pontiffs, p. 84.

[17] Fleury. Eccles. Hist b. xxx. n. 1.

[18] Liber decimus Romanorum Pontificum. Pere Gamier, & Jesuit, published an edition of it at Paris, in 1680. This collection had been published before by Holstenius, and was suppressed by the

Court of Rome.—Sec. on the Dependence of the Popes, 3d and 4th heads.

- [19] Non enim licebat tunc temporis quemlibet in Romanâ civitate ad pontificatum promovere absque jussu imperatoris. —Paul Diac. b. 3, c. 4.
- [20] Morin. History of the Origin and Progress of the Power of the Popes, p. 664,
- [21] Fleury. Ecclesiastical Hist. b. 39, n. 33.
- [22] Morin. History of the Origin and Progress of the Power of the Popes, p. 664.
- [23] Anast. Hist de vit. Bom. Pont, pages 147, 149.
- [24] Fleury. Ecclesiastical Hist. b. 41, no. 22.
- [25] Baronius. Ecclesiastical Annals, vol. 13, p. 343.
- [26] Ecclesiastical History, b. 40, n. 34. and 3d disc. n. 10.
- [27] Imperatorem et caput Christianorum. Greg. 2d Ep. to Leo.
- [28] Vestri à Deo conservati imperii. Ibid.
- [29] Pontifex introspectendi in palatia potestatem non habet ac dignitates regias deferendi.....Ecclesiis præpositi, sunt à negotiis reipublicæ abstinentes.—Greg. 2.

- [30] Nisi eos prohibuisset pontifex, imperatorem super se constituere fuissent aggressi.—Paul Diac. de Gesl. Longob.
- [31] Omnia Italia consilium iniit ut sibi eligerent imperatorem et ducerent Constantinopolim. Sed compescuit tale consilium pontifex sperans conversionem principis. Ne desisterent ab amore et fide Romani imperii admonebat.—Anast. Bibl. in vild Gregor.
- [32] Cedrenus, Zonaras.
- [33] This portion of the history of the eighth century, has been perfectly elucidated, by Bossuet. Def, Cler. Gall, “The time was not yet come, I shall be told, to display the pontifical power; and before resorting to violent remedies, the means of mildness and conciliation should be attempted.” “Very well,” replies Bossuet, “but if charity and Christian prudence did not yet permit Gregory to make use of all his power, should they not, at least, have made a diversion, to afford a glimpse to this proud prince of its extent, in order to intimidate him, and prevent the execution of his criminal projects. For, behold the style of the menaces of the emperor, as we learn from this sainted pope: I will go to Rome and break the image of St. Peter, and I will take Pope Gregory away, in order to transport him hither loaded with chains, as Constantius did with Martin.—He proposed to imitate, then, the example of the heretical emperors and persecutors of the Holy Pontiff. Let us see what Gregory conceived it his duty to reply to a prince, who formed such impious projects, and who flattered himself he could execute them, by putting forth the full extent of the imperial power. Did Gregory say, he could, when he wished, deprive him of this power? He dreamed not of it; and for his whole defence, he declared he desired earnestly to receive the crown of martyrdom, as did the blessed Pope Martin, whose memory all believers honoured. How far then was he from thinking of revolt, of taking up arms, of repelling force by force, in fine, from pronouncing sentences of deposition! Perhaps our adversaries will make the trifling reply, that the Church, as yet

too feeble, was not in a state to display all its powers. But it was the Empire, not the Church, which was weak in Italy.—See also Natalis Alex, in sec. 8th dissert. 1. Libeaus History of Low Empire, vol. 83, p. 368, 369.

- [34] Anast. Bibl. in vitâ Gregorii III.
- [35] Reipublica Romanorum, com pages S. Reipublicæ corpus Christo delectum exercitûs Romani. Apud Anast.
- [36] Gregory III. sent two ambassadors to the Mayor of the Palace, Charles Martel, to invite him to declare himself in favour of the Roman Republic against the Emperor of the East.
- [37] It was a reply simply of opinion: and Bellarmine vainly endeavoured to convert it into an absolute decree which deposed Childerick III. Pepin owed his throne to his talents and his good fortune: he obtained it by the consent of the French, and not by the authority of the pope. See Natal. Alex. Dissert. 2. in Century 8. ' Dupin. Treatise on the Ecclesiastical power, pa. 245. Bossuet. Def. Cler. Gall. p. 2. book 6. ch. 34.—Eginhard says, Missiserat Burchardus et Foldea-dus ut consulerent pontificem de causâ regum, &c. against this Roman republic, in which the head of the empire still preserved some shadow of sovereignty.
- [38] Id cum'ipsius imperio pemiciosum, tom nomine quoque apud posteros fore turpissimum.—Sigoniut Hist. rtgn. liai. 1.3, p. 197.
- [39] Joannes Silentarius à Constantino cum legatis pontificiis rediit, narrans imperatori placere ut ipse ad regem proficiscens, quantum precibus atque auctoritate “profiscere posset, experiretur,—Sigm. ibii. p. 199.
- [40] Hist. Eccl. book 43. no. 17.

- [41] Pipinus. pius. primus, amplificandæ. ecclesiæ. viam. aperuit. et exarchatum. Ravennæ. cum amplissimis. Pere le Cointe cites the beginning of this inscription, and ends thus: Urbibus. territoriiis. ac. sedibus. principi. apostolorum. ejus. qua. demum. successoribus. libens. ac. volens. concessit. Ann. Êcl. Fr. vol. 6. p. 544.
- [42] Antiquit. S. Dionys. 1.2, c. 9. Regnabant inter Rhenum Ligerimque priores, Ad Boream fuerat terminus oceanus, Australemque dabant Balearica littora finem. Alpes et tectæ perpetuis nivibus.
- [43] Ibid. 1.2. c. 3.
- [44] Concil. vol. 6. p. 1619.
- [45] Ibid. vol. 6. p. 1694.
- [46] Fleury Hist. Eccles. 1.14. n. 2.
- [47] [--Greek--] Concil. Vol. 7. p. 99.
- [48] Eginhart. de Car. Mag. p. 91—96 of 6th vol. of Coll. of the Historians of France.
- [49] Crit Ann. Baiomi ad Ann. 800. a. 11.
- [50] Cod. Carol. Ep. Adriani VI. p. 550 of 5th vol. of Coll. of the Historians of France.
- [51] Leblanc. Medals of Charlemagne, &c, p. 17.

- [52] Velly. History of France vol. 1. p. 399.
- [53] Rhetorici hâc et hyperbolici loquitur Paulus. Anno eriiim 774, Roma neque à Longobardis oppressa fuit, neque à Carolo cum dilionibus suis unita, sed a Longobardorum in-sultibus liberata et Carolo jure patriciatûs tantum subdita.— Collection of Gallic and French Historian», vol. 5. p. 191. n. a.
- [54] Ann. Lauresh. St. Marc, Abr. Chron. of Hist, of Italy, vol. 1. year 796.
- [55] Ciampini, Vetera. Mon. par. 2. p. 128.
- [56] Theophan. Chron. — Eginhard, ad ann. 799.—Anastasius vit. Leonis iii.—Fleury. Hist. Eccles. 1* 45. n. 14.
- [57] Fleury. Hist. Eccles. 1. 45. n. 14. See also how Anastasias, the historian of the popes, relates the coronation of Charlemagne: Post hæc, adveniente die natali. D. N. J. C. in jam dictâ basilicâ B. Petri apostoli omnes interum congregati sunt, et tunc yenerabilis almificus pontifex xnanibus suis propriis pretiosissimâ coronâ coronavit eum. Tunc universi jidelcs Romani...unanimiter altisonâ voce, Dei nutu atque B. Petri clavigeri regni cœlorum, exclamaverunt: Carolo piissimo Augusto à Deo coronato, magno, pacifico imperatori, vita et victoria. Ante sacram confessionem B. Petri apostoliter dictus est, et ab omnibus constitutes est imperator Romanorum. Illico sanctissimus pontifex unxit oleo sancto Carolum, &c.— Anast. Bibl. in vita Leonis III.
- [58] De Regn. Ital. 1. iv. p. 252.
- [59] Annali d'Italia, ann. 800.

- [60] In uniting all these facts, says Bossuet, it is easy to see that Baronius asserts very inappropriately, that the popes had deposed the emperors because of their heresy, and transferred their empire to the French. It is on the contrary evident, that in Italy and at Rome, the popes themselves have constantly recognized as emperors, the image-breaking princes; and that the empire was only transferred to the French when it was possessed by Irene, a most catholic princess after her rejection of heresy.
- [61] Imperante nostro domino Carolo piissimo à Deo coronato. Ughelli, Ital. see vol. 5. col. 1095.
- [62] Concilior. vol. 8. p. 1120.
- [63] Carolus serenissimus Augustus.....imperator Romanorum gubamans imperium.....Datum idibus junii, anno iii. imperii nostri, et 35 regni nostri in Franciâ. Lecoigne Ann. ecclct. Francorum. vol. 6. p. 814.
- [64] Italiam totam. usque in Calabriam inferiorem. Eginhard.
- [65] Theg. de gestis Ludovici Pii. ann. 816.
- [66] Baronius Ann. Eccles. ann. 817.—Sigon. Hist Ital. 1.4.
- [67] Coll. of Histories of France, vol. 6. p. 108.
- [68] History of the Origin of the Power of the Popes, p. 627.
- [69] Hist, eccles. I. 45. n. 22.

- [70] Muratori introduces the same results, in the three first chapters of his work entitled: *Piena Esposizione di diritti imperiali ed Estensi sopra Comacchio*, 1712, in—fol.
- [71] *Hist Eccles.* 1.46. n. 57.
- [72] A. Marc. Ab. *Hist Italy*, vol. 1. p. 469.
- [73] *Ibid.* p. 472.
- [74] *Ibid.* p. 473.
- [75] Lpco illius (scil. Valentini) Gregorius presbyter tituli Sancti Marci electus est, dilatu consecratione ejus ad consulterai imperatorh. Quo annuente et electionem cleri et populi probante, ordinatus est in looo prions.—*Vit. Ludov. Pii.* kq mn. 827.—Gregorius presbyter non prius ordinatus est, quam legatus imperatoris Romam veneret et electionem populi ex-aminaret—*Eginhard. ad ann.* 827.
- [76] *De Concordiâ sacerdotii et imperii.* 1;8. c. 14. n.8.
- [77] *Concil. Grail*, vol. 1.
- [78] Si excoiwmunicaturua adveniret, excommunicatus abiret, cum aliter se haberet antiquorum canonum autoritas.—*Vit. hud. Pii.* in *Coll. of Hist, of France*, vol. 6. p. 113.
- [79] *Agobardi Oper.* vol. p. p. 53.
- [80] *Hist. Eccles.* 1.47. n.39.

- [81] Ebbon a contemporary historian thus speaks of it: Elegerunt tunc unum impudicum et crudelissimum, qui dice* batur Hebo, Rexnansis episcopug; qui erat ex originalium servorum stirpe.....Abstulerunt ei gladium de femore suo, iudicio servorum suorum, induentes cum cilicio. Tunc im-pletum est eloquium Jeremiæ prophet dicentis: Servi domi-nati sunt nostri. O qualem remuneratkmem reddidisti ei! Fecit te liberum, non nobilem, quod impossibile est post liber-tatem: vestivit te purpurio et pallio, tu induisti cum cilicio. Hie pertraxit te immeritum ad culipen pontificate, tu cum falso iudicio voluigti expellere à solio patrum suorum....Patres tui fuerunt pastores caprarum, non copsiliarii principum, &c. Thegon. de gettis budov. Pit tom. 45.
- [82] Def. Cler. Gall, vol.2. b. 6. ch.21.
- [83] Anast Bibl. de vit. Roman. Pontif. p. 352.
- [84] Libellas proclamationis adrersus Venilonem. Concil. vol. 8. p.79.
- [85] Fleury. Eccles. Hist 1. 60. n. 33.
- [86] De Dirortio Lotharii, vol. 1. Operum Hincmari.
- [87] Annal. Meteits. ad ann. 866. Annal. Fold. ad. ann. 365, 886.— Concil. Gall. toi. iii. p. 879.
- [88] Hist. Eccles. 1.50. a. 35.
- [89] Coll. Histories of France, vol. 8, p. 419.
- [90] Ibid, p. 428.
- [91] Ibid, p. 422.

- [92] Ibid, p. 438.
- [93] Concilior, vol. 8, p. 425.
- [94] Henry's Eccles. Hist -b. 60. n. 61.
- [95] Ann. Metens. ad. ann. 869.—Rhegin. Chron, ann. 869.
- [96] Hincmari Op. vol. 2, p. 689.—This letter is cited by Bossuet with applause. Def. Cler. Gal. p. 2, b. 6, ch. 23.
- [97] Concilior. vol. 8, p. 936.;—Coll. of Histories of France, vol. 7, p. 456—468.
- [98] Fleury's Eccles. History, b. 53. n. 24.
- [99] Concilior. vol. 9. p. 208.
- [100] Eccles. Hist. b. 52, n. 47.4
- [101] Joannis Epist ob.67.
- [102] Millofs Elem. of Hist, of France, vol. 1. p. 194.
- [103] Art of verifying dates, vol. i. p. 267.
- [104] Muratori's Annals of Italy, year 887.
- [105] Liutprand. b.i. c. 8.—St. Marc. Ab.of Hist of Italy, v.ii. p. 63.
- [106] SC Marc. Ab. of Hist of Italy, vol. 2, p. 636—640,

- [107] Hist of France, vol. 2 (in 12), p. 244.
- [108] Discour. 4, a. 10.
- [109] St Marc. Ab. Hist of Italy, vol, 2, pa. 668.
- [110] Concilior. vol. 9. p. 565—Bibl. Clun. —Fleury's Eccles. Hist. b. 54, n. 45.
- [111] Concil. Gall. vol. 3, p. 565.
- [112] Eccles. Hist. b. 66. n. 5.
- [113] Annal. Eccl. ad. ann. 931.
- [114] De regnorum Ital. b. 6, p. 400.
- [115] Lib. 3, c. 12, p. 410.
- [116] Annali Italia ad ann. 931.
- [117] Art of verifying dates, vol. 2, p. 10.
- [118] Liutprand, b. 6, c. 6.—Pagi. Crit. Ann. Baron, ann. 962 —Fleury. Eccles. Hist. b. 06, n. 1.
- [119] “This clause,” says Fleury, “shews, that the Emperor always preserved to himself the sovereignty and jurisdiction over Rome, and all places embraced in this donation: and the sequel of history will prove it.”
- [120] Eccles. Hist. b.66. n. 6.

- [121] Eccles. Hist b. 56. n. 6.
- [122] Bellarmine, says John XII, was almost the most vicious of the popes. *Fait feri omnium deterrimus. De Rom. pontif.* 6. 2. e. 29.
- [123] Ann. Eccles. ad. aim. 964.
- [124] Liutprand. I. 6. c. ult.—*Vita Joannis xii.* vol. 3. *Rer. ltd.* 1. ii. pa. 328.
- [125] See Pleffell. *Abr. Chron. of the History of the Public Rights of Germany*, ann. 964; Koch's *Sketch of the Revolutions of Europe*. 3d period etc.
- [126] These decrees are inventions in which we find exorbitant concessions to the imperial power, as well in the spiritualities as temporalities of the Church of Rome. Cardinal Baronius in his *Ecclesiastical Annals*, 964, father Pagi in his *Critique on Baronius*, and others, have wisely rejected similar impostures. *Muratori's Annals of Italy*, year 964. vol. 6. p. 410.
- [127] Liutprand. 1. 6, c. 6.—See vol. *Pannom.* 1. 8. c. 136; *Gratioti Decretum* dis. c. 73; *De Marca Concord.* 1. 8, c. 12; *St Marc. Abd. Hist, of Italy*, vol. 4. dog. 1167, 1185.
- [128] Bellarmine and others, have attributed to Gregory V. the institution of the seven electorates of the empire: this absurd opinion has been often refuted. See for example, *Natal. Alex. Dissert.* 18, in secul, 9 and 10; *Maimbourg's Hist, of the decline of the empire*, 1. 2, &c.; and *Dupin's Treatise on the ecclesiastical power*, p. 270.
- [129] Velly's *Hist, of France*, vol. 2, p. 275, &c.

- [130] “I know,” says Bossuet, “that Peter Damien assures us, that no person held intercourse with the king, except two servants for the necessary occasions of life. But, either those of whom the pious Cardinal received this information have exaggerated, or at least we must suppose that the public officers continued to exercise their duties, since without it the government could not subsist an instant. Besides if it were true, that the exercise of certain public offices had been suspended for some time, all history would testify to this interregnum, and relate the confusion which would have resulted from it.” *Defence of the Grail. Cler. p. 2, l. 6, c. 27.* Bossuet also observes, that at the moment in which Robert was struck with these terrible anathemas, nobody thought or asserted that this excommunication could carry the least attain to the sovereign authority of this monarch.
- [131] *Concilior. vol. 9, p. 744.* A discourse which Arnoul bishop of Orleans, pronounced in the Council of Rheims in 991, has been occasionally cited under the name of Gerbert, which discourse may be read in the history of this council revised by Gerbert. This very remarkable document is too long to be inserted here.
- [132] *Researches on France, b. 8, c. 13.*
- [133] *Velly’s Hist, of France, vol. 2, p. 293.*
- [134] *Ann. Eccles. ad ann. 1014. vol. 9, p. 48.*
- [135] *Hiclor, 1. l, c. ult.*
- [136] *Annal. Bened. ann. 1014.*
- [137] *Annals of Italy, year 1014, vol. 6, p. 45.*

- [138] Lib. 4, c. 6, 1. 6, c. 6.
- [139] J Dialo. 1: 3, In app. Chron. Cassin. vol. 1.
- [140] Amolice Angerius de Viti Pontificum, p. 340.
- [141] Fleury's Eccles. Hist 1. 59, n. 75.
- [142] Landolph Senior. Hist Mediol. 1. 3. et 4;—Rer. Italic. t. 4, p. 96, See.—Cocio. Hist, of Milan, pa. 1, b. 6, &C.
- [143] Baron. Ann. Leoies. ad ann. 1069.
- [144] Mabillon. Mus. Italic, v. 2. p. 114.—Fra. Pagi. Breviar. Pontif. Roman, vol. 2, p. 374.—Thomassin. Dicipl. vet. et nor. 1.2, c. lid, 116.—Muratori. de origine Cardinalatus. Ant Ital. v. 6. p. 156.
- [145] Concilior. tom. 9. p. 11,36.—Fleury Hiat.Eccles. 1.60 n 31.
- [146] Baronins. Ann. ecclea. ad. ann. 1069, 5,32,34.
- [147] Hist, eccles. 1.1. n. 2.
- [148] Humbert 1.3. contra Simonaicus c. 7 et 11.
- [149] Baronins. Ann. eccles. ad ann. 1060.—Muratori's Annals of Italy vol. 6. p. 106.
- [150] Dictalus Papæ. Concilior vol. 10 p. 110—Baron. Ann. eccles. ad ann. 1076, sec. 24. De Marca. 1.7, c. 26.8. 9.
- [151] Fleury Hist. Ecclea. 1. 62, n. 63.

- [152] Concil. Rom. ann. 1078.
- [153] Dngloss. Hist. Polon. 1. 3. 295.
- [154] Gregor. Epist 1. 2, ep. 13, 23.—Fleury Hist. Ecoles* L62,n. 9.
- [155] Fleury Hist eccles. 1. 62. a 9.
- [156] Greg. Epist 1. 1, 26, 26, 62, 67.—Fleury, 1. 62. n. 9.
- [157] Greg. Epist. 1. 2. ep. 6.—Fleury 1. 62. n. 16.
- [158] Apud omnes sanum aliquid sapientes luce clarius con-stabat falsa esse quae dicebantur. Nam et papa tam ésimié tamqne apostolicè vitam instituebat, ut nec minimum sinistri rumoris maculum conversations ejus sublimitas admitteret; et illâ in urbe celeberrimâ atque in tantâ obsequentium fire-quentiâ, obscœnum aliquid perpetrans, latere nequaquam potu-isset. Signa etiam et prodigia quae per orationes papœ frequen-tiùs fiebant, et zelus ejus ferventissimus linguas communie bant.—Lambert Schafur. ad ann. 1177. This chronicler attributes, as we see, to Gregory, the gift of miracles, and concludes from it that his commerce with Matilda was irreproachable. “Nevertheless, says the Jesuit Maimbourg, as the world, from a certain malignity attached to it, has a greater ‘penchant’ for believing the evil than the good, especially with persons of some reputation for virtue, this commerce failed not to be of bad effect, and tended to blacken his character of Gregory at this period.”
- [159] Diss. of St Marc. p. 1231. 1316 of v. 4. of Ab. Hist, of Italy.
- [160] Lamb. Schaf. ad ann. 1074.—Life of Gregory VII. ap. Bell. t. 17. p. 148.

- [161] Concilior. vol. 10. p. 366. Here is, according to Otho of Freisingen, the first example of the deposition of a king by a pope. *Lego et relego Roma norum regum et imperatorum gestu, èt nusquam invenio quemquam eorum ante hunc à Romano pontifice excommunicatum vel regno privatum.* Otho. Fies. Chron. 1. 6, c. 35.— *Quanta autem mala, quotbella, bellorumque discriminia, inde subsecuta sunt? Quoties misere Eoma obsessa, capta rastata?* Ibid. c. 36.
- [162] Henry's Eccles. Hist. 1074, 1080, 1. 62 and 63.
- [163] *Petra dedit Petro, Petrus diadema Rodolpho.*
- [164] *Vita Greg. 7, édita à Card. Arrag. p. 313.—Landulph Sen. I. 3, c. 3, p. 120.—Rer. Ital. vol. 5, p. 587.*
- [165] *Pauli. Beruried. Vit. Greg. VII. c. 110, p. 348.—Sigeb. Chron. ann. 1085.*
- [166] Fleury's Eccles. Hist. 1. 63, a. 25.—*Act. Sonet. Bell. 25. maii.*
- [167] *Researches on France, 1. 3. c. 7.*
- [168] *Velly's Hist, of France, v. 2, p. 493.*
- [169] *Fleury. Hist. Eccles. 1. 62. n. 14.*
- [170] *Giannone's Hist, of Italy. 1.10, c. 6.*
- [171] *Ibid. p. 12.*
- [172] He writes in these terms to Robert, Count of Flanders: "Pursue every where with all your power, Henry, the chief of heretics, and his abettors. You can offer to God no more acceptable sacrifice

than to combat him who has raised himself against God; who endeavours to deprive the church of the kingdom, and who has been banished by the decree of the Holy Ghost, which the prince of the apostles has pronounced. We appoint this undertaking to you, and also to your vassals for the remission of your sins, and as a means of arriving at the celestial Jerusalem.”

- [173] Velly's Hist, of France, vol. 2, p. 480.
- [174] Otho Friging. Chron. 1. 7, c. 8, 12.—Abb. Ursperg. Chron. p. 243.—Sigon. de Regno Italico. 1. 19.
- [175] Sigeib. Gemblac. apud Stras, vol. 1, p. 866.—Otho Fris. Chron. 1. 7, c. 12.—Fleury's eccles. Hist. vol. 66, n. 42.
- [176] Hist, of the Gall. Church, vol. 8, p. 187.
- [177] Chartula comittissæ Matbildia super concessione bono-rum suorum, Roman, eccles. vol. 6, p. 384. Script, rer. Italic.
- [178] Concilior. vol. 10, p. 883.—Abb. Ursperg. Chron. p. 204. —Muratori's Antiquities of Italy, med. ævi. vol. 6, p. 72. —Schill. de libertate eccles. German. 1. 4, c. 4, p. 545.
- [179] Art of verifying dates, vol. i. p. 283, 284.
- [180] Velly's Hist, of France, vol. iii. p. 73, 74.
- [181] Ibid. p. 88, 89.

- [182] Otto Frising. Chron. 1. 7, c. 17.—De Gestis. Fred. 1. 2, c. 2.—Mase. Comment, de rebus imperii sub Lothario ET. 1. 1, 8. 1. 9. 23; sub Conrade III. 1. 3, p. 141.—Chron. Weingen-tense de Guelfi principibus, apud Leibnitz, v. 1, p. 781.
- [183] Otho. Frising. Chron. 1. 7. c. 22,27,31.—De Gest. Frid. re. 1. 1. e. 21, 22, 27,26.—Moscow de reb. imperii sub Con rado HI. 1. 3, pa. 114.
- [184] This expedition is connected with our subject, only by general considerations, which we have already laid before oar readers—see page 116.
- [185] Chron. Corbeiens.
- [186] Guill. Neubrig, Rer. Angl. 1. 2. c. 6. et 9,—Ciacon. de Vitis pont. Rom. Hadr. 4.
- [187] Petri Bles. Op. p. 252, 263.—Conciliar. v. 9. p. 1143. Hist, eccles. 1. 70. n. 16.
- [188] Hist. Angl. anno. 1155.
- [189] Joann. Sarisb: Polycrat. 1. 6. c. 24; 1. 8. c. 22.
- [190] Hist, eccles. 1.70. n. 15.
- [191] Baron. Ann. eccl'es. ann. 1154.—Pagi. Act. ann. 1154, n. 4.
- [192] Lib. 18. c. 2. et segg.
- [193] Ann.eccles. ann 1166.—Conciliar vol. 10. pa. 1151.

- [194] Hist, eccles. 1. 70, n. 4.—Otho Frising. de Gert. Frider. Anoborb. 1. 2, c. 21.—Vit. Adrioni ed à card. Arrag.
- [195] Otho Frising. de Oert. Frid. 1.2, c. 14,15,20.—Radev. de Gert. Frid. 1.1, c. 11.—Bossnet's Def. Gull Church. 1.3, e« 18.
- [196] Radevic. 1. 1, c. 8, 9, 10.
- [197] Concilior. vol. x. p. 1144.
- [198] Concilior, vol. 10, p. 1145.
- [199] Radev. Gest. Frider. 1.1, c. 16.
- [200] Radev. 1. 17, c. 23.
- [201] Concilior. vol. 10, p. 1147.
- [202] Ana. eccles. ann. 1158. 76.—According to Bossuet, this letter of Adrian IV. alone, is requisite to annihilate all the conclusions which the Ultramontanes pretend to deduce from the ceremony of the coronation of kings.
- [203] Radev.l. 2. c. 1—15.
- [204] Lib. 2. c. 18*
- [205] App. p. 562.
- [206] Concilior vol. 10.
- [207] Ego dixi: Dii estis et filii Excelsi omnes Ps. 81. r. 6.

- [208] Abb. Ursperg. Chron. p. 221.
- [209] Vit Alex. III. edit, a card. Arrag. p. 468.—Acerbug Rfp-rena, p. 1151.—Baron. Ann. eccles. Anji. 1167, s. 11.
- [210] Matth. Paris. Hist. mag. p. 82, 83, 101, 104.—Collier's Ecclesiastical History, vol. 1, s. 12.—Concil. Magnse Britann. vol. 1. p. 434.—Epistolæ et Vita Thomæ Cantuar. &c. Brux. 1682, vol. 2. in 4to.—Natalis Alex. sec. 12, diss. 10, p. 833.—Telly's Hist, of France, vol. 3, p. 181, 198.
- [211] Maratori's Antiquit Ital. med. ævi. vol. 4, p. 249.— Orig. Guelph, vol. 2, p. 479.
- [212] Velly's Hist, of France, vol. 3, p. 327.
- [213] Velly's Hist, of France, vol. 3, p. 327.
- [214] Frasche.
- [215] Ann. eccles. ann. 1191.
- [216] Ann. d'Ital. ann. 1191.
- [217] Fleury's Eccles. Hist. 1. 76, n. 14, 1. 76, n. 6.
- [218] Ibid. 1. 76, n 9.
- [219] Ibid. 1. 76, n, 10.
- [220] Ego... nottim facio universil ad quos litteræ présentes pervenerint, quod ego domino meo Ph. illustri regi Franco rum consului, ut neque pacem neque treugam faciat regi Anglis, per

violentiam y el per coactionem domini papæ aut alicujus paps. Quod si dominus papa eidam domino regi super hoc aliquam faceret violentiam aut coactionem, concessi domino regi tanquam domino meo ligio et creantavi super omnia qus ab eo teneo, quod ego super hoc ei essem in auxilium de toto posse meo. Acts drawn up in this form in the names of Renaud count of Boulogne, Raoul count of Soissons, and of Odo duke of Burgundy, are to be found in the Chamber of Charters, all under the date of 1202.

- [221] Eccles. Hist 76 m. 60; 1. 79, no. 8.
- [222] Bofisuet, Defens. eler. Gallie. 1. 3. c..21.
- [223] Innoc. 3. Epist. 1. 15. ep. 77.—Rymer Act. pub. vol. 1, p. 67.
- [224] Velly's Hist, of France, vol. 3. pa. 472.
- [225] Velly's Hist, of France, vol. 3. pm 468, 475.
- [226] “Spiro qua l'ultimo fiato l'autorita degli Augusti in Roms.” Muratori, Annals of Italy, win. 1198.
- [227] Hist, eccles. 1. 76. n. 2.; Innoc. III, Epist 1. 8. ep. 69.
- [228] Velly's Hist, of France, vol. 3, p. 430, 468.
- [229] Concilior, vol. 11, p. 142,—Director. Inquis. part 1,c. 2.
- [230] Innoc. III. Sermon. de consec. pontif. op. vol. i. p. 180.
- [231] Fleury's eccles. Hist 1. 77, n. 62.

- [232] Thom. Cantiprat. in vita St. Lutg. virg. apud Surium 16 Jan.—Raynald. ad. ann. 1216.
- [233] Hist, eccles. 1. 77, n. 62.
- [234] Fleury's eccles. Hist. 1. 79, n. 21.
- [235] Concilior. vol. 11, p. 340, 346, 357.
- [236] Matt Paris, ann. 1239, p. 444.—Daniels, Hist, of France, vol. 3. p. 210.—Bossuet Def. Cler. Gall. 1. 4. c. 6.
- [237] Judex, judicium, clerus, sponsalia, crimen.
- [238] Velly, vol. iv. p. 306, 307.
- [239] Matt. Paris, p. 600.
- [240] While Innocent was at Lyons, some prebends of the church of this city became vacant, and he attempted to bestow them, in the plenitude of his authority, on foreigners, his relatives; but the people, and even the clergy of Lyons, resisted him to his face, and compelled him to relinquish this undertaking.
- [241] Matt. Paris, p. 697. Velly's Hist, of France, vol. iv. p. 469.—La Chaise's Hist, of St Louis, p. 449.
- [242] Hist. Eccles. 1. 83. n. 40.
- [243] Hist. Eccles. 1. 83, n. 25—26.
- [244] Fleury's Ecclesiastical Hist. 1. 82. n. 28. He relates also, 1. 83, n. 43, the reproaches which Robert Greathead, bishop of Lincoln, a

learned and pious prelate, addressed to the Court of Rome, and particularly to Innocent IV. "The pope has not been ashamed to annul the constitutions of his predecessors, with a *Non obstante*: in which he evinces too great a contempt for them, and gives a precedent for disregarding his own. Although many popes have already afflicted the church, this pope has reduced it to a greater degree of bondage, principally by the usurers he has introduced into England, and who are worse than the Jews. Besides, he has directed the friars preachers and the friars minors, when administering to the dying, to persuade them to bequeath by will their property for the succour of the Holy Land, in order to defraud the heirs of their wealth whether they should live or die. He sells crusaders to the laity as formerly sheep and oxen were sold in the temple, and measures the indulgence by the money which they bestow towards the crusade: furthermore the pope commands the prelates by his letters, to provide such a one with a benefice, according as he may wish to purchase, although he be a foreigner, illiterate, in every respect unworthy, or ignorant of the language of the country: so that he can neither preach nor hear confessions, neither relieve the poor nor receive the traveller, as he is not a resident." Fleury adds, that Robert Greathead enlarged on the views of the court of Rome, especially its avarice and dissoluteness. "To swallow up every thing, it drew to itself the wealth of those who died intestate; and in order to pillage with the less restraint, it divided the plunder with the king. The bishop of Lincoln still more laments that the pope employed, in the collection of his extortions, the mendicant friars, learned and virtuous men, thus abusing their obedience by compelling them to mix with that world they had left; he sent them into England with great power as legates in disguise, not being allowed to send there in form and openly unless the king requested it." Such were, says Fleury, the complaints of the bishop of Lincoln, too sharp indeed, but too well founded, as appears by the writings of the period, even by the epistles of the popes.

- [245] Matt. Paris, p. 713,—Velly's History of France, vol. v. p. 102—100.
- [246] Velly's Hist, of France, vol. v. p. 193—197.
- [247] Hist. Univ. Paris, vol. iii. p. 365.
- [248] Velly's Hist, of France, vol. v. p. 326—345.
- [249] Vita Corradini, mors Caroli; mors Corradini, vita Caroli. Giannone, Istoria di Napoli. 19, c. 4.
- [250] “Nothing proves better,” says a modern author, “the influence of superstition.....than the number of crusades preached by order of Clement IV. A crusade into Spain against the Moors, whom they wished to exterminate; a crusade into Hungary, Bohemia and elsewhere, against the Tartars, whose incursions they dreaded; a crusade in favor of the Teutonic knights, against the Pagans of Livonia, of Prussia and of Courland, over whom they Wished to reign; a crusade into England against the barons, whom Henry III. could not subject; a crusade into France and into Italy, to deprive the house of Swabia of the kingdom of Naples and Sicily; a general crusade for the conquest of the Holy Land. The crusaders were often opposed; they were loosed from the obligation to the one, when pressed to the execution of another; indulgences were distributed at the will of the pope; the expenses of the war exhausted kingdoms, and the pope's bulls kindled flames throughout Europe.” — Millot's Elements of General History.—Mod. Hist. vol. ii. p. 184, 186.
- [251] Note upon P. Daniel's History of France, vol. iv. p. 563

- [252] Concilior. vol. ii. Proofs of the liberties of the Gall. Church, vol. i. pt. 2. p. 28, 60, 66, 76,—pt. 3, p. 41, and, Real's Science of Government, vol. vii. p. 72.
- [253] Bossuet Def. Cler. Gall. 1. iii. c. 33, 24, 35.
- [254] For the manners and religious opinions of this pope, see the pieces published by Dupuy. p. 523—560 of the Hist, of the dispute between Boniface and Philip the Fair. Many witnesses depose, that Boniface spoke with derision of the sacraments, of the mysteries, of the gospel, and even of the immortality of the soul. "We must," he said, "speak like the people, but we need not think like them."
- [255] 4th Disc, on Ecclesiastical History, no. 11.
- [256] De Consider. 1. 4, p 4, 5.
- [257] A. Villani. 1. 8, c. 101—Pfeffel. abr. chr. Hist, of Germany, ann. 1308.—Velly's Hist, of France, vol. 7, p. 393, 395
- [258] Fleury's Eccles. Hist. 1. 92, n. 8.
- [259] Baluz. Vit. Avenion. vol. 1, p. 69,—Fleury's Eccles. Hist. 1. 91, n. 33.
- [260] Henriçi. Vn. Iter, Ital. vol. 9. Rer. Italic, p. 703.
- [261] Baluz. Vit Pap. Avenion. v. 1. p, 164—Fleury's Eccles. Hist. 1. 82. p. 25.
- [262] Brûler.—Milot's Hist. of France, v. 2, p. 84.

- [263] Villaret's Hist, of France, t. 8, p. 234-253.—Henault's Abr. Chron. of Hist, of France, ann. 1329, et 1330.
- [264] Fltury's Eccles. Hist, 1. 93, n. 4.12.
- [265] Eccles. Hist. 1. 94. n. 39.
- [266] Pfeffel ann. 1338.
- [267] Fleury's Eccl. Hist. 1. 94, n. 611.
- [268] Eedw. Hiat 1,96, a. 13,
- [269] Fleury's Eccles. Hist. 1. 9 6,n.9.
- [270] Innocent VI. sent Philip de Cabassole into Germany, to raise the tenth penny on all the ecclesiastical revenues. The following were the complaints of the Germans at the news of this exaction: "The Romans have always looked on Germany as a mine of gold, and have invented various ways of exhausting it. What does the pope give to this kingdom but letters and words? Let him be master of all the benefices as far as the collation; but let him relinquish their revenue to those who do the duty of them. We send money enough into Italy for various merchandize, and to Avignon for our children, who study there or stand for benefices, without mentioning their having to purchase them. None of you are ignorant, my lords, that every year large sums of money are taken from Germany to the pope's court, for the confirmation of prelates, the obtaining of benefices, the prosecution of suits and appeals to the Holy See; for dispensations, absolutions, indulgences, privileges, and other favours. At all times the archbishops confirmed the elections of their suffragan bishops. It is pope John XXII. alone who, in our time, has taken this right from them by violence. And yet this pope further demands of the clergy, a new and unheard of subsidy; threatening with censures

those who will not give it, or who oppose it. Check this evil in its outset, and do not permit the establishment of this shameful servitude.” Vita 2, Lrnoc. VI. and Bahiz. Vit. Pap. A veiv. 1. p. 350.

[271] Petrarc. Op. Epist. s. tit 7. 8.10. 11.16.—Three sonnets against the Roman Coart—Et, De Vita Solitar. 1.3. 4. c. 3.

[272] Urban V. when dying, expressed these words: “I firmly believe all that the Holy Catholic Church holds and teaches; and if I ever advanced doctrines contrary to the church I retract and subject them to its censure.” Here is one pope, says Fleury, who did not think himself infallible.—Eccles. Hist. 1. 97, n. 18.

[273] Hist, of France, vol. xii. p. 270,271.

[274] Eccles. Hist. 1. 99. n.-26.

[275] Ibid. n. 26, 27,28.

[276] “The Verger’s dream,” one of the most ancient monuments of French literature and of the liberties of the Gallican Church, occupies the half of a folio volume, in the collection of proofs of, and treatises on these liberties.

[277] Theodor, de Niem. ap. Vonder Hart. vol. ii. p. 389.

[278] L'Enfant's Hist, of Coun. of Constance, 1. 2, p. 184.

[279] Invect. in Joann. 1. 23. p. 6.

[280] Fleury’s Eccles. Hist. 1. 103, n. 46.

[281] Theodor. Niem. Invect. p. 8.

[282] We must observe, said the president Henault, that in 1441 the king issued a declaration respecting the pragmatic sanction, implying that his design and that of the assembly at Bourges, was, that the arrangement made between Eugene IV. and his ambassadors should take effect from the day of the date of this pragmatic, without any regard to the date of the Basle decree, issued before the date of the pragmatic; and from this it is concluded, that the decrees of general councils, as respects discipline, have no force in France until after they have received authority from the edicts of our kings.—Ab. Chron. of Hist, of France, ann. 1438.

[283] "Never did individual," says Mezerai, "labour more to reduce the power of the popes within the limits of the canons than Eneas Sylvius; and never did pope endeavour more to extend it beyond the bounds of right and of reason, than the same man when he became Pius II."—Abr. Chron. vol. i. pt. 2, p. 436.

[284] Proofs of the Liberty of the Gallican Church, vol. i. p. 2, pa. 40.

[285] Pii secundi pontificis maximi, ad illustrem Mahumetem Turcarum imperatorem, epistola. Tarvisii, Garard de Flandria. 1475, in 4to. We read in fol. 4 and 3: "Parva res omnium qui hodie Vaint, maximum et potentissimum et cla-rissimum te reddere potest Quæris quid sit? Non est inventa difficiles neque procul quærenda; ubique gentium reperitur: id est, aquæ parexillium quo baptizeris. Id si feceris, non erit in orbe princeps qui te gloriâ superet aut tequare potentiâ valeat. Nos te Graecorum et Orientis imperatorem appellabimus Et sicut nostri antecessories, Stephanas, Adrianas, Leo, ad versas Haistulphum et Desi-deritun, gentes Longobardæ reges, Pipinum et Karolum Magnum accersiverunt, et liberati de manu tyrannicâ, imperium à Græcis ad ipsos liberatores transtulerunt, ita et nos in ecclesiæ

necessitatibus patrocínio tuo uteremur, et vicem redderemus beneficii accepti.”

[286] Art of verifying Dates, vol. i, p. 337.—‘ Formosus’ implies ‘handsome.’

[287] Muratori’s Annals of Italy, vol., ix. p. 508.

[288] Art of verifying Dates, vol. i. p. 327.

[289] He said, his courage would never support him in committing such a crime in a church, and adding to his treason sacrilege.—Machiavelli’s History of Florence, 1. 8.

[290] Ang. Politian. De Hist. coryurat. Pactianæ comment.—Don Bossi, chron. ann. 1478.—Machiav. Hist. of Flor. 1. 8.—Ammir. Hist. Flor. vol. iii. p. 118, &c.—Valori, Vita Laurent. Med.—Fabr. Vit. ejusdem.—Muratori’s Annals of Italy, years 1478, 1479, &c.

[291] “About this time, 1512, says Flecher, pope Julius piqued against France and her allies, abusing the power which God had given him, and making religion subservient to his own particular passions, went to such lengths as to excommunicate kings and strip them of their kingdoms. The greatness of Louis XII. secured him from these exactions, and France, supported by her internal force, feared neither the violence of the pope, nor the ambition of those who would have taken advantage of it to attack this crown. The evil fell on John d’Albret, king of Navarre, who, not being sufficiently provident to secure himself from surprise, nor powerful enough to defend himself against an armed neighbour, watchful of every opportunity to aggrandize his kingdom, had been ex-communicated because he had united with the king of France, and was finally driven from his states, under the pretence that he had contributed to the convocation and continuance of the

council held at Pisa against the Holy See. Ferdinand, in virtue of this bull of excommunication, which it is believed the pope had secretly conveyed to him before he had fulminated it, caused his troops to advance quietly, and put himself in a position to attack the king of Navarre, with whom he was living on good terms, and who suspected nothing. He knew in his conscience he was about committing " an injustice, and doubted not he would be reproached with his invasion: on this account he sent to desire Cardinal Ximenes might come to him in Logrogne, where he was, in order to sanction by his presence, at least in the eyes of his subjects, a war which in other respects had no just grounds." Life of Cardinal Ximenes, pa. 358, 359. Ed. of 1693.

[292] John Lemaire, a contemporary author, made upon the warlike disposition of Julius II. the following observation: "Still shall we declare another wonderful change it is, the Sultan's graciousness and tractability towards the Very Christian King, compared with the rigour and obstinacy of this modern pope, who, so martial and quarrelsome in his accoutrements, as if it was a duty of his to cause his terrible and warlike arms to be famous, like the great Tamerlane emperor and sultan of the Tartars, wishes always to be engaged in war, which is as becoming to him as for a dirty monk to dance. Unless he shall make some monstrous world to accord with his own ideas: for hogs will ever feed on acorns."—Preface to the Treatise on Schisms, p. 5. Julius II.

[293] History of Italy. 1. 11. ann. 1513.

[294] Guicciardini's Hist, of Italy, 1. 12. The King of France promised to aid the pontiff in the acquisition of the kingdom, of Naples, either for the church or for Giuliano his brother.

[295] They have erected a statue to him with this inscription: Optimo, principi. Leoni. X. Joan. Med. Pont. Max. ob. restitutam. restauratamque. urbem. aucta. sacra, bonasq. artes. adscitos. patres, sublatum, vectigal. datumq. congiarium. S.P.Q.R.P.

[296] Hist, of the Variat. 1. I, n. 1, 2, 3.

[297] On this subject observe the remark of Mezerai: "There never was seen go odd an exchange; the pope, who is a spiritual power, takes the temporal to himself, and bestows the spiritual on a temporal prince."

[298] Ab. Chron. of Hist, of France: remark, particul.

[299] The worst of it was, says Brantome, when they could not agree in their elections, they often came to blows, and cuffed each other with their fists, knocked each other down, wounded nay killed each other.....They generally elected him who was the best companion, who loved the girls and was the greatest toper; in short he who was most debauched: others elected, from pity, some wretch of a monk who had been secretly plundering them, or kept his own private purse and starved his poor friars.....The bishops, elected and installed in these great dignities, God knows what lives they led...A dissolute life after dogs, birds, feasts, banquets, clubs, weddings and girls, of whom they kept seraglios...I would add more; but I do not wish to give offence.

[300] Velly's Hist, of France, vol. xxiii. p. 161, &c.—Gaillard's Hist, of Francis I. vol. vi. p. 1—120.

[301] This mode of thinking on the pragmatic and concordat was so national, so constant, that in 1789 even the petitions prepared for the sessions of the States general unanimously demanded the abolition of the concordat and restoration of the pragmatic

sanction.. Summary of the Petitions, vol. i. p. 33; vol. ii. p. 277; vol. iii. p. 409, 410.

- [302] Bossnet. Def. Cler. Gall. Diss. præria. n. 38. p. 23... The text of Adrian is as follows: “Dico quod, si per Romanam ecclesiam intelligatur caput illius, puta pontifex, certum est quod possit erare, etiam in is quæ tangunt fidem, hæsim per suam determinationem aut decretalem docendo: plures enim fuerunt pontifices Romani hæretici. Idem et novissime fertur de Joanne XXII.” &c. In lib. 4, Sententiæ.
- [303] The Italians had no love for this pope: Pallavicini, in his Hist, of the Council of Trent, 1. 2, c. 9, n. 1, says, that Adrian VI. was indeed a very good priest, but a very indifferent pope.
- [304] It commences with these words: “Consuererunt Romiani Pontificis,” and contains twenty-four paragraphs.
- [305] See Appendix.
- [306] We shall transcribe in our 2d vol. some of the arguments of Paul and his theologians, to prove that the pope was the “superior” of the emperor.
- [307] We here beheld with what immense auxiliaries the clergy had encompassed and enriched their pastoral office. “They had,” says Pasquin, “extended their spiritual jurisdiction over so many matters and affairs, that the suburbs became thrice as large as the city.”—Researches on France, 1. 3, x. 22.
- [308] In 1580, many French bishops attempted to publish, in their dioceses, the bull “In coena Domini,” but on the complaint of the procureur general, the parliament of Paris ordered the seizure of the temporal revenues of the prelates who should publish this

bull, and declared, that any attempt to enforce it would be reputed rebellion and the crime of high treason.

[309] In execution of a decree of the council of Trent, a decree pronounced in 1546, Sixtus published in 1590, an official edition of the Vulgate; and, in a bull which served as a preface, he declares of his personal knowledge, and with the plenitude of his power, that this was the version consecrated by the holy council, commanding every old edition to be corrected by it, forbidding all persons from publishing any not exactly copied from this model, under penalty of the greater excommunication by the act alone. Who would believe that after such a sentence, this edition, which had been waited for forty and four years, should have been suppressed immediately after the death of Sixtus, and replaced, in 1592, by that which bears the name of Clement VIII. Between these two editions they reckon about two thousand variations, the most of which, however, are trifling. But the edition of Clement has prevailed in the catholic church; it is recognised and revered by it as the true Vulgate. We make this remark as one of those tending to prove, that even in matters of doctrine, the general consent of the churches abrogates, or confirms, the decisions of the popes. “We must admit, says Dumarsais, either that Clement was wrong in revising the Bible of Sixtus V.; or, that Sixtus erred in declaring by his bull, that the edition published by his order was very correct and in its purity.” Exposition of the doctrine of the Gallican church, pa. 163 of the 7 vol. of Dumaraais works.

[310] Bossuet Def. Clsr. Gall. 1. 3. c. 28.

[311] The 50th article of Pithou is cited in the edition of 1719.

[312] Richlieu rejected the prayers of Urban VIII. who, in his letters to Louis XIII., to the queen, and to Richlieu himself, ceased not to recommend the complete extermination of the Huguenots. “Cæterum, cùm scias quâ curâ custodiendi sint victoriarum fructus, ne marcescant, nemo est qui ambigat a te reliquis omnes

hæreticorum in Gallicâ vineâ stabulantium propediem profligatum iri.” Urb. VIII. Epis, ad principes, ann. 6. f. 10. Aux. Arch. of the Empire.

[313] The court of Rome, says Dumarsais, fears only those who do not fear her, and concedes only to those who will not concede to her; she has no power but that derived from the weakness of those who are ignorant of their own rights, and who ascribe to her, what she would never have dared to attribute to herself but for their blind deference.—Exp. of the Doctrine of the Gallican Church, v. 228 of 7th vol. of Dumariais’ Works.

[314] Bossuet. Def. Cler. Gall. 1. 4, c. 12.

[315] ‘Pastoralis Romani pontificis vigilantia,’ such are the words of the bull ‘In cænâ Domini,’ renewed by Paul; it has thirty articles, that is, six more than the bull ‘Consueverunt’ of Paul III.

[316] Bossuet. Def. Cler. Gall. 1. 4, c. 16.

[317] Register of Letters from the Secretary of State of Paul V. to the bishop of Montepulciano, nuncio in France, 1613, 1614.—In the Archivet of the Empire.

[318] Bossuet. Def. Cler. Gall. 1. 6, c. 30.

[319] See p. 380.

[320] Qui fu Castro.

[321] Mem. of Cardinal de Retz. vol. 5. p. 177, ed. of 1718. In support of this testimony of Renaldi, in our 2d vol. will be found a secret writing in which Alexander VII. contradicts his own public declarations. This document, of eight pages, is wholly in the hand

writing of this pontiff, and is dated by him 18th of February, 1664.

[322] D'Aguesseau says that "the terms of this letter were coached so that it could only be considered as a testimony of the grief of these bishops, in learning the prejudice which this pope entertained with respect to them, in regard to what had passed in the assembly held at Paris in 1682. They did not avow that these pretensions were well founded." Whatever d'Aguesseau may say about it, the letter of these bishops does them no honour: it will be found in our second volume.

[323] We shall transcribe in vol. 2, the letter of Louis to the pope, announcing that the edict of March, 1632, would not be executed. This letter is dated, as is that of the bishops, on the 14th of Sept 1693.

[324] See page 302.

[325] The bull 'Unigenitus' is one of those in which the king of France is not designated 'king of Navarre.'

[326] He contented himself with neutralizing as much as he could, the effects of the resistance of the bishops, and the resolutions of the parliament. The 18th of February 1730, he wrote to the council "that it sufficed in the present circumstances that the essential, that is, the maxims of the kingdom be secured. Prudence requires that we seek not to encrease the evil rather than cure it. The king desires especially that no mention be made of the mandate of the bishop of Auxerre; he ought to know that it was his duty, before its publication, to have made himself acquainted with the intentions of H. M. on so delicate an affair, and have come to concert the mode in which it should have been expounded."

- [327] The 19th of June 1768, he wrote, with his own hands, to Maria Theresa, to implore the assistance of this princess against the other sovereigns of Europe. "Thank God," said he, "we have resisted with a sacerdotal heart unworthy collusions."
- [328] Def. of the Clergy of France, 1. 8. c. 15.
- [329] A. i. a. 1.
- [330] Can. 4. Council. Hord. vol. 1. Col. 783.
- [331] Epist. 7.
- [332] Epist. 8.
- [333] Epist. ad Episco. Dardan.
- [334] Canon 6.
- [335] Gonzales de Avila. History of the Antiquities of the city of Salamanca, 1. 3, c. 14.
- [336] See page 298. (Ism. Bull.) Libelli duo pro eccl. Lucitanicis: Parisiis in 1655, in 4to.—Narratio...rerum quæ acci-derant super confirmaodis.....episcopis Lusitanie; Ulypsip. 1667, in 4to.
- [337] Præfat. ad App. Concil. Gall. v. 2.
- [338] De concord, sacerdot. et imperii.
- [339] Discip. Eccles. vol. 2, p. 2, 1. 2, c. 8

[340] “The re-establishment of metropolitans in their ancient rights,” says the bishop of Novarra, “confers the means of providing, without any injurious delay, for the vacant churches. It was for this purpose that the famous council of Nice conferred on the metropolitan alone the ordination of bishops: all the succeeding councils have been unwilling to recognize as bishop him who was not ordained by the decree of his metropolitan. The Roman pontiffs themselves have asserted this general doctrine of the church to the year 1051; and it was religiously observed during upwards of a thousand years. The bishop consecrated by the metropolitan and by his suffragans proceeded at once to the government of his church, and was installed by the clergy of the vacant see. Antiquity knew of no canonical institution or oath of fidelity to the Roman pontiffs, to which they would subject the episcopacy in these latter times, and by which they restricted its divine and original authority. Such are the true and invariable principles, is the constant and pure doctrine, of the church.” Address of the bishop of Novara to his His Imperial Highness the prince Viceroy of Italy. Moniteur 11th February 1811. The bishop of Forli professes the same principles. “The ordinary power of bishops,” says he, “is derived immediately from Christ.... In whatsoever place a bishop is to be found, whether at Rome, at Gubbio, at Constantinople, at Reggio, at Alexandria, or at Favi, he has the same character and possesses the same authority. All are equally successors of the apostles, so says St. Jerome.... After the abdication of Necturius, the council of Ephesus wrote to the clergy of Constantinople to take charge of this church, in order to render account thereof to him who by the divine will should be ordained thereto by command of the emperor....For upwards of a thousand years, no canonical investment was known in the church, nor oath of fidelity to the pope; obligations fatal to the ordinary authority of the episcopacy,” &c.—Moniteur, 16 Feb. 1811. “I am perfectly satisfied,” says the bishop of Verona, “that the spiritual jurisdiction which a bishop exercises is derived to him immediately from God, and that he may be placed in his see by the competent power, in virtue of the canonical decrees of the universal church....Bishops are not the vicars of the sovereign

pontiff, but the true ordinaries of their dioceses....In the council of Trent, the most learned bishops strongly defended the prerogatives of the episcopacy.”—Moniteur, 1st of March, 1811. The bishop of Verona, whose expressions we have above transcribed, published about thirty years since a volume in 4vo, entitled ‘De Finibus Sacerdotii et Imperii,’ a learned and judicious work which the court of Rome hastened to condemn.—For original see Appendix C.

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